Specific Places

7 Specific Places

Introduction

Many places in the Bayside LGA have a unique built form and natural environment or have been the subject of more detailed master planning and urban design studies to determine the most appropriate development outcomes. In such cases, more specific controls and considerations need to be applied to ensure that development is respectful towards an established existing character or contributes positively towards a future desired character.

This chapter provides controls for areas within the Bayside LGA where more specific controls exist. This ranges from wider precincts, which may be at a suburb scale, as well as a series of town and local centres, business parks, industrial areas, and individual sites.

How To Use This Chapter

This chapter applies to areas listed within the subsequent chapters and shown in **Figure 24** below. The provisions in the chapter prevail over any similar provisions in other sections of the DCP.

This chapter structures Place-specific controls in a tiered fashion. For example, some wider precincts contain smaller localities (like a centre or a business park) or key sites. In those cases, development applications are to respond to both the wider objectives and controls, as well as the more specific objectives and controls. In the event of any inconsistency, the more specific objectives and controls are to apply.

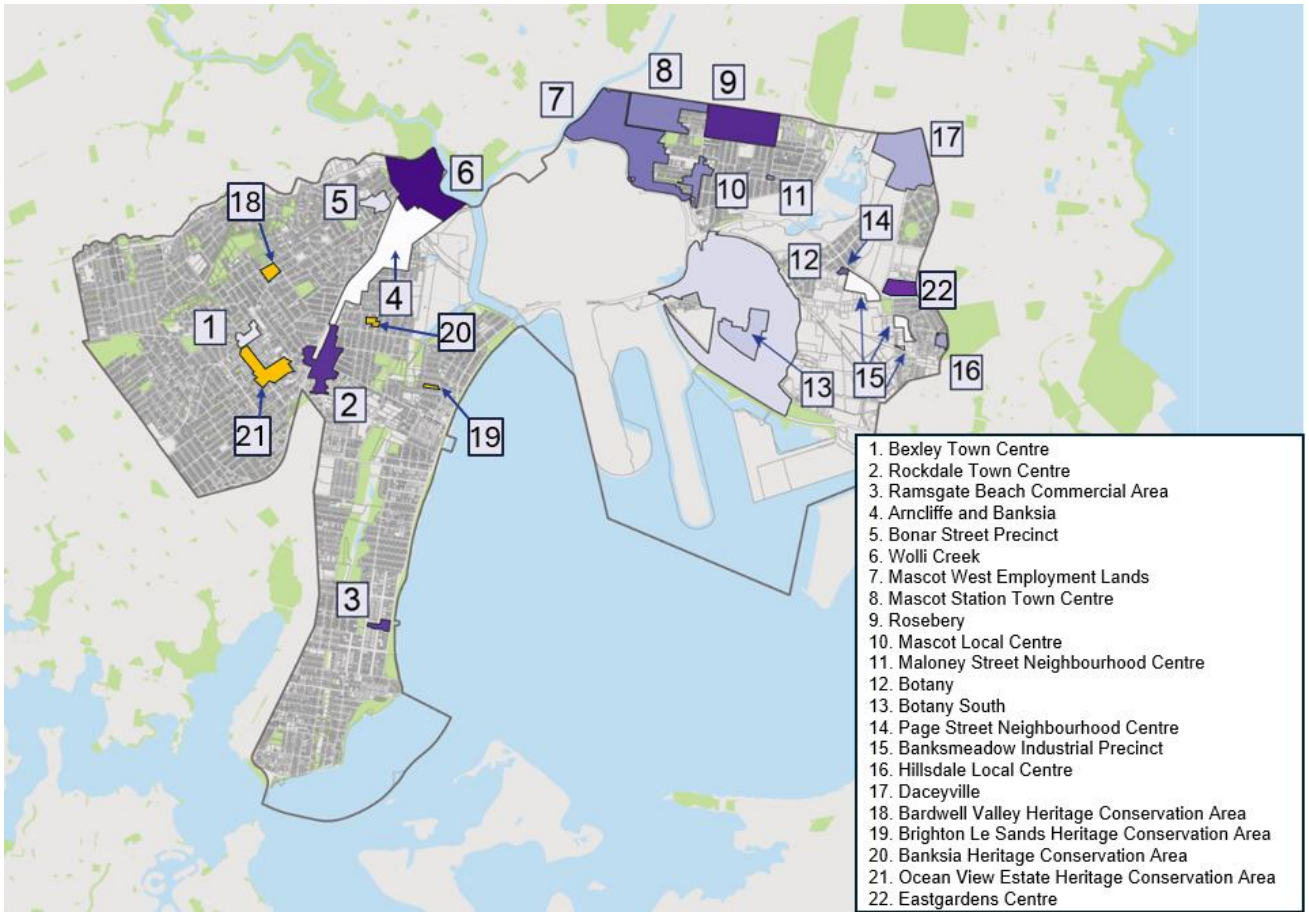


Figure 24: Specific Places Applying to this Part

7.1 Bexley Town Centre

7.1.1 Description

Bexley Town Centre is an important centre in Bayside, situated on a major roadway and surrounded by a large residential population within its walking catchment.

The centre is currently dominated by the busy Forest Road which impacts upon the amenity of pedestrians and adjoining shopfronts and residences. However, the centre has convenient vehicle access and parking.

Bexley Town Centre has an opportunity through redevelopment to gain greater pedestrian permeability and amenity, as well as improved character and function.

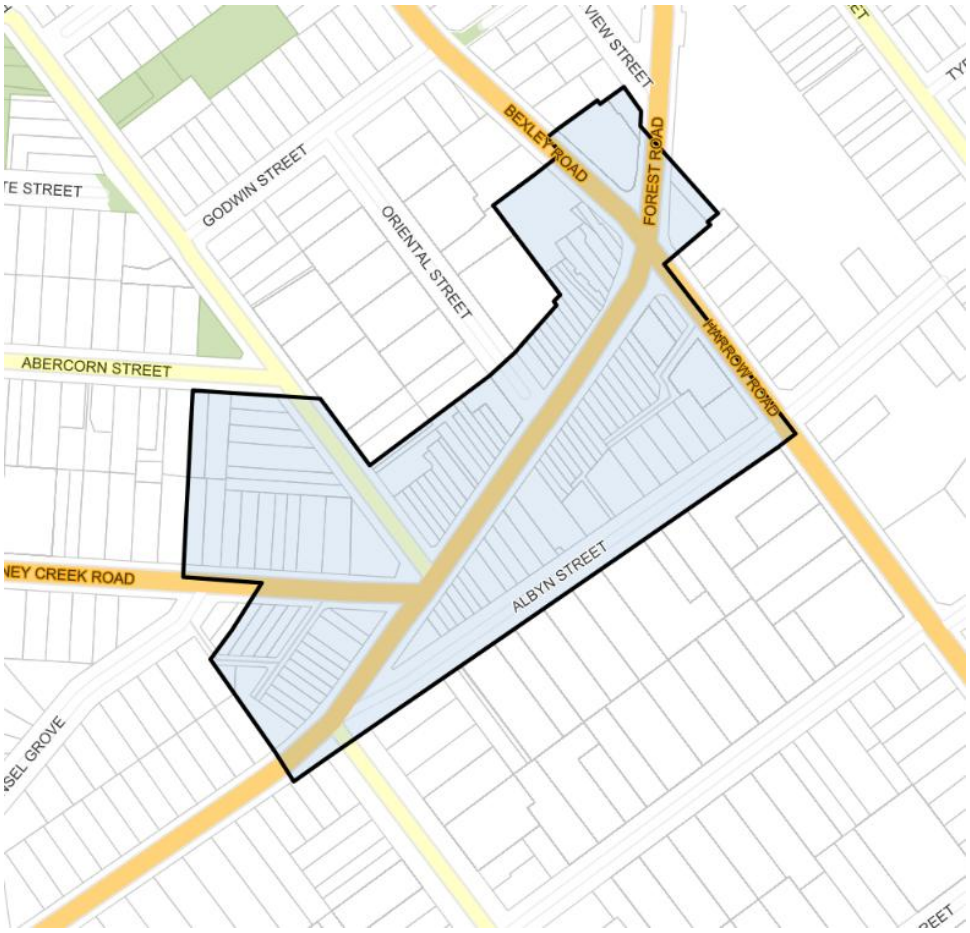


Figure 25: Bexley Town Centre Application Map

7.1.2 Desired Future Character

The pedestrian permeability of the centre would be improved by the provision of a pedestrian connection between Forest Road and the Albyn Street car park, which will expand the pedestrian network. This will contribute to a vibrant pedestrian shopping environment.

The existing open space area at the intersection of Oriental Street and Forest Road will be improved to provide greater opportunities for gathering and outdoor dining, with protection from the noise of Forest Road.

A new public open space will be established as part of any redevelopment of Albyn Street public carpark to contribute to the creation of a heart to the centre, that is connected to the proposed pedestrian arcade between Forest Road and Albyn Street.

To provide a high quality pedestrian retail environment, Albyn Road and Albyn Lane will take on a retail character with active frontages and outdoor dining on a pleasant tree lined street.

Convenient rear lane access will be maintained and enhanced to properties along Forest Road to improve amenity and encourage redevelopment. The improvement of Albyn Lane will also integrate with the pedestrian network increasing the permeability of the centre.

7.1.3 Controls

Objective		Control	
O1.	To facilitate the transformation of Albyn Street and Albyn Lane into active and vibrant retail areas, and provide an alternative pedestrian experience to Forest Road.		<u>Pedestrian Connection</u>
		C1.	A through site pedestrian arcade is encouraged within the area indicated on the Bexley Town Centre Structure Plan.
O2.	To improve the pedestrian permeability of the centre, particularly between Albyn Street and Forest Road.	**C2.**	A through site pedestrian arcade is to: a. have active frontages on both sides, with retail units having a minimum depth of 8m; b. be a clear and direct throughway for pedestrians; c. have a minimum width of 4m non-leasable space clear of all obstructions (including columns, stairs and escalators); d. where practicable, have access to natural light; and e. where air conditioned, have clear glazed entry doors comprising at least 50% of the entrance.
O3.	To provide usable and lively public space at the heart of the centre that enhances the character of the town centre and provide places of gathering.		<u>Public Domain</u>
		C3.	Development of Albyn Street Public Carpark is to provide an area of public open space which will: a) connect with the pedestrian arcade between Forest Road and Albyn Lane; b) facilitate the extension of Albyn Lane to connect with Albyn Street; c) be fronted by active retail uses; d) be open to the sky; and e) have a minimum area of 100m².
			<u>Retail Activity</u>
		C4.	Albyn Street and Albyn Lane are the preferred street frontages for vehicle and service access. Notwithstanding, active retail frontages are to be provided along Albyn Street and Albyn Lane where possible, as indicated on the Bexley Town Centre Structure Plan in **Figure 26**.

Objective		Control	
		C5.	Developments fronting Albyn Street and Albyn Lane are to: a) have separate and clearly articulated vehicle access points and building entrances to avoid pedestrian and vehicular conflicts; and b) have service areas that are unobtrusive and have minimal street presence. Preferably orientate service areas perpendicular to lane frontage. <u>Access</u> **C6.** Developments on properties from 394 to 408 Forest Road are to provide a rear setback of 6m to allow the extension of Albyn Lane to connect with Albyn Street, as indicated on the Structure Plan. The setback area is to be dedicated to Council at no cost.

Figure 26: Bexley Town Centre Structure Plan

7.2 Rockdale Town Centre

An update to this Chapter is being prepared separately to the preparation of this Plan. Upon adoption, the Chapter will be inserted into the Plan.

7.2.1 Introduction

Bayside is undergoing change. The Bayside Local Strategic Planning Statement (LSPS) sets out Council's vision to create opportunities for growth and improvements, while protecting and enhancing the natural areas, landscapes and waterways of Bayside including the former Rockdale local government area (LGA).

The Rockdale Town Centre Masterplan and Public Domain Plan (2012) were developed based on the community's aspirations and vision for Rockdale to guide the transformation of the town centre through redevelopment and placemaking. To realise Council's commitment to provide economic and jobs stimulus and deliver a legacy of safe, quality public and open space, Council has led various urban design investigations for the Rockdale Town Centre to establish appropriate built form and public domain outcomes.

The studies considered the Masterplan, the character of redevelopment that has occurred since its adoption, the Centre's high levels of public transport service, the need to accommodate population growth and the constraints placed on redevelopment by the topography, airport restrictions, parking and servicing requirements. The controls in this section of the DCP are based on the outcomes of these studies to unlock urban renewal on sites yet to be redeveloped by providing more certainty and making the centre a more attractive place for investment and residents by improving the quality of built form and public domain outcomes.

The Rockdale Town Centre Masterplan and Public Domain plan apply to all land within the town centre as identified in **Figure 27**.

This section applies to the area of land zoned B2 Local Centre and B4 Mixed Use within the Rockdale Town Centre area, including any roads and open space. Where there are any discrepancies with similar provisions in other sections of the DCP, the provisions in this section prevail. Development must otherwise be consistent with all other relevant provisions of the DCP.

This DCP works in conjunction with the Bayside LEP Height of Buildings Map and the Design Excellence clause to establish building heights and further building envelope controls within the Rockdale Town Centre. The requirements of this DCP must be considered for any development within the Application area to achieve Design Excellence.

This DCP also works in conjunction with the Rockdale Town Centre Masterplan and Public Domain Plan to establish controls for public domain interfaces and the intended public domain outcomes within the town centre. The Bayside LEP specifies that any development within the Application area is to improve the quality and amenity of the public domain to achieve Design Excellence.

7.2.2 Application of this Section

General Provisions

The provisions in Section 7.2.5 apply to all development within the Application area.

The provisions include a height hierarchy strategy and a public domain framework to strengthen the identity and improve amenity of the Town Centre as a whole.

The General Provisions provide an amalgamation pattern and built form controls that establish where and how the maximum heights specified in the Bayside LEP Height of Buildings Map can be achieved. It should not be expected that the maximum Height of Buildings control can be achieved on all sites or across the full extent of a site.

Special Character Areas

The provisions in Section 7.2.6 apply to all development where the General Provisions apply within the applicable Special Character Area boundary identified in **Figure 27**.

The provisions state the desired future character of each area and provide design guidance, built form and public domain controls detailing how development is to achieve the future character.

Where there are inconsistencies between the General Provisions and specific built form and public domain controls for a character area, the area-specific controls prevail. All other objectives and controls in the General Provisions still apply. For example, building articulation requirements are to be considered in addition to (and within) the building envelopes illustrated in the character area provisions.

The detailed built form illustrated within the character area is not a prescriptive design resolution. It is intended to outline a cohesive built from strategy that allows all sites to achieve more equitable amenity and development outcomes. It also shows critical dimensions where a bespoke response is required to adjoining existing/future development.

Development adjoining sites identified in the 'Detailed Built Form' diagrams must demonstrate how the design is integrates with future development on those sites and that those sites can be developed with outcomes equivalent or better to those intended in this DCP.

'Reference Context'

Since the Rockdale Town Centre Masterplan was first prepared, sites have been amalgamated, proposals for redevelopment of several sites have been approved and developments on various sites are complete, under construction or have current approvals – providing an established built form context for future development identified as 'Reference Context' in **Figure 27**.

Development adjoining sites identified as 'Reference Context' must demonstrate that those sites can still be developed as intended.

Further Investigation

Areas marked as 'Further Investigation' indicate where detailed urban design and built form studies are in progress and/or must be undertaken to inform an amendment to this DCP before development applications can be fully considered for those sites.

These areas include significant or highly constrained sites, sites adjoining heritage buildings or adjoining Council-owned land that would require an integrated urban design study and concept design to be developed in consultation with Council.

7.2.3 Important – 'Non-conforming' development

The controls in this DCP intend to achieve an orderly, equitable and cohesive pattern of development that benefits all sites as well as the Rockdale Town Centre as a whole.
If a development is proposed that:

- does not conform with the amalgamation pattern or built form controls (including the 'Detailed Built Form Controls') specified in this DCP, or
- modifies amalgamation patterns or building envelopes established as 'Reference Context',

the Development Application must:

1. Include a detailed urban design study illustrating how the development relates to the intended height hierarchy, building massing distribution and public domain outcomes across the whole Town Centre.
2. Demonstrate that the development achieves the desired future character of the Special Character Area where it is located. Where relevant, it must also demonstrate that the proposed development appropriately relates to the desired future character of adjoining area(s).
3. Include a concept design illustrating, as a minimum, existing and future development on the subject block and on any sites that could have development potential or amenity affected by the proposal.
4. Demonstrate that all sites, including the neighbouring sites can achieve their development potential, amenity and public domain outcomes as intended in the DCP and Public Domain Plan, or better.
5. Demonstrate that an orderly and cohesive pattern of development can be maintained for the entire precinct, equal to or better than depicted in the 'Detailed Built Form Controls'.
6. Demonstrate that development on the whole block can comply with the objectives of the ADG as well as accommodate the required built form, public domain outcomes, vehicular access, basement parking, servicing facilities, loading, storage and waste management areas as detailed in this DCP.

Note: the maximum Height of Buildings controls specified in the Bayside LEP should not be expected to be achieved where development does not comply with the amalgamation pattern or where there are significant departures from the built form and public domain controls.

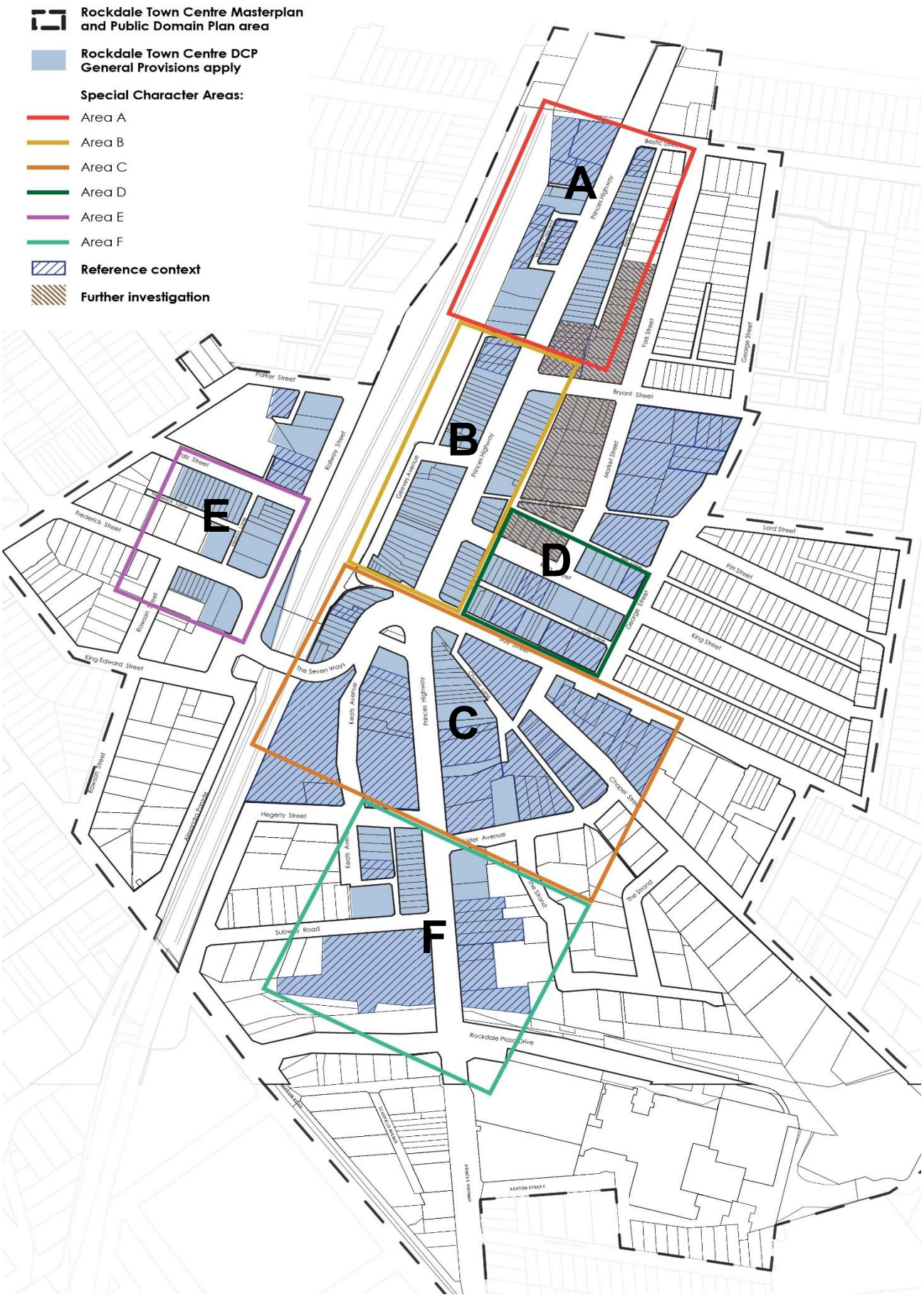


Figure 27: Application of this DCP

7.2.4 Vision

The controls in this DCP support the vision established in the Rockdale Town Centre Masterplan 2012 to create a "vibrant and liveable inner- city town", which is "a great place to shop, work, visit and live".

The Masterplan was developed based on the community's aspirations and vision for Rockdale, and established a series of design strategies and initiatives for transforming the town centre through redevelopment and placemaking. The vision and the key initiatives and strategies to help revitalise the town centre are reflected in **Figure 28** and in the objectives of this DCP.

Objective	
O1.	To deliver new housing and retail/commercial offerings that complement the overall activation and revitalisation of Rockdale Town Centre.
O2.	To provide for appropriate employment opportunities in accessible locations within mixed use development.
O3.	To facilitate the redevelopment of the area through the amalgamation of existing lots to achieve a high quality urban form and architectural quality.
O4.	To ensure development responds to the characteristics of the site and individual areas to foster a sense of place and enhance a positive image of the Town Centre.
O5.	To ensure new development creates a legible landscape, contributes to the street and reinforces the "human scale" built form.
O6.	To encourage Ecologically Sustainable Design principles to reduce energy, materials and water consumption.
O7.	To ensure that an orderly and cohesive pattern of development is maintained as sites are redeveloped, allowing all sites to retain amenity and achieve quality built form outcomes

1. Establish a unique **identity** for Rockdale
2. Grow the town **heart** and civic role
3. Increase the **vitality** and lifestyle
4. Improve the **pedestrian** experience
5. Strengthen the Centre's **economic** hubs
6. Provide convenient and legible **access** for visitors

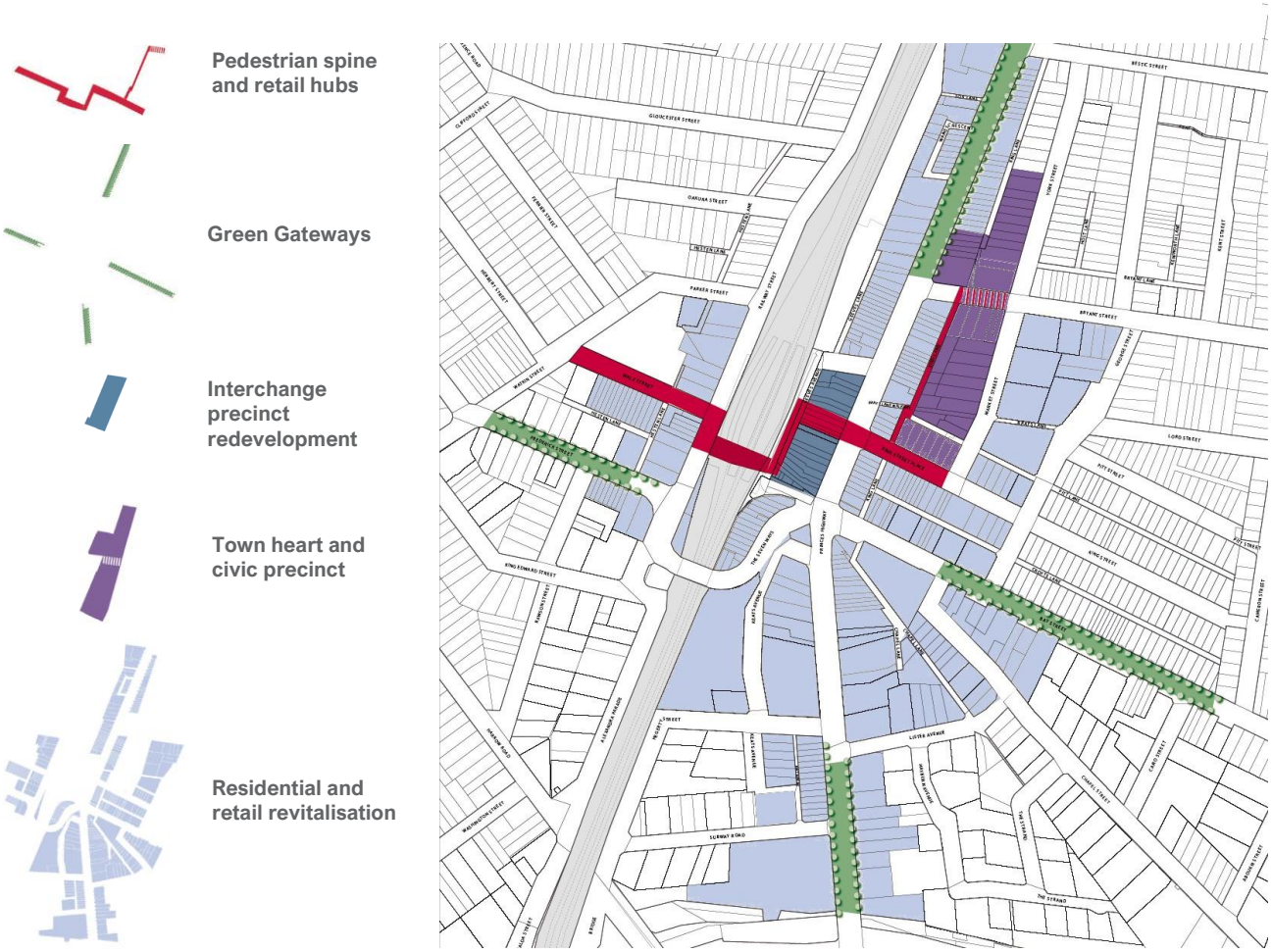


Figure 28: Rockdale Town Centre – Broader initiatives and strategies

7.2.5 General Provisions

The provisions in this section apply broadly to all development within the Rockdale Town Centre. Where more specific provisions apply under **Sections 7.2.6**, those provisions are to apply in the case of any inconsistency.

7.2.5.1 Site Amalgamation

Amalgamation of sites can achieve appropriate densities and improved amenity quality of an area. Site amalgamation is an attempt to balance planning requirements and intensification to revitalise the area, as well as achieving the desired character.

Objective		Control	
O1.	To facilitate appropriate dwelling yields, generation of employment, and a built form that will provide a positive contribution to the spatial definition of the street.	**C1.**	Development is to comply with the relevant amalgamation patterns outlined in **Figure 29**.
O2.	To encourage site consolidation of allotments for development to promote the desired urban design outcomes and efficient use of land.	**C2.**	If development is proposed on a site that does not conform to Council's amalgamation pattern, the development application must: a. Demonstrate that negotiations were undertaken with neighbouring owners to seek amalgamation and enable coordinated redevelopment. b. Provide evidence that reasonable offers have been made to the owner(s) of each of the affected sites to purchase, including written valuations for each site undertaken by two independent Valuers registered with the Australian Institute of Valuers. c. Demonstrate that the site has sufficient width to accommodate the proposal whilst still maintaining quality design outcomes. Site amalgamation must not compromise the significant features of existing sites or adjoining sites, including streetscape and landscape features (e.g. trees, rocky outcrops). d. Demonstrate that development on the alternative amalgamation pattern can achieve equal or better outcomes than specified in this DCP – Refer to Section 7.2.1 'Introduction' for details. e. Demonstrate that an alternative amalgamation pattern can be achieved by neighbouring sites and that an orderly and cohesive pattern of development can be maintained for the entire character area/ precinct achieving equal or better outcomes than specified in this DCP - Refer to
O3.	To ensure that redevelopment does not isolate lots, or prevent land parcels from reaching their redevelopment potential including meeting the NSW Apartment Design Guidelines (ADG).		
O4.	To ensure efficient and safe vehicle and pedestrian entry points can be achieved.		
O5.	To create and maintain amenity for existing and future occupants.		

Objective		Control	
			Section 7.2.1
		C3.	On sites identified as Reference Context, any intensification of development or change to building forms may require further amalgamation in addition to any requirements specified in Section 7.2.1. ***Note:*** *the maximum Height of Buildings as identified in the Bayside LEP should not be expected to be achieved where development does not comply with the intended amalgamation pattern or where there are significant departures from the built form and public domain controls.*

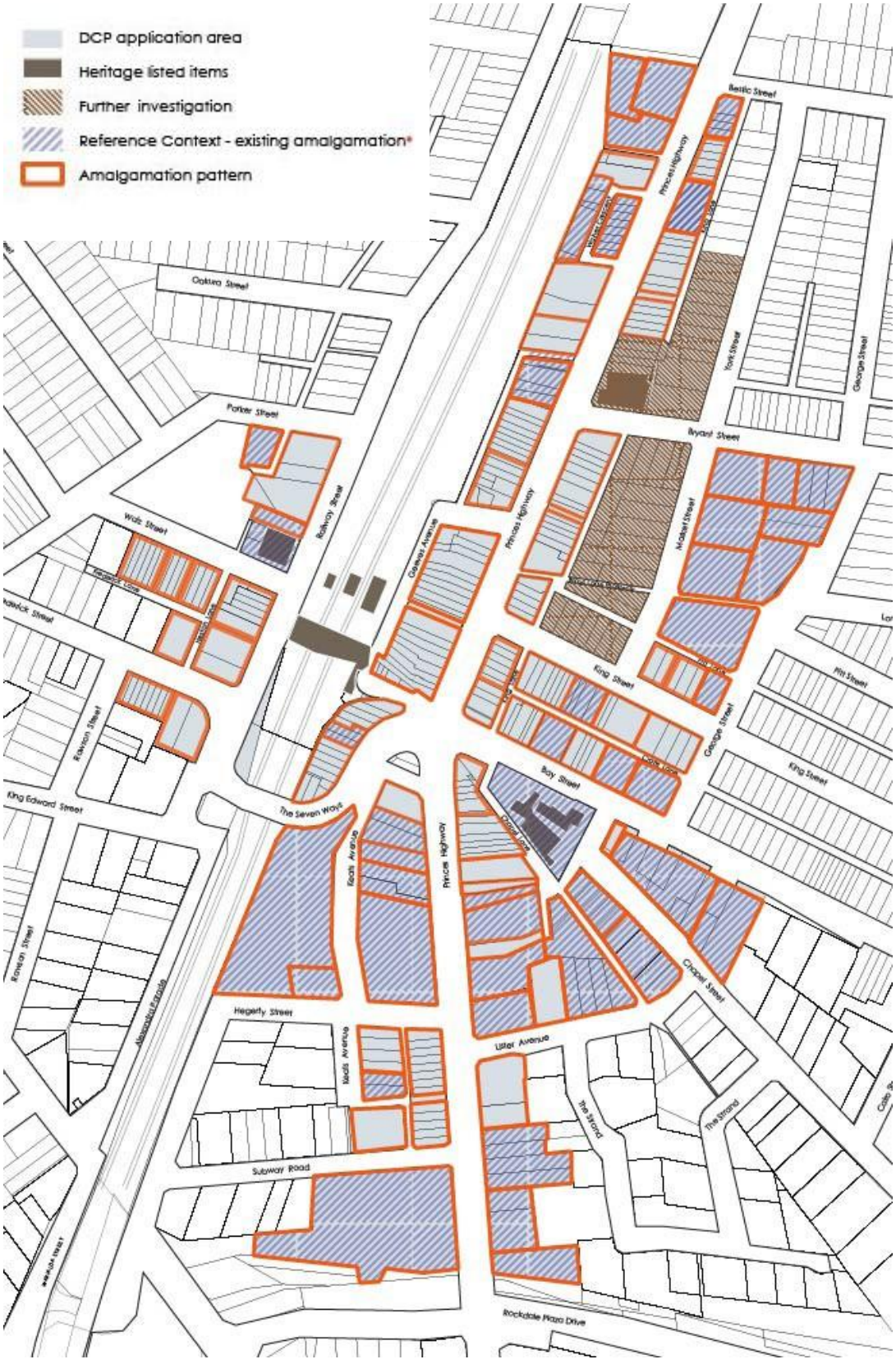


Figure 29: Amalgamation pattern

* *For Reference Context sites, the figure reflects the amalgamation of lots as per the latest approved development. Any intensification of development or change to building forms on those sites may require further amalgamation in addition to any requirements specified in Section 7.2.1.*

7.2.5.2 Built Form

Building Massing, Height and Articulation

Built form massing and articulation is fundamental to enhance the identity and character of streetscapes and neighbourhoods. Façade treatments create variety and interest while contributing to the continuity of the streetscape.

A building should define and support adjacent streets, parks, and open spaces at an appropriate scale, fit harmoniously within the surrounding context and skyline and assist in achieving transition to lower-scale buildings.

Long unarticulated façades provide less interest and variation at the pedestrian level. At upper storeys, long, continuous façades prevent sunlight access and sky views to the street. Building façades should be broken up both physically and visually. Breaks in long building façades provide mid-block connections for pedestrians and create additional public spaces.

Objective		Control	
O1.	To minimise visual impact, provide relief to the high-density built form and create variety and interest while contributing to the streetscape.	**C1.**	Building massing and articulation including street wall heights and setbacks are to be provided in accordance with the relevant sections of this DCP.
O2.	To improve access to sky views, permit vistas between buildings and through sites, and contribute to a more attractive skyline.	**C2.**	Building heights in storeys and the siting of towers/ taller portions of buildings are to be provided as indicated in **Figure 30**.
O3.	To ensure that building massing distribution reinforces and improves the urban character of the locality and provide visual connections between the Town Centre and the features that shape its identity.	**C3.**	Towers/ taller portions of buildings (above 9 storeys) are to be slender and orientated to avoid presenting its longest face to the public domain particularly along Princes Highway, Railway Street and King Street.
O4.	To ensure future built form reflects and considers the traditional fine-grained subdivision pattern of the area through architectural expression and built form principles.	**C4.**	Lower-scale buildings/ tower forms (9 storeys or less) when orientated towards Princes Highway are to be read as a strong podium upon which sits a lighter, modulated building allowing vistas between buildings to the skyline beyond.
O5.	To ensure building heights, massing and articulation respond to topography and other unique site features and constraints.	**C5.**	Floor to ceiling heights and spacing of built forms are to be consistent with the objectives of the ADG.
O6.	To ensure building massing distribution optimises design quality outcomes and does not prevent other sites from achieving quality redevelopment.	**C6.**	Development must maintain at least 3 hours of sunlight between 9am and 3pm on 22 June (winter solstice) to King Street Place.
O7.	To ensure building massing distribution retains and/ or enhances solar access to	**C7.**	Along narrow laneways, provide strong street edge definition on lower levels creating a human scale to the laneway with upper level units providing passive surveillance of the space.

Objective		Control	
	open spaces, canopy cover and delivers improved public domain outcomes.	**C8.**	The maximum building length should not exceed 45m above the street wall or 60m below the street wall.
O8.	To ensure new development is appropriate to the scale of nearby streets, public spaces, and buildings.	**C9.**	Surface effects with limited depth are not to be relied on to provide articulation and modulation.
O9.	To minimise overshadowing on surrounding development and public domain and minimise privacy issues between residential buildings.	**C10.**	Within each development, towers, podiums and private open space are to be sited so that adjoining sites retain development potential and amenity.
O10.	To enhance energy efficiency and increase daylight within buildings.	**C11.**	On sites that share a boundary with a residential zone, the height of the podiums is to respond to the height of buildings in that residential zone, and the built form above the podium set back as to minimise amenity impacts.
O11.	To avoid a continuous wall of towers facing Princes Highway and to limit and clearly define the scale of the street wall.	**C12.**	Design of buildings in proximity to a heritage item should respond to alignment and street wall height, setbacks above street wall height, and façade articulation elements with bulk and scale that are sympathetic to the heritage item.
O12.	To maintain solar access to King Street Place and achieve a consistent high pedestrian amenity character along King Street.		

Street Wall Heights

The role of the street wall is to frame the public realm, articulate entrances, and assist in the creation of an attractive and animated public realm which provides a safe, and interesting, pedestrian experience.

The street wall should define and support adjacent streets and open space at an appropriate scale. It should also integrate with adjacent street wall buildings, assist in achieving transition down to lower-scale buildings, and minimise the impact of parking and servicing on the public realm.

Within each character area, consistent street wall heights and podium-tower relationships help establish an identity for each area and a legible urban hierarchy across the Town Centre.

Objective		Control	
O1.	To provide street edges that reinforce and reflect the various uses and the unique identity of each character area while defining a legible urban hierarchy across the town centre.	**C1.**	Street wall heights are to be in accordance with **Figure 30**.
O2.	To ensure building heights at street level are responsive to the human scale.		
O3.	To provide prominence to the street level, establish a clear presence for retail and increase the visibility, marketability and utility of ground floor space.		
O4.	To promote views to the sky from the street or laneway.		
O6.	To provide an appropriate transition to adjoining heritage places when viewed from the street		
O7.	To provide appropriate transitions and be integrated with adjoining development, including planned future development.		

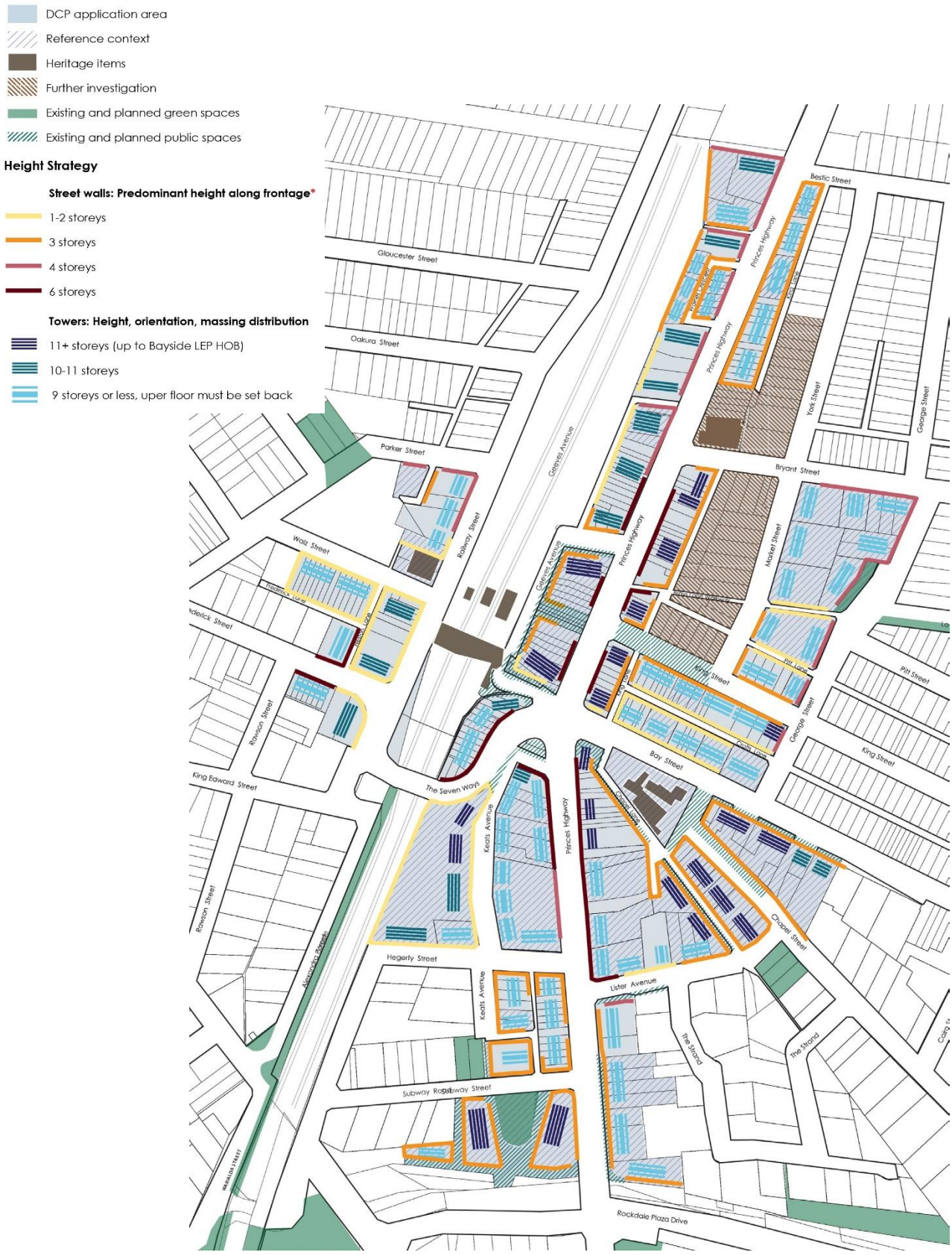


Figure 30: Height hierarchy and building massing distribution

* *Indicates the predominant street wall height required along each public domain frontage. Buildings and facades are to be designed to provide transitions between podiums of adjoining developments. Podiums are to wrap around corners at consistent heights unless the street walls are recessed to expose tower facades.*

Setbacks

Street setback controls define the building line and determine the location of buildings relative to the street boundary allowing an existing or desired future street character to be reinforced.

Side and rear setbacks help provide sufficient space for trees and landscaped areas, protect privacy of habitable rooms and outdoor living areas of existing development and reduce building bulk. In certain areas, such as the town centre core, having buildings built to the side boundary help define a more urban character.

Placing buildings above the street wall away from streets, open space, and neighbouring properties will reduce visual and physical impacts of the tall buildings and allow the base (street wall section of a building) to be the primary defining element for the site and adjacent public realm. Appropriate upper level setbacks are required for taller buildings to fit harmoniously within an existing context, including sites that contain or are adjacent to heritage properties.

Objective		Control	
O1.	To enhance the existing character of streets.	**C1.**	Setbacks are to be provided in accordance with **31** and the relevant sections of this DCP.
O2.	To define the street edge and contribute towards a consistent street enclosure.	**C2.**	**31** indicates the overarching setbacks from the property boundary and additional requirements such as setbacks at street level and locations where the street wall is to be 'peeled back' to provide additional public domain.
O3.	To frame and enhance views and vistas to natural and constructed character defining features of the town centre.		
O4.	To increase pedestrian amenity and provide pedestrian sight lines to the train station.	**C3.**	Additional setbacks and building articulation are to be provided to retain and enhance important view corridors and to improve visual connections to the train station, the Town Hall and Library buildings illustrated in **31**.
O5.	To increase amenity, minimising road noise propagation, wind tunnels and urban heat islands.		
O6.	To minimise perceived building bulk and scale from the street.	**C4.**	Lower-scale buildings/ tower forms indicated in Figure 30 (9 storeys or less) are to provide a minimum 3m setback to the top floor.
O7.	To allow for sunlight and sky views.	**C5.**	Towers are to be set back a minimum 3m from the street wall and as so that buildings are read as distinctive podium-tower forms even from a distance. None of the building elements including building articulation or façade treatments should encroach on to the setback.
O8.	To minimise adverse wind impacts on the pedestrian environment, noise propagation and urban heat islands.		
O9.	To contribute towards the distinctive character of Rockdale Town Centre.	**C6.**	On sites that share a boundary with a residential zone, the built form above the podium is to be set back as needed to minimise amenity impacts.
		C7.	A minimum 9m rear setback is to be provided

Objective		Control	
			where development shares a rear boundary with a residential property.

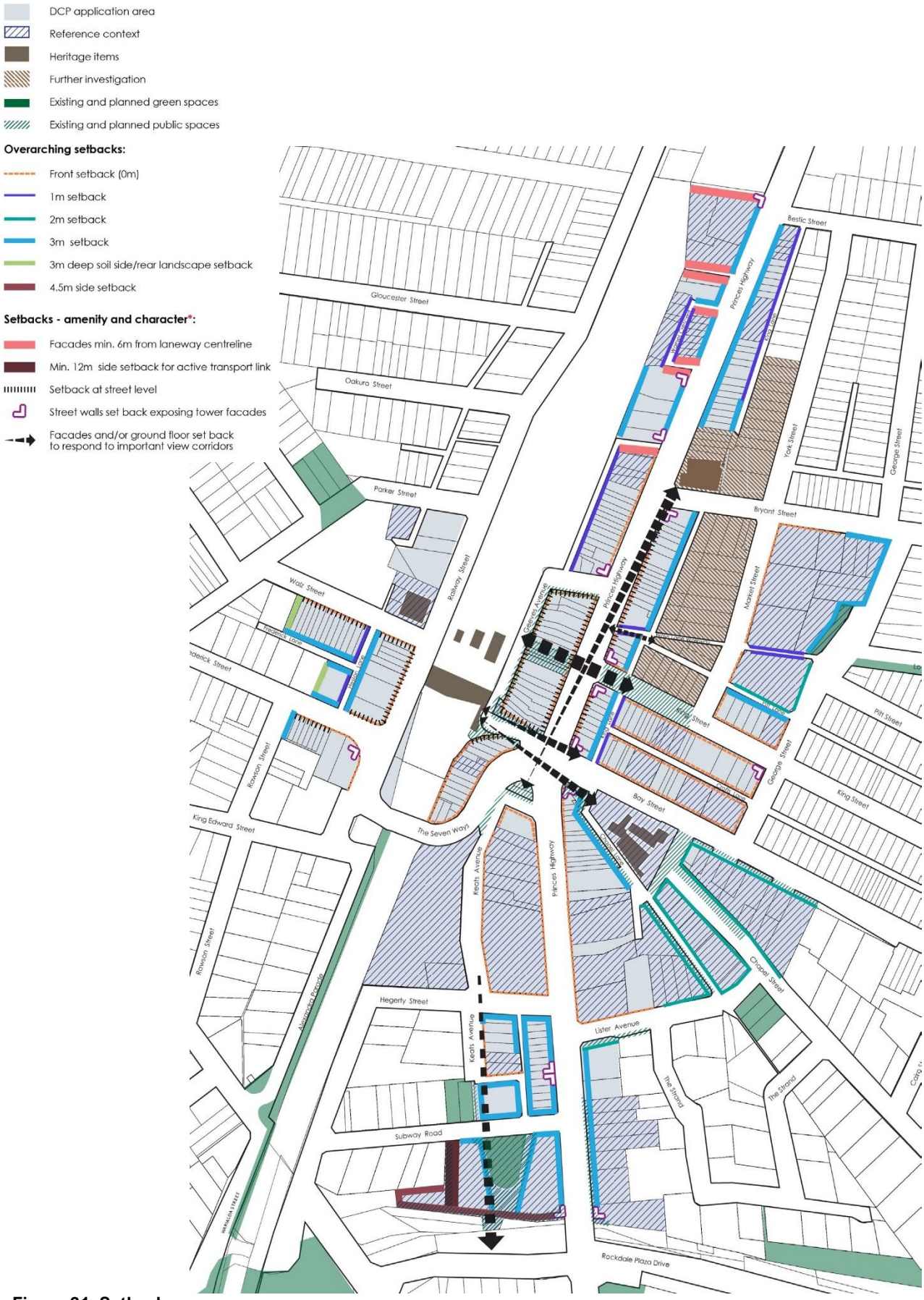


Figure 31: Setbacks

* *Refer to Section 7.2.6 Special Character Areas and to the Rockdale Town Centre Public Domain Plan for details*

Building and Façade Design

The facades of a building visible from the street play an important role in contributing to the amenity, aesthetic quality and attractiveness of an area. Facades should therefore be designed to have a contextually responsive scale and aesthetic, proportion and rhythm, solid-to-void relationships and materiality. Care and attention should be given to their design to ensure the building stands up to critical observation from near and afar. It is essential that all building elevations are considered and designed as an integral part of the overall development.

Control	
C1.	Ensure building façades are well resolved, and proportioned with an emphasis on the human scale by: a. Reflecting and responding to the orientation of the site using elements such as sun shading and other passive environmental controls where appropriate. b. Providing building articulation such as expressed vertical circulation, well designed roof form, shading devices and balconies. c. Integrating car parking entry doors within the overall design of the façade. d. Containing roof forms, building services and screening elements within the overall height controls and fully integrating those elements with the architectural concept. e. For mixed use buildings and all buildings facing Princes Highway, using 'podium-tower' forms with emphasised detail at the ground floor to highlight the human scale of development. f. Incorporating consolidated upper setbacks to avoid a tiered 'wedding cake' form, particularly where staggered setbacks are required to address matters like overshadowing. g. Developing materials, textures and colours that respond to local characteristics. h. Ensuring building façades are articulated to mitigate the appearance of building bulk and to express the elements of the building's architecture.
C2.	Facades should respond to the location and hierarchical role of the building within the context of the town centre by: a. Expressing street corner locations by giving visual prominence to parts of the façade such as varied building materials and colours, articulation, or well-designed roof form. b. As identified in **31** and where possible, articulating podium facades at key street corners to deliver additional public domain and improved view corridors by 'peeling back' the podium façade and exposing the tower façade. c. All exposed tower façades are to be well integrated within the architecture and present high-quality finishes as perceived from the street and from afar, creating new urban markers in highly visible locations. d. The exposed facades are to be designed to ensure a high- quality experience of the public domain below, achieving weather protection and street activation. e. Responding sympathetically to the existing natural and constructed character defining features of the Town Centre (historic and emerging urban markers) including the Town Hall and Library buildings, the Guild Theatre, the train station, rock outcrops, significant trees and vegetation clusters. f. Ensuring highly visible facades are unique and create interest while presenting a consistent rhythm of elements/articulation to reduce visual bulk.
C3.	Building and façade design should improve amenity by: a. Providing articulated facades and edges which are modelled to maximise solar access and privacy to existing and future residents.

Control	
	b. Providing appropriate space for outdoor dining and include articulation/façade treatment to retain amenity of residential above, facilitating the development of a night-time economy. c. Where in proximity to a heritage item, using appropriate materials, finishes and façade design and providing a bulk and scale which is sympathetic to the heritage item. d. Minimising extensive expanses of blank, glass or solid walls. e. Where development presents blank walls or incorporates a party wall that will be visible from the public domain (irrespectively of whether that could be hidden by any future adjoining development), using high quality materials, textures and variations in alignment consistent with the street façade. Reliance upon surface effects with no depth is not acceptable. f. Along laneways, the whole podium will have a direct relationship with the lane and be composed to create interest and engage with laneway users. g. Providing a definite edge to open spaces with an internal layout and façade design with encourages interaction between occupants of the building and the street. Building activity visible from the open space is to add sense of vibrancy and create further visual interest. h. Integrating entries to basements and servicing such as substations, mailboxes, booster valves into the building design.

7.2.5.3 Public Domain

Street Role and Hierarchy

This section complements the permissible land uses set out in Bayside LEP 2021. It controls how these uses are arranged and located within developments to ensure buildings interact with the street to achieve their desired role.

Active uses at ground level are encouraged within Rockdale Town Centre to ensure vibrant streetscapes and community meeting places.

Objective		Control	
O1.	To ensure new development increases the level of activity and vibrancy of the Centre and positively addresses and engages with the public domain.	**C1.**	Development is to comply with the standards for ground floor building uses and access locations set out in the following table for all street frontage types, which are shown in **Table 19** and **Figure 32**.
O2.	To ensure new development is sustainable by minimising environmental impact and being able to accommodate future changes to land use demands and social demographics.	**C2.**	Along Activated Frontages and/or where predominantly retail/ commercial uses are provided: a. All developments are to face the street and/or public open spaces. Main building entries to be located along the streets. b. Entries to active frontage tenancies are to be accessible and at the same level as the adjacent footpath. c. Conserve the existing fine grain character of the precinct through built
O3.	To ensure that the non-residential character of Princes Highway, Bay Street, The Seven Ways and Walz St is maintained.		
O4.	To maintain the existing fine grain character and human scale of the existing		

Objective		Control	
	retail strips around the station and the King Street pedestrian mall.		form elements and architectural expression. d. Awnings are to be provided to the full extent of the frontages. e. The design of active street frontages must not incorporate security roller doors and window bars. f. The use of frosted screens or opaque glass is discouraged. g. On sloping sites, the maximum level change between ground floor tenancies and the adjacent footpath is to be 600 mm at any point. For flood prone land, advice should be sought from Council's engineers. h. Integrate artworks into the design of private developments, in publicly accessible locations such as main entrances, lobbies, street frontages, gardens, walls and rooftops. i. Design is to facilitate outdoor dining particularly along open spaces, King Street, Walz Street, surrounding the station, and punctuated along Princes Highway where further protected from the Highway e.g. within setbacks at street level and wide corners. j. Design to facilitate night-time activation by providing features that help protect residential amenity (noise and light impacts) e.g. treatment and recesses to balconies on lower floors.
O5.	To ensure shopfronts and business premises complement the streetscape character.		
O6.	To create a vibrant local activity centre.		
O7.	To respond to the desired future character of the streets and avoid providing a back-of house interface to areas where there is opportunity for future activation such as the Civic Precinct, King Lane, Geeves Lane, Chapel Lane.		
O8.	To provide a controlled visual connection between public and private domains. To enhance pedestrian safety, security and amenity around and within commercial premises.		
O9.	To ensure efficient carparking and vehicle access which maximises the Centre's existing service lane network and public parking, and does not detract from the quality and extent of retail services or street activity.	**C3.**	Where uses are not predominantly retail/commercial: a. Achieve a balance between active uses and services to ensure no frontage is completely dominated by servicing or carparking. b. Achieve a diversity of fine-grained frontages. c. Ensure ground floor building services including waste, loading and parking occupy less than 40% of the ground floor area. d. Provide awnings/ canopies over footpaths where retail uses are proposed. ***Note:*** *Within this DCP, Activated Frontages is defined as any streets identified as Primary Retail, Centre Edge Mixed Use, Centre Edge*

Objective		Control	
			Commercial, and Active Laneway. ***Note:*** *Refer to the Rockdale Town Centre Public Domain Plan for details about street trees and further character defining features of the street hierarchy.*

Table 19: Street role and hierarchy

Street Role	Description	Standard
Primary Retail	High activity with continuous ground floor retailing	• Minimum 80% of the ground floor frontage to be activated by retail and business premises • Residential lobbies can occupy no more than 20% of the total ground floor frontage • No ground floor residential permitted • No vehicle access permitted • No service access permitted
Centre Edge Commercial	Provides additional retail and commercial opportunities at the edge of the Centre	• Ground floor frontage to be activated by retail and business premises • Access to residential lobbies permitted and encouraged • No ground floor residential (Except for properties under Schedule 1 in the BLEP 2021.) • Vehicle access permitted where the development does not front a Service Laneway or Centre Edge Mixed Use street • Service access permitted where the development does not front a Service Laneway or Centre Edge Mixed Use street
Centre Edge Mixed Use	High density residential at the edge of the Centre with opportunities for retail or commercial uses	• Active retail uses on the ground floor frontage, preferably along Princes Highway and open space • Mixed use (commercial/residential) on the ground in other street frontages • Access to residential lobbies should be from this frontage • Ground floor residential with direct street access • Vehicle access permitted where the development does not front a Service Laneway • Service access permitted where the development does not front a Service Laneway
Active Laneway	Vibrant space activated by the co-location of pedestrian activity and service functions	• Ground floor frontage to be activated by retail and business premises • Residential lobbies can be accessed off active laneways • No ground floor residential permitted • Vehicle access permitted • Service access permitted
Service Laneway	Primarily serves service function and provides vehicle access	• No ground floor residential permitted • Vehicle access is to be provided from service lane • Service access is to be provided from service lane

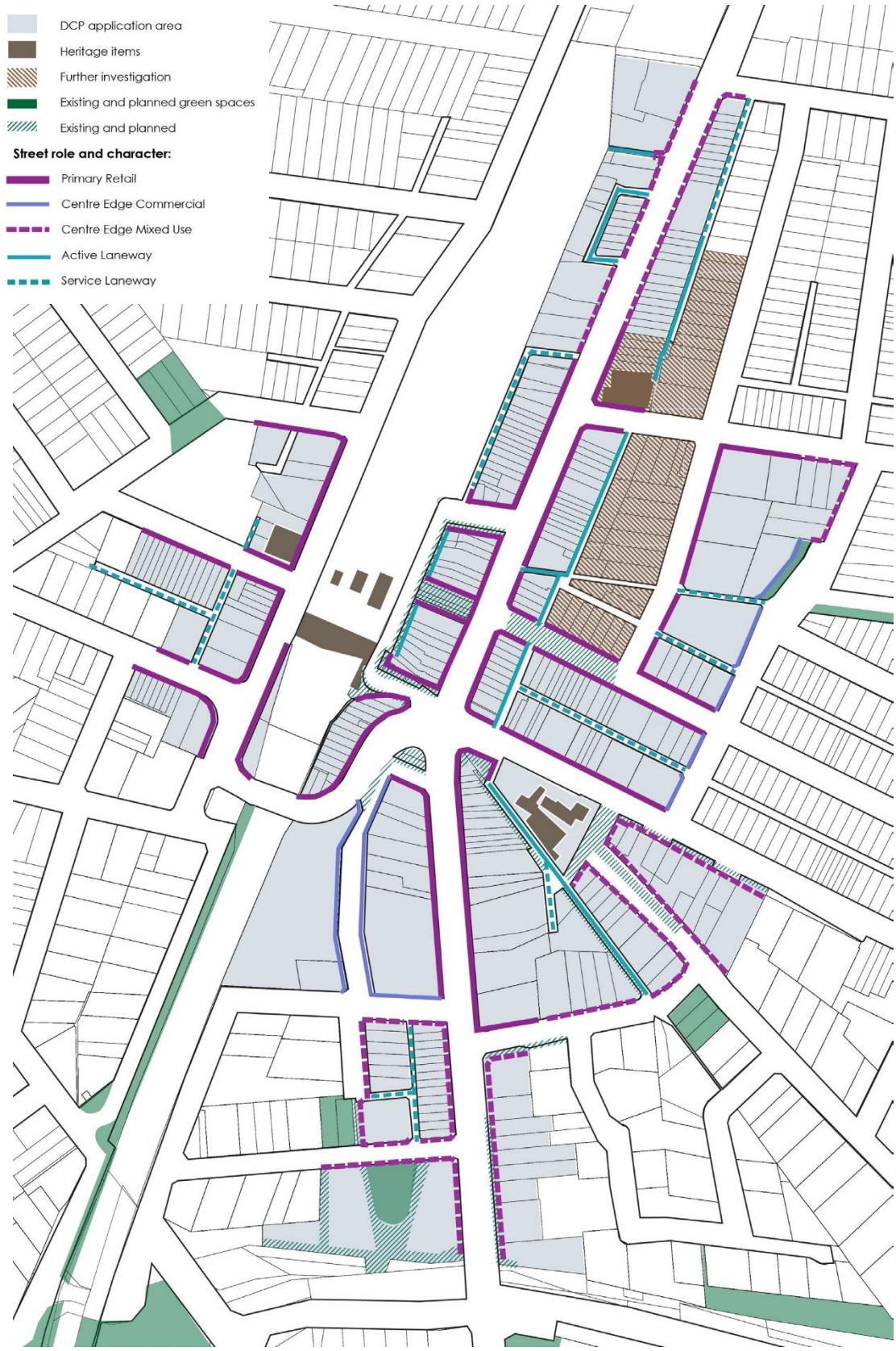


Figure 32: Street role and hierarchy

Movement and Pedestrian Connections

Objective		Control	
O1.	To enhance connectivity through the Town Centre for pedestrians and cyclists as sites redevelop.	**C1.**	Applicants are to deliver through site links in accordance with **Figure 33** and engage with Council in investigating potential future links.
O2.	To ensure the safety of pedestrians and cyclists.	**C2.**	Existing connections are to be retained unless it can be demonstrated that an alternative connection point can deliver an improved public domain outcome and achieve a better pedestrian permeability outcome overall.
O3.	To improve connectivity to the train station.		
O4.	To provide activated spaces with high pedestrian amenity offering protection from the surrounding busy road and railway	**C3.**	Relocation of existing connections are not acceptable in lieu of any requirement for providing additional pedestrian connection.
		C4.	Through-site links are to be privately owned and maintained, but must be subject to a positive covenant on title ensuring unlimited, unimpeded access by the general public at all times. In addition to any other requirements in this DCP, through-site- links are to be designed to: a. be a clear and direct throughway for pedestrians and provide a clear line of sight between public places; b. be easily identified by users and include signage; c. provide active frontages on both sides; d. have a minimum width of 4.5 metres non leasable space clear of all obstructions (including columns, stairs and escalators); e. include materials and finishes such as paving materials, tree planting and furniture consistent with adjoining streets and public spaces and be graffiti and vandalism resistant; f. demonstrate compliance with Crime Prevention Through Environmental Design (CPTED) principles; g. where practicable, have access to natural light and include landscaping. ***Note:*** *Refer to the Rockdale Town Centre Public Domain Plan for details about movement and connectivity.*

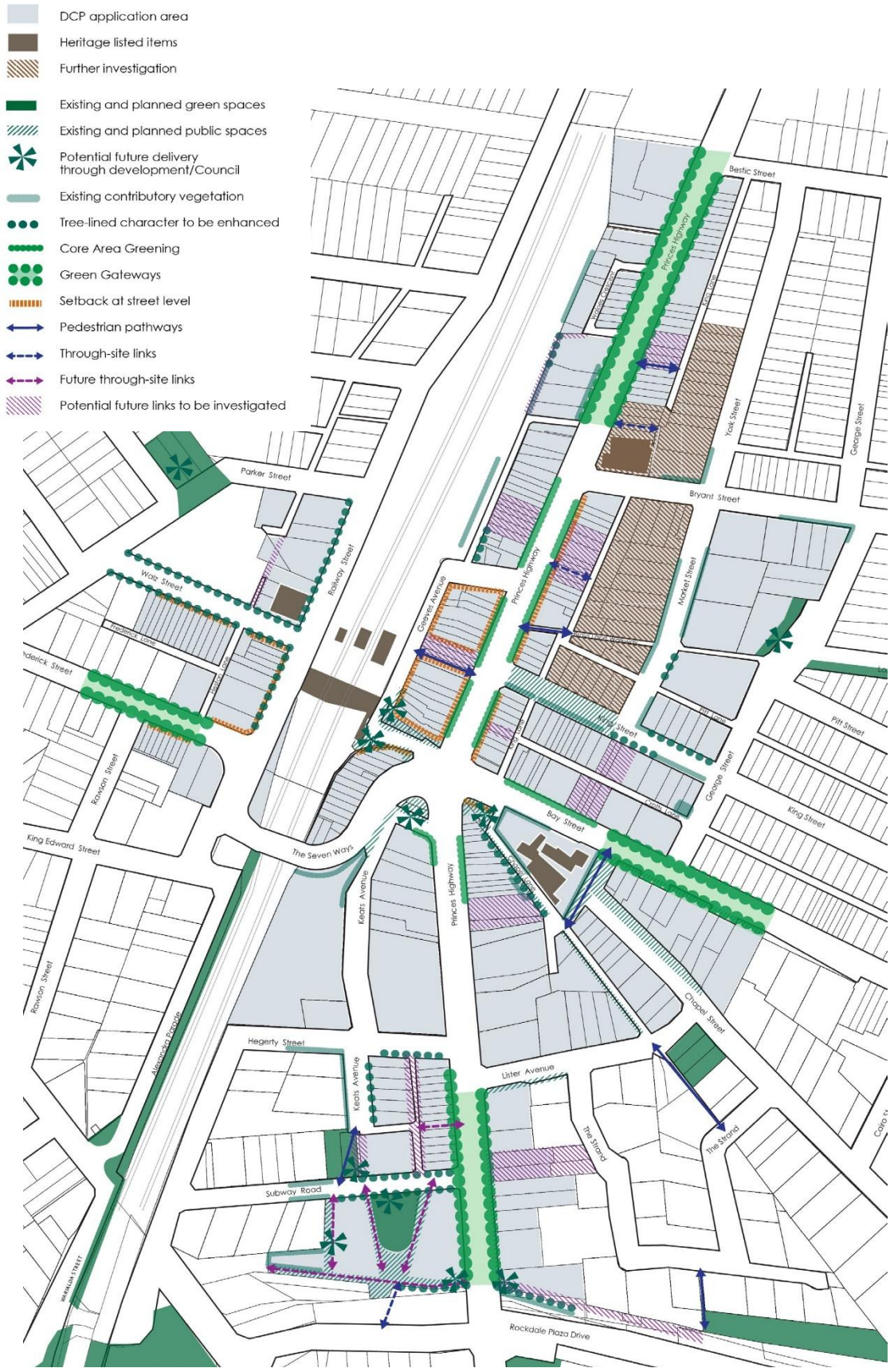


Figure 33: Intended public domain outcomes

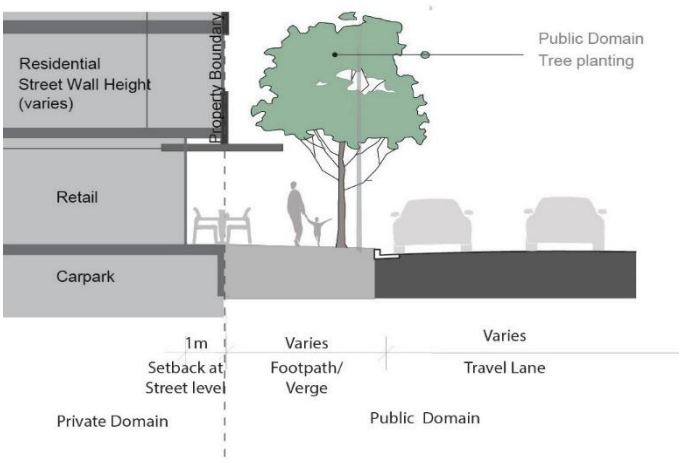
Public Domain Character and Interfaces

Objective		Control	
O1.	To increase outdoor dining opportunities, landscaping and space for pedestrians on the footpath by providing a balance between undercrofts, awnings and street tree planting.	**C1.**	Development is to deliver public domain interfaces and respond to the intended public domain character as described in **Figure 33**.
O2.	Provide appropriate weather protection along public domain interfaces to increase pedestrian amenity as well as visually unify character areas and rows of retail premises.	**C2.**	Awnings are to be provided as follows: a. Awnings shall be a minimum 2m deep and the underside of the awning is to be a minimum 3.2m above the footpath. b. Alternative awning dimensions and setbacks will only be accepted unless where it can be demonstrated that: i. a better public domain outcome is achieved through additional setbacks at street level, above ground planting and/or additional street tree planting. ii. sufficient weather protection is achieved including protection from wind, sun and rain. c. Steps in awnings are only permissible to accommodate sloping streets and if required over vehicle entrances. In such cases, proposals are to demonstrate that the design has sought to minimise the height and visual appearance of each step. No steps over 600mm will be allowed. d. Awnings should be setback minimum 1m from the face of the kerb to accommodate traffic/parking and utility poles where those are not required to be removed. e. Where street trees are proposed, the awning should be setback from the kerb along its entire length by a minimum 1.5m to accommodate the trees. f. Where a specific design response and/ or alternative awning dimensions are identified for a Special Character Area (**Section 7.2.6**) or in the Public Domain Plan applicable the site, those will have precedence if conflicting with awning setbacks and dimensions above. g. The majority of the awning ceiling and underside of the fascia along the primary and secondary active street frontages is to be integrated with
O3.	To enhance and/or respond to existing character defining features of the Town Centre as presented to the public domain.		
O4.	Provide Green Gateways that define the arrival experience into the Centre and enhance a positive image of Rockdale while mitigating negative amenity impacts from busy roads.		
O5.	Increase canopy cover across the Town Centre and enhance existing vegetation to strengthen the character of tree-lined streets.		
O6.	Provide appropriate conditions including deep soil, siting and species selection for landscaping to mature and allow for the continuation of the green canopy of the surrounding areas		
O7.	Provide a greener outlook and improve the public domain even on constrained sites and/or areas where a distinctively urban character is intended through a combination of features such as greening of facades, coordinating awning design with setbacks at street levels.		

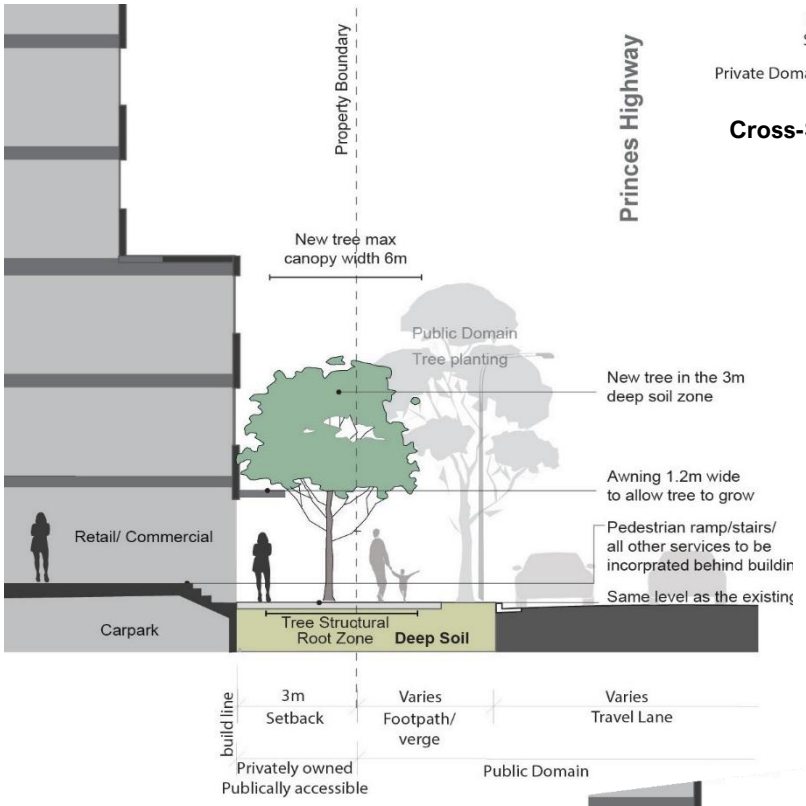
Objective		Control	
			adjoining existing and approved developments. h. Awnings, lighting and signage are to be made of good quality materials and well integrated within the architecture particularly around corners and along other highly visible locations. i. Planting above awnings along the area identified as 'Core Area Greening' in **Figure 33** is to be integrated as possible. Refer to Public Domain Plan. j. Spaces under awnings are to be well lit at all times through artificial and natural lighting. Consider incorporating glazing/ transparent material in the awning to allow solar access where planting on awnings is not provided. k. Awnings are not to slope towards the street. Gutters and downpipes are not allowed at the street edge.
		C3.	Setbacks at street level are to be provided where indicated in **31** (Built Form - Setbacks) as follows: a. In addition to any other applicable setbacks from the property boundary, a further minimum 1m of setback at street level is required along the whole frontage generally as indicated in Cross-Section (A) below. b. The setback at street level is to be measured as an average across the frontage width to allow for variations and indentations that: • reflect a fine-grained, human-scale retail character, • integrate with adjoining development and read cohesively along the same footpath, and • provide transitions to avoid 'dead-ends' and ensure pedestrian safety. c. Deeper and/or taller (two-storey) spaces are required where specified in **Section 7.2.6** or in the Public Domain Plan, and encouraged along larger-scale retail or to retain/ enhance view corridors and vistas.

Objective		Control	
			d. Recessed spaces at the street level are to be attractive and well proportioned (depth and height) as experienced from the footpath and from a distance. e. The recessed spaces are to be designed in conjunction with landscaping, footpaths, lighting and awnings to improve retail attractiveness and opportunities for outdoor dining, increase green canopy cover, discourage antisocial behaviour and improve pedestrian safety and amenity. f. Any pavement should use the same materials as the new footpath to promote public access to commercial premises. g. The setback areas are to remain in private ownership and are not intended to be dedicated to, or maintained by Council. h. Minimise the need for, and the impact of columns. Colonnades will only be permitted where it: • allows improved proportions and usability of recessed spaces, • does not obscure views of retail frontages or separates street frontage activity from the street, • can be made continuous for an entire street block, • is designed with narrow vertical elements, well integrated within the architecture of the building, responds to surrounding buildings and context.
		C4.	Along Green Gateway frontages, unless otherwise specified in **Section 7.2.6** or in the Rockdale Town Centre Public Domain Plan: a. A 3m deep soil zone and setback is to be provided generally as indicated in Cross-Sections (B) and (C) below. b. Basement and sub basement carpark design should be consolidated beneath building footprints. c. Any level changes including requirements to meet flood constraints should be incorporated within the footprint of the building.

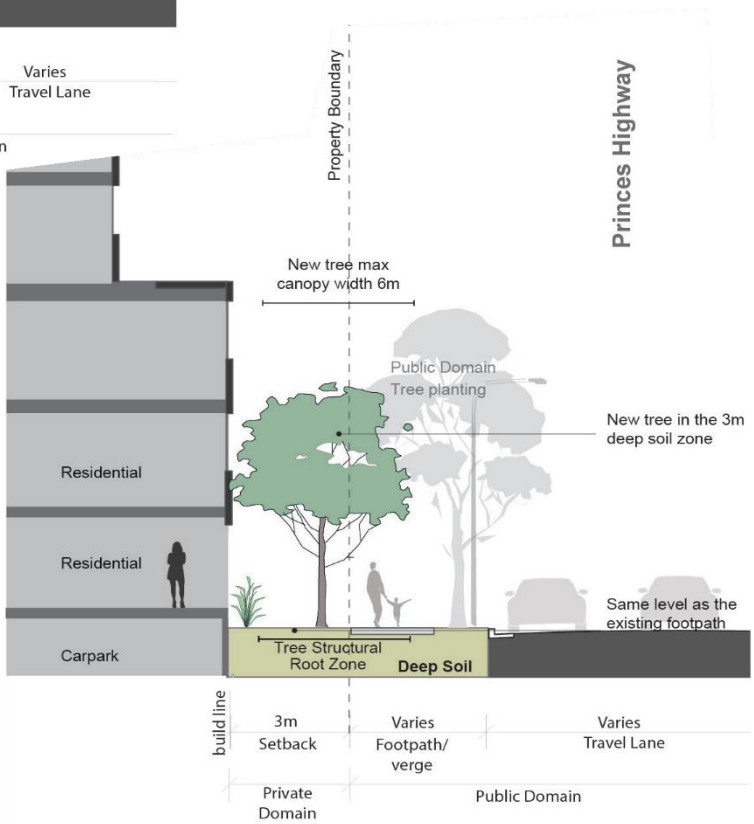
Objective		Control	
			Any ramps/ stairs are not allowed in the 3m zone. d. Awning depth up to 1.5m to provide weather protection as well as allow space for trees to grow. e. The 3m landscape setback is to remain in private ownership and not intended to be dedicated to or maintained by Council. f. Any pavement should use the same materials as the new footpath to promote public access to commercial premises.



Cross-Section (A): Typical setback at street level



Cross-section (B):
Green Gateway typical retail/commercial interface along Princes Highway



Cross-section (C): Green Gateway typical residential interface along Princes Highway

The Green Gateways have different treatments depending on the ground floor uses and location (Bay Street, Frederick Street, Princes Highway). Any proposed landscape design plans along the Green Gateway areas are to be referred to Council for comments earlier in the application process.

7.2.5.4 Building Typologies

A variety of uses and new development is anticipated in Rockdale Town Centre. The general requirements for specific land uses are provided below.

Commercial

1. Provide legible entry/ lobby areas accessed from a public street.

2. Commercial uses should address streets to provide surveillance to increase safety and activation of streets.

3. Ground floor tenancies and building entry lobbies are to have entries and ground floor levels at the same level as the adjacent footpath or public domain.

4. Basement parking must not protrude above the level of the adjacent street or public domain.

5. All parking provided within an above ground structure must be fully sleeved by either active uses or uses that provide surveillance of the street along all facades visible from the public domain, including facades that would be made visible when adjoining sites redevelop.

Mixed Use

1. Provide a range of appropriately sized and configured tenancies that meet commercial, or market needs to avoid large (>100m2) floorplates that may remain vacant.

2. Incorporate non-retail uses such as gymnasiums, childcare centres, community facilities and medical suites that service the local residential and worker population.

3. Ensure that the location of ground floor uses either activates or provides surveillance to the public domain.

4. Provide awnings to active street edges.

5. Create clear legible entries for each use.

6. Innovative solutions to provide the flexibility to meet future commercial space demand are encouraged. This includes but is not limited to:

    - A series of large studio apartments on the same floor which could be fitted out for commercial use.
    - Two storey units designed so that one floor could operate as a home office separate from the private living spaces.
    - Utilising space within podiums to provide commercial tenancies where the building footprint is deeper than permissible for residential units.
    - Wrapping above ground carparking in commercial space or residential uses that could be fully/partly converted into employment generating uses.
    - Splitting lobbies to provide both residential and commercial use on the same flood providing the commercial space adjoining any railway or busy road and the residential space where the outlook is more amenable.

7. For those areas in the B2 Local Area where ground floor residential apartments are permitted, the design of commercial/retail spaces should not be compromised. They should have enough space for sufficient internal circulation movement and able to accommodate a greater range of retail/commercial uses. This includes but is not limited to:

- Commercial/retail uses must have a street frontage.
- Each commercial/retail unit should be at least 6m in width and 13m in depth.

Residential Design

Given the Centre's access to high frequency public transport and the available range of retailing, greater population density is encouraged. Increased population within the Centre's walking catchment will also add to the Centre's activity and vibrancy. Rockdale Town Centre is the ideal location to provide dense inner city style apartment living for a variety of household demographics.

A diversity of housing choice is to be offered by mixed use developments by providing a variety of apartment types and sizes. Innovative solutions to meeting current and future housing demands and changing household structures is encouraged. This includes but is not limited to:

1. A diversity of housing choice is to be offered by mixed use developments by providing a variety of apartment types and sizes. Innovative solutions to meeting current and future housing demands and changing household structures is encouraged. This includes but is not limited to:

    a. 3 bedroom units which can be divided into a 2 bedroom unit
    b. and studio unit, sharing a common entry,
    c. 2 or 3 bedroom units with all bedrooms having ensuites,
    d. Units with large home office spaces which are separable from
    e. private living areas,
    f. Operable internal walls to allow multiple rooms or larger single
    g. rooms to be created as needed.

2. Where permitted, ground level residential units which are directly accessible from the street should include spaces suitable for use as a home office.

7.2.5.5 Site Access and Servicing

Site design, open space and streetscaping are imperative to enhance the public realm and the character and quality of Rockdale Town Centre. The following objectives and controls address specific elements of site design, open space and streetscaping such as parking and servicing. These elements should be well-designed and located to minimise their impact on the aesthetic quality and function of the site and the Town Centre as a whole.

Site Access

Objective		Control	
O1.	To enhance pedestrian activity.	**C1.**	Access to parking, servicing and loading should be provided at the rear of the building, or via laneways. On corner sites, access should be provided from secondary streets provided the entrance facilities are well integrated into the rest of the frontage.
O2.	To improve the aesthetics of the Town Centre.		
O3.	To enhance pedestrian and cyclist safety	**C2.**	Consolidated/ shared vehicular access between developments within a block is encouraged to improve pedestrian safety and the amenity of the public domain, particularly where: a. the proposed development does not comply with the amalgamation

Objective		Control	
			pattern/ built form controls specified in this DCP; or b. the site is the first or the largest site to be developed within a block.
		C3.	Where future shared access is proposed, knock out panels are to be provided at basement level(s) to allow safe and convenient access to all neighbouring sites.
		C4.	Servicing and loading must be accommodated internally within the building.
		C5.	Pedestrian access should always be prioritised for the safety and enjoyment of residents and visitors.
		C6.	The number and width of vehicle access points should be minimised to avoid conflicts between pedestrians and vehicle traffic.
		C7.	No on site loading bay is required for developments with less than 1000 m² of retail space.
		C8.	Where no loading bay is provided on site, all retail tenancies are to have access to a street or lane with a marked loading bay, either directly or via a common retail servicing space separate from the residential basement parking area.
		C9.	Where garbage trucks are required to enter the site for the collection of residential / commercial waste, developments should be designed to accommodate on-site truck movement.
		C10.	Splay corners are to be dedicated in road reserves at intersections to improve pedestrian access as follows: a. Residential / Mixed use Subdivision 3m x 3m. b. Commercial subdivision 4m x 4m.

Parking

Objective		Control	
O1.	To minimise the visual impact of car parking from the street and adjoining sites.	**C1.**	Underground parking structures should not encroach into the required landscape buffers above ground to ensure the long-term viability of mature trees and vegetation.
O2.	To ensure pedestrian safety.		
O3.	To provide resident and visitor car parking rates in accordance with the car parking rates required by the ADG.	**C2.**	Where underground parking structures must unavoidably encroach beyond the building footprint or into a landscape buffer, a minimum depth of 1m of uncompacted soil should be provided below grade to support opportunities for tree planting and other landscaping along the streetscape.
		C3.	All parking provided within an above ground structure must be fully sleeved by either active uses or uses that provide surveillance of the street along all facades visible from the public domain, including facades that would be made visible when adjoining sites redevelop.
		C4.	Surface parking is discouraged and must be should be limited to visitor and retail / commercial parking and located at the rear of the building to be hidden from public view.
		C5.	Surface parking is discouraged and must be limited to visitor and retail / commercial parking and located at the rear of the building to be hidden from public view.
		C6.	Visitor carparking provided on site must be provided behind a security gate or shutter accessed via intercom.
		C7.	Despite the requirements of the Parking and Loading Technical Specification, developments including residential accommodation are only required to provide on-site loading for removalists for a small rigid vehicle.

Waste Storage and Recycling Facilities

Objective		Control	
O1.	To encourage waste minimisation (source separation, reuse and recycling) and ensure efficient storage and collection of waste and the quality design of facilities.	**C1.**	Ensure that residential flat buildings and mixed use buildings have a communal Garbage and Recycling Room located in the basement of the building. This area should: a. be capable of accommodating Council's required number of standard waste containers and should be designed in accordance with Council's Technical Specification – Waste Minimisation and Management b. provide additional space for the storage of bulky waste, such as clean-up materials awaiting placement at the kerb, or recycling.
O2.	To ensure that where Council garbage trucks are required to enter the site for the collection of residential waste, developments can accommodate on-site truck movement.	**C2.**	In buildings more than three storeys in height, provide a system for the transportation of garbage from each floor level to the Garbage and Recycling Room(s) such as a garbage chute system. Where such facilities are proposed, provide space on each floor for storage of recyclables, preferably adjacent to the lift well. Details of the garbage chute system should be provided with the Development Application.
		C3.	Nominate on the site of residential flat buildings and mixed use buildings an area for communal composting. Although the operation of such a facility will depend upon the attitudes of unit holders and their management, the potential should exist. It is appropriate for this area to be incorporated in the landscaping plans for the development. Design communal composting with the following features: a. locate with consideration of proximity to units, odour and location of the drainage system b. purpose-build the facility. There are a variety of techniques available and advice on this and public health considerations should be obtained from Council c. the composting facility should be signposted, and should be made the responsibility of the body corporate.

Service Lines / Cables

Control	
C1.	Developments are required to have all overhead cables on all frontages of the development site relocated underground (this includes all electricity cables, telecommunication cables etc.).
C2.	Redundant poles should be removed, and underground street lighting columns should be installed.
C3.	The under grounding and installation of street lighting is to be at no cost to Bayside Council.

7.2.5.6 Urban Greening

Objective		Control	
O1.	To provide high quality landscaping that softens built forms and positively contributes to urban amenity.	**C1.**	Ensure that developments incorporate landscaping elements to soften the built form and introduce natural greenery. This can be delivered in several ways, outlined below. <u>Vertical gardens</u> • Green vertical gardens like green walls and facades are a space efficient way to incorporate vegetation into a development, providing shade, insulation and improving the urban environment. These can be implemented internally and externally in various ways including green façades, hanging gardens, living walls, vertical gardens and bio-façades. • If green walls are proposed: i. Design and locate green walls to suit the orientation and microclimate conditions (including width of the street and solar exposure) and enable access for maintenance. ii. Provide details of the support system, which should not affect the structural integrity or waterproofing of the building. iii. Ensure green walls have an integrated irrigation system using non-potable water. <u>Ground floor gardens</u> • In major developments, ground floor garden areas should be incorporated to contribute to visual amenity and soften building interfaces through deep soil planting and large trees. Ground floor
O2.	To provide sustainable and biodiverse landscapes with appropriate species selection and maintenance systems.		

Objective		Control	
			garden areas should be considered in spaces with public realm access. <u>Raised gardens</u> • Raised gardens contribute positively to the amenity and visual interest of a development and can facilitate community interaction. Raised gardens can be implemented on structures such as podiums, (integrated with) awnings, rooftop terraces, private and common outdoor areas and balconies. <u>Green Roofs</u> Any proposal for green roofs shall: • Undertake a detailed site analysis to assess the site suitability, including consideration of the climate conditions (e.g., solar orientation and wind loads), surrounding environment and the structural capacity of the roof, etc. • Suitably identify roof access, growing medium (substrate) type and depth required for various types of vegetation, function and type of green roof and plant schedule in accordance with the roof structural capacity. • Select native and drought/heat tolerant plant species. • Be designed with high standard components, including waterproofing membrane, growing medium, vegetation layer, root barrier, insulation and drainage system, etc. • Maximise retention and reuse of stormwater. • Consider integration of solar panels on the green roof.
		C2.	Landscaping should be considered holistically in the early design stages of a development to inform the building design. Retrofitting landscaping elements should be avoided to completed building designs as this can result in poor outcomes that may not be viable.
		C3.	All landscaping should be regularly maintained and should not impact on the safety of public and private areas. Hardy and

Objective		Control	
			resilient species should be selected in an urban environment to ensure that all landscaping and vegetation is viable.

Communal open space and landscape design

The density and intensity of develop envisaged in the Centre means that opportunities should be sought to utilise space within developments for communal use with soft landscaping to improve the amenity for residents and the character of the Centre.

Control	
C1.	Minimum communal open space is to be provided as required by the Apartment Design Guide.
C2.	At least 50% of the communal open space should be soft landscaping.
C3.	Refer to Sub-section 3.7.3 Communal Open Space for design specifications.
C4.	All soft landscaping areas in a development must have access to Greywater or Rainwater to meet their watering needs.

7.2.5.7 Development on busy Roads

The New South Wales Development near Rail Corridors and Busy Roads– Interim Guideline aims to protect the health and wellbeing of residents from the impacts of road traffic pollutants. Council recognises that air quality and noise along and in proximity to the Princes Highway needs to be considered.

Objective		Control	
O1.	To protect the health and wellbeing of residents through good design	**C1.**	Development along Princes Highway and other busy roads within the Rockdale Town Centre must address SEPP (Transport and Infrastructure) 2021 requirements.
		C2.	Different design solutions may be required to mitigate the effects of development along Princes Highway and other busy roads. Developments could incorporate recommendations on building design, internal layout, and architectural principles to achieve an acceptable internal acoustic environment in accordance with the Development in Rail Corridors and Busy Roads – Interim Guideline (2008) prepared by NSW Department of Planning to support the Transport and Infrastructure SEPP.

7.2.6 Special Character Areas

In addition to the building design and built form controls which apply across the Centre, there are also a number of Key Precincts which have more detailed, site-specific requirements.

For sites yet to be developed in the Town Centre, the 'Key Precincts' section of this DCP provides detailed built form controls and outlines a 'reference built form context' established through consideration of existing development, sites with approved development applications and sites with site specific DCP controls.

Detailed built form controls have not been provided for sites with an established reference built form context. Should changes to these sites be proposed, applicants are required to undertake detailed urban design analysis to establish appropriate outcomes for their sites. The following controls are required in addition to any controls in **Parts** Error! Reference source not found. **- 7.2.5**.

The Rockdale Town Centre Masterplan envisages significant improvement and expansion to the public domain network through the re development of these precincts. Particular regard should be given to the relevant section of the Rockdale Town Centre Masterplan's Structure Plan and the Public Domain Plan for these precincts.

7.2.6.1 Princes Highway North

Desired Future Character

This area is located towards the northern edge of Rockdale Town Centre and provides an entry point to the centre on Princes Highway.

The Library building and the Town Hall are character defining features of this area and are crucial to the identity and sense of place of the whole Town Centre. The future built form should positively respond to, but not compete with or detract from their character. Design of adjoining buildings is to demonstrate careful consideration of all different façade features, while views and vistas that frame the arrival experience into the Centre should be considered for all future surrounding buildings.

The area is identified as a "Green Gateway" and hence an integral part of the future character of the precinct will comprise significant street tree planting.

The street edge along Princes Highway will be defined by modulated built form transitioning from the taller forms and strong urban character in the core area to the more spacious and open character of the surrounding residential area. The built form will have regard to the high speeds of observers and to retaining a human-scale experience from the public domain, and be clearly read as a strong podium upon which sits a lighter, modulated building allowing vistas between buildings to the skyline beyond.

The design of retail spaces in this area is to increase diversity of offerings providing opportunities for business that can complement the Centre but do not need to be situated in the core such as alternative types of retail, hotels or entertainment uses like function centres, pubs.

The constrained land surrounded by Waines Crescent offers an opportunity for new development to deliver a more fine-grained human-scale response to the street as in important contrast to the

surrounding forms that relates to the Town Hall character and creates balance on both sites of Princes Highway.

Facades and public domain interfaces at King Lane, Geeves Lane and Waines Crescent require a well developed response that does not present a “back-of-house” outlook but reflect the future potential of the adjoining areas including the future of Geeves Lane carpark and the Town Centre Heart and Civic Precinct.

Controls

Princes Highway North
Quality Built Form
1. Development to present a podium-tower nature. 2. Overall massing to be lower in scale in relation to the core, with taller portions of buildings only allowed where massing can present as slender towers facing E-W (perpendicular to Princes Highway), with western facades slanted/articulated to minimize solar access and amenity impacts on developments to the south. 3. On the eastern side of Princes Highway N-S facing buildings are to be lower in scale and spaced a minimum of 4.5m from the side boundary to provide amenity and avoid a wall of tall massing facing Princes Highway. 4. Along Princes Highway, street walls are to be set back a minimum of 3m to deliver a Green Gateway as indicated in the General Provisions and detailed the Rockdale Town Centre Public Domain Plan. 5. Along Princes Highway, towers are to be set back min 3m from the street wall except on corners where the street wall is ‘peeled back’ to deliver additional public domain. 6. With exception of the corner of Fox Lane, where a new urban marker could create further interest, façade design and building articulation should respond to and not compete with the Library and Town hall buildings which are to remain the dominant character features of the streetscape.
Quality Public Domain
7. Residential uses along King Lane are discouraged on the ground floor, particularly along the

Princes Highway North
area marked Active Laneway in **Figure 32** (facing the B2 zone - the future Civic Precinct). 8. Where residential uses are provided on the ground floor or if only service-related uses are provided on the ground-floor facing King Lane, increased setbacks are required to ensure amenity of residents and the laneway. *Note: Applicants are to refer to the Rockdale Town Centre Public Domain Plan and work in consultation with Council during the early stages of the public domain design, including pedestrian links and private-public domain interfaces (setbacks at street level/ corners, Core Area Greening, Green Gateways) identified in* **Figure 33***.*

Figure 34: Area A - Built Form Controls

7.2.6.2 Princes Highway Core

Desired Future Character

Development will enhance the identity and amenity of the core area by providing a legible built form hierarchy, visual and physical connections between the railway station, King Street and Bay Street, and improving the public domain to create a positive, recognisable image of Rockdale.

Strong bold buildings are presented generally built to the boundary with facades designed with regard to the speed of the observer, containing large scale elements and features that will read as a single composition from afar and will become recognisable landmarks at key corners.

The built form response will become more subdued closer to the Town Hall and Library buildings are to the dominant character features within their surroundings and as perceived from Princes Highway (from north and south). View corridors between the Princes Highway station core area and the Town Hall are essential to the Town Centre's sense of place and identity and must be retained.

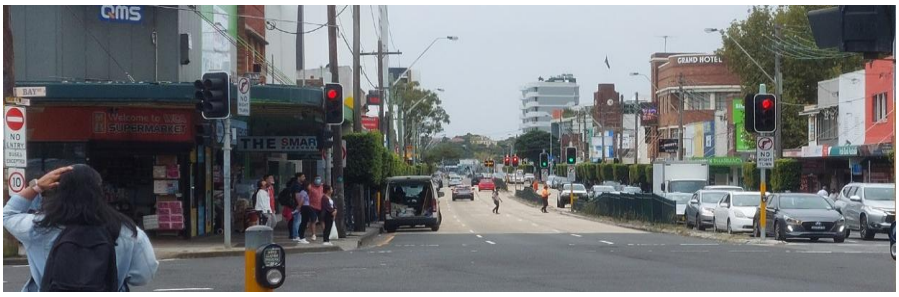
From the public domain, the experience of a fine-grained human scale retail along Princes Highway is retained while additional setbacks are to be provided strategically to respond to different needs such as enhancing view corridors/visual connections, providing sufficient space for landscaping, outdoor dining and/or providing respite from major railway and road corridors.

The look and feel of the Princes Highway strip and the arrival experience from the train station will be improved by public domain upgrades and improvement to shop fronts delivered through the redevelopment of amalgamated sites. That will foster economic development by encouraging people to stay and experience the Town Centre instead of just passing by.

A stronger direct visual and physical link between King Street and Geeves Avenue will deliver the continuation of the "Retail Spine" as described in the Masterplan.

Facades and public domain interfaces along King Lane, Geeves Lane and Geeves Avenue should not reflect a "back of house" outlook.

The street interfaces should be activated reflecting the opportunities for future revitalisation of the Town Heart and Civic Precinct and the Geeves Street carpark. Building design should acknowledge that those facades will define how Rockdale is perceived by thousands of people travelling daily by train and arriving from Bryant, King and Bay Streets.



Controls

Princes Highway Core

Quality Built Form

1. Development to be generally of a podium-tower nature towards the centre of the blocks exposing a strong, continuous landmark-quality tower facade at key corners and highly visible locations.
2. The tallest building forms are located in this area, providing a differentiation from the rest of the Town Centre seen from different viewpoints (skyline and public domain) delivered through a strongly defined 6-storey street wall punctuated by slender tall towers.
3. Taller portions of buildings are only allowed where massing can present as slender forms facing Princes Highway and King Lane, sufficiently separated as to emphasise their vertically.
4. Western facades of buildings orientated E-W are to be modelled/ further articulated to minimise solar access and amenity impacts on developments to the south.
5. At the north-western edge of the precinct, building massing and facade design should deliver a new urban marker/ landmark building as perceived both from Princes Highway and Bryant Street.
6. In the north-eastern portion of the precinct (towards the Town Hall and library buildings), building massing and facade design should respond to, and not compete with the Town Hall by providing additional setbacks and/or modelling/ articulating facades to retain view corridors as well as using more subdued materials and finer-grained facades.
7. Any development at the “Interchange Site” must first be subject to a detailed urban design/masterplanning study to establish additional built form and public domain controls that align with this DCP and the intended future character for the area.
8. Building configuration within the Interchange site should provide a direct visual and physical connection between the King Street Mall and the train station.
9. Development on sites along Tramway Arcade and Bay Street (including the southern portion of the Interchange site) must also respond to the intended future character, built form and public domain outcomes described in Area C (Princes Highway and Bay Street Junction).

Quality Public Domain

10. Along the eastern side of Princes Highway, where identified in **31**, the additional set back at street level is to be of a minimum 1.5m in depth along the frontage (allowing for indentations and transitions) with sufficient height to facilitate small-scale retail yet retaining the historical fine-grained, human-scale character.
11. On the Interchange site (western side of Princes Highway fronting the station), the additional set back at street level is to be of a minimum depth of 3m along all frontages to the public domain and proportionate height commensurate with the importance of the site as the gateway to the Town Centre and to facilitate a larger-scale retail and higher pedestrian flow.
12. On the Interchange site, a dedication for local road widening of (2.5m wide) it to be provided along Tramway Arcade and Geeves Avenue as per the Bayside LEP 2021.

Figure 35: Area B - Detailed Built Form

7.2.6.3 Princes Highway and Bay Street Junction

Desired Future Character

The Junction core area itself presents a unique urban structure that marks the arrival point into the heart of the Town Centre. The existing built form has traditionally provided unique, interesting site-specific designs that yet establish a cohesive dialogue between Town Centre landmarks including the Rockdale Hotel, the Station Corner, the Prince's Corner and the heritage listed site.

The Junction core also enjoys an important direct visual connection to the Town Hall and has historical civic importance to the community as the site of an Anzac Memorial, although the existing space would need upgrading.

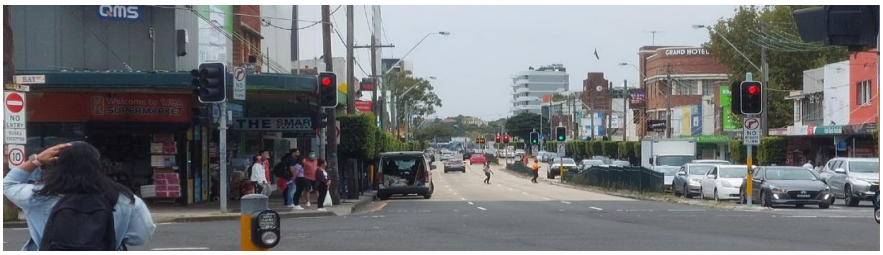
Restricted vehicular access and the irregular shape of lots along the Junction core limit built form outcomes yet offer opportunity to deliver unique landmark buildings that contribute to the identity of the Town Centre.

Development in the 'Chapel Street Precinct' has progressed and the emerging new character of high-pedestrian amenity, landscaped/ tree-lined places is to continue to be enhanced by future development. The large group of trees fronting the heritage listed site to the north of the precinct provides a rare 'green landmark' in the heart of the Town Centre to which future development is to relate.

Chapel Lane will have an important role connecting a rapidly increasing number of residents to the railway station, to the local park and playground and beyond to regional facilities. Future development in
the northern end of Chapel Lane is to provide a clearly identifiable and highly accessible gateway between the station area and the laneway.

The public domain, view corridors and vistas between the station (Tramway Arcade) and Bay Street (**31**) are to be enhanced by any development along that corridor. Reconnecting the Town Centre with the train station is a key objective of the masterplan. Improving activation and public domain on the station surroundings is essential for the centre to fulfill its potential as an economic hub.

Development along Tramway Arcade and on the corner of Bay Street and Chapel Lane is to be set back and articulated to improve (besides retaining the existing) public domain and view corridors and vistas to and from the station.



Controls

Princes Highway and Bay Street Junction

Quality Built Form

1. The tallest building forms (10-12 storeys depending on topography) are to be located in distinct slender towers directly facing the corners of Bay Street and Tramway Arcade.
2. A generously proportioned setback (minimum 2-storeys at street level) is to be provided along the southern portion of Tramway Arcade and the south western corner of Bay Street to enhance view corridors and provide additional public domain.
3. Building forms and facades flanking the core Junction area are to be of high-quality design and materials, respond to the unique urban structure and use historical cues (see above) to deliver new Town Centre landmarks.
4. Building forms and facades flanking the heritage listed site (EW) along Bay St are to be of high-quality design/ materials and articulated to frame and enhance vistas from the station area to the significant vegetation and beyond.
5. Except at designated corners (**31**), towers are to be set back a minimum 3m from the street wall.

Quality Public Domain

6. Residential At the corners of Bay Street and Tramway Arcade, the street wall is to be set back exposing the tower facades and providing additional pedestrian space.
7. Development along Tramway Arcade adjoining the station is to provide additional high quality public spaces through setbacks and public domain upgrades.
8. A high-quality pedestrian space establishing a direct connection between Chapel Lane and the train station is to be delivered at the south western corner of Bay Street (Princes Highway).
9. Along Bay Street, development is to reinforce a distinct ‘boulevard’ character, facilitate an active transport corridor and deliver a ‘Green Gateway’ as specified.
10. At the corners of Bay Street and Tramway Arcade, the street wall is to be set back to expose the tower facades and provide additional, high-quality pedestrian space.
11. Development along Tramway Arcade adjoining the station is to provide additional high quality public spaces through setbacks and public domain upgrades.
12. Development fronting the War Memorial is to engage with Council to coordinate upgrades to the public space and improve active transport access to Keats Avenue.

*Note: Applicants are to refer to the Rockdale Town Centre Public Domain Plan and work in consultation with Council during the early stages of the public domain design, including pedestrian links and private-public domain interfaces (setbacks at street level/ corners, Core Area Greening, Green Gateways) identified in **Figure 33**.*

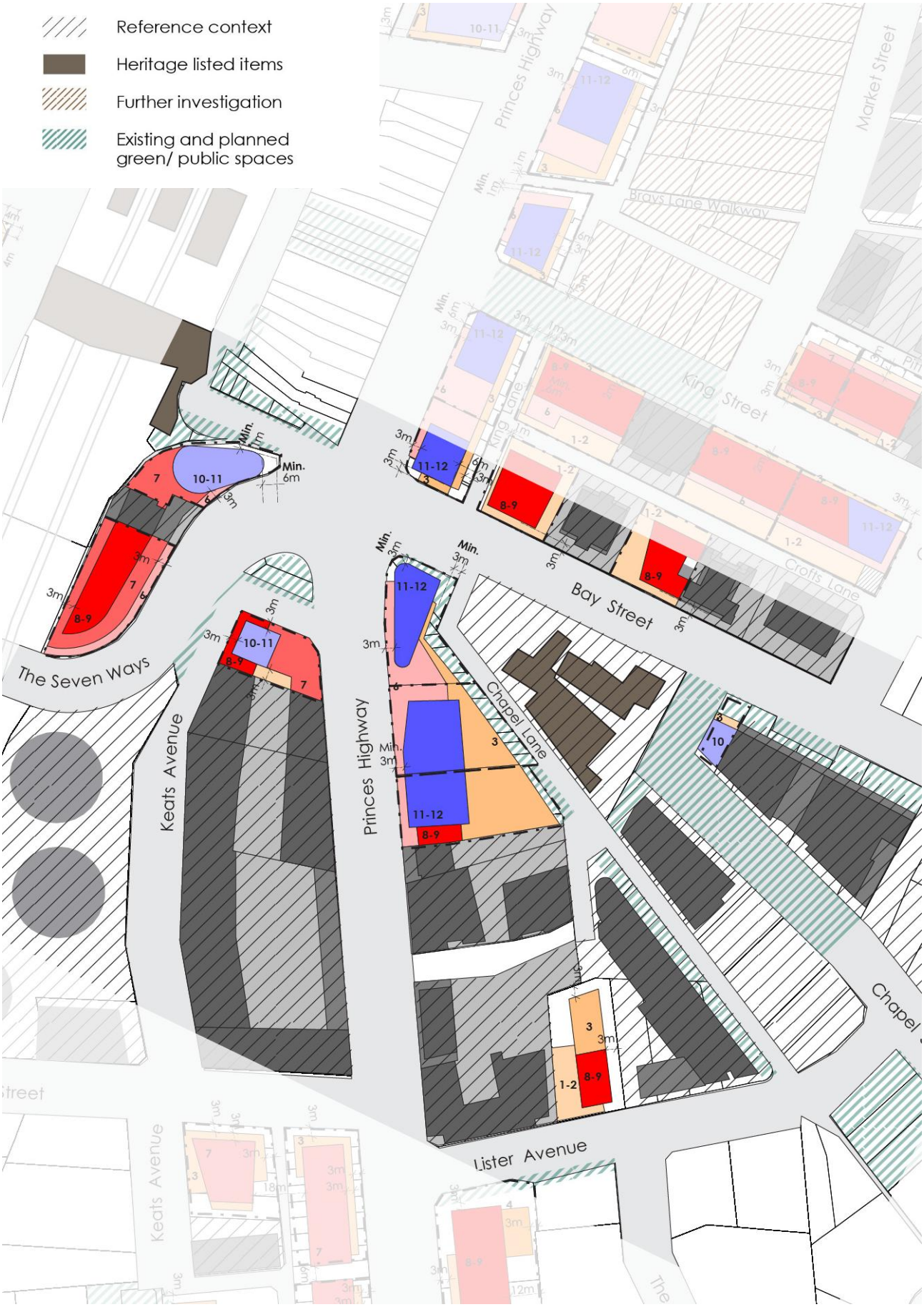


Figure 36: Area C - Detailed Built Form

7.2.6.4 King Street

Desired Future Character

King Street Place, the pedestrianised area of King Street has evolved as a new focus for the community activity providing a place for people to gather in the town centre. It will continue to function as a key retail hub, complemented by new redevelopments, with an improved night and weekend life.

The character is defined by a built form with active retail frontages providing a unique mix of existing, traditional retail and emerging contemporary facades, and by a tree-lined pedestrian friendly public domain.

Development in this area will frame the King Street pedestrian mall and the King Street edge defined by modulated built form extending the unique active frontages and tree-lined character towards George Street while transitioning from the strong urban character in the Centre core to the more open, greener character of the surrounding residential area.

The uniquely urban and active yet open, sunny and human-scale character of the built form is to be retained along the whole of King Street with relatively lower highly modulated building forms flanking the street and taller slender forms restricted to the edges of the street to mark the entry points and retain amenity.

Controls

King Street
Quality Built Form
1. Generous setbacks are to be provided to building forms on the southern side of King Street, to allow existing and future residential buildings on Bay Street to maintain ADG compliant solar access.
Quality Public Domain
2. Development must maintain at least 3 hours of sunlight between 9am and 3pm on 22 June (winter solstice) to King Street Place. 3. Development is to encourage outdoor dining and night-time activation. Building design should take into consideration providing protection from noise and light from outdoor dining spaces (e.g. articulation/treatment to balconies) as to not hinder night-time activation. 4. Development is to protect and enhance significant vegetation, including the large tree at the corner of George Street and Crofts lane and deliver a tree-lined street along the full extent of King Street.

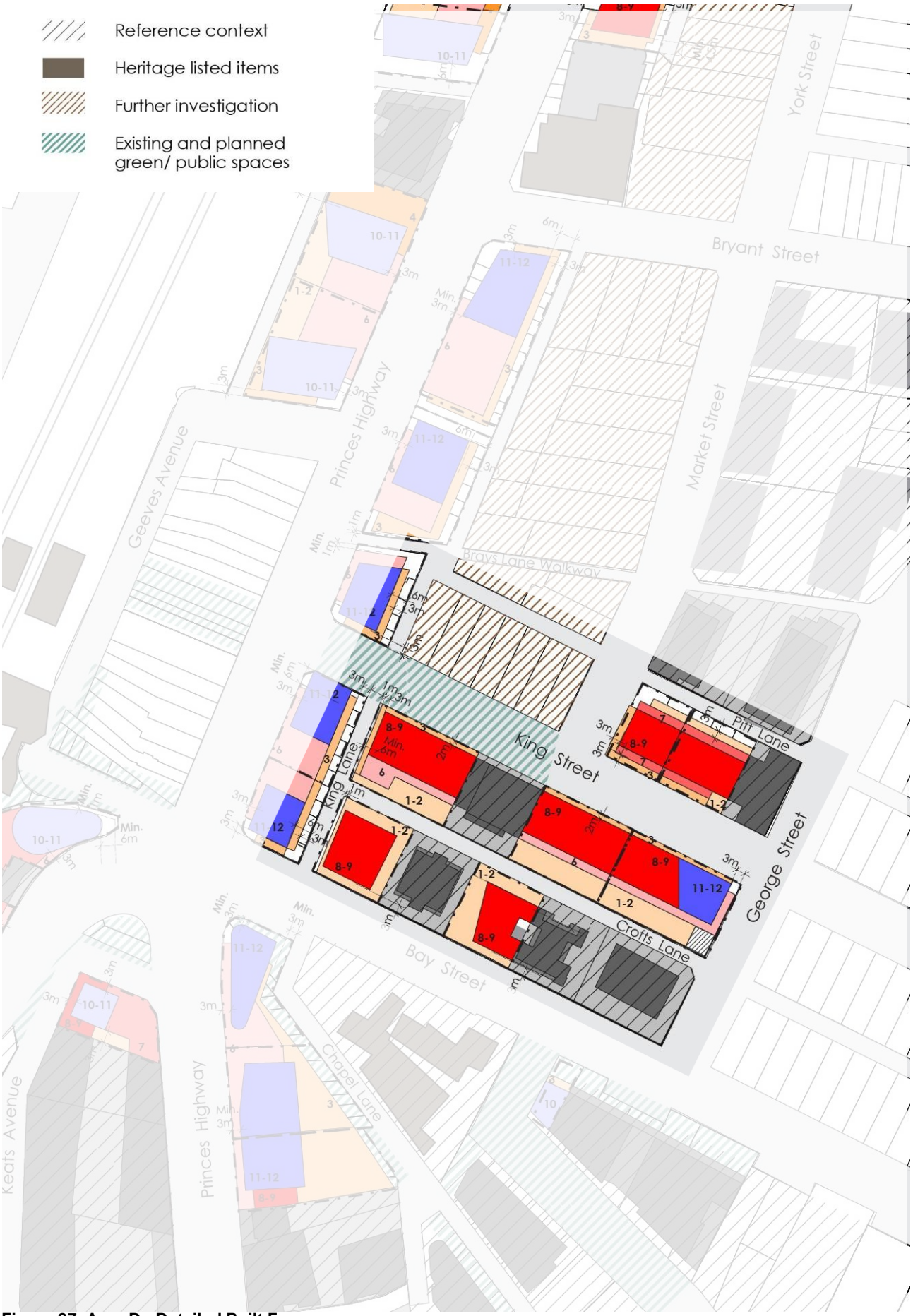


Figure 37: Area D - Detailed Built Form

7.2.6.5 Walz Street

Desired Future Character

The desirable character of the precinct is as articulated in the Rockdale Town Centre Masterplan 2012 and will be further enhanced:

> *"The Walz Street Precinct is a vibrant retail hub with a predominance of ethnic food outlets and fresh food supplies. It has a village feel despite its fringe location at the western edge of the Centre. Whilst the precinct trades well, there are a number of traffic and parking issues. The steep topography of Walz Street, particularly at the street and footpath interface, can also constrain the pedestrian experience."*

The vitality and character of the precinct will be enhanced by improving the public domain.

The existing character and scale as experienced from the public domain will be retained by providing a two-storey street wall height along Walz Street and Railway Street that will maintain a cohesive street character as the emerging precinct develops.

The tallest building forms have been located along Railway Street, Creating a defined edge to the precinct more consistent with the scale of the building forms on the eastern side of the railway.

Walz Street
Quality Built Form
1. A two-storey street wall height along Walz Street and Railway Street maintains the character of the existing precinct and contributes to a cohesive street character as the emerging precinct develops. 2. Architectural detailing and materiality is to provide a rich visual texture and a symbolic reference to the history of the place, the building's use or occupant. 3. The average maximum height of building form is 7 storeys. Increase the height of building form to 8 storeys along the edge of Railway Street to define the corners. A stepping down height of building to 4 storeys to response the residential character on Frederick Street. Refer to Figure 7.5.12 which indicates the maximum number of permissible storeys. 4. For the flood affected lots, the maximum number of storeys may vary depending on the recommended freeboard allowance above the 1% Annual Exceedance Probability (AEP) level for floor levels. 5. Zero front setback for most of the development sites to provide an active and urban frontage for the town centre. 6. 3m front setback 23-25 Frederick Street to align with the neighbouring residential character. 7. The average setback above the podium should be a minimum of 4m, it should be developed in accordance with **Figure 38**. 8. Zero setback for the first 6 storeys (14-26 Frederick Street) of the new development. 9. The minimum rear setback should be 3m to provide separation to the thoroughfares. Refer to **Figure 38** for details. 10. The minimum side setback should be 3m with landscaping to provide separation r to any adjoining residential buildings. 11. In all circumstances residential components of the development must comply with the minimum building separation objectives of the ADG.

Walz Street

Quality Public Domain

12. The pedestrian-scale streetscape will include generous footpaths and landscaping.
13. At ground level, awnings, canopies, sun shading and screening elements can project forward of the street setback line.
14. A 1m wide street level set back (reference section) is to be provided in locations shown on **31** allowing extra space for outdoor dining and retail experience.
15. Buildings are built to the street boundary and aligned with the street frontage.
16. For any new development, engagement with Council planners and engineers should be sought during earlier design stages to ensure the ground floor level access will be appropriately connected to the public domain.
17. Along Walz Street, the footpath must have a maximum 1:40 cross fall to the kerb. The east-west slope must be kept as close as possible to 1:25 for the length of the footpath to ensure a consistent slope along the building line.
18. Continuous awnings provided for shops, cafes and other commercial uses, with a minimum of 2m in depth to allow sufficient space for street trees to grow.
19. Landscaping provided along Walz Street, Frederick Street and Railway Street to improve amenity for pedestrians and outdoor diners.
20. Refer to general provisions for active frontages, movement and access.

Note: Applicants are to refer to the Rockdale Town Centre Public Domain Plan and work in consultation with Council during the early stages of the public domain design, including pedestrian links and private-public domain interfaces (setbacks at street level/ corners, Core Area Greening, Green Gateways) identified in ***Figure 33****.*

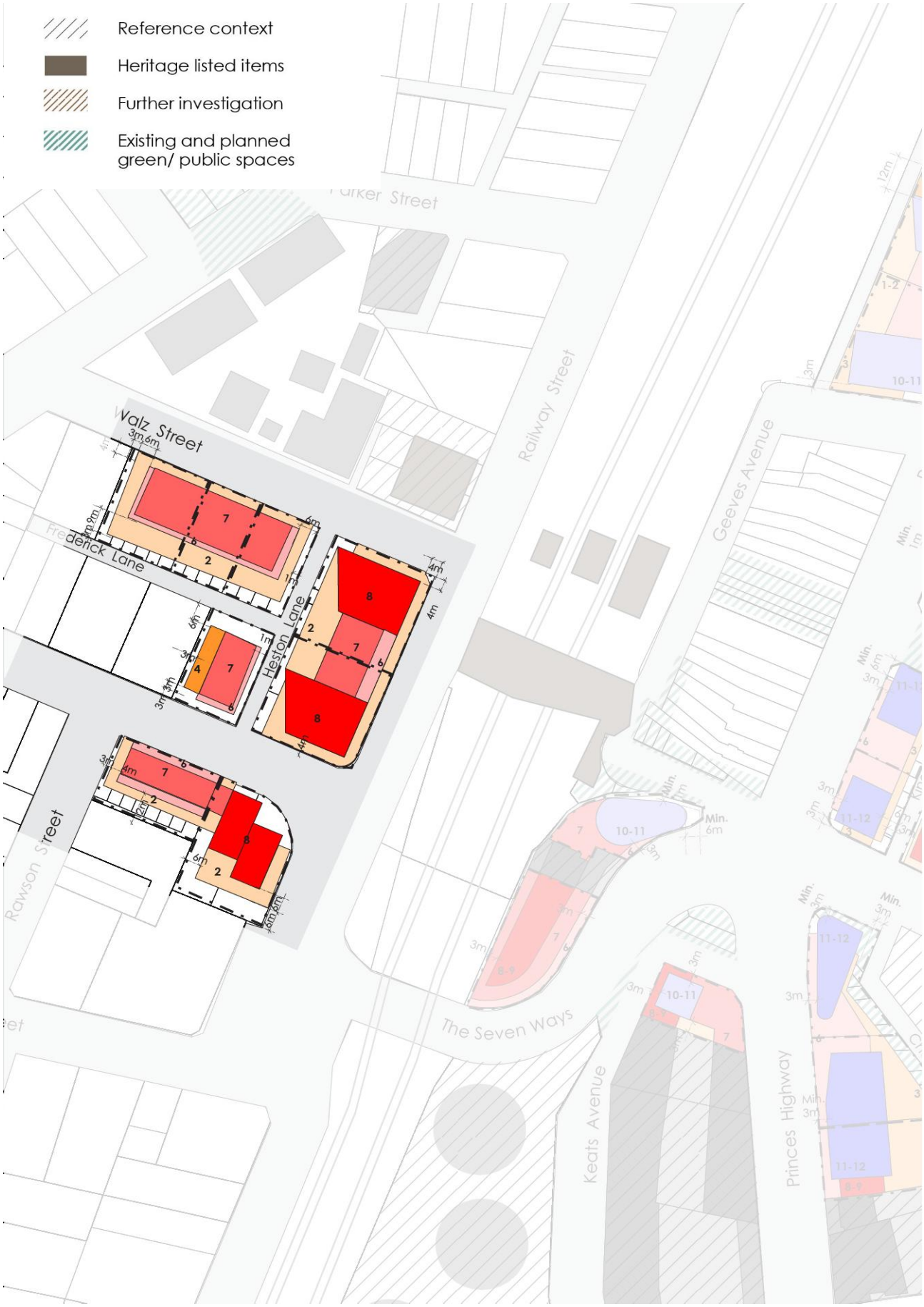


Figure 38: Area E - Detailed Built Form

Flooding

Walz Street Precinct slopes down from Watkin Street at 26m AHD to Railway Street at 19m AHD. The western edge of Railway Street and the lots south of Frederick Street are prone to the 1% AEP flood event (Refer to **Figure 38**).

Walz Street
Flooding
1. Any new development should take the overland flooding into consideration in the design and should ensure that new development does not exacerbate flooding on adjoining properties and elsewhere in the area. 2. All new development applications should be supported by a flood study to assess the potential hydraulic impacts of the development.

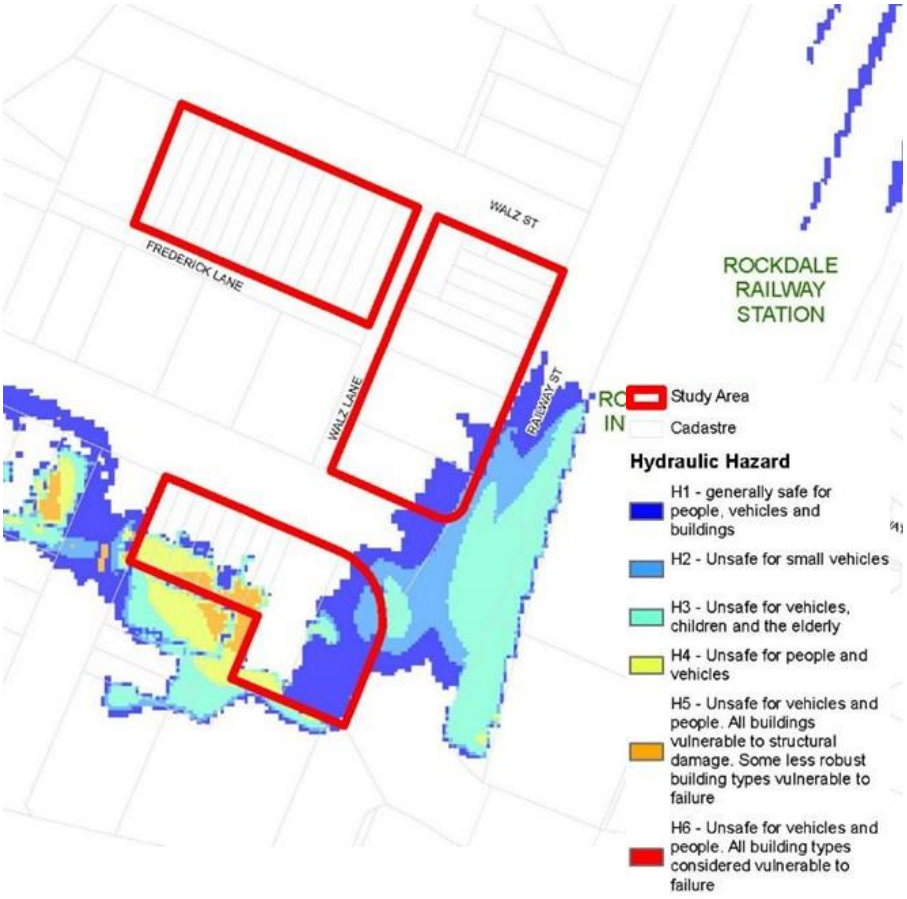


Figure 39: Walz Street Precinct 1% AEP Flooding

7.2.6.6 Princes Highway Southern Gateway

Desired Future Character

As the Town Centre grows, it will expand along the Princes Highway into the stretch south of the centre which contains more traditional highway business uses and older building stock, and presents a pedestrian unfriendly environment due to traffic noise and lack of environmental protection (awnings, street trees).

The existing uses along the highway and the Muddy Creek corridors have created a barrier to the rapidly growing number of residents in Kogarah and Rockdale to access services and retail across the two suburbs, dampening the economic opportunities of the area.

Permeability along and around the highway and Muddy Creek corridors will be key to allowing a supporting residential population within convenient walking distance to patronise the Town Centre.

The high-density residential area along Hayburn Avenue and The Strand (adjoining the emerging Chapel Street developments) offers greener, quieter streets. Yet, the lack of connectivity to the west and the south currently results in an underutilised/ less safe pedestrian environment. Development on the eastern side of the highway should consider further integration with this area to improve overall connectivity and amenity outcomes.

The area to the west of the highway benefits from Keats Avenue as an emerging local spine that provides a more direct connection to the station protected from the railway and highway noise. The existing built form between Keats Avenue, Subway Road and Princes Highway creates visual and physical barriers to connectivity and amenity; the configuration of the existing 'Pathway' does not mitigate those issues.

Development along and to the south of Keats Avenue is to strengthen this corridor as an active transport spine from the station to the Muddy Creek corridor and across the creek to Rockdale Plaza Drive.

Revitalisation of the Muddy Creek has progressed along the corridor towards Rockdale and Kogarah including an active transport link. Development along Muddy Creek is to facilitate (and not preclude) that outcome and developers are to work with Council to deliver a coordinated approach to the corridor that also considers flood risk mitigation.

It is also important that the Town Centre be differentiated from other centres and businesses along the highway to visitors travelling by motor vehicle to encourage people to stop and visit. Providing landscaped front setbacks to Princes Highway, retaining/ enhancing a greener outlook to the Muddy Creek corridor and providing landmark buildings at strategic corners will create a gateway and signify to passers-by that the Town Centre is a point of difference.

Controls

Princes Highway Southern Gateway
Quality Built Form
1. Building massing is to read distinctively as a 3-storey podium-tower form at street frontages and as seen from the public domain, and provide transitions towards adjoining residential areas. 2. Buildings are to be set back a minimum 3m from the frontages facing the public domain and a minimum 4.5m from the boundaries adjoining land zoned for Special Purposes along the Muddy Creek corridor. 3. Spacing of built forms are to be consistent with the objectives of the ADG. 4. Further setbacks and articulation (e.g. setbacks at street level, exposed tower facades) are to be provided to protect and enhance view corridors and vistas (**31**). 5. Building massing distribution is to enhance visual and physical connectivity along Keats Avenue from the station to, and beyond the Muddy Creek.

Princes Highway Southern Gateway

6. Towers are to be set back 3m from the street wall and a minimum 6m from the property boundary. At strategic corners and where indicated in **Figure 33**, the street wall is to be 'peeled back' to expose the tower façade and provide additional high-quality public domain.
7. Provide landmark buildings at the corners of Rockdale Plaza Drive.
8. A continuous façade along the Muddy Creek frontage is to be avoided and not to exceed the maximum building lengths specified in **Section 7.2.5**.

Quality Public Domain

9. Development along Princes Highway is to deliver a Green Gateway as specified.
10. Retain and enhance vegetation at the corners of Rockdale Plaza Drive and along the Muddy Creek frontages
11. Provide new connections and engage with Council to investigate potential integrated outcomes where identified in **Figure 33**.
12. Development is to facilitate an active transport corridor along Keats Avenue towards and across Muddy Creek.
13. Development along Muddy Creek is to facilitate (and not preclude) the revitalisation of the Muddy Creek Corridor and provision of an active transport corridor. Developers are to work with Council in the early design stages to achieve an integrated approach that includes flood mitigation.

For the site at 591-597 Princes Highway, Rockdale:

1. A new public domain with an area of at least 1,950m2 is to be provided centrally on the site and fronting Subway Road. The public domain is to be privately owned and maintained but must be subject to an easement in favour of Council for its use by the general public.
2. Pedestrian links are to be provided through the site as generally depicted in **Figure 33** and the Rockdale Town Centre Public Domain Plan.
3. Ground floor uses are to address and activate the public domain as well as road frontages where possible.
4. Unless stated otherwise, building setbacks are to be in accordance with **Figure 41**.
5. Establish a 3-storey street wall to Princes Highway and Subway Road and setbacks from the property boundary as follows:
    i. A minimum 3m setback to level 3
    ii. A minimum 6m setback above level 3
6. Not limiting the requirements of Control C8 **Sub-section 7.2.5.2** 'Building Massing, Height and Articulation', the length of the façade along the Princes Highway frontage may exceed the maximum 45m if it is demonstrated that the street wall achieved is complementary to the proportion/scale of the neighbouring street wall buildings. To facilitate this:
    a. The levels above level 3 may project up to 3m into the required setback for a maximum of 30% of the length of the building.
    b. The building must comply with the Green Gateways as specified in the Public Domain Plan.
7. A continuous façade along the Muddy Creek frontage should be avoided where possible. Where the façade length exceeds 50m, a high degree of articulation is required to reduce the impact of the building. A combination of design solutions such as breaks in the building, varying heights,

Princes Highway Southern Gateway
blades and alternative finishes and treatments can be used to achieve a suitable outcome. *Note: Applicants are to refer to the Rockdale Town Centre Public Domain Plan and work in consultation with Council during the early stages of the public domain design, including pedestrian links and private-public domain interfaces (setbacks at street level/ corners, Core Area Greening, Green Gateways) identified in* ***Figure 33****.*

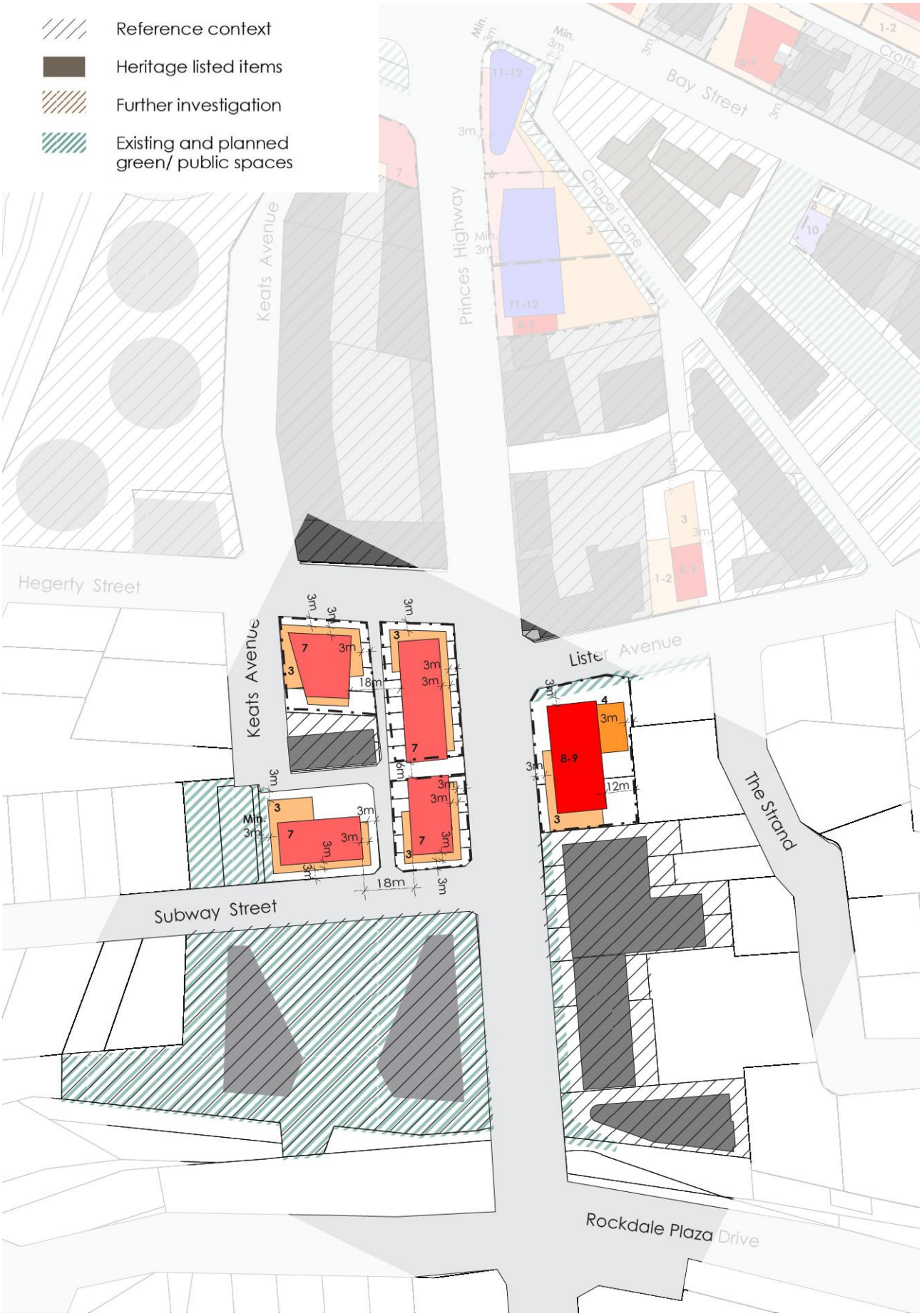


Figure 40: Area F - Detailed Built Form

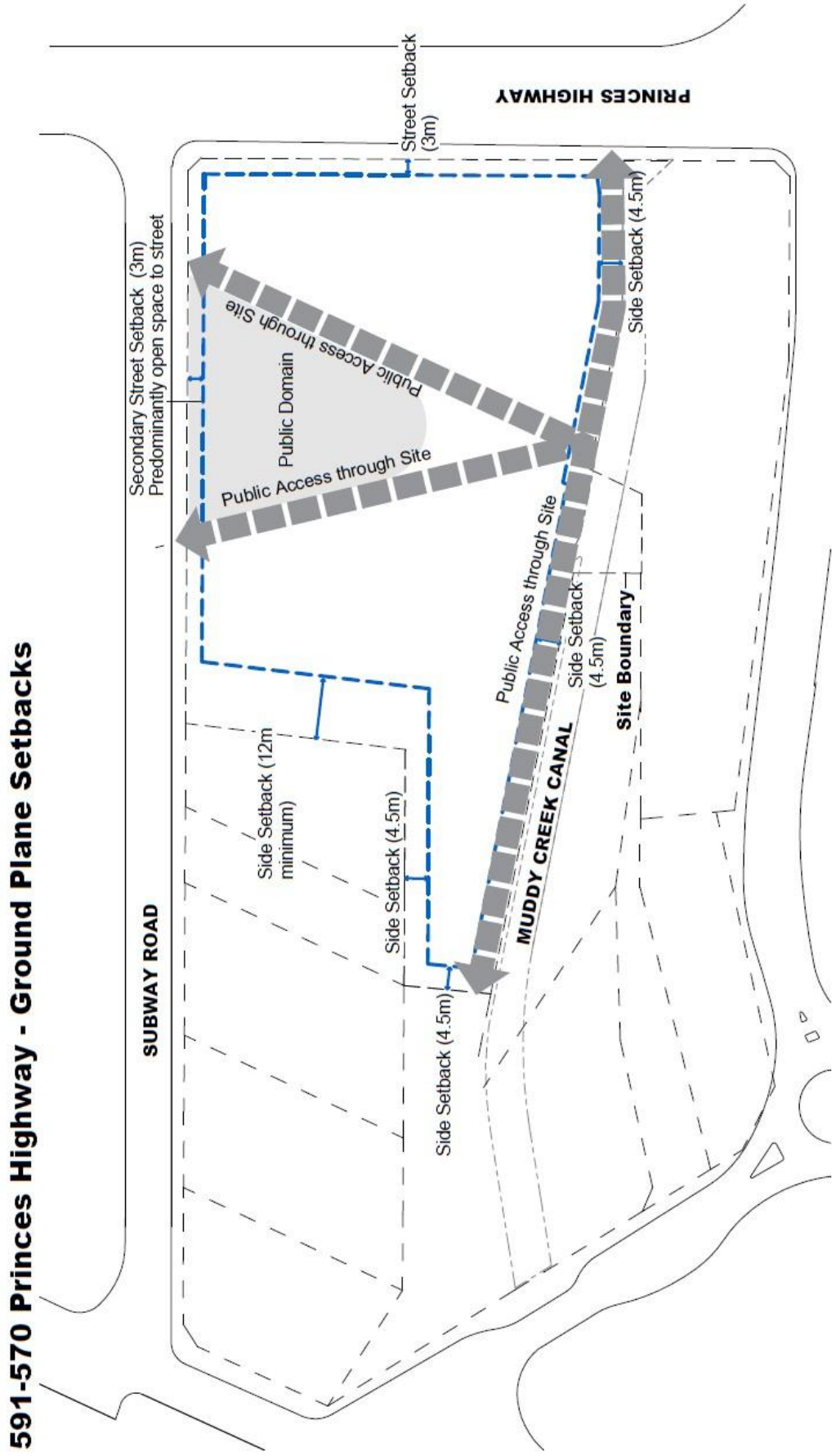


Figure 41: Area F - 591-570 Princes Highway - Ground Plane Setbacks

7.2.7 Rockdale Transport Interchange Precinct (Geeves Avenue Precinct)

The Rockdale Transport Interchange Precinct (Geeves Avenue Precinct) is defined as 471 - 517 Princes Highway, 6 and 14 Geeves Avenue and 2-14 Tramway Arcade, Rockdale and as illustrated in **Figure 42** below - Street Role Diagram.

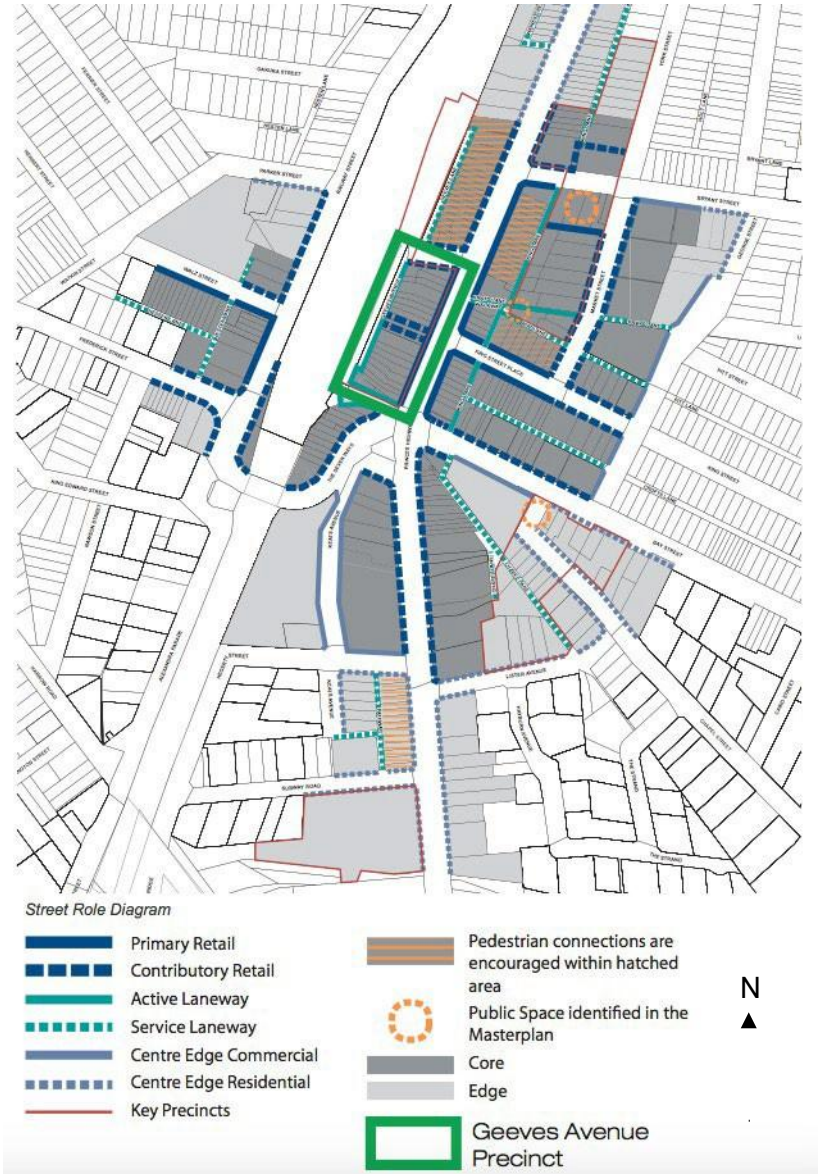


Figure 42: Street Role Diagram

7.2.7.1 Public Domain

Desired Future Character

The Interchange Precinct is situated within the Rockdale Town Centre and forms a critical part of the Town Centre due to its proximity to the Rockdale Train Station and bus interchange, as well as the commercial properties along Princes Highway. The Interchange Precinct is in a highly accessible location adjacent to the Seven Ways intersection and experiences high levels of pedestrian traffic. Given its prominent location, the Interchange Precinct has the potential to transform into a landmark mixed use precinct with active street frontages and high density residential towers.

A pedestrian through site link and upgraded pedestrian footpaths with street level active uses will be incorporated to improve the pedestrian experience and positively contribute to the public domain. The Interchange Precinct will create a pedestrian-friendly focal point providing connectivity between the transport interchange and the Rockdale Town Centre.

At street level, a six-storey street wall defines the west side of Princes Highway, with a three-storey frontage to Geeves Avenue to present the human scale of the development. A tower will be provided at each end of the Precinct, presenting a distinctive element from both directions of Princes Highway.

Objective	
O1.	Provide streets and footpaths that prioritise pedestrians, cycling and public transport use.
O2.	Provide a well-connected pedestrian network that facilitates permeability of movement to and from the site.
O3.	Ensure the pedestrian footpaths and through site links are safe, highly accessible, well lit and promotes public use.
O4.	Provide suitable weather protection for pedestrian links through the provision of undercrofts, awnings or other design features.
O5.	Present appropriate frontages to the surrounding streets and public domain in terms of scale, finishes and architectural character.
O6.	Ensure active uses are provided on street level to contribute to active street frontages and enhance pedestrian amenity.

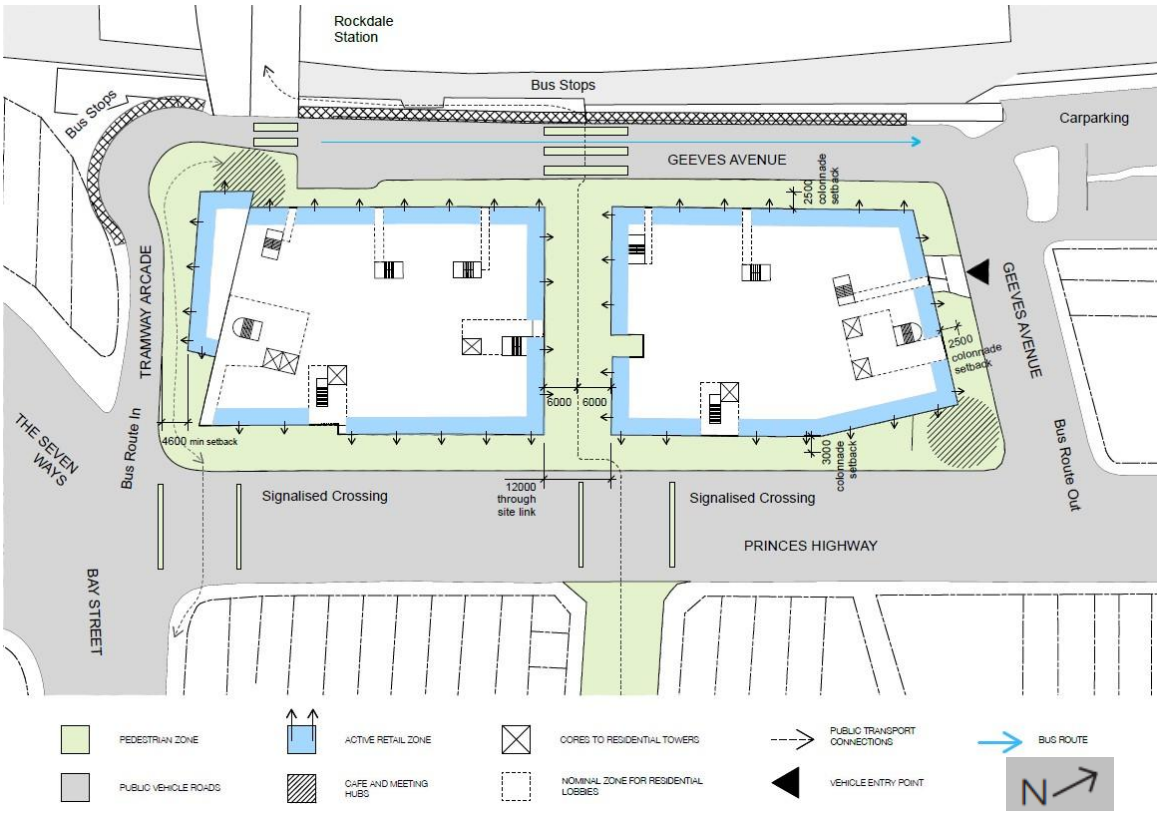
7.2.7.2 Landscape Design and Green Architecture

Objective	
O1.	High quality and long lasting landscaping is to be provided throughout the site.
O2.	Landscaping is to be incorporated to foster environmental benefits such as mitigating the urban heat island effect, reducing flood impacts and improving air quality.
O3.	Ensure plant species are appropriately selected to suit the soil and micro-climatic conditions.
O4.	Encourage landscaping that is designed to integrate with the architectural design of the building and provide visual relief.

Objective	
O5.	Encourage well designed and maintained green roofs and green walls in suitable buildings and locations, including the podium setback areas along all street frontages.
O6.	Provide street tree planting to enhance the amenity of the public domain.

7.2.7.3 Controls

Controls	
Pedestrian Site Link	
C1.	An open air pedestrianised through site link is to be provided at ground floor to the centre of the precinct which is 12m wide, with 6m of the links width accommodated within Stage 1 and the remaining 6m accommodated in Stage 2. The pedestrianised through site link will connect the Rockdale bus interchange and Princes Highway, as illustrated in Figure 7.5.17 below - Indicative Design.
Active Retail Zones	
C2.	Active retail zones are to be provided along the street frontages and through site link, as illustrated in Figure 43 – Indicative Design.
Indicative pedestrian access points	
C3.	The indicative pedestrian access points are illustrated in **Figure 43** below – Indicative Design.
Setbacks	

Controls	
C4.	The following setbacks are to be incorporated (refer to **Figure 43** below for further detail): a. A 2.5m setback is to be provided along Geeves Avenue as measured from the pedestrian footpath; b. A 3m setback is to be provided along Princes Highway as measured from the pedestrian footpath; and c. A minimum setback of 4.5m is to be provided along Tramway Arcade.  **Figure 43: Indicative Design for the Rockdale Transport Interchange Precinct**
Precinct Amalgamation Pattern	
C5.	The required amalgamation pattern for the precinct is outlined below and illustrated in **Figure 44** below: a. **Stage 1** (southern portion of the precinct): includes the sites 493 (part of), 495, 501, 507, 509, 513-517 Princes Highway and 2, 4, 6, 8-12, 14 Tramway Arcade and incorporates one of the landmark buildings. Stage 1 also incorporates 50% of the through-site link to be located on sites 495 and part of 493 Princes Highway. b. **Stage 2** (northern portion of precinct): includes the sites 471, 475 – 477, 483, 485, 487, 489, 491 and 493 (part of) Princes Highway and 6 and 14 Geeves Avenue. Stage 2 also incorporates 50% of the through-site link to be located on sites 495 and part of 493 Princes Highway.

Controls

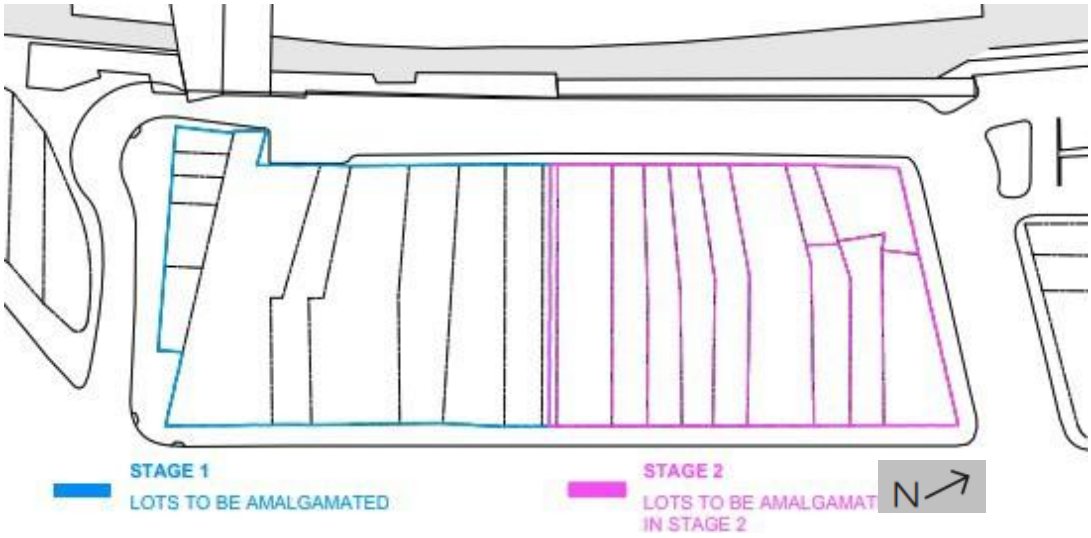


Figure 44: Required Stages for Redevelopment

Precinct Massing

C6. The massing for the precinct is to be consistent with **Figure 45–Figure** 49 below and incorporates the following:

a. A 6 storey podium along Princes Highway and 3 storey podium along Geeves Avenue (north and west) with higher elements setback above these primary street frontage heights;
b. Two 12-storey landmark buildings, with one to the northern end of the precinct and the other to southern end of the precinct;
c. The built form to 2-14 Tramway Arcade is to be 3 storeys; and
d. The built form to the centre of the precinct is to be between 5 and 6 storeys.

Figure 45: Indicative Massing for the Precinct

Controls

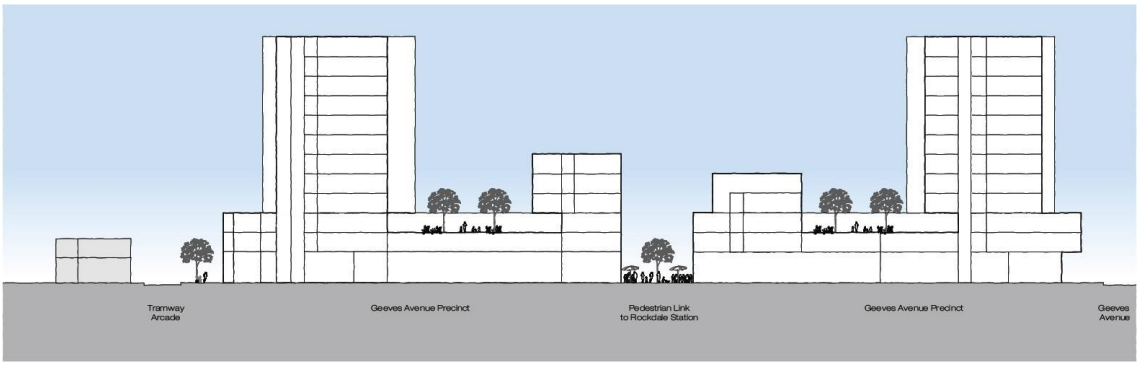


Figure 46: Indicative north-south section, looking west

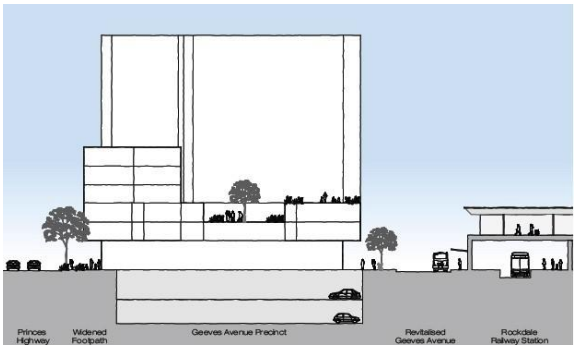


Figure 48: East-west section, looking south near the railway station

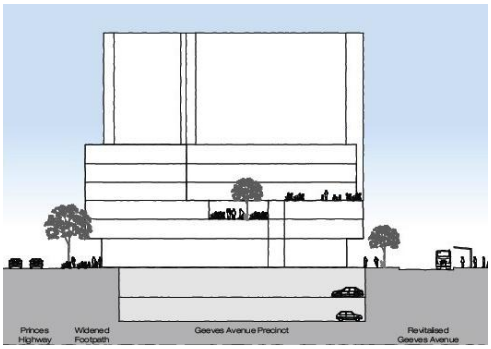


Figure 47: East-west section, looking south near the bus stops on Geeves Avenue

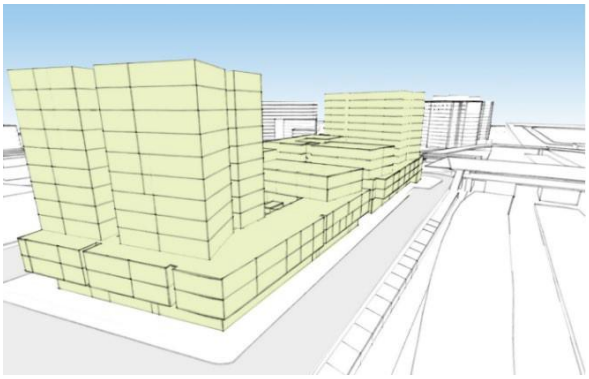


Figure 50: Indicative 3D massing looking southeast from Geeves Avenue adjacent to the railway station

Figure 49: Indicative 3D massing looking northwest from the intersection of The Seven Ways and Princes Highway

Vehicle Access Points

C7. The indicative temporary and final vehicle access points are detailed in **Figure 51-Figure** 52 below.

There is to be only one temporary access point along the western edge of Geeves Avenue for Stages 1 and 2, whilst a basement connection will connect the stages (refer to **Figure 51** and **Figure** 52).

Controls	
	Once the entire precinct is redeveloped, there is to be only one vehicle access point along the northern edge of Geeves Avenue (refer to **Figure 52**).

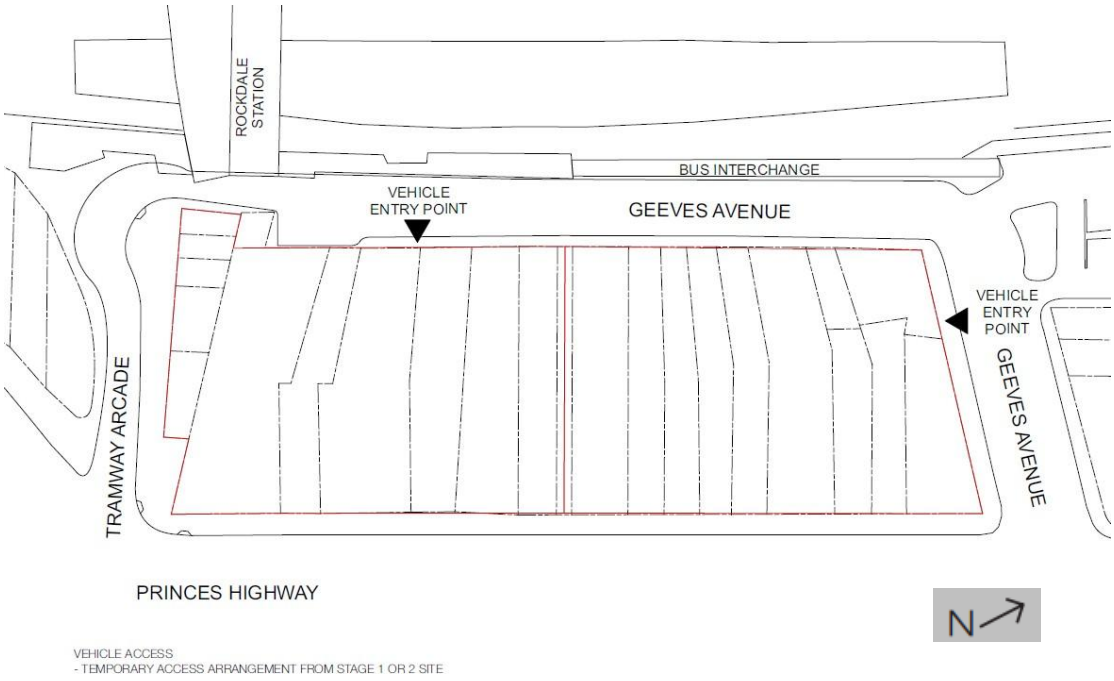
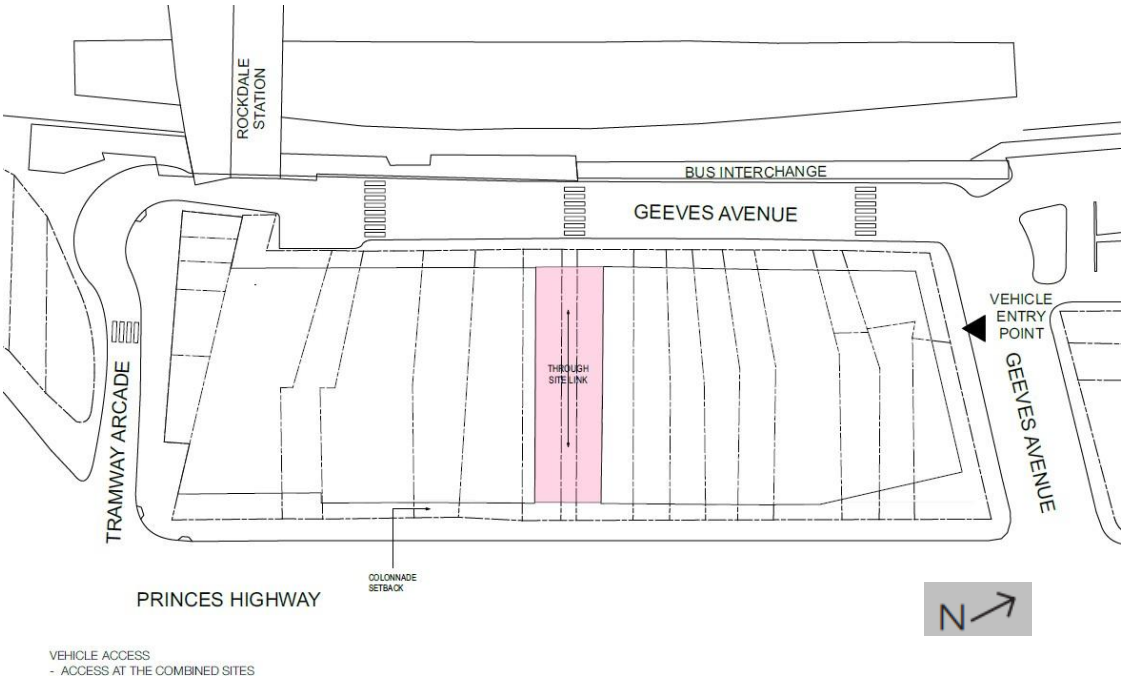


Figure 51: Temporary access solution for Stages 1 and 2

Controls	
	 **Figure 52: Final Access Solution once entire Precinct is Redeveloped**
Parking Arrangement	
C8.	The parking arrangements for the site will be consistent for the following: a. 1 space per 40sqm for commercial uses. b. 1 space per 140sqm for retail uses. c. Residential car parking shall be provided at a maximum rate consistent with the RMS Metropolitan Sub-regional Centres Parking Rates. d. Bicycle parking at a minimum rate of: i. 0.5 secure bicycle parking spaces per apartment ii. 0.5 secure bicycle parking spaces per 100sqm GFA of commercial/retail floor space

7.3 Ramsgate Beach Commercial Area

7.3.1 Description

This section applies to all development on land zoned B4 Mixed Use in the Ramsgate Beach commercial area, shown in Figure 53.

Ramsgate Beach commercial area is a vibrant local centre situated adjacent to the Botany Bay foreshore. It is situated in the southern area of the City, and serves the regular shopping needs of residents living on the peninsula. The current lot subdivision, prime beach side location, and generous public domain at Ramsgate Road offer the potential for the Centre to grow as a local centre, providing a greater range of retail services to residents, as well as becoming a lively beach side destination.

Figure 53: Ramsgate Beach Commercial Area Application Map

7.3.2 Background

Ramsgate Beach commercial area is relatively young, built during the emergence of the private motor vehicle. This means that the commercial area is spread over a large area. It also contains an eclectic mix of buildings with differing characters and there is no consistent street edge or building height typical of other local centres in Bayside.

This also means that Ramsgate Beach commercial area has a relatively large lot subdivision pattern compared to other older centres, which typically grew more densely around public transport nodes. As such, Ramsgate Beach commercial area has a much greater potential for site consolidation necessary for redevelopment to be achieved.

The Centre is predominantly car based, although it is served by a number of bus routes. There is a significant supply of at-grade carparking off Ramsgate Road, as well as on-street parking in adjoining side streets. Despite this car centricity, pedestrian movement around the Centre is convenient due to wide footpaths and pedestrian crossings. This results in the Centre also being well patronised by residents within the Centre's walking catchment.

Commercial activity in the Centre is focused on Ramsgate Road, which is a major connection between Rocky Point Road and the foreshore. The commercial area benefits from a landscaped median, and wide verges with significant street tree planting. This particularly wide street arrangement, combined with the adjoining at-grade parking, creates a very generously scaled public domain that is not typical for the Bayside LGA.

7.3.3 Vision

Ramsgate Beach commercial area will grow and be revitalised in a way that takes advantage of its unique character, and become a vibrant, lively and attractive beach side centre. Redevelopment on both sides of Ramsgate Road which complements the generous and well landscaped public domain will provide a boulevard feel. As well as the redevelopment of older building stock on the southern side of Ramsgate Road, new development on the north side will expand the Centre to create additional commercial opportunities and a 'loop' for pedestrian with improved connection to the foreshore.

The Centre will be characterised by diverse buildings with a sense of openness and lightness, typical of successful beach side centres. New buildings will create a generous scale to Ramsgate Road with breaks between them to ensure sunlight penetrates to the street, and overshadowing is minimised which will improve the Centre's ambience.

The Centre will continue to be convenient to visit for pedestrians and private motor vehicle users. New developments will include sufficient carparking to meet demand, some of which will be provided at-grade to respond to the high water table which limits excavation for basement parking. Parking will be located so that it does not detract from commercial activity within the Centre.

7.3.4 Controls

Objective		Control	
O1.	To facilitate growth and revitalisation of Ramsgate Beach commercial area which enhances the Centre's commercial functions.	**C1.**	Where the water table restricts excavation for basement carparking necessary to meet the carparking requirements in Section 3.5, at-grade parking is permitted at the rear of the site.
O2.	To provide high quality buildings which create a varied and interesting streetscape which reflects to the Centre's beach side location.	**C2.**	At-grade parking is not to be visible from the street frontage, except for a single access driveway, and it is to be located behind active retail uses which are at least 12m deep and address the street frontage.
O3.	To ensure new development allows significant solar access to Ramsgate Road, and creates a sense of openness in the Centre, allowing distant skyline views from the public domain.	**C3.**	A landscape screen is to be provided between any open at-grade parking and adjoining residential properties.
O4.	To protect the amenity of the low and medium residential areas which adjoin the Centre.	**C4.**	All developments are to express a 3 storey podium along Ramsgate Road which is to be built to the front property boundary.
		C5.	To create variation and articulation in street frontage facades, the levels of buildings above the podium should be setback at least 2m from the front property boundary.
		C6.	The podium of all developments is to be built to the side boundary at the street frontage, except where vehicle or pedestrian access to the development is provided along the side boundary. Where this is required, the podium may be setback from the side boundary up to

Objective		Control	
			4.5m.
		C7.	The levels of all buildings above the podium are to have a side setback of 4.5m on sites with a street frontage width greater than 30m, and 3m on sites with a street frontage width less than 30m.
		C8.	For development situated on the southern side of Ramsgate Road, any part of a building above the 4th floor must provide a minimum rear setback of 24m.
		C9.	The Ramsgate Road facade of any development is to be heavily articulated with variations to the building edge, and is to include a high proportion of balconies and avoid large expanses of blank walls.
		C10.	Developments should respond to the Centre's beachside location by using a variety of environmental protection elements such as screens and louvres and a palette of materials which create a sense of lightness and openness and evoke a beachside feel.
		C11.	For buildings with a width at the street frontage greater than 30m, the facade of the levels of building above the podium is to be broken with significant recesses. These are to be at intervals no greater than 24m and are to give the impression of breaks between buildings. They should be at least 4.5m wide and 3m deep.

7.4 Arncliffe and Banksia

7.4.1 Description

The Bayside West Precincts 2036 was prepared to guide the renewal of the Arncliffe and Banksia Precincts, after they were identified as Planned Precincts by the Department of Planning and Environment. The Strategy outlines the vision for growth in these areas and plans for the infrastructure needs to support this population increase. Detailed planning has been undertaken for areas within the Arncliffe and Banksia Precincts as part of the DP&E Planned Precincts program including detailed urban design analysis, economic testing and infrastructure planning. Together with the Rockdale Town Centre Master Plan, Wolli Creek and Bonar Street Precincts, the Arncliffe and Banksia Precincts propose to deliver a vibrant highway corridor with exceptional access to public transport, employment, accommodation and housing.

The purpose of this section of the DCP is to guide the future development of the precinct by:

a. Identifying the vision, development principles, key elements and indicative structure for the future development of the Precinct;

b. Communicating the planning, design and environmental objectives and controls against which the consent authority will assess future development applications;

c. Ensuring the orderly, efficient and environmentally sensitive development of the Precinct; and

d. Promoting a high quality urban design outcome.

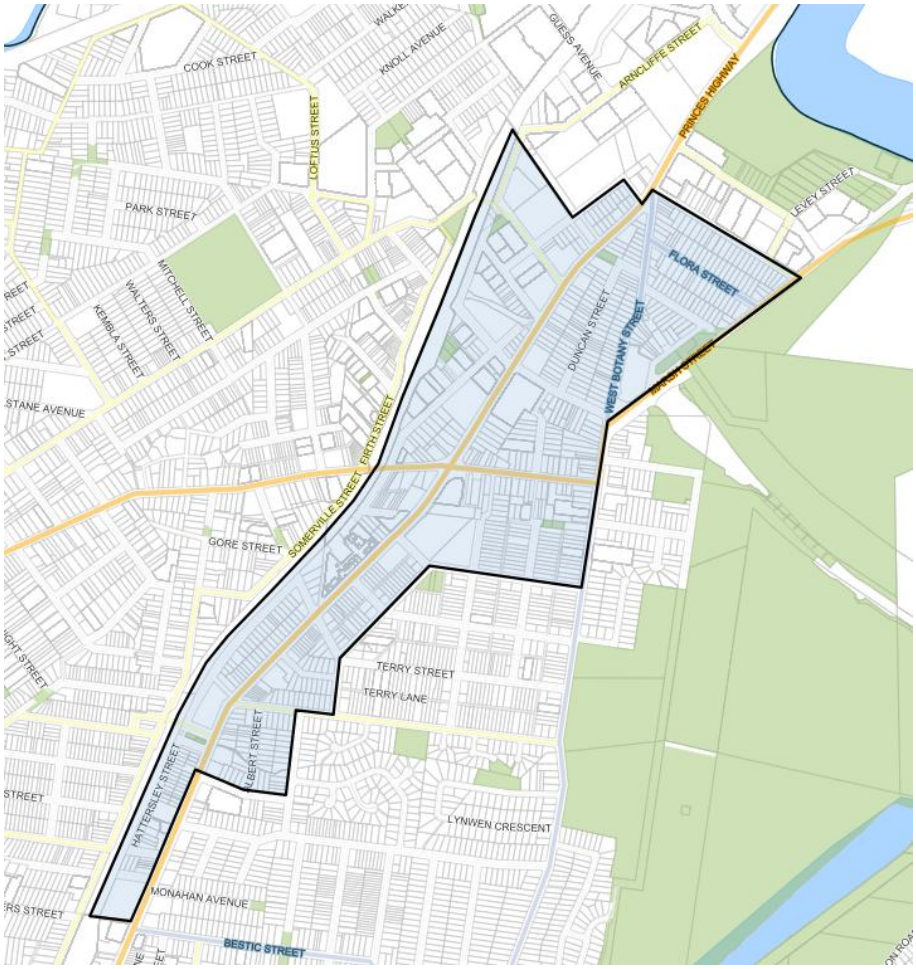


Figure 54: Arncliffe and Banksia Land Application Map

7.4.2 Vision

The vision for the Arncliffe and Banksia Precincts is to create “vibrant, attractive and connected communities, where people live and work, with great access to public transport, community facilities, new open spaces, shops and local services.”

The Objectives of this DCP are to support the Vision, and are outlined below.

- To create vibrant Town Centres that provide for the daily needs of the local and wider community.
- To provide a wide range of opportunities for different types of employment generating activities to meet local and regional needs.
- To provide high quality and a wide range housing choice.
- To promote the Princes Highway as a key regional employment and economic corridor.
- To ensure that new residential development provides a high level of amenity by adequately responding to the local and environmental context.

- To ensure a safe, connected, permeable and legible public domain that caters for the accessibility of pedestrians and cyclists.
- To promote the development of new buildings that display design excellence through a design review panel for buildings over 3 storeys and a competitive design process for buildings over 12 storeys.
- To provide access to a range of new and improved existing open space for all age groups.
- To maximise public safety and provide adequate protection of property against flood events.
- To ensure existing floodplain users do not experience any increase in flood levels.
- Represent “Placemaking” through the activation of space, creation of destination, and identifiable landmarks including mixed use and community facilities.
- Deliver exceptional environmental performance in new buildings, public and private realm and infrastructure.
- Foster innovation in sustainable design and construction of new apartment developments.
- Advocate for increased minimum environmental performance targets in new buildings.
- Promote upgrades through incentives and support to overcome the challenges for implementation in strata buildings.
- Empower communities to engage in sustainable choices and positive resident behaviour change.

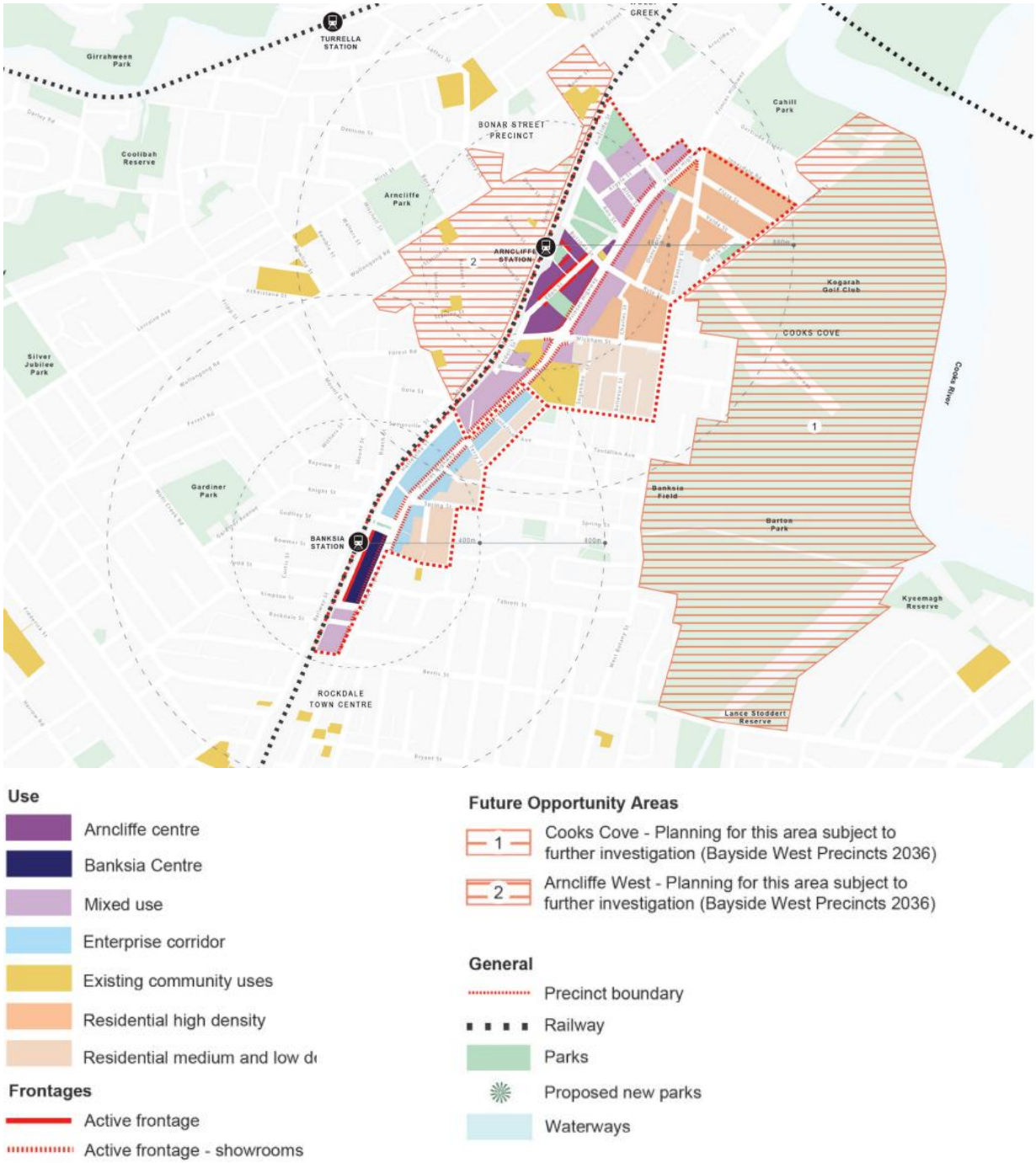


Figure 55: Arncliffe and Banksia Structure Plan

7.4.3 Controls

7.4.3.1 Special Character Areas

The Arncliffe and Banksia Precincts have been divided into sub-precincts, each with a future desired characters and key points to consider as outlined on the following pages.

Control	
C1.	All development taking place in the wider Arncliffe and Banksia Precinct must be considered against the special character area provisions provided in this section.

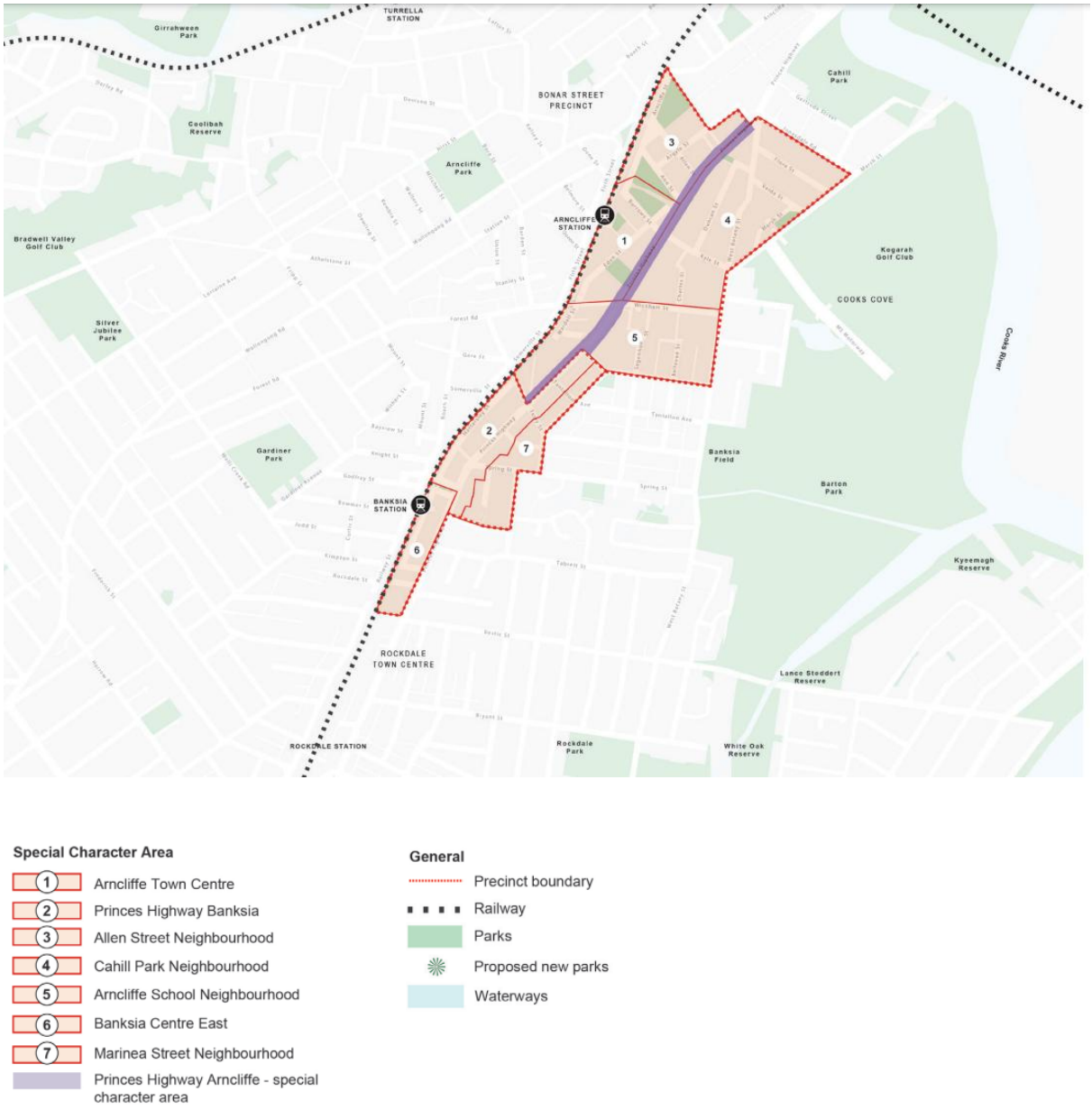


Figure 56: Precincts Map – Arncliffe and Banksia

Arncliffe Town Centre Sub-precinct

Arncliffe Town Centre is characterised by its historic built form, landscape core, steep streets and in some locations, exposed sandstone escarpment. To the western edge of the Town Centre is the Railway station, and to the east large sites that present opportunities for renewal.

Key points include:

1. Remnant large tree planting along the rail line and cliffs contribute to the visual quality of the centre.
2. Areas to the east of the railway offer some larger sites that may present opportunities for renewal. This part of the neighbourhood lacks clearly legible links, both west to the railway station and east to access and cross the Princes Highway.

3. Wooroona Reserve, located directly adjacent to the railway station, provides valuable open space. The perimeter interface with blank fences and vehicular access/servicing areas detracts from the overall quality of the space.

Arncliffe Town Centre

Desired Future Neighbourhood Character

1. Provide a vibrant mixed use Town Centre, extending along the east side of the rail line, with activity during the day and night.
2. Eden Street and Burrows Street become retail streets, complementing Firth Street and extending the Town Centre uses and activity to the east of the rail line. Streetscape improvements delivered alongside development will further enhance the character and amenity of these streets.
3. Retain active uses and street edge alignment to the corner of Eden Street to mark entry into the Town Centre.
4. Wooroona Reserve is transformed into the Town Square adjacent the rail station with outdoor dining terraces along the north and south-east edge.
5. Existing and new pedestrian links improve access to the railway station and create a more walkable centre.
6. Eden Street Park is a new local park catering to new residents with a centrally located lawn, gardens and significant tree planting.
7. Taller buildings near the station visually reinforce the area as a centre and assist in highlighting the location of key connections and open spaces.

Land Use

8. Ensure retail and business uses are provided at the ground level of existing and planned retail streets particularly on Eden Street and Burrows Street and sites adjoining Wooroona Reserve to the east.
9. Development adjoining Princes Highway and parts of Eden Street should provide showroom and other commercial uses at lower levels.
10. High-quality residential development is encouraged above retail and commercial uses within the town centre, and as a standalone use on sites outside of the centre.

Built Form

11. Tall towers on larger sites should be slender and well proportioned.
12. Side setbacks are to include deep soil zones and appropriate landscaped treatment.
13. Building height controls should allow for generous 7 metre floor to ceiling heights for ground level showroom uses along the Princes Highway. This additional height would allow for small mezzanine levels to be incorporated.
14. Retain street edge alignment and active frontages at the corner of Eden Street at Forest Road.
15. A front setback of 3 metre is required, unless a specific setback is recommended elsewhere in this chapter.

Public Domain

Arncliffe Town Centre
16. 6 metre setback and provision of a positive covenant applying to this setback, for the purposes of permitting unrestricted access for public thoroughfare, landscape and public domain maintenance on sites adjoining the Princes Highway. Where a site has more than one frontage, this requirement shall apply to each street frontage. Proposed landscape improvements include significant 'boulevard' tree planting and the creation of a dual footpath that allows for the staged delivery of the setback and continued pedestrian access during transition. 17. 5 metre landscape zone within Wickham Street and Forest Road shall include large and medium size tree planting. 18. A new plan for Wooroona Reserve and redevelopment of sites adjoining the park for active uses and outdoor terraces will increase usage and enjoyment. 19. A new park to be delivered through the redevelopment of the Housing NSW site on Eden Street. 20. Arncliffe Station Park on the M5 portal site will provide valuable open space for active and passive recreation. 21. New through site links between Princes Highway and Eden Street.

The Princes Highway Arncliffe Sub-precinct

The Princes Highway is a major north-south arterial road serving the southern Sydney region and is a desirable location for vehicle-oriented light industrial, commercial and retail uses. The desired future character for this precinct is outlined below.

The Princes Highway Arncliffe Sub-Precinct
Desired Future Neighbourhood Character
1. Integrate boulevard tree planting along the Highway that reinforces the location of the Arncliffe Town Centre. 2. Allow provision for destination commercial spaces and showrooms that are highly visible from passing vehicles. 3. A key visual identity within the precinct is the Masjid Darul Imaan Mosque. It is vital that this remains a local landmark and signals an important street entry into the Town Centre. 4. Improved pedestrian and cycle environment, and amenity for businesses and residents. 5. Endorse and promote high-quality mixed use development.
Land Use
6. Large format commercial uses at lower levels. 7. Residential levels located above lower commercial levels with visual and acoustic separation from busy road frontage.
Road network and vehicular access
8. Create a permeable road network that facilitates efficient vehicular access to and circulation within the area which can be conveniently used by all modes of transport.
Built Form

The Princes Highway Arncliffe Sub-Precinct
9. Building height controls should allow for generous 7m floor to ceiling heights for ground level showroom uses along the Princes Highway. These spaces might comprise a small mezzanine. 10. Communal open spaces are preferred on podiums or roof tops with high levels of amenity and less conflicts with large format commercial uses and associated service requirements. 11. Where possible, vehicle entry to sites facing the Highway should be from a secondary street. Amalgamation is encouraged to minimise vehicle cross-overs. 12. Winter gardens, shutters and glazing will further improve residential amenity above the busy road. 13. A front setback of 3 metre is required, unless a specific setback is recommended elsewhere in this chapter.
Public Domain
14. 6 metre setback and dedication on sites adjoining Princes Highway. Proposed landscape improvements include significant boulevard tree planting and the creation of a dual footpath that allows for the staged delivery of the setback and continued pedestrian access during transition.

The Princes Highway Banksia Sub-precinct

The desired future character for the Princes Highway Banksia precinct is provided below.

The Princes Highway Banksia Sub-Precinct
Desired Future Neighbourhood Character
1. To promote businesses along main roads and to encourage a mix of compatible uses. 2. To provide a range of employment uses (including business, office, retail and light industrial uses).
Land Use
3. The Banksia section of the Princes Highway will continue to encourage employment uses. 4. Controls will allow the flexibility of a range of commercial uses which may not be in this location currently, such as offices.
Built Form
5. Building heights are expected to remain typically around 2 storeys in the medium term however heights are permitted to encourage the development of other commercial building types (e.g. offices) where this is viable. 6. Setbacks must be consistent with the “Highway Commercial” setbacks outlined in 6.3.2. 7. Where possible, vehicle entry to sites facing the Highway should be from a secondary street. Amalgamation is encouraged to minimise vehicle crossovers. 8. Retain vistas to Botany Bay. No building or structure is to detrimentally impact any view corridor.
Public Domain

The Princes Highway Banksia Sub-Precinct
9. 6 metre setback for sites to contribute to intermittent deep soil zones (minimum 6 metre x 6 metre) along the Highway frontage allowing for the planting of large trees and contribute to a boulevard character.

Allen Street Neighbourhood Sub-precinct

This small neighbourhood is located between Arncliffe Town Centre and Wolli Creek and contained by the strongly defined edges of the M5 to the south, the rail line to west, Southern and Western Suburbs Ocean Outfall Sewer (SWSOOS) to the north, and Princes Highway to the east. It includes a mix of buildings types including industrial warehouses, small walk-up apartments, car dealerships and a furniture showroom. The large consolidated industrial site may provide the opportunity to deliver new public domain for future residents and to better manage stormwater in the area.

Allen Street Neighbourhood Sub-Precinct
Desired Future Neighbourhood Character
1. An emerging residential neighbourhood adjacent to the Town Centre located around a new local park at Allen Street with a small cafe or shop serving local residents. 2. Adaptive re-use of the SWSOOS as an east-west pedestrian corridor connecting the neighbourhood to the regional parkland to the east, to the Bonar Street neighbourhood and school via the proposed rail underpass to the west. 3. Perimeter block apartment buildings with discrete towers are sited to reinforce the street grid, mark the new park and transition between the Town Centre and Wolli Creek. 4. Generally mid-rise development. Taller development adjacent the Allen Street Park to mark the park within the broader context.
Land Use
5. Primarily residential development. 6. Large format commercial development at the lower levels of sites adjoining Princes Highway. 7. Cafe or retail uses at the lower levels of residential buildings where they adjoin an open space, to assist in activating the space. 8. Rezone the isolated industrial site on the corner of Allen Street and Arncliffe Street to allow for mixed use development and the development of a new open space.
Built Form
9. Development (including double height, 7 metre floor to ceiling height commercial ground floor) is proposed on sites fronting the Princes Highway, to provide a transition to Wolli Creek to the north. 10. Taller buildings are proposed on the remaining industrial lot to allow for an equitable floor space on the site and the delivery of a new open space (refer to Allen Street Development Site). 11. Street wall height of 6 storeys, with a 3 metre setback to upper levels. 12. A front setback of 3 metre is required, unless a specific setback is recommended elsewhere in this chapter.

Allen Street Neighbourhood Sub-Precinct
13. Side setbacks are to include deep soil zones and appropriate landscaped treatment.
Public Domain
10. Proposed park on the corner of Allen and Arncliffe Streets will provide valuable open space with a northerly aspect, a new through-block connection and will help to detain storm water in a flood event. 11. 6m landscape setback on sites adjoining Princes Highway. 12. Arncliffe Station Park on the M5 portal site will provide valuable open space for active and passive recreation.

Cahill Park Neighbourhood Sub-precinct

This neighbourhood is part of the broader neighbourhood that extends north to Cahill Park. Pedestrian access to centres and open spaces requires crossing busy roads such as the Princes Highway, Marsh Street, Wickham Street and West Botany Street. The neighbourhood includes predominantly houses and car-oriented commercial uses along the Princes Highway. There is an existing unresolved scale transition between recent large apartment buildings to the north and the predominantly low scale residential neighbourhood to the south.

Cahill Park Neighbourhood Sub-Precinct
Desired Future Neighbourhood Character
1. An extension of the existing Cahill Park residential neighbourhood to the south. 2. Leafy residential streets sheltered from the north-south busy arterial roads that traverse the neighbourhood. 3. Generous landscape setbacks along Wickham Street, West Botany Road and Marsh Street enhance street character and provide improved amenity for adjacent residential uses. 4. Buildings that step up the hill at the northern part of Duncan Street. 5. Improved east-west pedestrian routes along Duncan Street and Valda Avenue connecting to nearby open spaces and along Kyle Street connecting to the Town Centre and rail station. 6. Through site links through long urban blocks improve walkability within the neighbourhood and to surrounding open spaces and schools. 7. A landmark building marks the corner at the junction of Princes Highway and West Botany Street. 8. Rear gardens with tree planting reinforce existing mid-block and provide landscape transition between new developments and existing Princes Highway uses.
Land Use
9. Primarily residential development. 10. Large format commercial development at the lower levels of development adjoining Princes Highway.
Built Form

Cahill Park Neighbourhood Sub-Precinct

11. Development (including double height, 7 metre floor to ceiling height commercial ground floor) is proposed on sites fronting the Princes Highway. These spaces might comprise a small mezzanine.
12. Provide street edge aligned built form with active frontage to mark the corner at junction of the Princes Highway and West Botany Street.
13. A front setback of 3 metre is required, unless a specific setback is recommended elsewhere in this chapter.
14. Deep soil zones along rear boundary to facilitate mid-block tree planting and visual privacy between properties.
15. Side setbacks are to include deep soil zones and appropriate landscaped treatment.
16. Retain vistas to Botany Bay. No building or structure is to detrimentally impact any view corridor as identified.

Public Domain

17. A 6 metre landscape setback on sites adjoining Princes Highway.
18. A 5 metre landscape setback is required to Marsh Street, West Botany Street and Wickham Street comprising a 3 metre landscape zone with private courtyards behind to assist in ameliorating the impacts of busy roads on residential development. The landscape zone should include large and medium size tree planting.
19. New through site connections (6 metre wide) between Innesdale Road and Valda Avenue will break up the proposed continuous building form and encourage pedestrian links away from busy roads. Links should be provided on the side boundary of an amalgamated development site. Through site links should generally align with Robert Lane.
20. New through site connections (6 metre wide) between West Botany Road and Princes Highway will break up the proposed continuous building form and encourage pedestrian connection from the east to west. Links should be provided on the side boundary of an amalgamated development site.

Arncliffe School Neighbourhood Sub-precinct

At the heart of this small neighbourhood identified is the Arncliffe Public School and St Francis Xavier's linked by a pedestrian bridge across the sandstone cutting of the highway. To the east this neighbourhood is primarily residential and to the south commercial. Forest Road/Wickham Street and the Princes Highway isolate the neighbourhood from the Arncliffe Town Centre while Marinea Street Reserve, just outside the neighbourhood boundary, and the school grounds provide some open space amenity.

Arncliffe School Neighbourhood

Desired Future Neighbourhood Character

1. The residential neighbourhood surrounds the two schools: Arncliffe Public School and St Francis Xavier Catholic Primary School.
2. The enhanced pedestrian bridge spans the sandstone cutting at the Princess Highway connecting the two parts of the neighbourhood and the schools.

Arncliffe School Neighbourhood

3. A proposed cycleway connects the Town Centre, neighbourhood and schools to Banksia Field and Barton Park in the east.
4. Marinea Park to the immediate south is to provide local amenity and play space.
5. A new through site link extends from Wardells Street to Hattersley Street in the south and provides easy access to Banksia rail station and centre.
6. Generous landscape setbacks along Wickham Street and Forest Road enhance street character and provide improved amenity for adjacent residential uses.
7. St Francis Xavier's Catholic Church remains a local landmark along Forest Road.
8. The strong building form with active frontage marks the corner at the intersection of Princes Highway and Forest Road and signals entry to the Town Centre.

Land Use

9. Retain schools and improve connections.
10. Primarily residential development.
11. Large format commercial development at the lower levels of development adjoining Princes Highway, with residential uses above.

Built Form

12. Smaller lots east of the Arncliffe Public School and south of Wickham Street can be developed for new 3 storey buildings, where there is a street frontage greater than 24 metre.
13. A 5 metre landscape setback is required to Wickham Street and Forest Road comprising a 3 metre landscape zone with private courtyards behind to assist in ameliorating the impacts of busy roads on residential development. The landscape zone should include large and medium size tree planting.
14. Provide street edge alignment and active use to south-western corner at Princes Highway and Forest Road to reinforce this important corner marking the Town Centre entry from the Highway.
15. A front setback of 3 metre is required unless a specific setback is recommended elsewhere in this chapter.
16. Side setbacks are to include deep soil zones and appropriate landscaped treatment.
17. Solar access to the school grounds - the configuration of buildings and structures must ensure that the school grounds receive a minimum of 2 hours daylight during the hours of 12pm - 2pm on 21 June (mid winter).
18. Retain vistas to Botany Bay, no building or structure is to build into or on a view corridor as identified.

Public Domain

19. 6 metre setback and provision of a positive covenant applying to this setback, for the purposes of permitting unrestricted access for public thoroughfare, landscape and public domain maintenance on sites adjoining the Princes Highway. Proposed landscape improvements include significant boulevard tree planting and the creation of a dual footpath that allows for the staged delivery of the setback and continued pedestrian access during transition. At the sandstone cutting south of the Forest Road intersection, a setback shall be provided for tree planting and a footpath at the top of the cutting.

Arncliffe School Neighbourhood
20. A new through site connection (6m wide) is proposed, which will connect Wardell Street to Hattersley Street and provide the missing link in the pedestrian and cycle route on the eastern side of the rail line. Links should be provided on the side boundary of an amalgamated development site. 21. A new through site connection (6m wide) connecting Segenhoe Avenue to West Botany (aligning with Brennans Road) through to the Eve Street Wetlands active transport network. Links should be provided on the side boundary of an amalgamated development site.

Banksia Centre East Sub-precinct

East of the railway this neighbourhood includes an area between Hattersley Street and the Princes Highway which is a mix of residential and commercial.

Banksia Centre East Sub-Precinct
Public Domain
1. New through site connections (6m wide) is proposed, which will connect Banksia Avenue to Hattersley Street and connect Tabrett Street to Hattersley Street to provide pedestrian linkages to Banksia Station. Links should be provided on the side boundary of an amalgamated development site. 2. A new through site connection (consistent with prevailing Hattersley street width) between Kimpton Street and Rockdale Street connecting Hattersley street on both sides.

Marinea Street Neighbourhood Sub-precinct

This is part of a wider neighbourhood which extends east from the Princes Highway to Barton Park and Banksia Field. The majority of this wider neighbourhood is affected by aircraft noise issues such that providing more homes here is not considered appropriate.

Key points include:

1. The landmark figs and tree planting along the railway corridor are key existing features which will also contribute to the future character of this centre.
2. Gardiner Park to the west is a focal point for this neighbourhood, providing a large field, play area and other spaces.
3. There is a regularity to the lot pattern and many of the existing buildings running north-south.
4. Pedestrian links to Banksia Railway Station and centres often rely on unattractive routes along the Princes Highway.
5. This neighbourhood has some attractive and established trees within the streetscape.
6. The Marinea Street Reserve (outside the precinct to the east) provides a key focal point for this locality.

7.4.3.2 Public Domain

The Public Domain and Open Space Network Diagram identifies the areas that will see improvements to the public domain through streetscape treatment, upgrades to existing open space, provision of new open space and active frontages in key commercial areas.

It is required that proponents liaise with Council during the design phase of the planning process to understand Council's requirements, as in many cases, public domain improvements will be delivered as part of the redevelopment of the site.

Objective		Control	
Street network and design			
O1.	To strengthen the landscape character and quality of the precincts through street tree planting.	**C1.**	The street network is to be generally consistent with the Public Domain and Open Space Network Diagram.
O2.	To encourage improvements to the amenity of the Princes Highway corridor through better landscaping and improved facilities for pedestrians and cyclists.	**C2.**	New streets are to be generally consistent with the Landscape Setbacks diagram. Significant individual trees in streets or on sites are to be retained and protected where possible and appropriate.
O3.	To provide for improved and safer street crossings for pedestrians throughout the precincts.	**C3.**	Streets and public spaces are to be defined with trees of appropriate scale and species and designed with reference to relevant Council guidelines.
O4.	To enhance the precincts permeability including new and improved through site links and connections to adjacent areas outside the Precinct.	**C4.**	Intersection and crossing design is to favour pedestrian convenience and safety.
O5.	To create an attractive and comfortable streetscape for pedestrians and cyclists that comprises of consistent and high-quality paving, street furniture, street tree planting, bike stands and bike racks.	**C5.**	Any proposed cycle links are to be delivered in accordance with best practice standards.
		C6.	Liaison with Council's Transport Planner is required during the design phase of the planning process.
		C7.	Provision for 'end of trip' facilities are encouraged in developments close to Arncliffe and Banksia Stations.
		C8.	Footpaths are to be provided as per the sections in the Landscape Setbacks diagram. Pavement width is to allow for comfortable walking, unimpeded by obstacles. The placement of trees, street furniture and signage is to provide for amenity without causing clutter.
		C9.	New streets are to have shared services pits to reduce maintenance costs and reduce conflict with street planting.

Objective		Control	
		C10.	Street furniture and lighting is to be provided with reference to the relevant Council guidelines.
Public Domain and Open Space Network			
O6.	To provide a range of quality public spaces including parks and plazas, for recreation and community gatherings, to support residents, workers, and visitors.	**C11.**	Provision of new open space is to be in accordance with the Public Domain and Open Space Network Diagram.
O7.	To improve the amenity, facilities and usage of existing parks and public spaces.	**C12.**	New cycle links identified in the Public Domain and Open Space Network are to be delivered in accordance with best practice standards. Provision of end of trip facilities are to be encouraged in developments close to Arncliffe and Banksia Stations. Liaison with Council's Transport Planner is required during the design phase of the planning process.
O8.	To improve connections between open space and the broader network.	**C13.**	The configuration of buildings and structures must ensure that a minimum of 50% of the area of parks and green spaces receive a minimum of 3 hours during lunch hours (12pm - 2pm) on 21 June (mid-winter).

Objective	Control

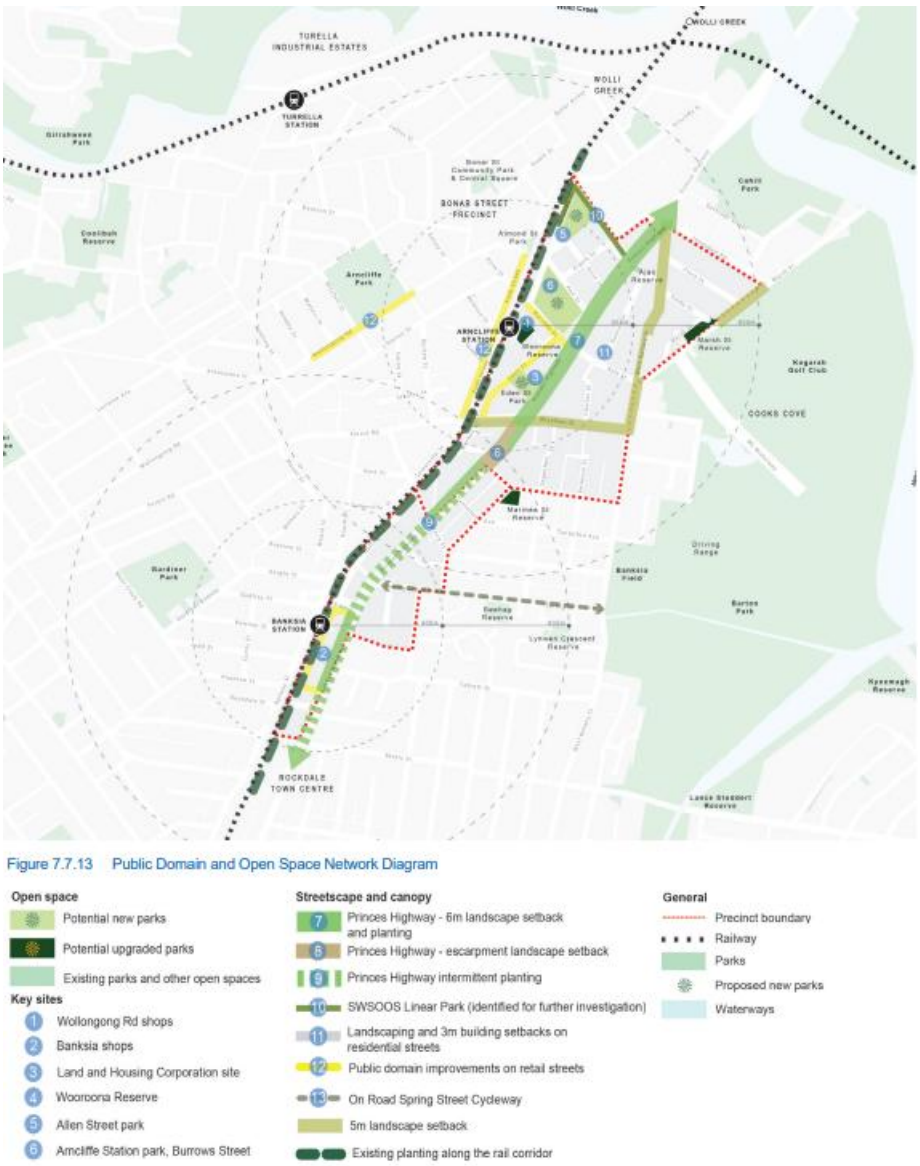


Figure 57: Public Domain and Open Space Network Map

Wooroona Reserve Upgrade			
O1.	This park is to provide a necessary and valuable open space and high-quality public domain with adjoining forecourts for the neighbourhood, accommodating areas for gathering, seating, children's play, and relaxation.	**C1.**	New developments around Wooroona Reserve shall: a. Ensure that they consider and address requirements for solar access and amenity to public open space; b. Incorporate active ground floor frontages through the designation of a forecourt or plaza space to address the park; c. Provide passive surveillance over the park by incorporating CPTED principles when designing new buildings; d. Provide a 3m setback from The Arcade to allow for new tree planting, new seating, and lighting;
O2.	Expansion and upgrading of the existing park will occur as the surrounding area is developed.		

Objective		Control	
			e. Maintain Butterworth Lane as a pedestrian only through site link; and f. Retain feature trees and augment with additional complementary "landmark" character trees.

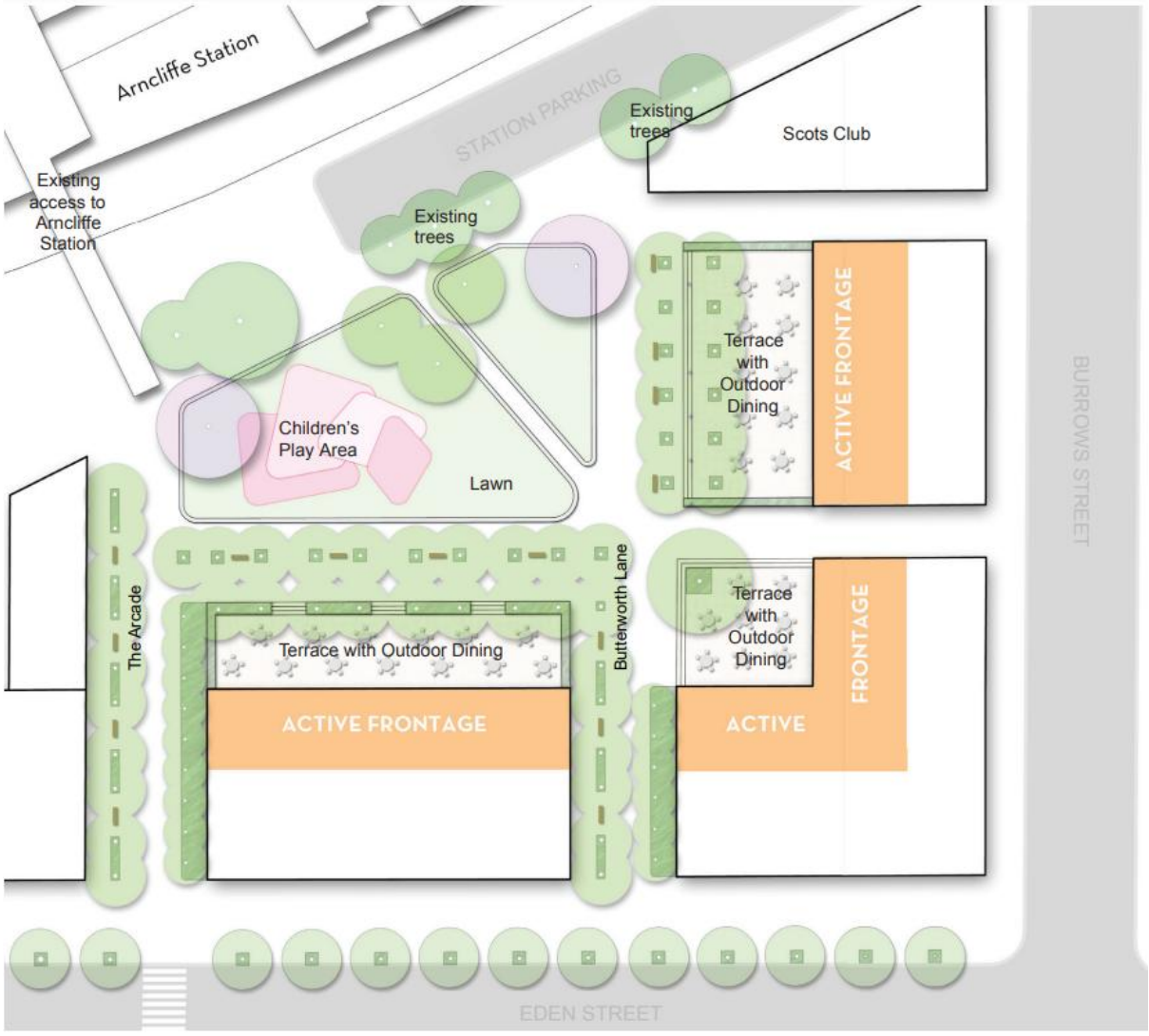


Figure 58: Indicative Concept Plan Wooroona Reserve

Eden Street Development Site

Objective		Control	
O1.	Provide the opportunity for a range of uses including integrated housing, employment and open space.	**C1.**	Any redevelopment of the site is to include a new consolidated public park space that shall: a. Ensure the new public park is to be located to maximise solar access; b. Provide a minimum width of 50m along the Eden Street frontage with a site area of 4000m^2; c. Ensure direct through site links are incorporated within the new park and integrate with the new space into the surrounding streetscape; d. Ensure new through site links will be provided in accordance with the diagrams on the following pages. e. Provide pathway connections through the public park connecting Princes Highway to Eden Street and Arncliffe Station; f. Ensure a generous landscape interface to Princes Highway with existing trees, additional tree planting, garden zones that must incorporate storm water treatment gardens; g. Provide landscape setbacks as per the Public Domain and Open Space Network Diagram; h. Ensure the new park will play a key role in the community providing new landscaping and areas for passive and active recreation activities.
O2.	Provide a centrally located public open space that caters for a growing local population and offers a variety of activities.		
O3.	Provision of the public open space will occur as these sites redevelop.	**C2.**	New buildings on the site must comply with the following controls and shall: a. Ensure building setbacks and site through links are in accordance with the Built Form and Character image and through site links. b. The configuration of buildings and structures must ensure that a minimum of 50% of the area of parks and green spaces receive a minimum of 3 hours during lunch hours (12pm - 2pm) on 21 June (mid-winter). c. Promote slender buildings, towers exceeding 8 storeys.

Objective	Control

Figure 59: Built Form and Open Space Diagram - Indicative Built Form Study

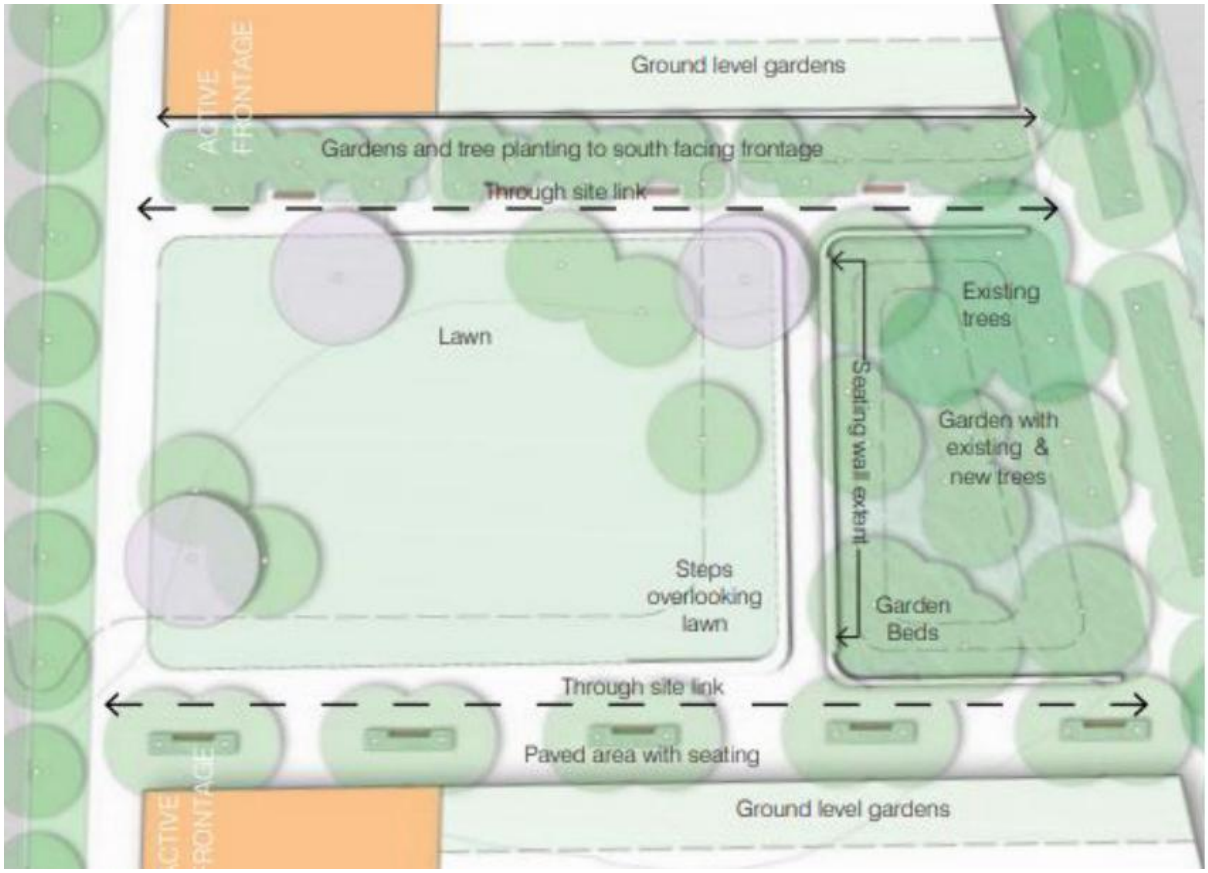


Figure 60: Built Form and Open Space Diagram - Indicative Concept for proposed park

Objective		Control	
Allen Street Development Site			
O1.	To provide opportunities for the provision of public open space as part of the site's redevelopment.	**C1.**	Any redevelopment of the site shall include a new public park, and demonstrate compliance with the following controls and shall: a. Ensure that the new park is located in the area bounded by Allen Street, Arncliffe Street and the SWSOOS; b. Ensure the new park demonstrates compliance with Council's water management and flooding controls. c. Ensure the area of the park is as identified at 5000m^2 in the supporting studies, with the park being subject to extensive flood analysis and modelling d. Provide pathway connections for efficient access through the site to Allen Street and to the new pedestrian connection on top of the SWSOOS; e. Provide generous landscape garden interface to the new building to the south west with new tree planting; and f. Provide areas for passive and active recreation.
O2.	To provide opportunities for play facilities, such as basketball courts for the nearby high school.		

Objective		Control	
		C2.	New buildings must demonstrate compliance with the following controls and shall: a. Provide a 6m wide pedestrian link through the site to the Bonnie Doon Channel; b. Ensure through site links are in accordance with the Through Site Links Plan Arncliffe North; c. Provide residential entries along the park edge; d. Ensure the lower 6 storeys are setback 6 meters from Allen Street and Argyle Street frontages; e. Promote slender buildings, towers exceeding 8 storeys should have a maximum floor plate of 800m^2 gross floor area. f. The configuration of buildings and structures must ensure that a minimum of 50% of the area of parks and green spaces receive a minimum of 3 hours during lunch hours (12pm - 2pm) on 21 June (mid-winter).

Objective	Control

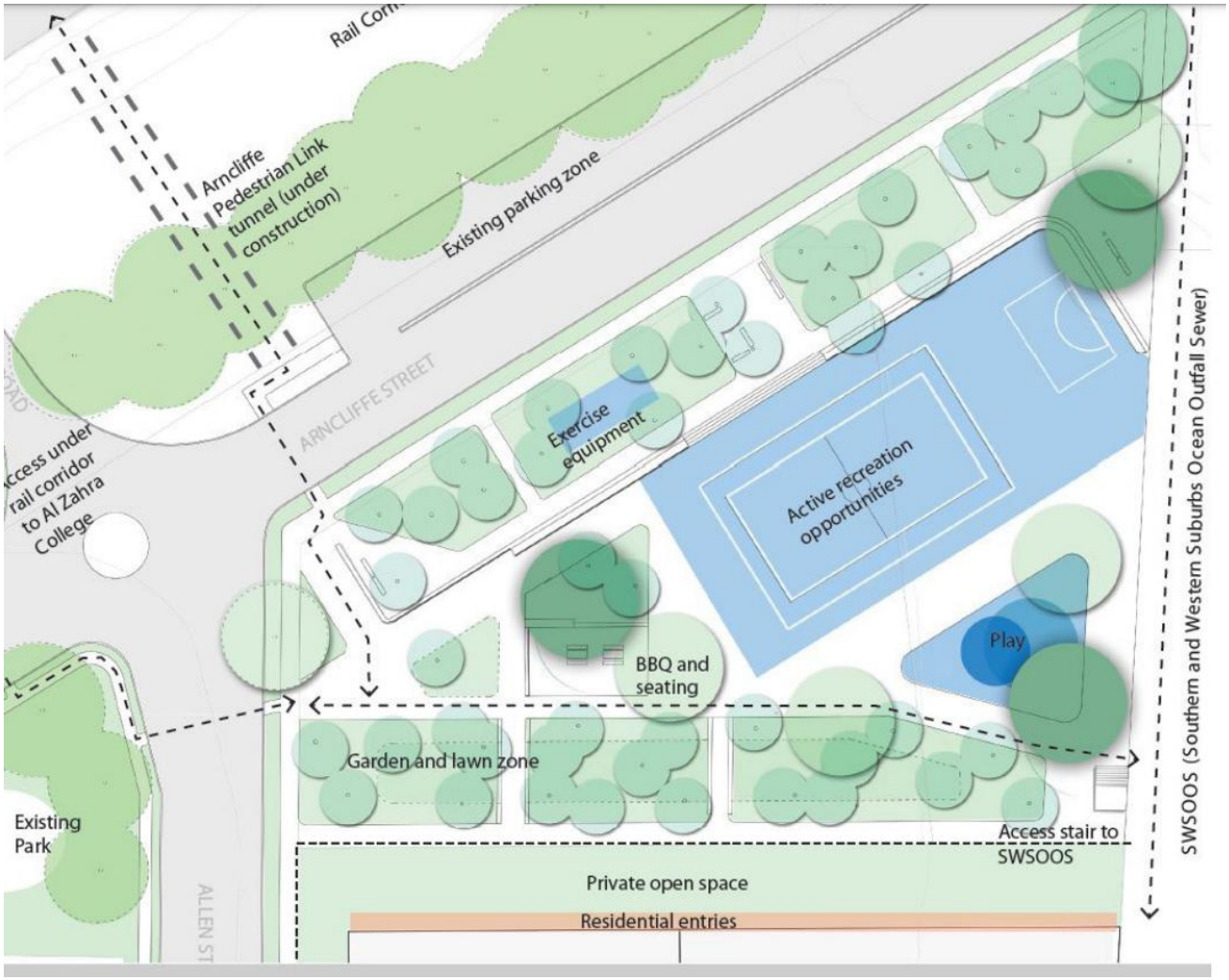


Figure 61: Indicative Concept Plan Arncliffe Station Park

Arncliffe Station Park			
O1.	To provide opportunities for the provision of multifunctional open space.	**C1.**	A new public park is to be delivered, and demonstrate compliance with the following controls: a. Ensure the new park is to be of a relatively flat topography for ease of access and movement; b. Ensure that the new park demonstrates compliance with the 4.1.3 Water Management. Liaison with Council's Flood Engineer is recommended during the design phase of the planning process; c. Incorporate stormwater detention features as required; d. Provide a variety of facilities for all age ranges and types of active and passive use;
O2.	To provide opportunities for active and passive recreation.		
O3.	To activate the surrounding public domain and streetscape.		

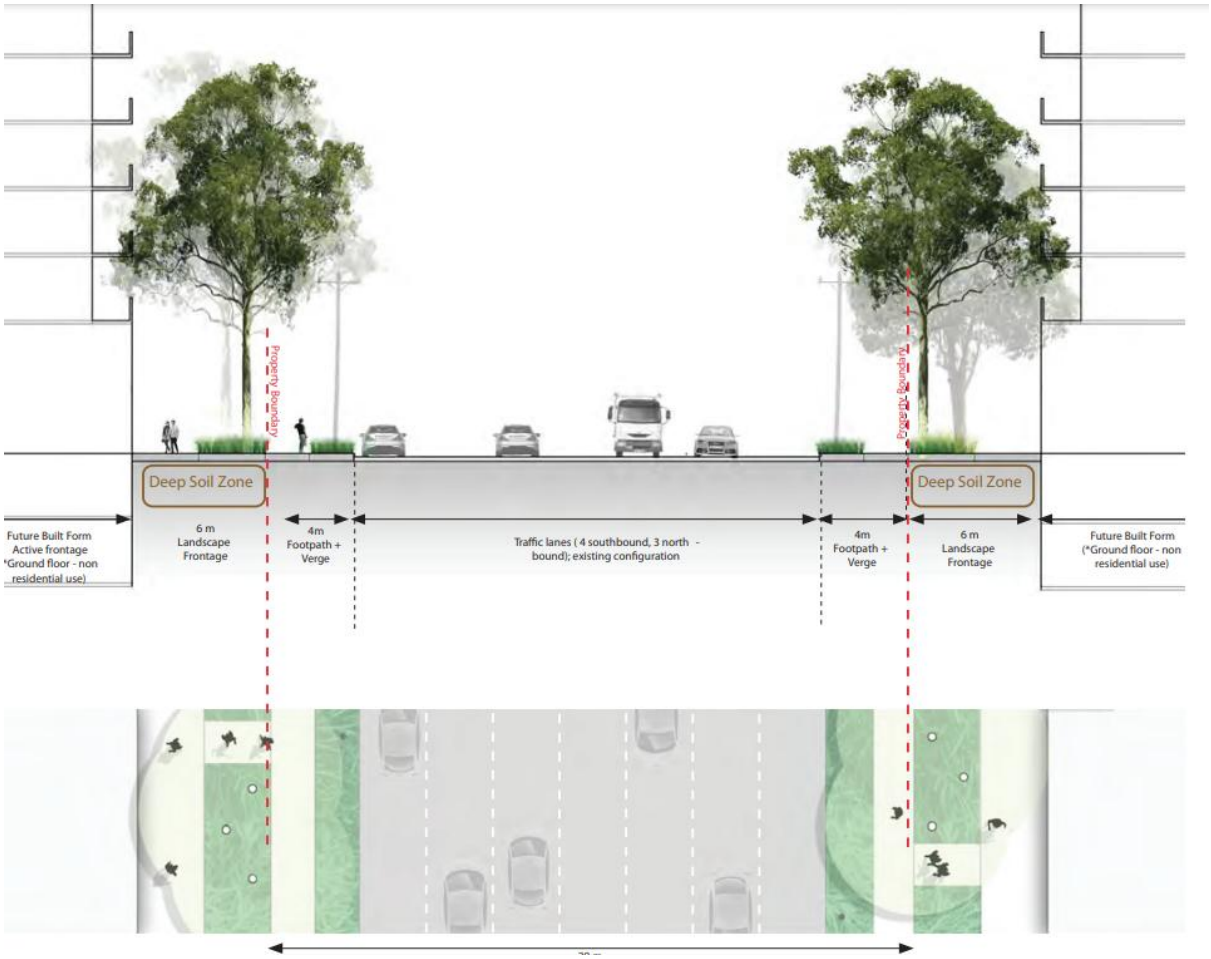
Objective		Control	
			e. Provide pathway connections should allow for efficient access through to Wooroona Reserve; and f. Ensure any future developments adjoining or adjacent to the park will include active frontages.
		C2.	New buildings adjacent to or within the vicinity of the site must demonstrate compliance with the following controls: a. Ensure building setbacks and site through links are to be in accordance with the Built Form and Character Map b. The configuration of buildings and structures must ensure that a minimum of 50% of the area of parks and green spaces receive a minimum of 3 hours during lunch hours (12pm - 2pm) on 21 June (mid-winter).

Figure 62: Indicative Concept Plan Arncliffe Station Park

7.4.3.3 Landscape Setbacks

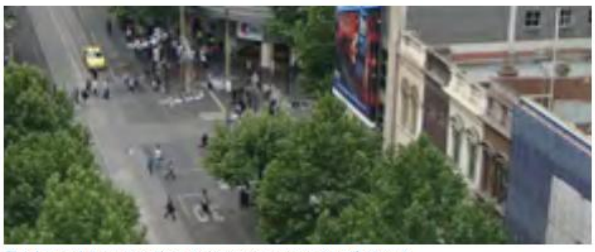
Objective		Control	
Princes Highway Landscape Setback			
O1.	To provide strong definition to the public domain and create a consistent and attractive streetscape.	**C1.**	New development in areas identified in the Princes Highway Landscape Setback are to: a. Provide a landscape corridor along the Princes Highway Corridor from Arncliffe to Banksia. A continuous 6 metre deep soil landscape setback is proposed and are required to: i. Retain existing trees, where possible. These trees provide a gateway to the precinct and improve the amenity of the street environment for pedestrians, motorists and residents; ii. Where new trees are required landscape plans are to be developed in consultation with Council. New tree planting will be a minimum 600L pot size planted 8 metre apart, in accordance with Council guidelines; iii. Where awnings are located, they must provide adequate weather protection as well as ensuring tree planting has space to grow; b. Relocate footpaths to provide expanded verge and tree planting zones; c. Provide for the provision of under storey planting in garden zones, in accordance with Council guidelines; and d. Include an additional footpath adjacent to retail and ground floor uses with planting.
O2.	To provide enhanced pedestrian amenity.		
O3.	To create a landscaped streetscape that can accommodate large tree species.		
O4.	To reduce the visual bulk of buildings from the street.		
		C2.	Existing overhead power lines are to be moved underground as each site is redeveloped.
		C3.	New development in areas identified in the Princes Highway Intermittent Planting diagram are to: a. Provide a modified landscape corridor along the Princes Highway corridor from Avenal Street, South Arncliffe to Bestic Street, Banksia.

Objective		Control	
			In this location where there are B6 zones, retail frontages with on grade parking adjacent to the highway consolidated tree planting zones are to be provided. This allows on grade parking to be retained and for consolidated tree planting zones to be provided along the Princes Highway corridor in private land. Consolidated tree planting zones are to satisfy the following criteria: i. Minimum 6 x 6 metre deep soil zones along the Princes Highway frontage (minimum requirement one consolidated planting zone per 20 metres of street frontage); ii. Provision of large trees (minimum 15 metres high), in accordance with Council guidelines; iii. Provision of under storey planting in garden zones, in accordance with Council guidelines; and iv. Provision of WSUD treatment gardens in deep soil zones.



Successful Retail Streets with large trees and wide verges

Fast growing gum trees provide a gateway to the neighborhood



Boulevard tree planting to increase amenity of street

Figure 63: Princes Highway Indicative Section and Landscape Setback Precedents

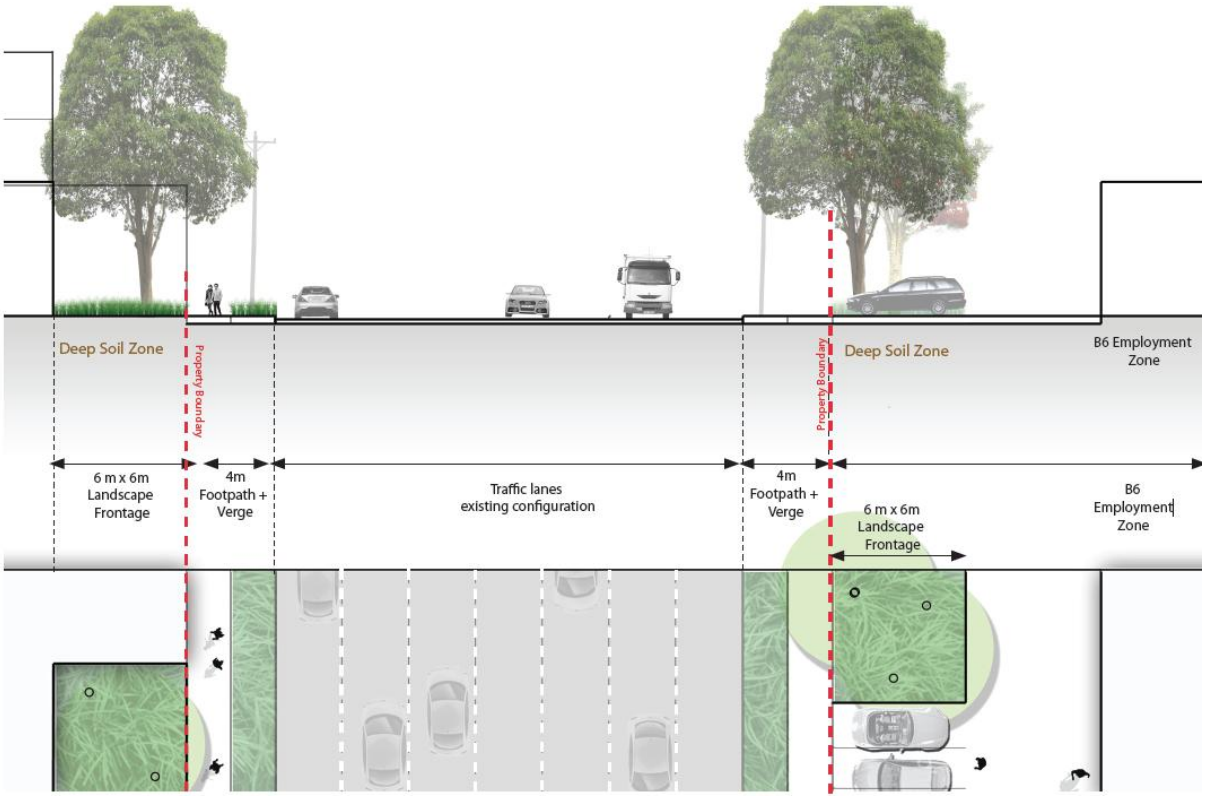


Figure 64: Indicative Section and Plan of Intermittent planting along the Princes Highway in the Banksia Precinct

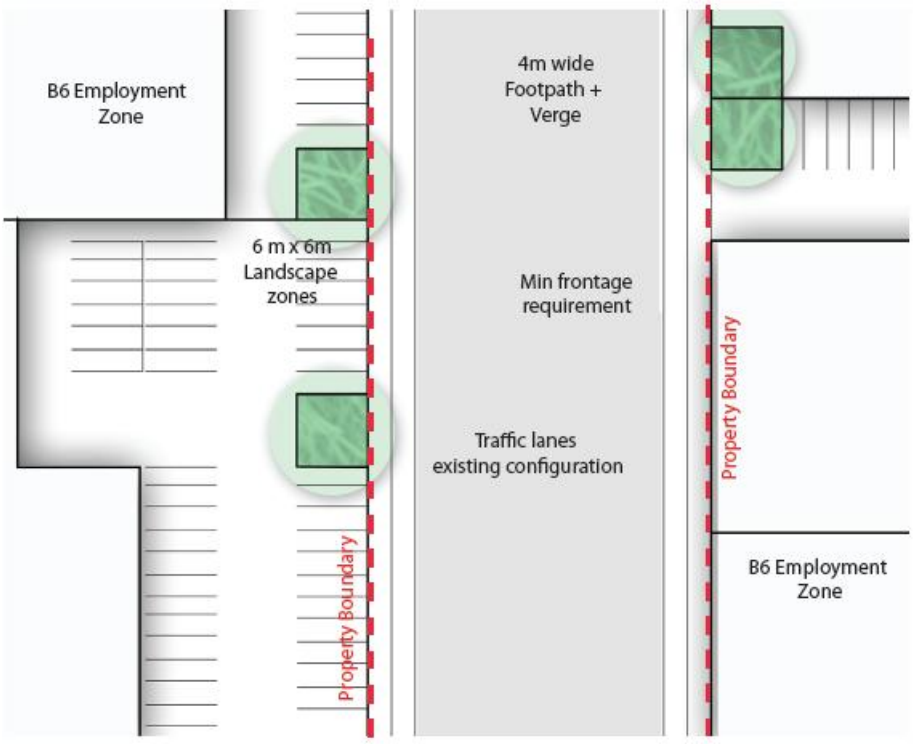


Figure 65: Option for Tree Planting along Princes Highway in the Banksia Precinct

Controls	
Residential Streets Controls	
C1.	Improvements to existing residential streets are proposed to increase canopy cover and improve neighbourhood amenity. New development located in the areas identified in the Residential Streets Landscape Setback image are to: a. Provide expanded footpath and verge zones and reduce carriage ways where possible; b. Provide ground floor private open space; c. Relocate footpaths to provide expanded verge and tree planting zones; d. Provide additional street tree planting to street verges, in accordance with Council guidelines; e. Provide additional tree planting between on street parking bays, in accordance with Council guidelines; f. Provide gardens with low shrubs and ground cover rather than lawn verges, in accordance with Council guidelines; g. Consolidate deep soil within setback frontages adjacent to existing streets to allow for additional tree planting in private land. This setback should not include private open space; and h. Allow for the integration and provision of rain gardens within landscape areas.
C2.	Existing overhead power lines are to be moved underground as each site is redeveloped.
Retail Streets Controls	
C3.	Several existing street reserves are generously proportioned and establish a precedent with large street trees providing amenity and shade. Streets such as Eden Street and Hattersley Street are to be improved through increased and high quality landscaping. New development in areas identified in the Retail Streets Landscape Setback image are to: a. Retain existing large scale trees located in street reserves or setbacks or along the rail corridor; b. Reduce excess carriageway areas and lane widths and providing expanded footpath zones for informal gathering, seating and outdoor dining; c. Provide additional tree planting to provide shade and seasonal colour, in accordance with Council guidelines; d. Provide new rain gardens that can filter street runoff; e. Provide new streetscape elements including furniture and improved pedestrian lighting in accordance with Council guidelines; and f. Incorporate distinctive lighting treatments that respond to local character to enhance the night time experience on primary retail streets, in accordance with Council guidelines.
C4.	Existing overhead power lines are to be moved underground as each site is redeveloped.

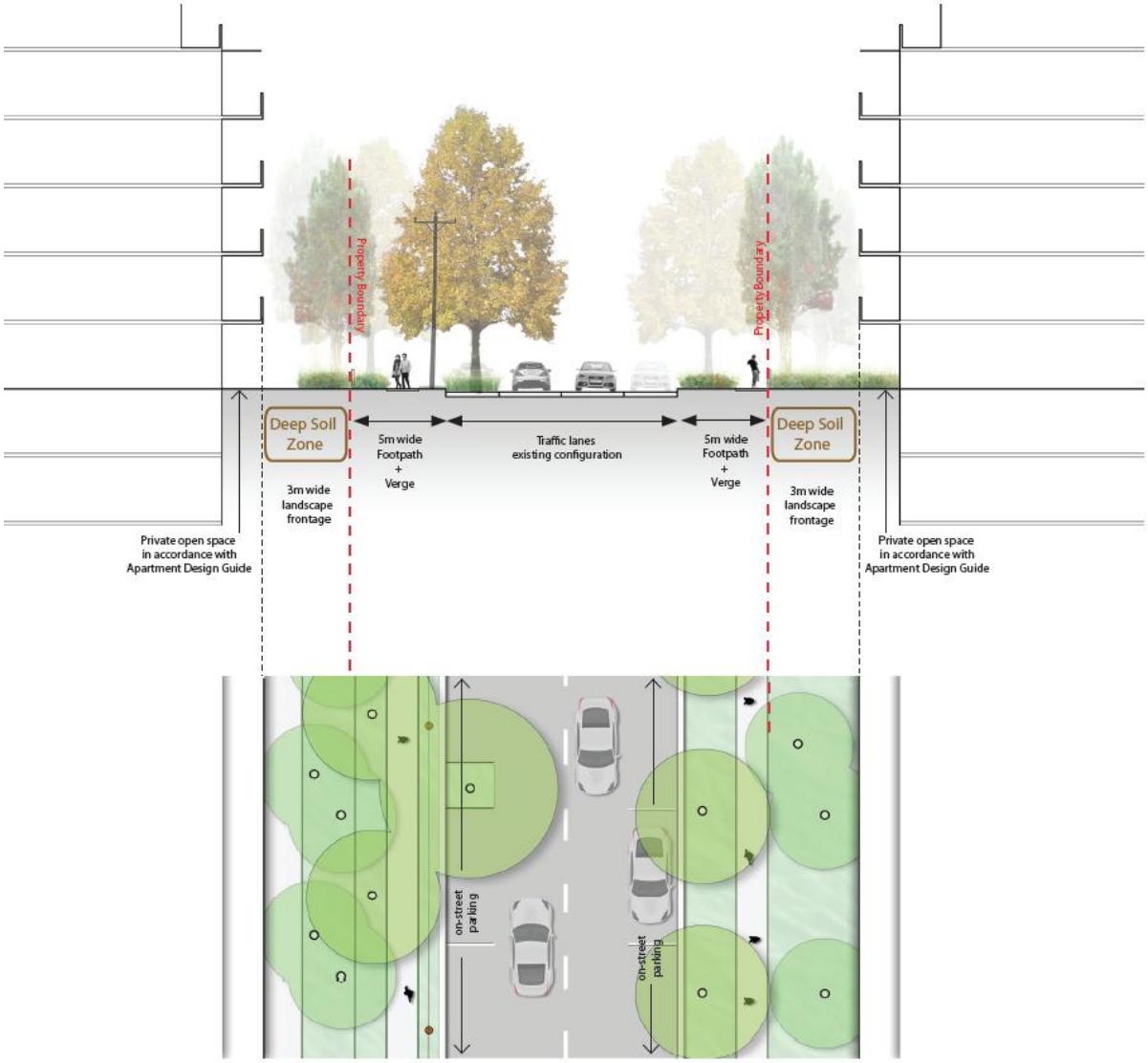


Figure 66: Indicative Residential Street Section and Plan

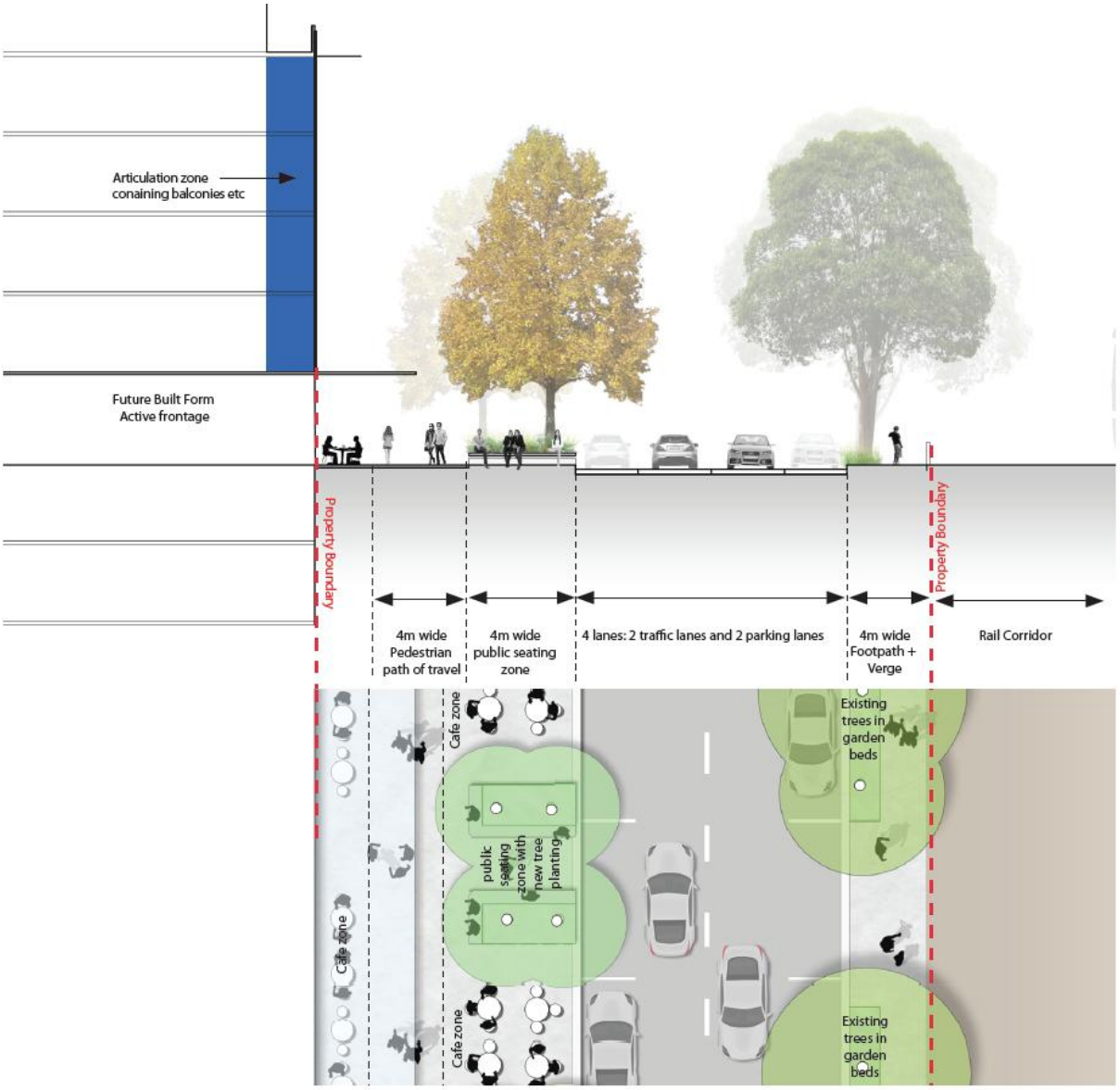
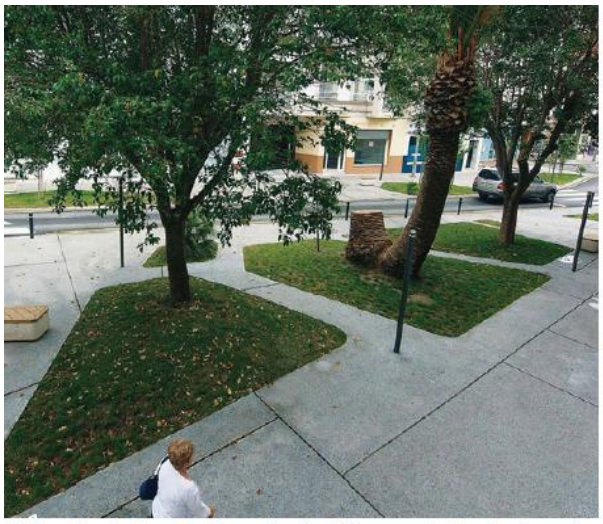


Figure 67: Indicative Concept Sketch for Firth Street



High quality street tree planting and paving to improve neighbourhood amenity

Public domain furniture including individual seats and benches

Decorative lighting to encourage night time activation

Figure 68: Retail Street Precedent

7.4.3.4 Through Site Links

Objective		Control	
O1.	To enhance connectivity through the precinct for pedestrians and cyclists as sites redevelop.	**C1.**	Through site links are to be publicly accessible connections through sites, (but not on land dedicated to Council for a public purpose) formalised through a positive covenant on the title of the land, that provides for unrestricted access for public thoroughfare and maintenance of the public domain.
O2.	To ensure the safety of pedestrians and cyclists.	**C2.**	Through site links are to be maintained by the land owner.
		C3.	Through site pedestrian links are to be provided generally in the locations shown on the Through Site Link Plans for Arncliffe North, Arncliffe South, and Banksia.
		C4.	Though site links and potential through site links need to be considered as part of any development application.
		C5.	Where a through site link is provided on site, FSR is based on the total site area.
		C6.	Pedestrian through site links can be provided in a number of ways, including arcades and open links between buildings. To ensure that pedestrian mobility and amenity can be effectively coordinated and integrated, the proponent is to liaise with Council prior to proceeding with detailed site planning and design.
		C7.	Through site links or arcades must connect to a public street on both ends and must be of a straight alignment, with clear visual connections.
		C8.	Through site links are to be publicly accessible connections through sites, (but not on land dedicated to Council for a public purpose) formalised through a positive covenant on the title of the land, that provides for unrestricted access for public thoroughfare and maintenance of the public domain.
		C9.	Pedestrian through site links are to: a. provide active frontages on both sides with clear glazing for windows and doors from floor to ceiling at ground level;

Objective		Control	
			b. be a clear and direct throughway for pedestrians; c. provide a minimum for 6 metres setback to building line; d. have a minimum width of 4.5 metres non leasable space clear of all obstructions (including columns, stairs and escalators); e. demonstrate compliance with Crime Prevention Through Environmental Design (CPTED) principles; f. where practicable, have access to natural light; g. have the capacity to provide active frontages on both sides; and h. be air conditioned and have clear glazed entry doors comprising at least 50% of the entrance.
		C10.	Through site links can be adjacent to active frontages, site boundaries (A), transport infrastructure (B) or public open spaces (C) as shown on the Through Site Links Plan.

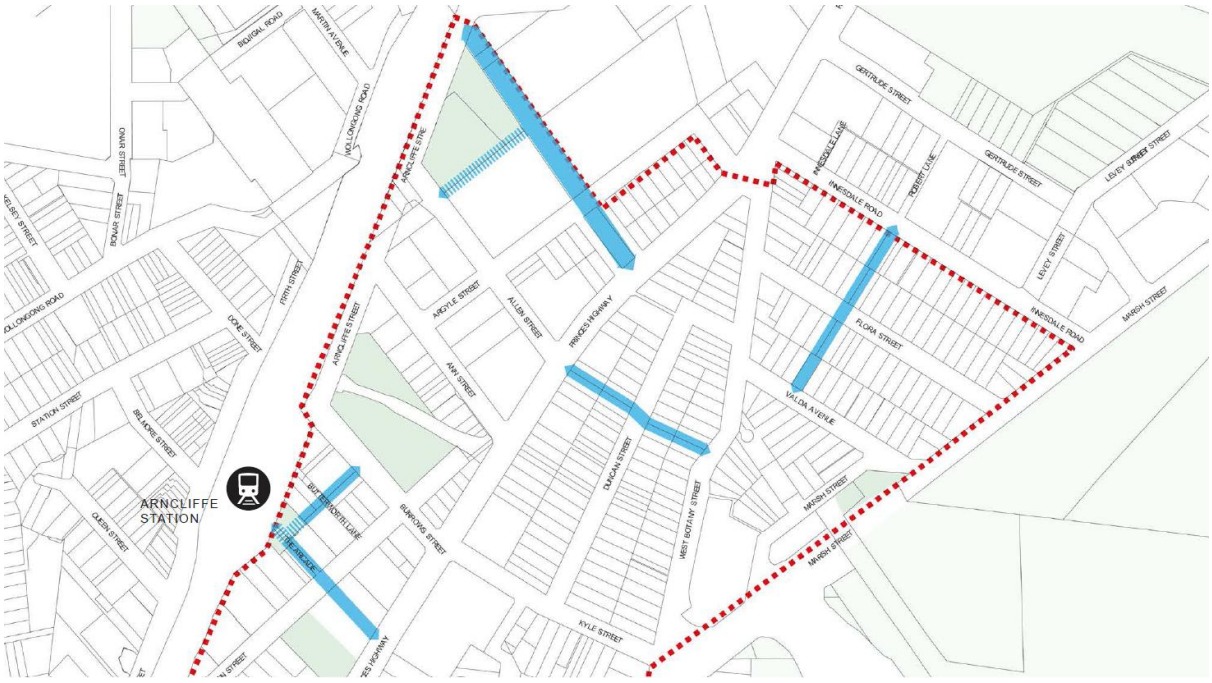


Figure 69: Through Site Links Plan Arncliffe North

Figure 70: Through Site Links Plan Arncliffe South

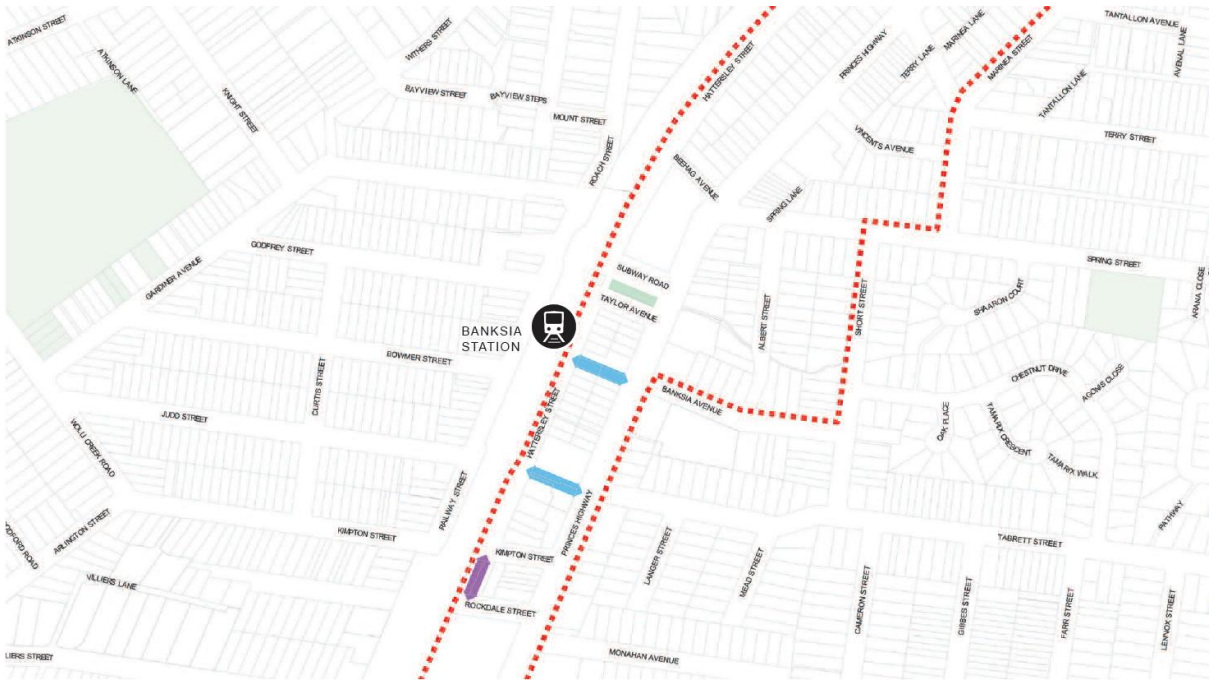


Figure 71: Through Site Links Plan Banksia

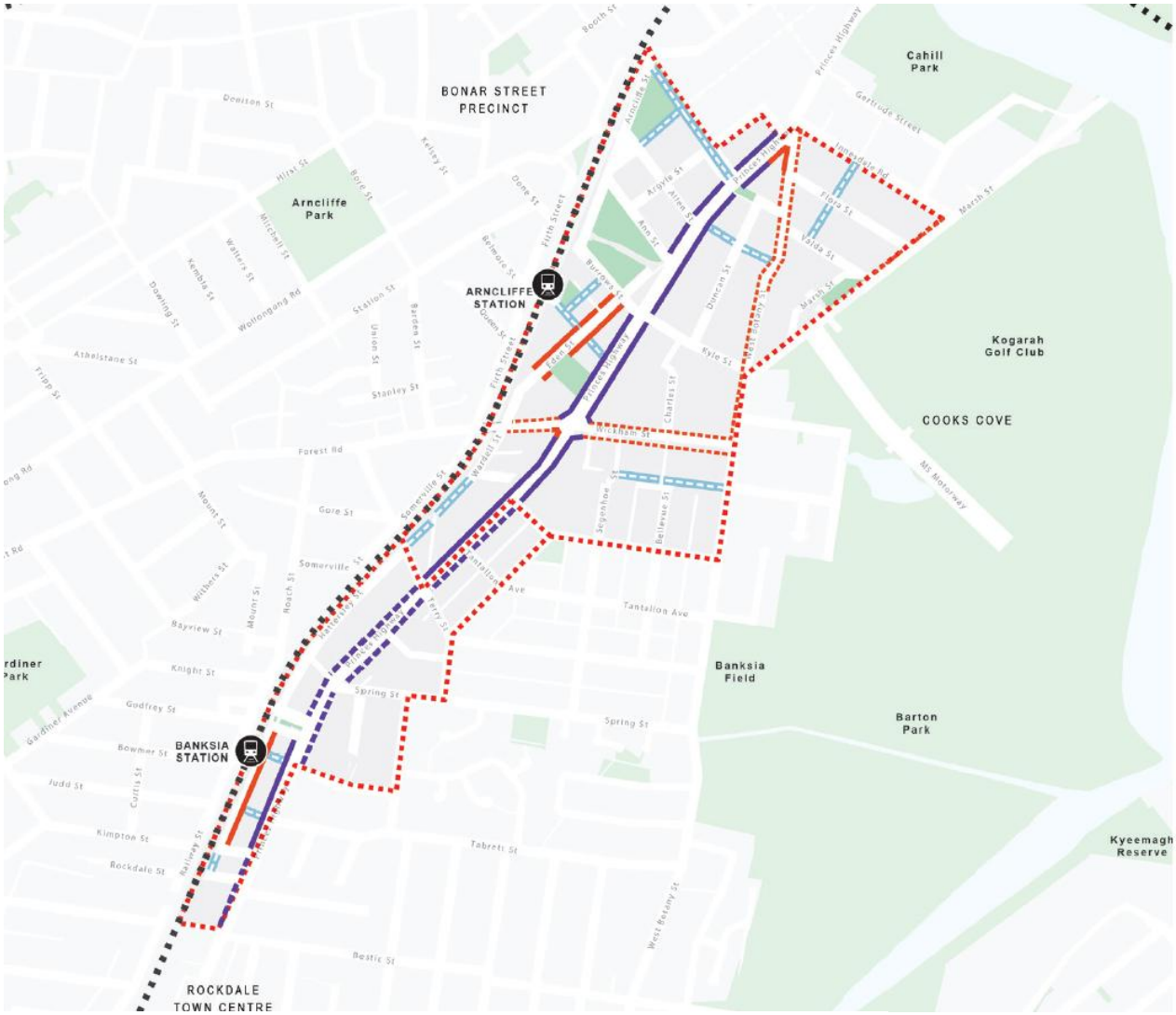
7.4.3.5 Built Form

Objective		Control	
Retail Streets Controls			
O1.	To ensure the development creates a positive streetscape and achieves high quality architectural design that promotes commercial, retail and business activity.	**C1.**	New development within the Arncliffe and Banksia Precincts is to provide ground floor building setbacks and provide new buildings

Objective		Control	
			to the street alignment in accordance with the Built Form and Character Map.
		C2.	Buildings should be set back 6 metres along the Princes Highway. The setbacks should include significant tree planting, landscaping and a secondary footpath located closer to the shop fronts and away from the traffic.
		C3.	5 metres landscaped setbacks are to consist of 3 metres landscaping and 2 metres private courtyards. The landscape zone should include large and medium size tree planting, in accordance with Council guidelines.

7.4.3.6 Street Wall Heights

Objective		Control	
O1.	To coordinate building massing along streets and across blocks.	**C1.**	New development within the Arncliffe and Banksia Precincts is to provide street wall heights in accordance with the Built Form and Character Map.
O2.	To ameliorate the effects of existing unevenly scaled and massed buildings.	**C2.**	The building envelope shall be set back a minimum of 3m above the Street Wall Heights as identified in the Street Wall Heights Map.



Street edge

- Built to street alignment with awnings
- Princes Highway - 6m landscape setback
- Princes Highway intermittent planting - 6m
- Landscape setback - 5m

Note: 3m set back required in other areas.

General

- Precinct boundary
- Mid-block footpaths
- Railway
- Parks
- Proposed new parks
- Waterways

Figure 72: Built Form and Character Map

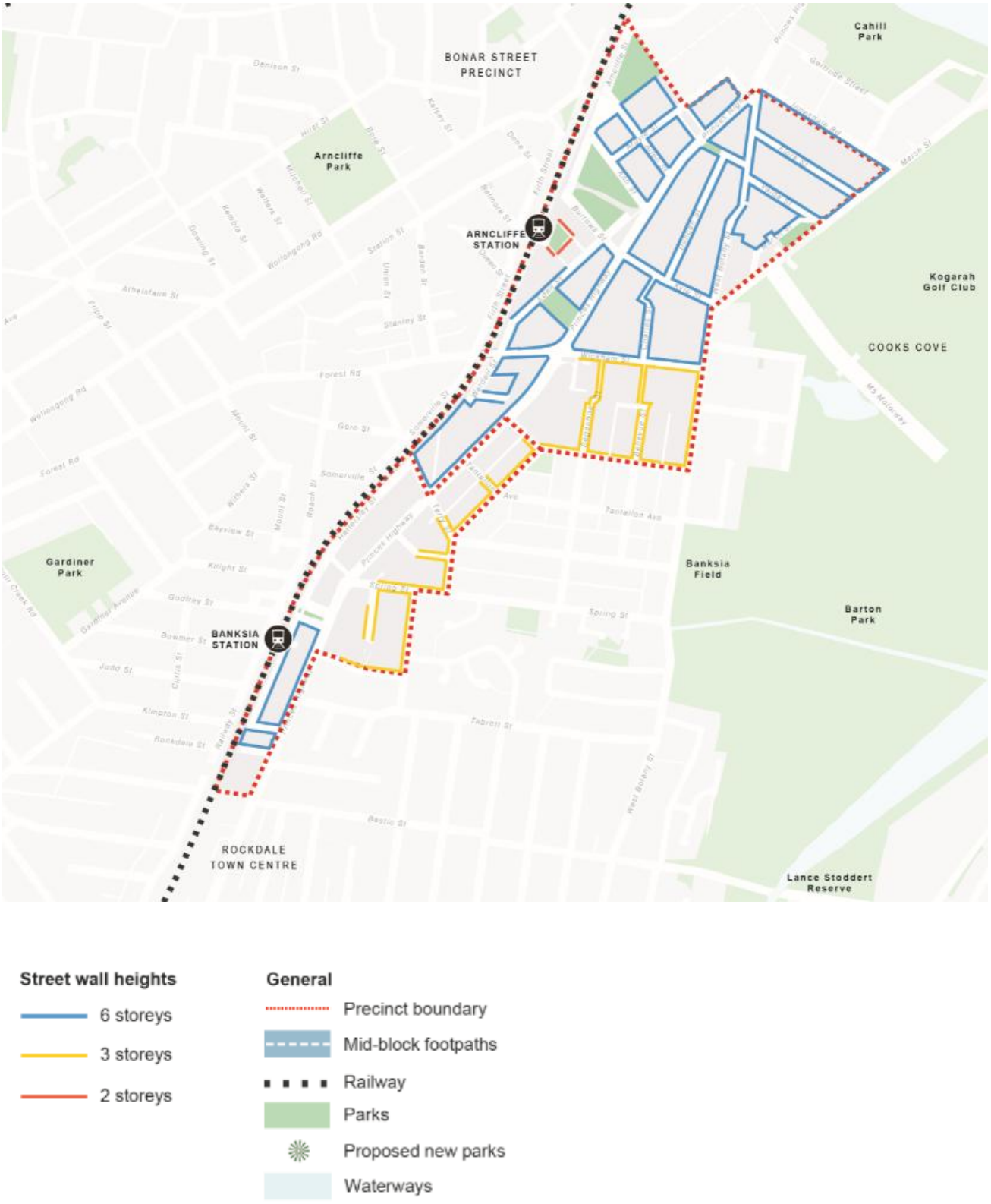


Figure 73: Street Wall Heights Map

7.4.3.7 Active Frontages

Objective		Control	
O1.	To encourage active street frontages in suitable locations.	**C1.**	New development is to provide an active street frontage in accordance with the Active Street Frontages Map.
O2.	To provide active street frontages to promote activity on the street and public domain.	**C2.**	New mixed-use development north of Forest Road and fronting the Princes Highway is to provide a floor to ceiling height of 7 metres to accommodate a wide range of retail showroom or commercial uses.
O3.	To enhance public security and passive surveillance, and improve the amenity to the public domain by encouraging pedestrian activity.	**C3.**	Development consent must not be granted for the erection of a building, or a change of use of a building, on land to which this clause applies unless the consent authority is satisfied that the building will have an active street frontage after its erection or change of use.
		C4.	New buildings are to demonstrate compliance with the following controls: a. Ground floor frontage to be activated by retail and business premises; b. No ground floor residential is permitted; c. Site adjoining the Princes Highway within areas identified as Active Street Frontage - Showroom are to include entire ground floor retail activation to the Princes Highway for accommodating large format retail and commercial uses; d. Locate ground levels at grade with finished footpaths; e. Reinforce corner frontages on primary streets with shop front windows; f. Shop fronts that can open out for restaurants and cafes are encouraged; g. Residential lobbies are permitted off the street frontage; h. No vehicle access permitted unless the development has no other street frontage; i. No service access permitted unless the development has no other street frontage. j. Provision of a separate goods lift for operations associated with large format retail and commercial uses; and k. Access, circulation, parking and loading docks are designed to

Objective		Control	
			minimise passenger and freight vehicle movement conflicts, and vehicle / pedestrian conflicts.

Figure 74: Active Frontages Map

7.5 Bonar Street Precinct

7.5.1 Description

The Bonar Street precinct in Arncliffe is well served with public transport and is located in close proximity to Arncliffe shopping centre and Wolli Creek. The precinct will be transformed from an underutilised industrial area into a medium to high density residential environment. It is envisaged that the redevelopment of the precinct will be staged and that existing uses within the precinct will continue to operate.

Refer to the Wolli Creek and Bonar Street Precinct Public Domain Plan and Technical Manual for detailed controls for streetscape design, street tree planting and concept designs for the community park and plaza.

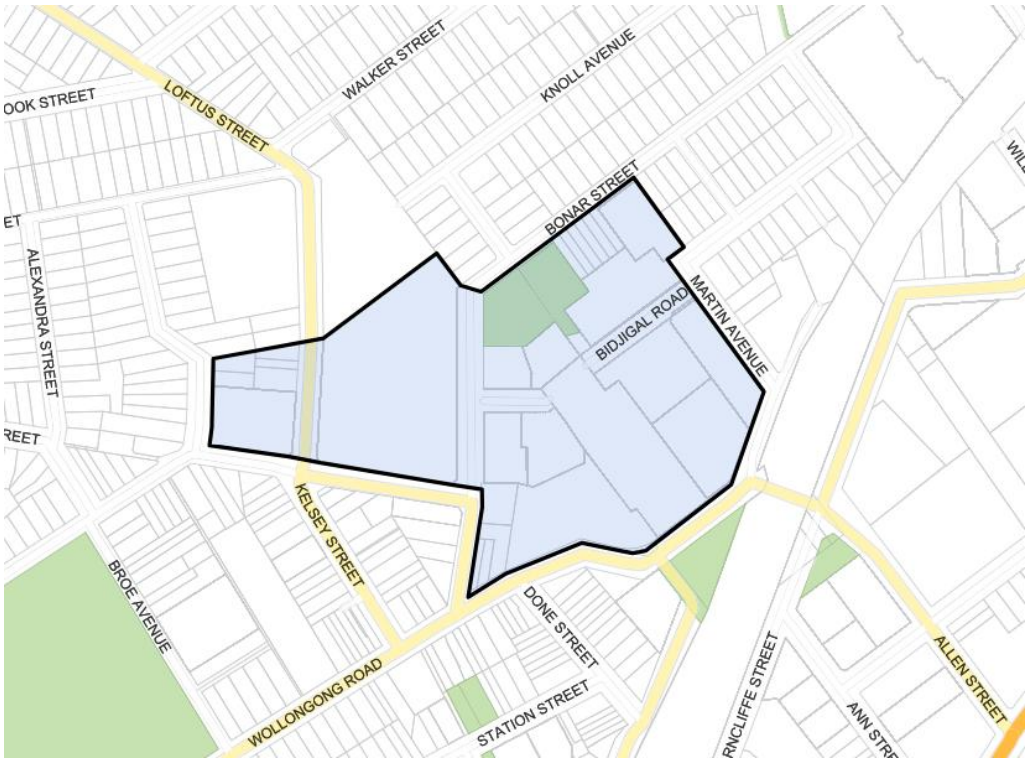


Figure 75: Bonar Street Precinct Land Application Map

7.5.2 Controls

Objective		Control	
O1.	To promote the development of the land predominantly for medium-high density residential use with a mix of dwelling types, and compatible uses including retail, child care, community facilities and open space to serve local residents.	**C1.**	Commercial uses, local shops, restaurants/ cafes or child care facilities should be located on at least part of the ground level of the building next to the Bonar Street/ New Road West intersection and the central square and community park.
O2.	To allow for underutilised properties to be redeveloped while existing viable businesses in the precinct continue operations in the short term.	**C2.**	Provide a street edge building form that defines streets and ensures legibility of the streetscape, provides street addresses for all buildings, view corridors through the precinct, and adequate setbacks for landscape treatment to the street edge.

Objective		Control	
O3.	To ensure that new residential development provides an acceptable level of amenity, by minimising noise, air quality and odour impacts, where located adjacent to non-residential land uses, through appropriate design responses.	**C3.**	Building setbacks from road frontages are to be wholly available as deep soil planting zones clear of car parking structures. Building façade articulation zones should be co-ordinated with deep soil planting zones and landscape plans to optimise root and canopy space for large trees along street frontages.
O4.	To achieve buildings of a distinctive contemporary character articulated in response to the local and environmental context to ensure a safe, permeable and legible public domain.	**C4.**	Provide direct access to the street from private yards where possible to maintain connection between public and private domains.
O5.	To create attractive landscape settings for buildings with a clear definition between public and private spaces.	**C5.**	Provide passive surveillance of the street from the buildings. Definition between the private frontages and the public domain is to include visually permeable fencing and walling.
O6.	To integrate the stormwater drainage corridors with landscape features as far as practical.	**C6.**	Fencing is to be designed to allow filtered views of the street to maintain passive surveillance.
O7.	To provide a range of open spaces for all age groups including a community park and central square.	**C7.**	Development is to comply with the Wolli Creek and Bonar Street Precinct Public Domain Plan and Technical Manual.
O8.	To maximise public safety and provide adequate protection of property against flood events.	**C8.**	Development is to incorporate setbacks at the street frontage in accordance with the street section diagram.
O9.	To ensure existing floodplain users do not experience any increase in flood level.	**C9.**	New roads are to be provided as per the Bonar Street Precinct Structure Plan and the following table:

Road	Location	Width (m)
Bonar Street	Between northern end of new road 5 and Arncliffe	18m
	Widening of west side between No. 47 and 123	4.5m
Wollongong Road	Widening of west side, Allen Street underpass to Martin Avenue	1.27m
Martin Avenue	Widening of south west side	1.6m

Table 20: Bonar Street Precinct Structure Plan

Objective		Control	
		C10.	Development is to provide on-site detention of water in accordance with Council's specific requirements for this precinct.
		C11.	The stormwater management system identified in the Stormwater Management Plans (as shown on the following diagrams) is to be implemented in conjunction with new development in the precinct.
		C12.	As part of any development on the eastern side of Bonar Street, all of the Stage 1 stormwater works (as shown on the following diagrams) must be completed to the satisfaction of Council prior to the construction of footings or basements for any new residential development.
		C13.	Development on the western side of Bonar Street can be completed and occupied without implementing the Stage 1 stormwater works.

Figure 76: Bonar Street Structure Plan

Objective	Control

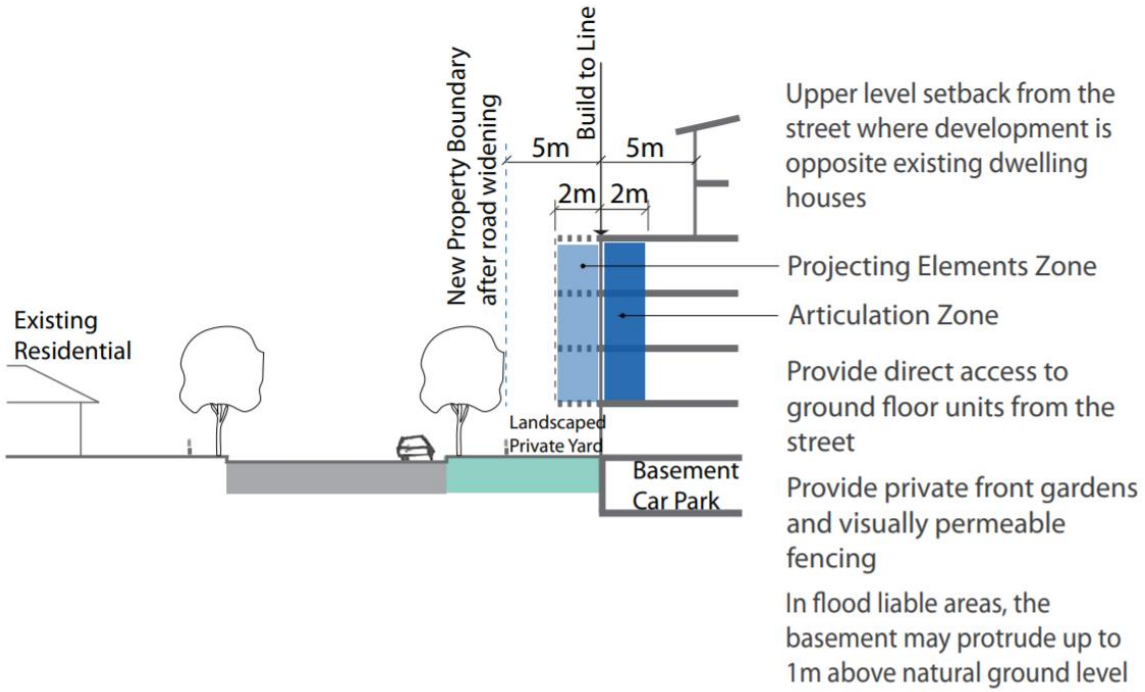


Figure 77: Street Section Diagram

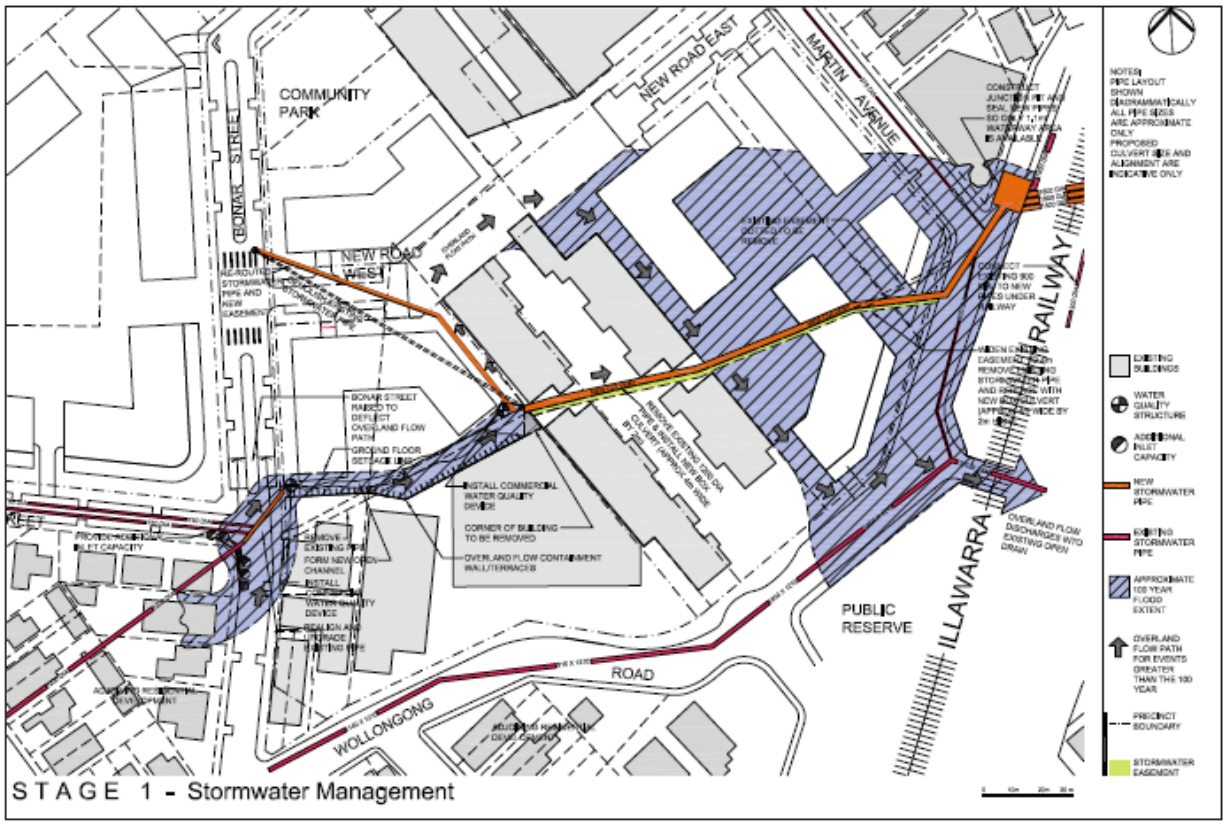


Figure 78: Stormwater Management Diagram – Bonar Street to Illawarra Railway (Stage 1)

Objective	Control

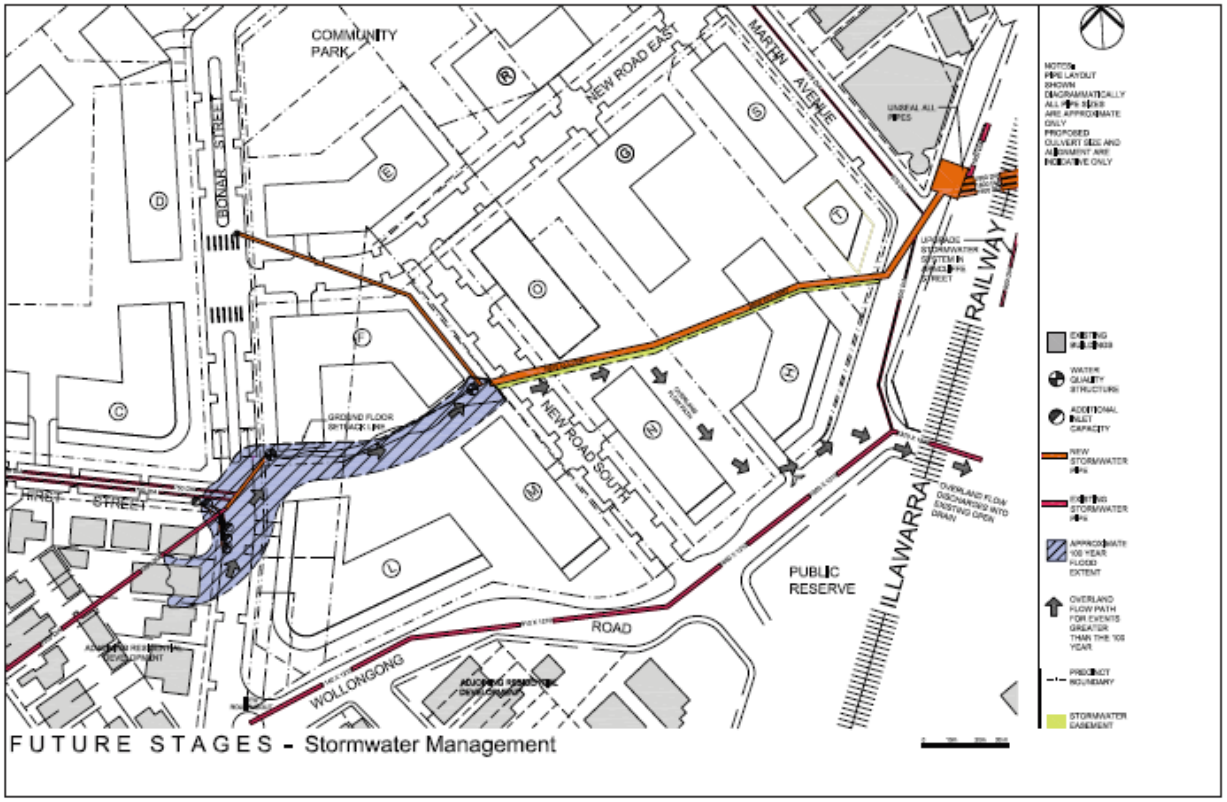


Figure 79: Stormwater Management Diagram – Bonar Street to Illawarra Railway (Future Stages)

7.6 Wolli Creek

7.6.1 Description

The Wolli Creek area to which this section applies is generally bounded by Wolli Creek and the Cooks River to the north, the Southern & Western Suburbs Ocean Outfall Sewer (SWSOOS) to the west, Innesdale Road to the south and Marsh Street to the east, as shown on Wolli Creek Redevelopment Area map.

Wolli Creek is evolving from an industrial area into a high-density mixed use, residential and commercial area. In keeping with its unique location and accessibility to public transport, Wolli Creek will achieve some of the highest densities within the western area of the Bayside LGA. To ensure that this occurs in a way that benefits the city both economically and aesthetically, both a Vision and Structure Plan have been developed which, along with specific controls, will guide the achievement of this goal.

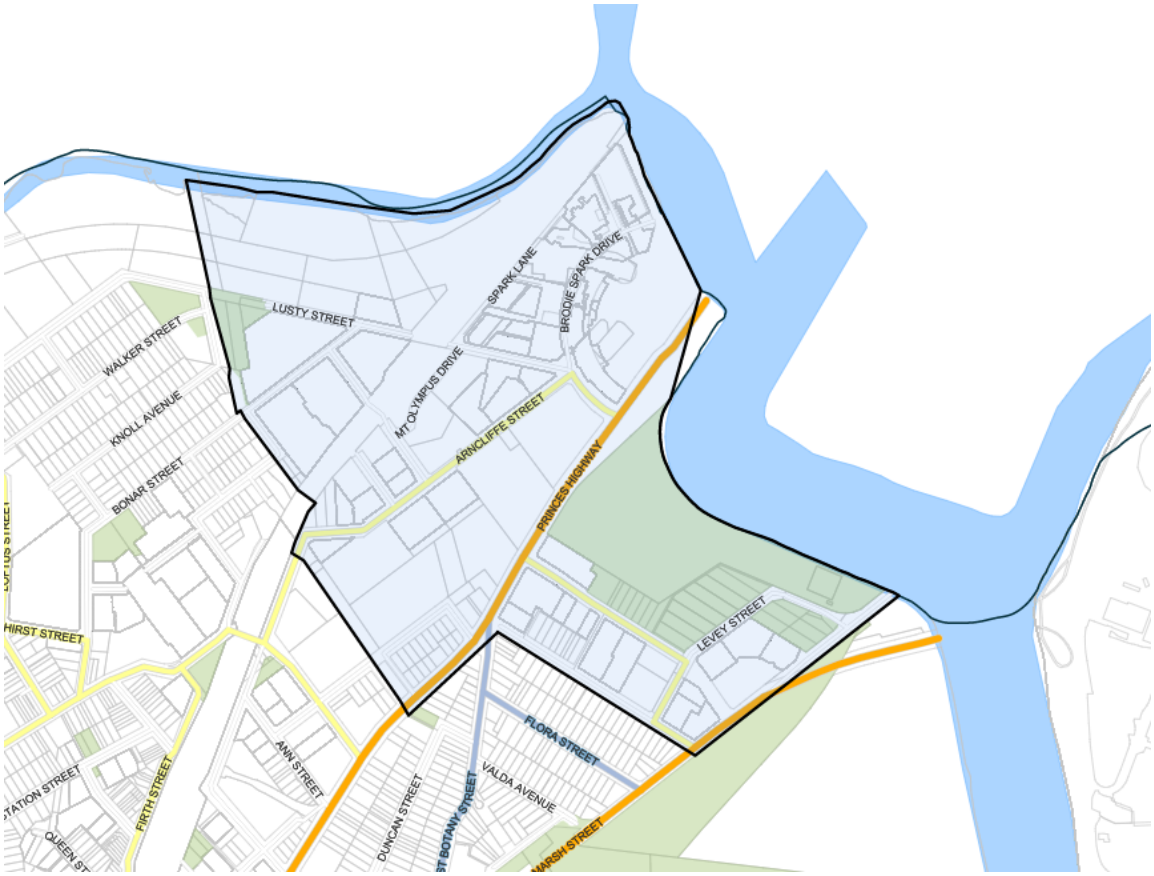


Figure 80: Wolli Creek Land Application Map

Wolli Creek contains some significant heritage items, namely the Wolli Creek Wetlands, the Tempe House Precinct incorporating Tempe House, St. Magdalen Chapel and their setting on the Cooks River, and the Southern and Western Suburbs Ocean Outfall Sewer (SWSOOS). These items illustrate Wolli Creek's historical development and provide key reference points and landmarks in the area.

Historically, a range of industrial and urban activities have had a substantial impact on the natural environment and land contamination will be an issue during Wolli Creek's redevelopment. Although located adjacent to the Airport, it is outside the flight path configuration thereby avoiding serious aircraft noise. However noise generated by the three railway lines and arterial roads will need to be mitigated.

7.6.2 Vision

The vision for Wolli Creek is to create a high quality, high density urban environment, for living, working and recreation. An activity hub will evolve around Wolli Creek Railway Station and along Brodie Sparks Drive, with ground floor retail, a rail interchange, street dining and cafes. This area will be the focus and heart of Wolli Creek supporting activity day and night.

New development will be designed to define open space and streets. It will capitalise on the strategically important location of Wolli Creek and engage positively with busy roads and intersections and will respond sensitively to existing residential, foreshore and park settings. Wolli Creek will be clearly legible as the gateway to the St George region when viewed from the Princes Highway and Marsh Street.

Streets will be attractive and pleasant and support ground floor activity where appropriate particularly at major "hubs" such as Brodie Spark Drive. Good surveillance of public spaces and streets will be provided from residential, and office uses. A sense of community will evolve through shared use of public spaces and a cohesive design of the public domain.

Wolli Creek residents and workers will walk, cycle and use public transport and will have access to a wide range of recreation, entertainment and shopping facilities within Wolli Creek.

The heritage items and natural features of the area will be conserved and celebrated. The network will encourage use of the extensive recreation and open space facilities within Wolli Creek and provide good connections from outside the area.

Wolli Creek's location, being 8km from Sydney CBD, containing a major railway interchange - one stop from the airport, and being close to the M5 Motorway - will help to establish it as an important employment base within the region.

7.6.3 Controls

Objective		Control	
Land Use			
O1.	To provide a wide range of opportunities for different types of employment generating activities to meet regional and local needs.	**C1.**	Development is encouraged to provide commercial development in the area designated as town centre on the Wolli Creek Structure Plan Map.
O2.	To provide for the day-to-day shopping and service needs of the local community.	**C2.**	Where height difference between the street and the ground level of a building occurs (due to flooding constraints), ground floor uses should promote surveillance of the public domain by locating entrances, balconies, garden areas or locating steps between the street and dwellings.

Figure 81: Wolli Creek Structure Plan Map

Objective		Control	
Road Network and Vehicular Access			
O3.	To create a permeable road network that facilitates efficient vehicular access to and circulation within the area which can be conveniently used by all modes of transport.	**C3.**	New roads/road widenings are to be provided as per the Road Network and Vehicular Access Map and the following table: New roads

Road	Location	Width (m)
New Road 1	Extension of Gertrude Street between Marsh and Levey Street	23m
New Road 2	Extension of Gertrude between Princess	23m
New Road 3	Between northern end of Argyle Street	18.4m

Objective		Control	

	and Bonnie Doon Channel	
New Road 4	Extension of Argyle Street adjacent to SWSOOS	12m
New Road 5	Both sides of Bonnie Doon Channel	10.5m each side
New Road 6	Between northern end of new road 5 and Arncliffe	18m
Princes Highway	Widening of west side between No. 47 and 123	4.5m
Gertrude Street	Widening of north side between Princes Highway and Levey Street	3.1m
Arncliffe Street	Widening of north side between No. 15 and 29 Widening of south side between No. 34 and 94	5m
Lusty Street	Widening of north side	2m
Argyle Street	Widening adjacent to SWSOOS	2m
Robert Lane	Widening on both sides	2m
Innesdale Lane	Widening on both sides	2m

Table 21: Road Network and Vehicular Access

C4. Vehicular access to development sites is to comply with the Road Network and Vehicular Access Map.

C5. Vehicular entries should be located on secondary frontages with a preference to rear lane access, where possible.

Objective	Control

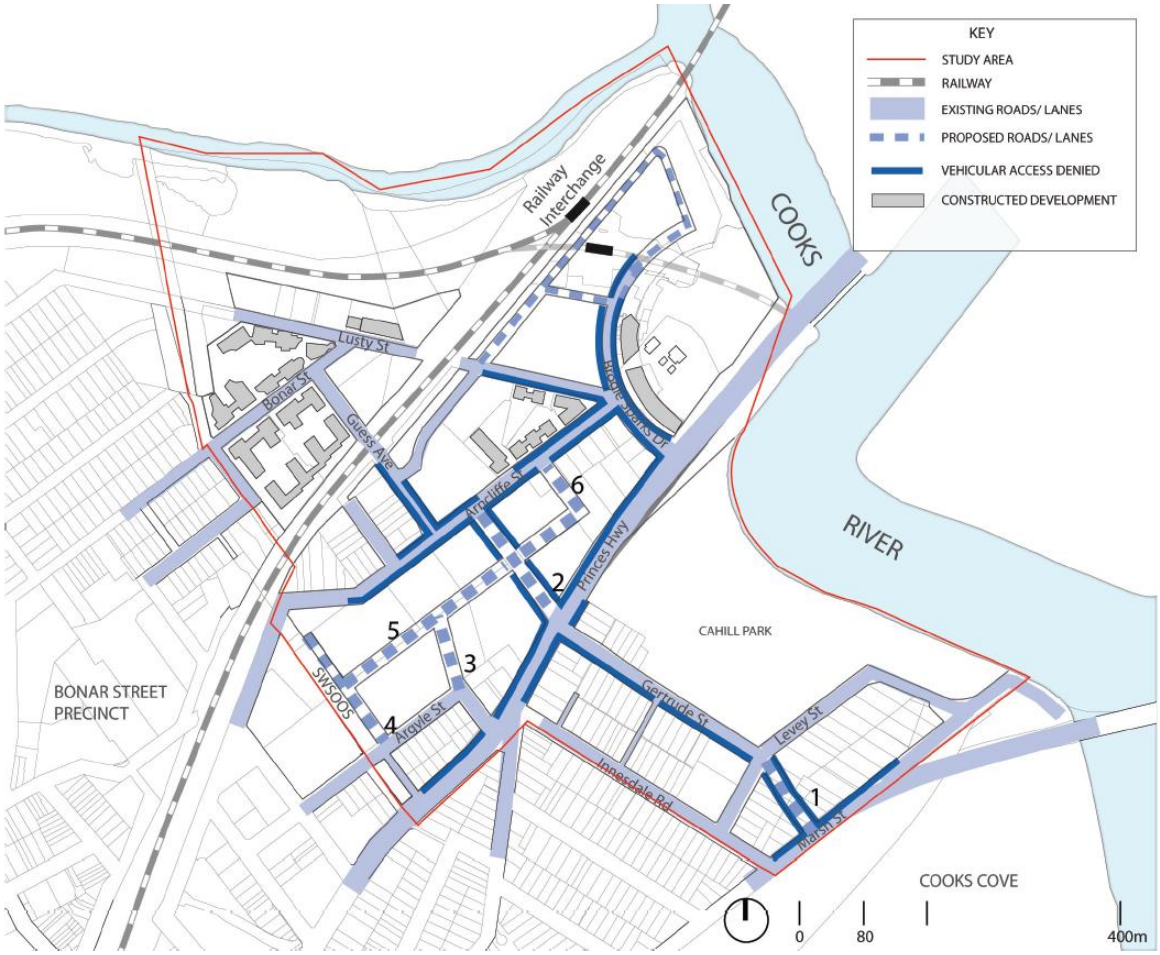


Figure 82: Road Network and Vehicular Access Map

Open Space and Movement			
O4.	To ensure that the nature and distribution of public spaces, buildings and facilities enhances the public domain and links key features and activities within Wolli Creek.	**C6.**	Pedestrian and cycle ways must be implemented as shown on the Open Space and Pedestrian/Cycle Network Map.
O5.	To promote pedestrian and cycle links to encourage sustainable travel in the precinct.	**C7.**	Provide safe pedestrian and cycle access across streets with ground level crossings preferable to pedestrian bridges and overpasses.
O6.	To enhance local pedestrian and cycle routes and link them with regional networks, residential areas, work, shopping and recreation activities and public transport nodes.	**C8.**	Provide two street level crossings across the Princes Highway at Gertrude Street and Brodie Spark Drive to maximise pedestrian and cycle connections at grade.
O7.	To consider and take advantage of the SWSOOS and its location by incorporating it into an open space network.	**C9.**	Provide a small plaza (min size 200m²) on the corner of Arncliffe Street and Brodie Spark Drive at 94 Arncliffe Street.

Objective		Control	
O8.	To retain, manage and upgrade environmentally significant areas, including Wolli Creek Wetlands and the Cooks River.		

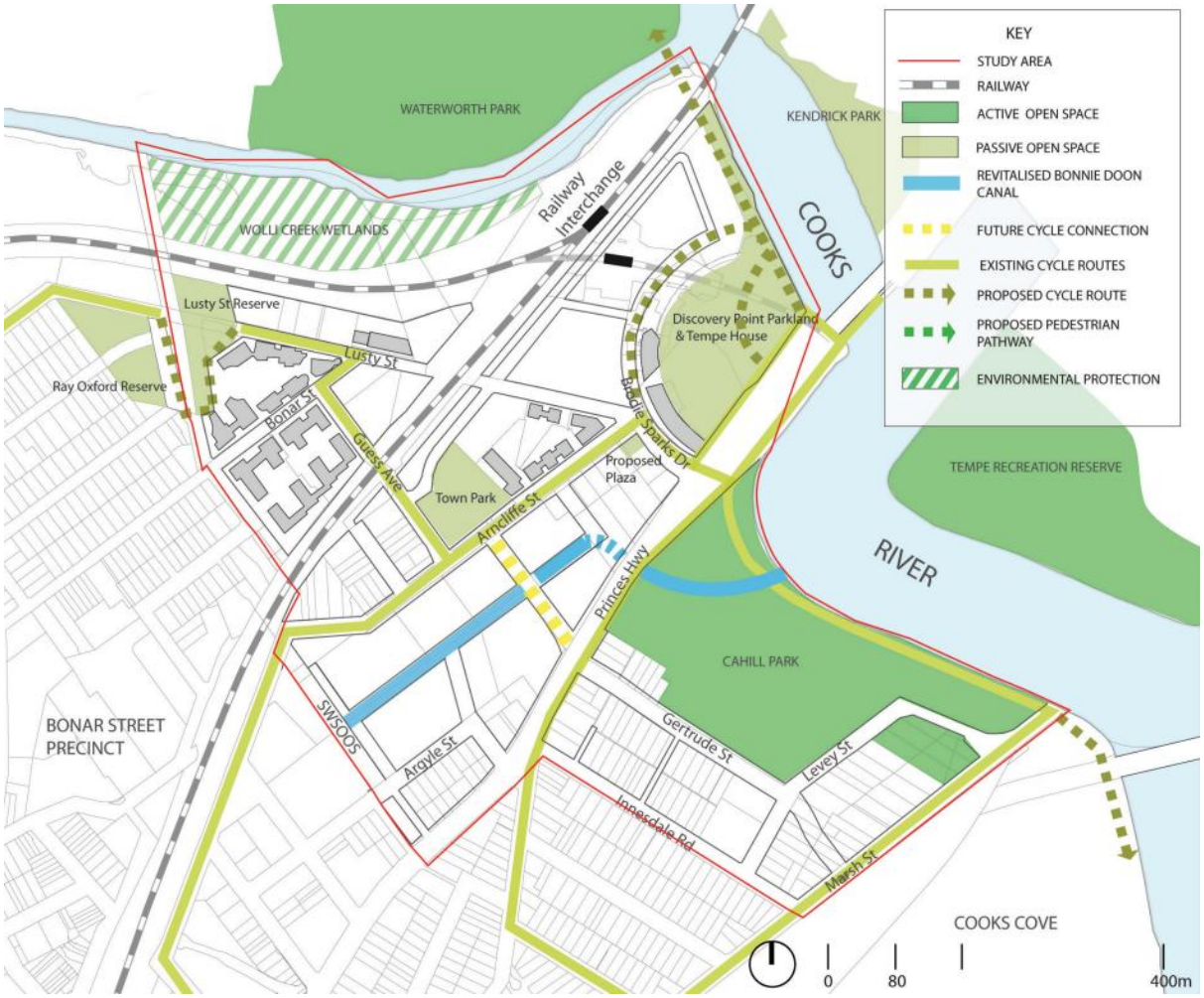


Figure 83: Open Space and Pedestrian / Cycle Map

Building Heights and Density			
O9.	To provide a reasonable incentive to achieve high quality development with a range of use.	**C10.**	Key sites as identified in the Building Height Map are developed as prominent gateway sites to announce the precinct from beyond the area.
O10.	Retain solar access to the public domain.	**C11.**	Preserve solar access to Cahill Park, public plazas and other parks between 12.00 noon to 2.00PM on June 21.
		C12.	Development to Innesdale Road is to set back the fifth level from the property boundary by additional 3m to preserve solar access to buildings on the south side of Innesdale Road.
		C13.	Development on Lusty Street is to provide a setback between the zoning boundary and any

Objective		Control	
			building to reduce overshadowing of the public park.

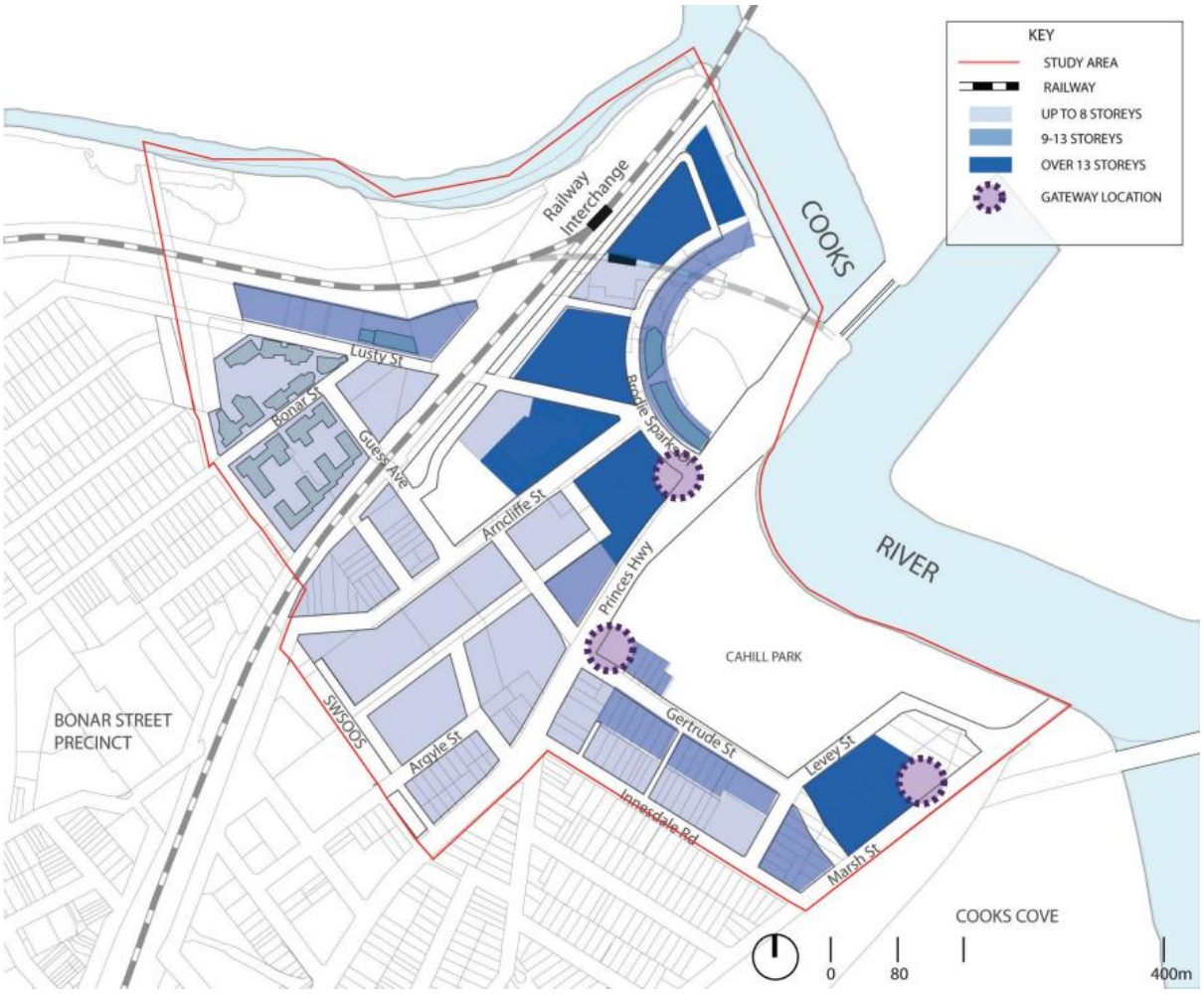


Figure 84: Building Height Map

Street Character and Setbacks			
O11.	To promote consistent edge treatment to streets and open space so that the built form reinforces the public domain.	**C14.**	Building design is to provide street wall buildings with zero side setback at the street frontage.
O12.	To create a town centre that is the heart of the precinct with high quality streetscapes, active building edges, high quality pedestrian environment and good access to transport links.	**C15.**	Development is to comply with the specific setback and design requirements as indicated by the Streetscape Character Map and associated diagrams.
O13.	To ensure developments have active frontages to streets to increase security and passive surveillance for the safety of pedestrians and property.	**C16.**	Development is to comply with the Wolli Creek and Bonar Street Precinct Public Domain Plan and Technical Manual.
O14.	To provide streets that facilitates a variety of ground floor uses and is attractive and comfortable for pedestrians.	**C17.**	Street wall building(s) must complement the built form and architectural character of existing buildings on the northern side of

Objective		Control	
O15.	To encourage a range of commercial and retail uses along Princes Highway and Marsh Street that capitalise on close proximity to the airport and the future redevelopment of Cooks Cove.		Brodie Spark Drive and southern side of Magdalene Terrace.
O16.	To create streets that are characterised by distinctive residential apartment buildings within a landscaped setting.	**C18.**	Development on Gertrude Street is to set back the top level from the building edge fronting the communal open space by 3m.
O17.	To provide a 'green finger' through the precinct reinforced with street tree planting and the new town park at Arncliffe Street.	**C19.**	Development on Lusty Street is to provide gaps between buildings (min 12m) on the north side to facilitate view corridors.
O18.	To improve pedestrian access along laneways and to facilitate vehicular access to development on the laneways.	**C20.**	Brodie Spark Drive is to be a lively retail street that provides opportunities for social interaction, such as cafes and outdoor dining.
O19.	To achieve adequate residential amenity for development along the laneway.	**C21.**	Development identified as having a Mixed Use Street Frontage is to activate the ground level whilst satisfying flooding constraints.
O20.	To provide a fitting entry into the St Georges region and the City of Rockdale and to reinforce the importance of Princes Highway and Marsh Street as gateways to the Rockdale LGA.	**C22.**	Development identified as having a Mixed Use Street Frontage is to ensure ground floor uses interact with the public domain and incorporate any of the following features: pedestrian areas; outdoor trading areas; walkways; garden and planted areas fronting residential uses; main entrances to buildings and suites.
		C23.	Development identified as having a Retail Street Frontage is to ensure buildings address corners and engage the public domain at street level and provide pedestrian amenity with a consistent awning or shelter.
		C24.	Development identified as having a Mixed Use Street Frontage is to provide active uses related to residential entrances and commercial uses on street level floor space to assist in creating a lively and active street.
		C25.	Development identified as having a Mixed Use Street Frontage is to provide access stairs where there are height differences between the street and the ground floor.
		C26.	Development identified as having a Retail Street frontage is to activate ground floor with retail and commercial uses.
		C27.	Development identified as having a Retail Street frontage is to ensure building design must achieve an outstanding level of design excellence.

Objective		Control	
		C28.	Development identified as having a Highway Interface is to ensure building design achieve an outstanding level of design excellence.
		C29.	Development identified as having a Highway Interface is to accommodate uses that benefit from exposure to passing traffic in lower storeys, such as retail, showrooms, studios and galleries.
		C30.	Development identified as having a Highway Interface is to offer water and park views suited to upper storey commercial and residential development.
		C31.	Development identified as having a Highway Interface is to use building design to minimise conflicts between highway and users.
		C32.	Development identified as having a Residential Street Frontage is to address the street with balconies, building entrances and living rooms or bedrooms on the ground floor.
		C33.	Development identified as having a Residential Street Frontage is to provide a front fence with a maximum height of 1.2m.
		C34.	Development on Lusty Street is to provide a minimum 3m setback between the railway line corridor and any multi-level parking structure to allow deep soil planting to screen the structure.
		C35.	Development identified as having a Parkland Interface is to activate ground floors with retail and commercial uses.
		C36.	Development identified as having a Parkland Interface is to provide good surveillance of the park.
		C37.	Development identified as having a Parkland Interface is to be predominantly glazed on ground floor to promote views to the park.
		C38.	Development identified as having a Retail Street frontage is to activate ground floor with retail and commercial uses.

Objective		Control	
		C39.	Development identified as having a Retail Street frontage is to ensure building design must achieve an outstanding level of design excellence.
		C40.	Development identified as having a Lane Frontage by the Street Character Map is to provide pedestrian footpath on both sides of the lane.

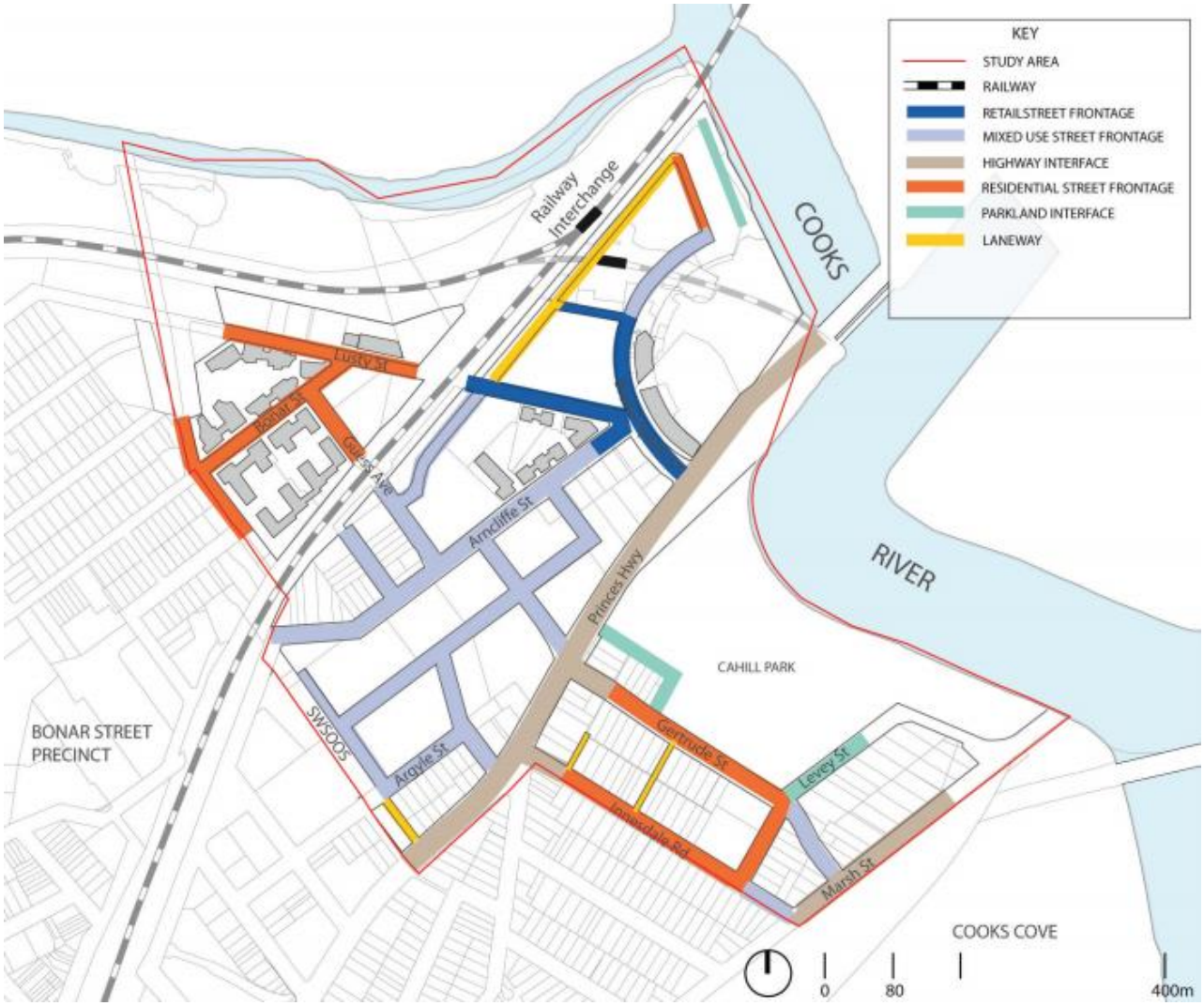


Figure 85: Streetscape Character Map

Objective	Control

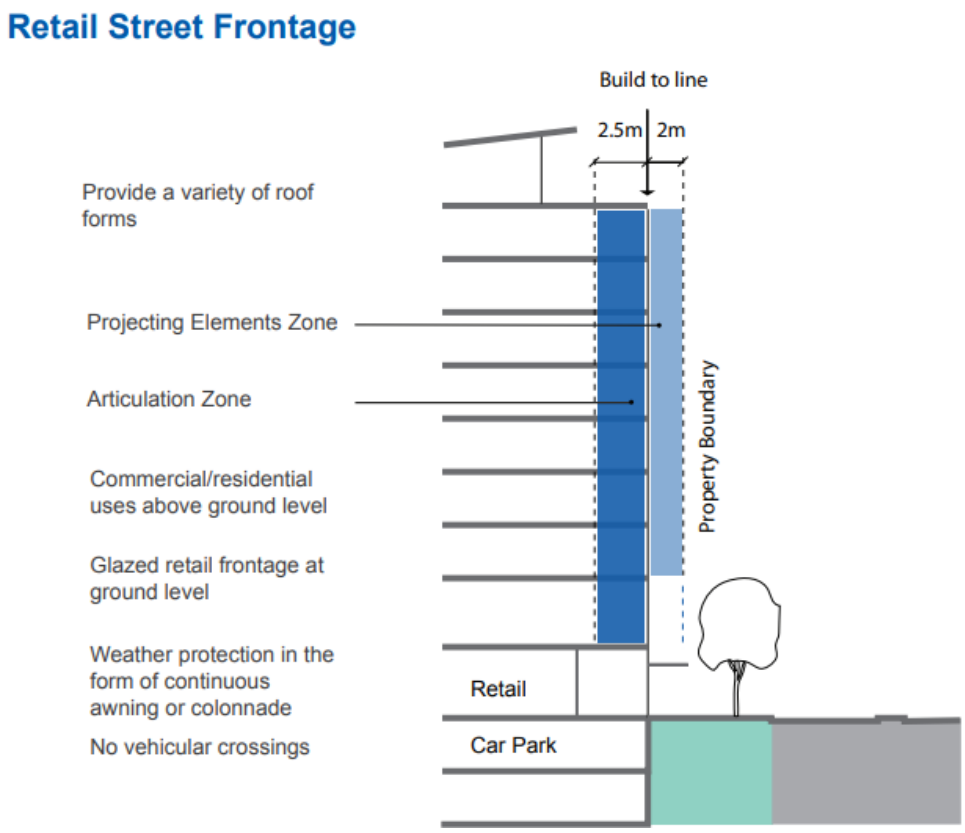


Figure 86: Retail Street Frontage Diagram

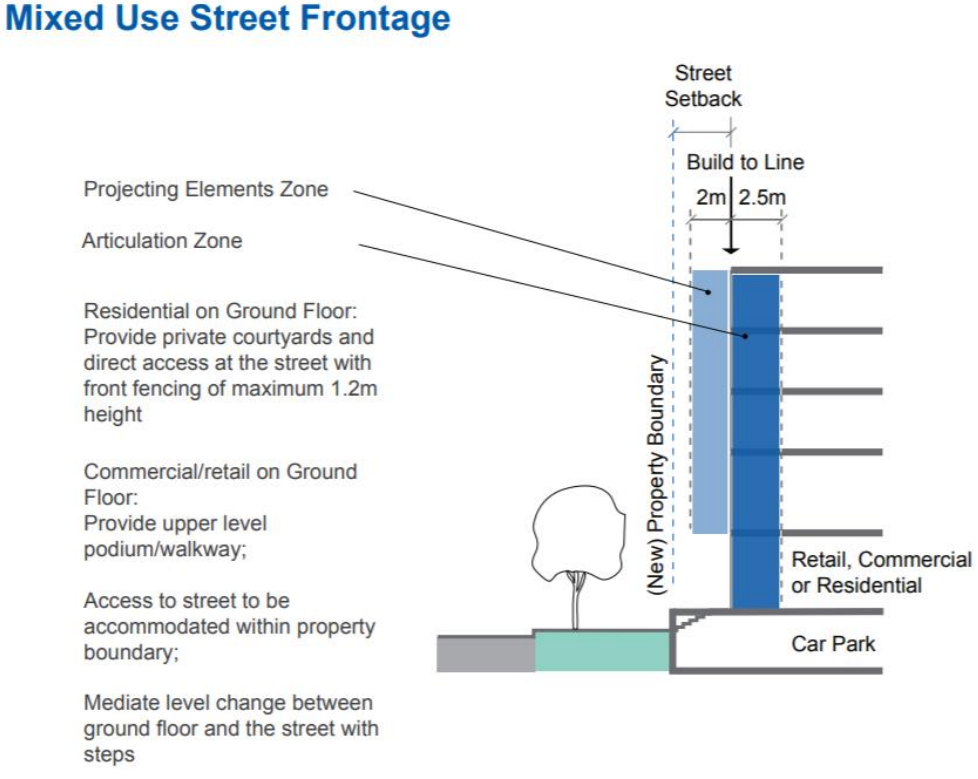


Figure 87: Mixed Use Street Frontage Diagram

Objective	Control

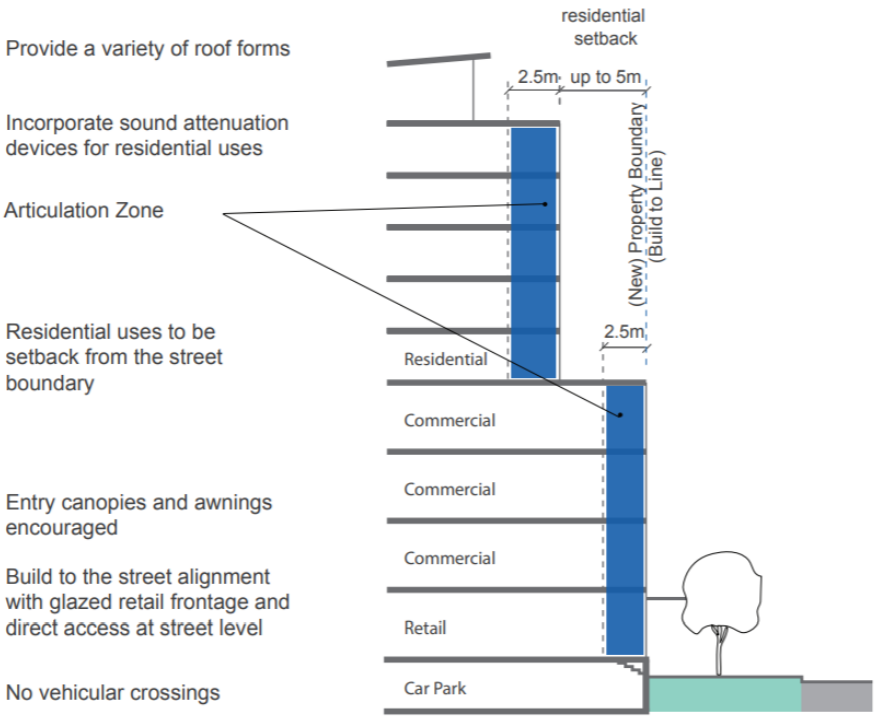


Figure 88: Highway Interface Diagram

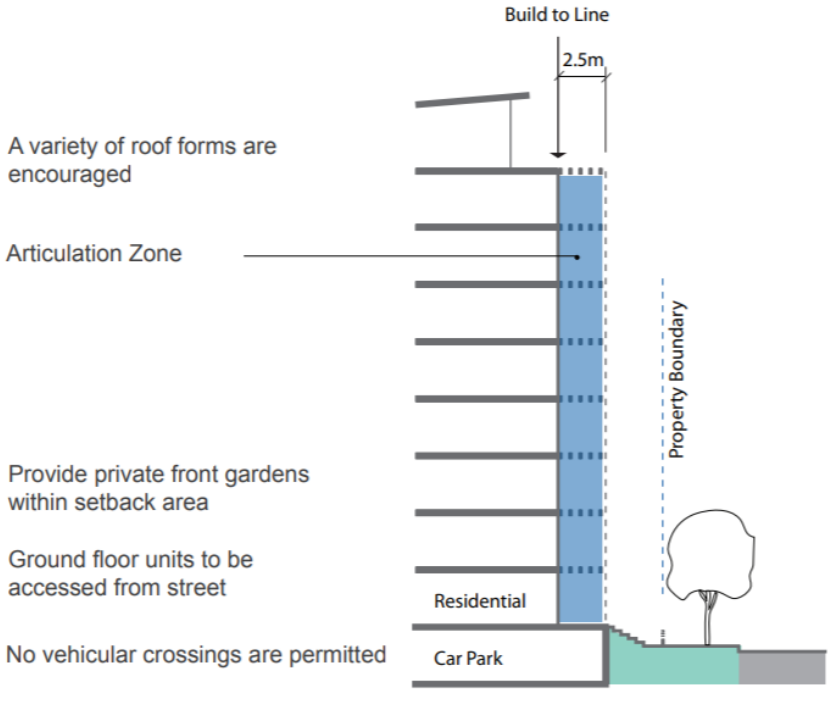


Figure 89: Residential Street Frontage Diagram

Objective	Control

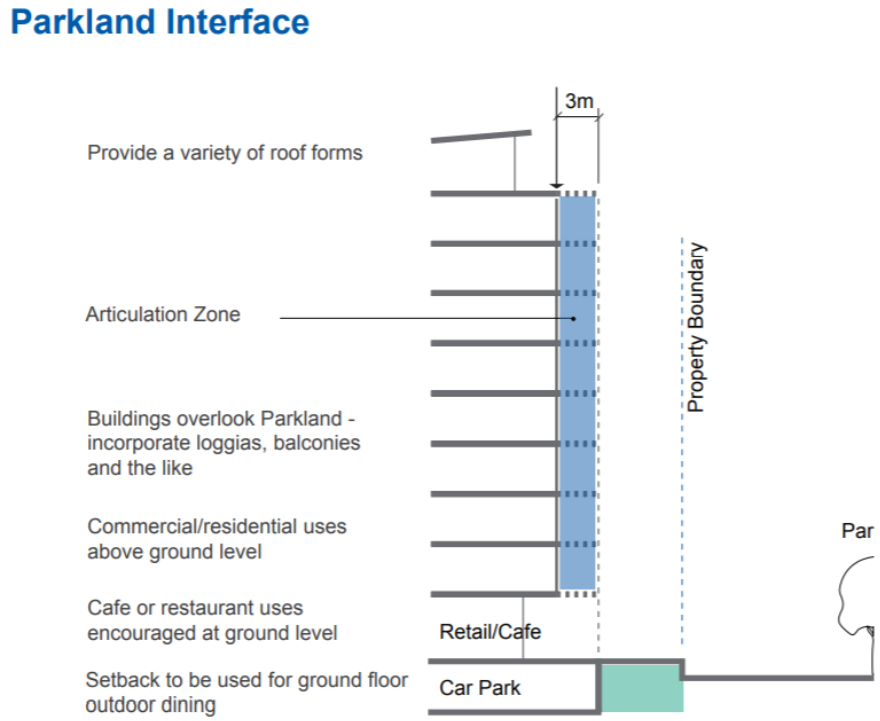


Figure 90: Parkland Interface Diagram

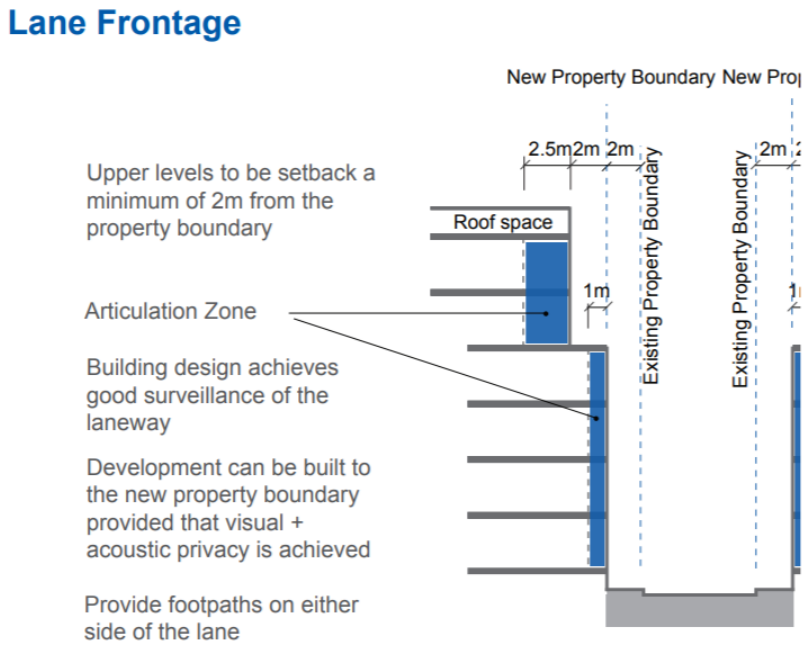


Figure 91: Lane Frontage Diagram

7.7 Mascot West Employment Lands

7.7.1 Description

The Mascot West Employment Lands are bounded by Alexandra Canal to the west, the airport to the south, Gardeners Road and the Mascot Station Town Centre to the north, and Botany Road at the eastern extent. The precinct's boundaries are shown below. Most of the area is affected by the 25-30 ANEF Noise Contour as well as road and rail noise.
The precinct contains a mix of land zoned for industrial, business development, and business park purposes generally to the north of the airport in the vicinity of O'Riordan Street, Coward Street, and Gardeners Road.

Land uses comprise warehouse and distribution developments (related to freight transportation); and industrial developments including smash repair stations and welding businesses. Newer buildings include commercial and office premises with active street frontages comprising coffee shops and retail outlets. Company headquarters occupy the commercial buildings in close proximity to their warehouse operations. Part of this area is also within the zone of influence of the High Pressure Gas Pipeline that follows the ARTC Rail Corridor.

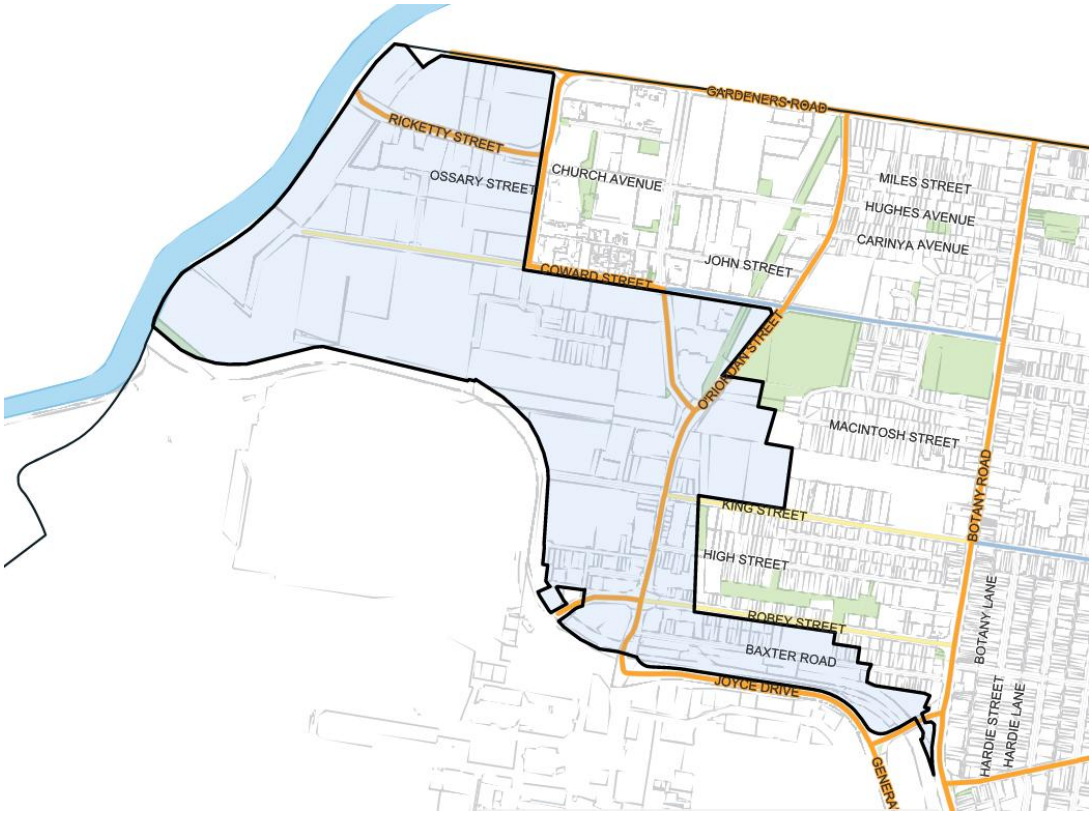


Figure 92: Mascot West Employment Lands Application Map

7.7.2 Controls

Objective		Control	
Open Space and Movement			
O1.	To allow for the provision and development of an open space and	**C1.**	Development fronting Alexandra Canal provides an open space and pedestrian

Objective		Control	
	pedestrian corridor along the foreshore of Alexandra Canal.		corridor along the full length of the foreshore frontage.
Built Form and Land Use			
O2.	To ensure that the scale, design, material of construction and nature of the development contributes positively to the visual amenity and the gateway function of the area.	**C2.**	Developments, including alterations and additions must improve the appearance of buildings, particularly along the roads which serve a gateway function to Sydney Airport and the Sydney CBD.
O3.	To encourage and provide for industrial development that has an affinity or locational need to be near to Sydney (Kingsford Smith) Airport.	**C3.**	All overhead wires (including electrical and telecommunication services) fronting the site are to be relocated underground as part of all development within this Precinct. The redundant power poles are to be removed and replaced with underground supplied street lighting columns. All works shall be carried out at the applicant's expense.
O4.	To ensure development achieves suitable setbacks to Alexandra Canal and the Mill Pond	**C4.**	Development in land zoned for Industrial Purposes (between Coward Street and Qantas Drive) is to have a relationship with Sydney (Kingsford Smith) Airport.
		C5.	Notwithstanding the above control, no buildings, structures, car parking, storage or vehicle manoeuvring areas are permitted within a minimum 10m wide area adjoining Alexandra Canal and 6m along the tributaries of the Canal.
		C6.	Development over 3 storeys in height will be assessed by the Design Review Panel.
Environmental Management			
O5.	To ensure that development adjacent to Alexandra Canal minimises the quantity of stormwater runoff, its impact on the aquatic environment and the potential disturbance of contaminated sediments.	**C7.**	Development along Alexandra Canal must comply with the following: a. no buildings, structures, car parking, storage or vehicle manoeuvring areas are permitted within a minimum 10m wide area adjoining the Canal and 6m along the tributaries b. the maximum wall height at the edge of a building fronting the canal at the line of the 10m setback is 9m. If the building is higher than 9m the additional height must be setback by 3m from the line of the 9m height c. the setback is to be landscaped and planted with appropriate species, as detailed in the Alexandra Canal Masterplan, such landscaping is not to

Objective		Control	
			include plants with invasive root systems and that have the potential to damage the canal wall or its surrounding infrastructure d. the façade of buildings facing the setback should be enlivened by windows, staff amenities and provide passive surveillance of the setback area e. a right of carriageway shall be created along the Canal and at the end of Coward Street to provide public pedestrian access to Alexandra Canal foreshore for the purpose of permanent pedestrian or cycle access, stormwater easement requirements and/or access for essential maintenance f. two access points are to be provided to Alexandra Canal - at Ricketty Street and at Coward Street **Note:** Sydney Water owns Alexandra Canal, which is located on Council's northwestern boundary. The Environment Protection Authority (EPA) has declared the bed sediments of the Alexandra Canal between Huntley Street, Alexandria and the junction of Alexandra Canal with the Cooks River at Mascot as a remediation site. EPA has determined that the sediments in the canal are contaminated to the extent that they constitute a 'significant risk of harm' to human health and the environment under the *Contaminated Land Management Act 1997* (declaration no. 21008 / Area #3151; remediation order 23004 / Area #3151). Since re-mobilisation of the sediments could increase the extent of the contamination, the EPA has indicated that the sediments should not be disturbed. Accordingly, any future development should refrain from carrying out or causing to be carried out any works in the Canal that would result in the disturbance, or further disturbance, of bed sediment at the site except in accordance with a plan directed at minimising the disturbance of the sediments, being a plan approved in writing by Sydney Water and the EPA. Sydney Water has requested that Council forward any development proposals, which could directly

Objective		Control	
			impact on the Canal or its sediments to Sydney Water for review.
Traffic and Transport			
O6.	To ensure that development supports an efficient and sustainable transport system with a high level of access to public transport.	**C8.**	In land zoned B7 – Business Park or B5 – Business Development, a Workplace Travel Plan is to be lodged with any development application where a plan does not exist. **Note**: The Workplace Travel Plan is to, but not limited to, establish measurable targets to achieve the mode share targets stated in the Mascot Town Centre Precinct TMAP – maximum car mode share: 65% by 2021 and 57% by 2031.
O7.	To ensure the protection of the Airport Line Tunnel which is generally located under Bourke Road and O'Riordan Street.	**C9.**	Any new development proposals (regardless of scale) which are located along O'Riordan Street or Robey Street must be referred to Transport for NSW for consultation at the Pre-DA stage.
O8.	To ensure the protection of the Sydenham-Botany Goods railway line.	**C10.**	Any new development proposals along the alignment of the Sydenham-Botany Goods railway line must be referred to Australian Rail Track Corporation.
O9.	To ensure the protection of the Airport Line Tunnel which is generally located under Bourke Road and O'Riordan Street.	**C11.**	Any new development proposals (regardless of scale) which are located along O'Riordan Street or Robey Street must be referred to Transport for NSW for consultation at the Pre-DA stage.
Environmental			
O10.	To ensure that development can withstand the stresses of flooding and sea level rise and does not adversely impact flooding.	**C12.**	Development within the precinct shall require submission of a Risk Management Plan to address potential risks related to coastal sea levels (projected to increase above Australian Height Datum by 40cm by 2050 and by 90cm by 2100). The Risk Management Plan shall be prepared by a qualified consultant and in accordance with the following policies and documents: i. Any current policy of Council relating to projected future sea level rises and related inundation mapping; ii. NSW Coastal Planning Guidelines: Adapting to Sea Level Rise; iii. Flood Risk Management Guide: Incorporation Sea Level Rise Benchmarks in Flood Risk Assessment; and iv. NSW Flood Plain Development Manual.
O11.	To ensure development responds to the Obstacle Limitation Surface considerations resulting from proximity to Sydney Airport.		

Objective		Control	
			In addition, the Risk Management Plan shall minimise the exposure of development to coastal risk and provide management responses and adaptation strategies to identify and manage risk and coastal hazards associated with the following: i. The safety of future workers and occupants on-site; ii. The safety of the public off-site; iii. The safety of adjoining properties; iv. The safe evacuation route during storm and flood events; and v. The freeboard above the flood planning levels
		C13.	Development must comply with Sydney Airport's regulations with regard to safety, lighting and height of buildings.
		C14.	Development which seeks the maximum building height under the Bayside Local Environmental Plan 2021 and is within land bounded by Coward Street, O'Riordan Street and Bourke Road; development along eastern side of O'Riordan Street; and development within land bounded by Baxter Road, O'Riordan Street, Joyce Drive and Botany Road, will penetrate the Obstacle Limitation Surface (OLS) and would need to be assessed by CASA, Airservices Australia & the Airlines before an application could be submitted to the Department of Infrastructure & Transport for their determination.

7.8 Mascot Station Town Centre

7.8.1 Description

The Mascot Station Town Centre Precinct is centred around Mascot railway station and has been targeted for population and employment growth in State and Local planning strategies. The Precinct has been progressively redeveloped since the 2010s from an industrial area into a vibrant and creative town centre.

The planning framework contained in this Section adopts a place-based planning approach by defining appropriate building types and developing place-specific building envelopes. This is supported by detailed design and environmental controls aimed at achieving a high-quality built environment, landscape setting and community spaces. The provisions of this Section provide urban design controls to address the scale and density of development, traffic and pedestrian management, landscaping, and other public domain improvements. This will ensure that the Precinct develops in a cohesive manner and capitalises on its location.

The boundaries of the Mascot Town Centre are shown in the figure below. Land on the eastern side of O'Riordan Street is not subject to this Part. The Centre is split into different "urban blocks" which are demonstrated in **Figure 93** below.

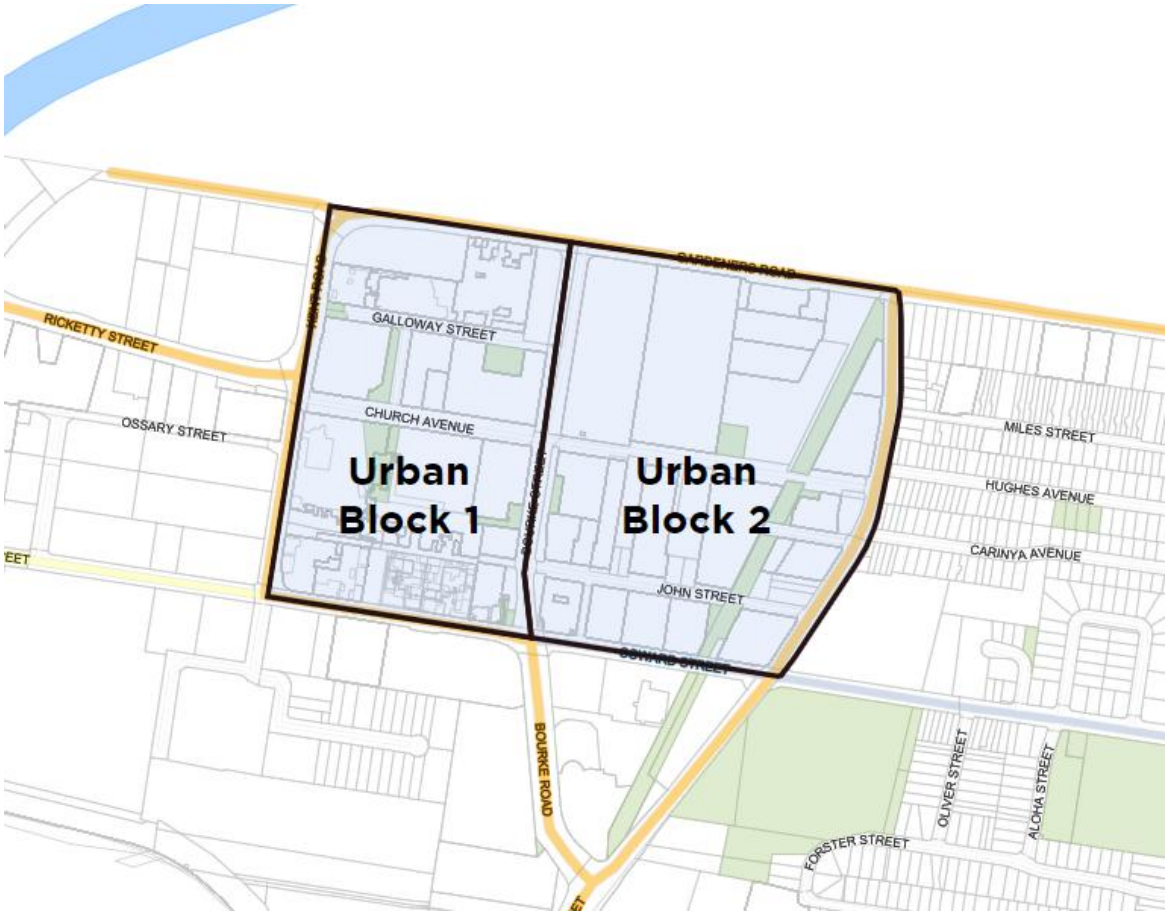


Figure 93: Mascot Station Town Centre Application Map

7.8.2 Vision Statement

The Mascot Station Town Centre Precinct presents the opportunity to create a vibrant and diverse town centre, where a spacious, high quality public domain is the setting for thriving activities and cohesive built form. The Town Centre has the opportunity to evolve into a place of activity, with a range of transport modes, interconnectivity, permeability and accessibility. The growth potential of Mascot Town Centre Precinct is to be guided by an urban framework that emphasises an extensive and revitalized public domain, excellence in its urban and architectural design, an integrated transport network and sustainable development in the public and private domains.

Town Centre Role and Character

Mascot Station Town Centre is within the Sydney City to Airport corridor and is recognised as being strategically important in the Metropolitan Plan for Sydney. The Mascot Station Town Centre Precinct is also within the environs of the Sydney Airport specialised centre in the Metropolitan Plan East Sub-regional Plan. This close proximity to Sydney Airport, and its location within the Airport Corridor, provides Mascot Station Town Centre with a role as a mixed use centre where commercial uses, including retail shopping and community uses provide diversity in what has, until recently, been a centre predominantly focused on industrial and commercial development.

The boundaries of the Town Centre are defined by Coward Street in the south, Kent Road in the west, Gardeners Road in the north and generally, O'Riordan Street in the east. These four major roads create clear edges to the Town Centre. They also carry regional vehicular traffic including regional truck movements.

An important aim of this Part is that Bourke Street and Church Avenue have high levels of pedestrian amenity, calmed vehicular traffic and a balance between transport modes such as bicycles, buses and other vehicles. This Part aims to ensure that the design of the interface between the public domain and private development provides pedestrian interest and amenity.

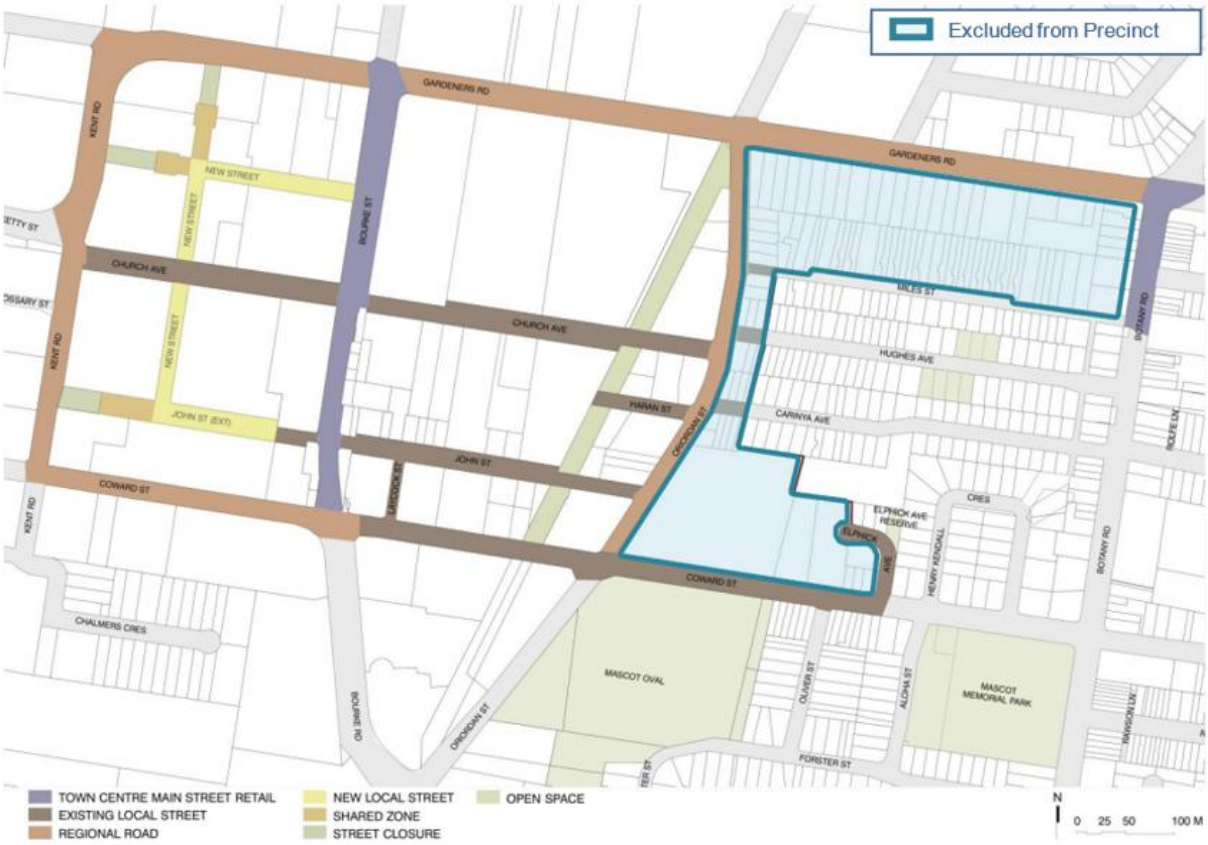


Figure 94: Street Character Map

Land Use

- **Retail and Commercial:** The main retail and commercial area will allow for small and medium scale business and retail opportunities including commercial offices, banks, post offices, hairdressers, convenience stores and cafes and restaurants looking out on to a new park.
- **Residential:** New residential uses within the precinct will primarily be apartment buildings either within stand-alone buildings or as mixed-use buildings above retail and commercial (shop top housing).
- **Public Open Space and Streetscape Improvements:** This Development Control Plan looks to substantially increase the amount of open space in the Town Centre. The Town Centre streets are to be designed as urban streets, where the interface between public and private domains is designed to promote pedestrian amenity.

7.8.3 Controls - General

Objective		Control	
Open Space and Movement			
O1.	To increase the quantum of public space in the town centre, to cater for the needs of an increased population, and greater visitor numbers.	**C1.**	Development is in accordance with the Urban Block 1 and Urban Block 2 Public Domain Maps.
		C2.	Widened footpaths, new street paving and pedestrian and cycle links must be provided in accordance with the principles of the Public Domain Strategy and Appendix A of the Mascot Town Centre Precinct Masterplan.
		C3.	Street paving, lighting, bins, seating, bicycle racks and other street furniture must be provided in accordance with the principles of the Public Domain Strategy and Appendix A of the Mascot Town Centre Precinct Masterplan and any other Council Public Domain Plan. These works must be robust, easily cleaned, and designed and specified in consultation with Council's landscape officer to ensure a consistent design standard is implemented.
		C4.	Street lighting must be provided throughout the public domain to improve public safety. **Note:** Any proposed street lighting must be in accordance with relevant Roads and Maritime Services standards, Austroads standards and Australian Standards.
		C5.	Public art must be provided on key development sites in accordance with the principles of the Public Domain Strategy and Appendix A of the Mascot Town Centre Precinct Masterplan. The provision of art works on these larger sites must be negotiated with Council, with details to be provided at Development Application stage.
		C6.	All existing above ground service cables, including power lines, telecommunications cables and other similar services (“overhead service cables”) in the streets adjacent to and within the confines of the development site will be placed underground at no cost to the Council.
		C7.	All work is to be in accordance with Council specifications, plans, details or the Urban Design Strategy.

Objective	Control

Figure 95: Urban Block 1 Public Domain Map

Objective	Control

Figure 96: Urban Block 2 Public Domain Map

Objective		Control	
Built Form and Design			
O2.	To ensure the scale of new buildings is consistent with the Local Character Statement of each urban block within the Mascot Station Town Centre Precinct.	**C8.**	Development is in accordance with the Urban Block 1 and Urban Block 2 height maps and the height controls of the Bayside LEP 2021.
O3.	To ensure development has minimal impact on neighbouring properties in terms of the potential loss of views, loss of privacy, overshadowing or visual intrusion.	**C9.**	Council may require a reduction in height shown for the land on the Height of Buildings Map where the proposed building height would have unacceptable adverse impacts with regard to: a. the overshadowing of a dwelling, private open space or public open space b. an inappropriate transition in built form and land use intensity c. the design excellence of a building d. view loss e. the Obstacle Limitation Surface
		C10.	Shadow diagrams must be provided for all development proposals for the summer and winter solstices. Shadow diagrams must illustrate the shadow impacts at 9.00AM, 12.00 noon and 3.00PM for both solstices. Additional building setbacks may be required where impacts within the site and/or upon adjoining properties are considered to be unreasonable.

Objective	Control

Figure 97: Urban Block 1 Height Map

Objective		Control	

Figure 98: Urban Block 2 Height Map

O4.	To provide appropriate bulk and scale relationships between buildings within the Mascot Station Town Centre Precinct.	**C11.**	Council may require a reduction in FSR shown for the land on the Floor Space Ratio Map where a building built to the Floor Space Ratio Map would have unacceptable adverse impacts with regard to: a. the overshadowing of a dwelling, private open space or public open space
O5.	To consolidate and align allotments to allow for development of built forms that		

Objective		Control	
	make a positive contribution to the spatial definition of the street.		b. an inappropriate transition in built form and land use intensity c. the design excellence of a building d. view loss e. the Obstacle Limitation Surface
		C12.	Development must conform to the Urban Block 1 and Urban Block 2 Site Amalgamation Maps.
		C13.	Development must conform to the Urban Block 1 and Urban Block 2 Lot Alignment Maps.
		C14.	Where land needs to be excised to create new parks, public domain spaces or roadways, a subdivision plan will be required as part of any development application.

Objective	Control

Figure 99: Urban Block 1 Site Amalgamation Map

Objective	Control

Figure 100: Urban Block 2 Site Amalgamation Map

Objective	Control

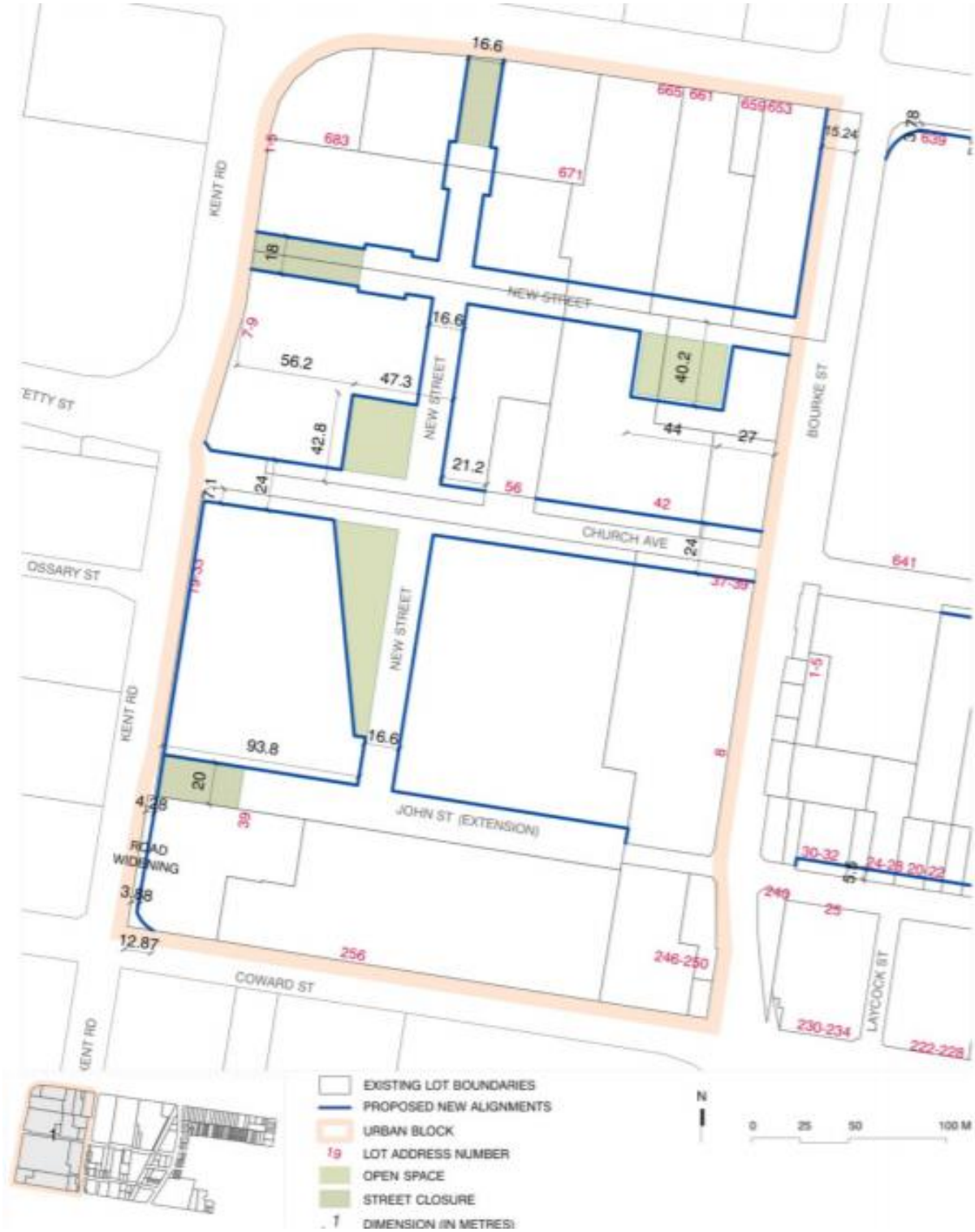


Figure 101: Urban Block 1 Lot Alignment Map

Objective	Control

Figure 102: Urban Block 2 Lot Alignment Map

Objective		Control	
O6.	To provide excellent design quality in the Mascot Station Town Centre Precinct.	**C15.**	Development must identify through a SEPP 65 Design Statement and/or annotated drawings how design excellence will be achieved in the proposed development.
O7.	To support the safe occupation of buildings.	**C16.**	Any construction plans with the development application must show the location of smoke detectors, together with a specification on their installation in accordance with the Building Code of Australia (BCA).
O8.	To ensure new development provides adequate visual and acoustic privacy levels internally and externally for neighbours and residents.	**C17.**	Buildings and open space areas will be designed to: a. enable casual surveillance of streets, open space and entrances to buildings b. minimise access between roofs, balconies and windows of adjoining developments c. ensure adequate lighting to access routes, car park areas and open space
O9.	To achieve sustainable building design through the design, construction and operation of buildings within the Mascot Station Town Centre Precinct.	**C18.**	External lighting must be provided to mixed use developments, commercial developments and industrial areas where pedestrian ways, main building entries, driveways, communal areas and car parks require public access at night or after normal trading hours.
O10.	To ensure new developments consider design features that cater towards managing wind patterns that infiltrate through the area to maintain comfortable conditions for pedestrians.	**C19.**	External lighting is to comply with the requirements of Section 9.21: *Lighting in the Vicinity of Aerodromes, Manual of Standards, Part 139 – Aerodromes* Version 1.1, February 2003. All lighting, regardless of location, which may affect the safe operation of aircraft operating at Sydney Airport are required to be compatible with the above requirements.
O11.	To ensure long life and ease of maintenance for all development.	**C20.**	Communal walls and floors connecting buildings are to be designed in accordance with the noise transmission and insulation requirements of the Building Code of Australia (BCA).
		C21.	New development adjacent to high noise sources (e.g. busy roads) are to generally locate habitable rooms and design private open spaces away from noise sources. Alternatively, if such spaces/rooms front a major noise source they must be protected by appropriate noise shielding devices to minimise noise intrusion.
		C22.	Development incorporates sustainable design. Note: A development application must identify and explain how sustainable building design will be achieved throughout the design, construction and operation stage.

Objective		Control	
			Development proposals will address the following: a. energy efficiency (solar design, insulation, hot water, lighting, and ventilation systems) b. water resources c. landscaping d. construction materials e. finishing materials f. waste management g. indoor environment quality h. stormwater management and Water Sensitive Urban Design i. ongoing building and site management
		C23.	Taller buildings must consider the shape, location and height of buildings to satisfy wind measurements for public safety and comfort at ground level. In addition, open terraces and balconies must not be detrimentally affected by wind. **Note:** Council may request a Wind report be submitted with a Development Application.
		C24.	Landscaping is to be utilised to ameliorate the impacts of wind tunnels and enhance the comfort of outdoor spaces.
		C25.	A reflectivity report examining the effects of possible solar glare on pedestrians and motorists may be necessary, subject to the scope of a proposal and the nature of glazing and reflective materials.
		C26.	Windows must be designed to enable cleaning from inside the building, where possible.
		C27.	The building must incorporate and integrate building maintenance systems into the design of the building form, roof, and facade.
Street Character and Development Setbacks			
O12.	To provide new buildings that spatially define streets with well-articulated facades.	**C28.**	Development must conform to the Urban Block 1 and Urban Block 2 Setback Maps.
		C29.	Development must be conform with the section plans for Urban Blocks 1 and 2.
		C30.	Corner buildings must address both street frontages.
		C31.	Development does not result in blank external walls of greater than 100m².

Objective	Control

Figure 103: Urban Block 1 Setback (Levels 1 – 4) Map

Objective	Control

Figure 104: Urban Block 1 Setback (Levels 5 – 13) Map

Objective	Control

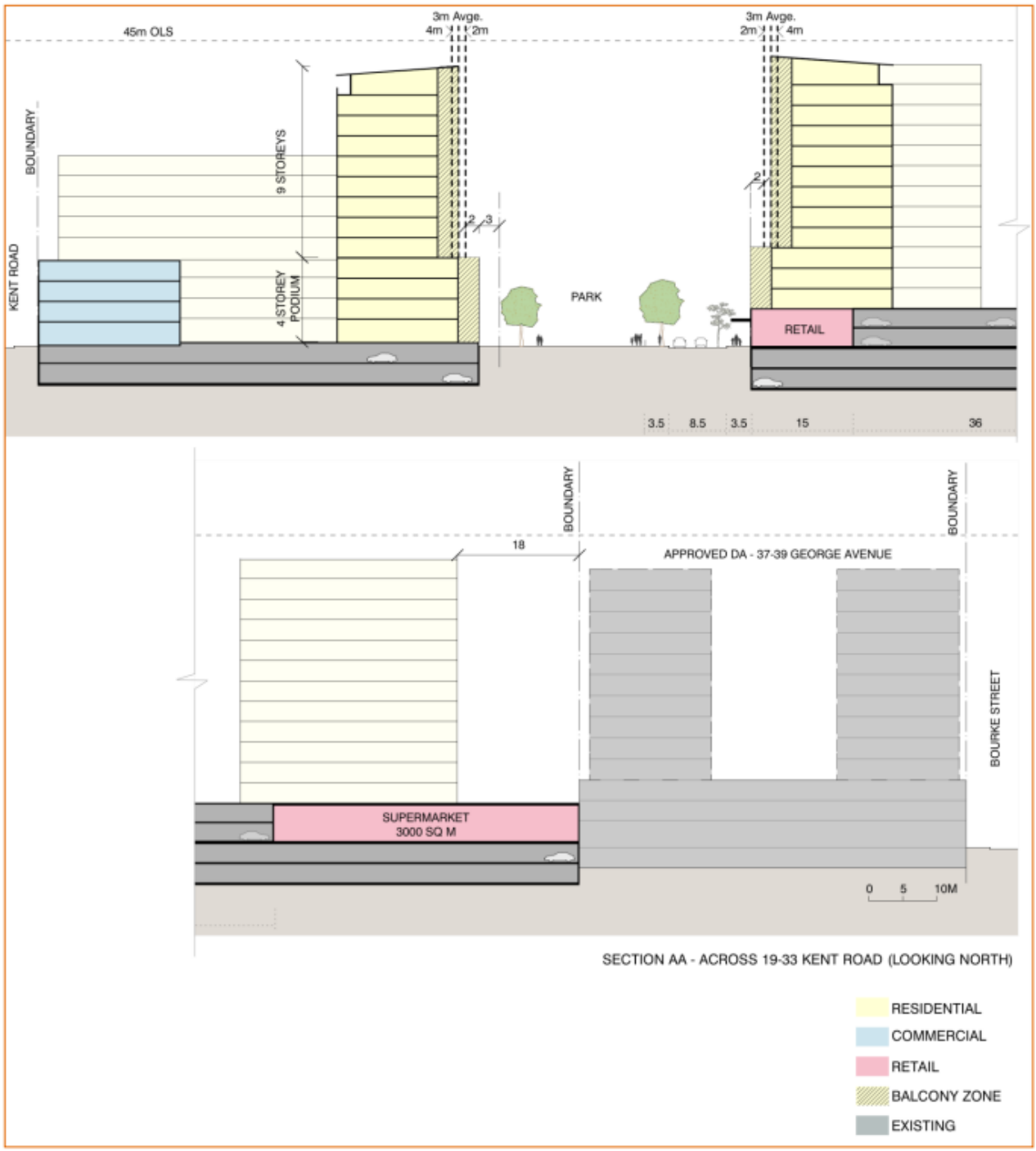


Figure 105: Section Plan #1 – Urban Block 1

Objective	Control

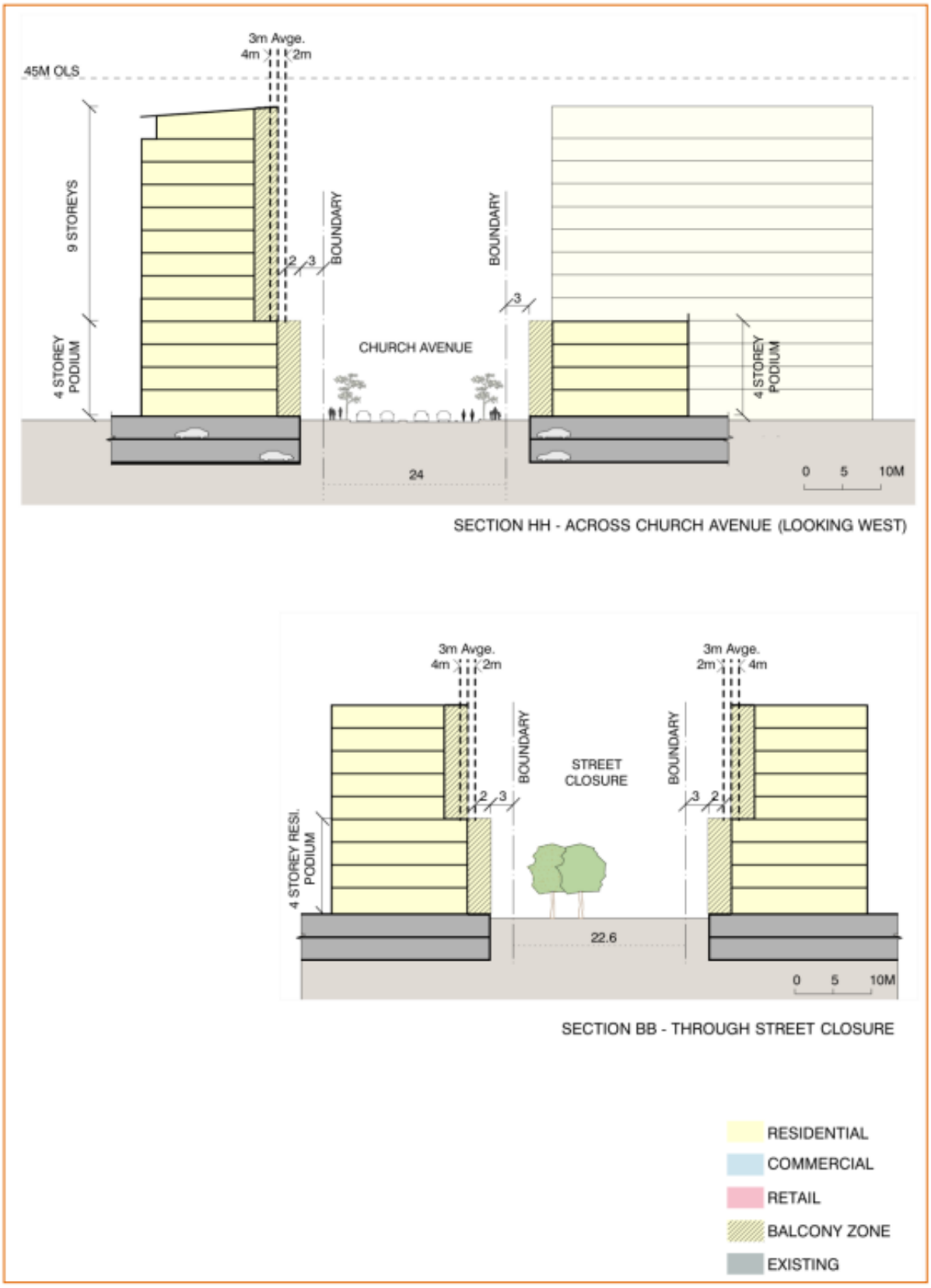


Figure 106: Section Plan #2 - Urban Block 1

Objective	Control

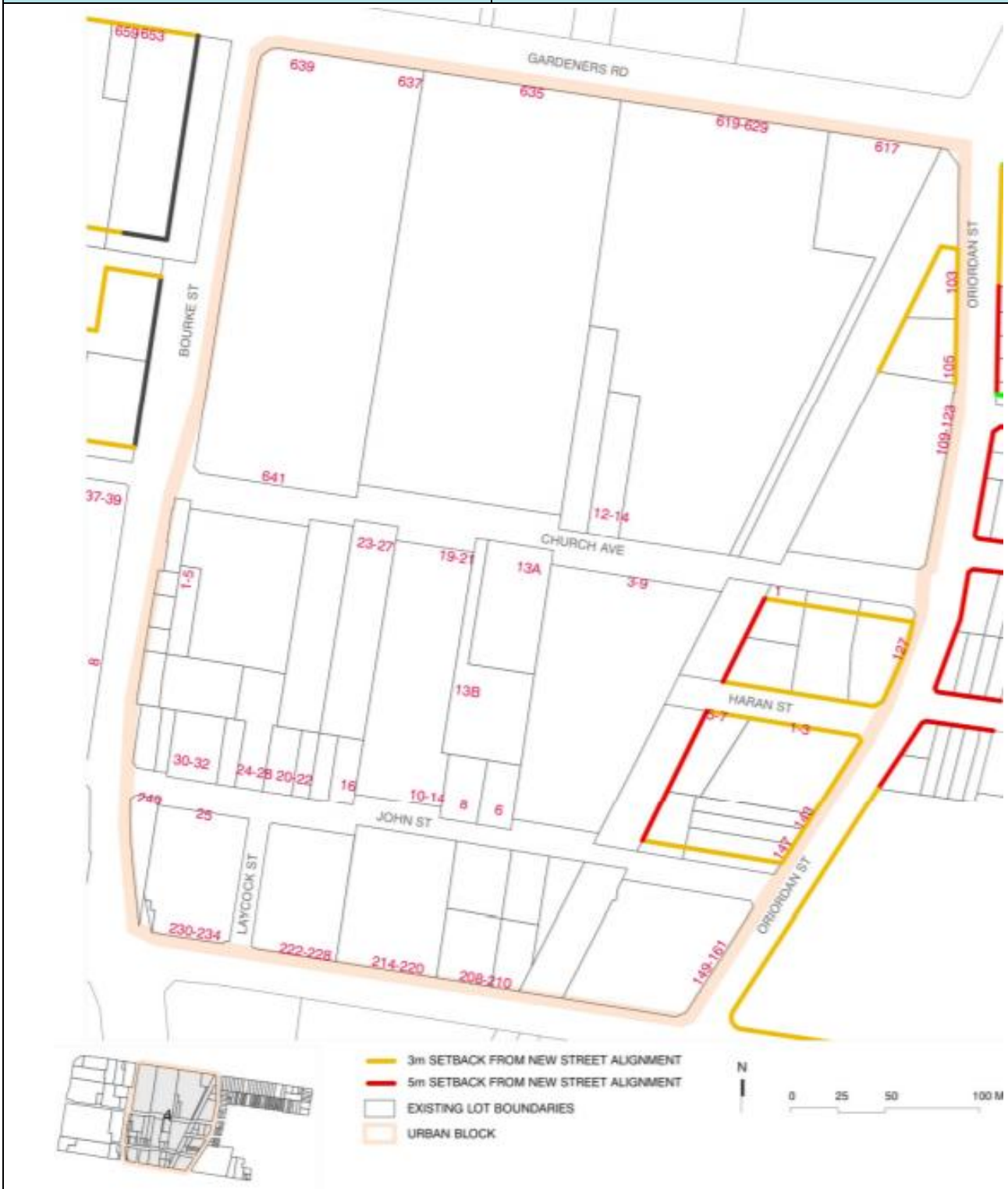


Figure 107: Urban Block 2 Setback (Levels 1 – 4) Map

Objective	Control

Figure 108: Urban Block 2 Setback (Levels 5 – 13) Map

Objective		Control	

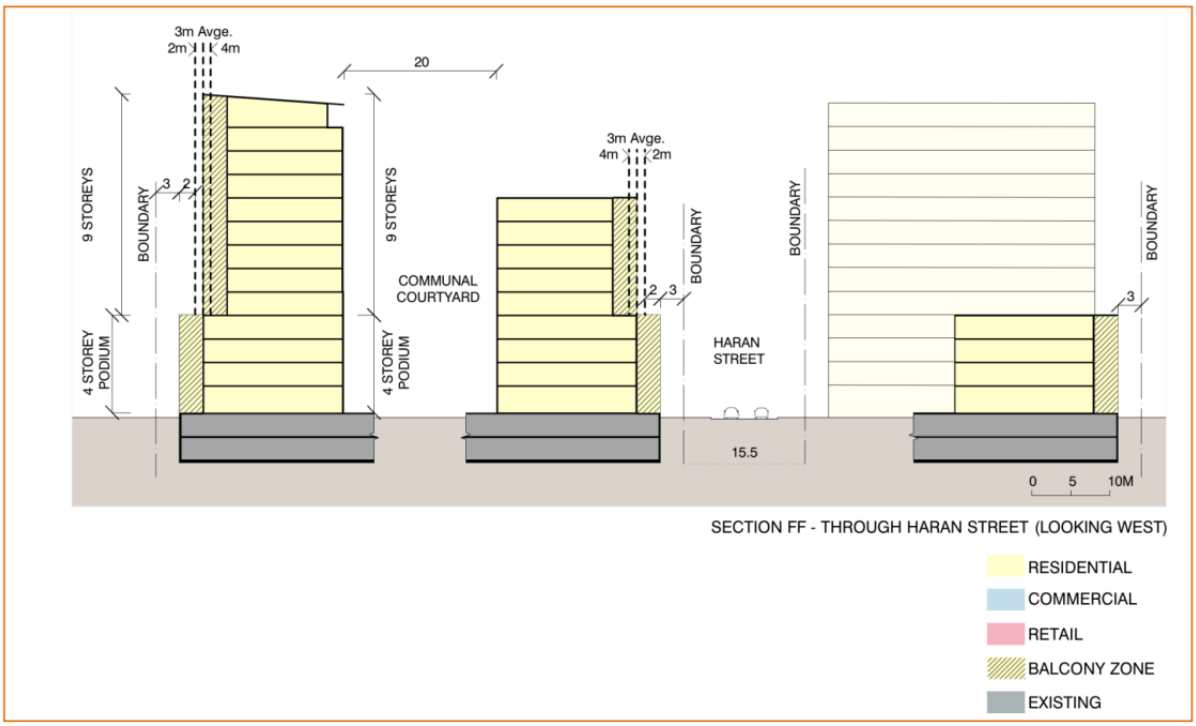


Figure 109: Urban Block 2 – Section Plan

O13.	To create cohesive streetscapes with consistent building alignments particularly at ground level in order to accommodate canopy street tree planting.	**C32.**	All property boundary front setbacks must be deep soil and landscaped and must not have any underground intrusions such as underground car parking or on-site detention. **Note:** The development site boundaries may not correspond to the existing allotment boundaries due to proposed streets and public domain works that may be required as part of redevelopments. Development site boundaries are shown on the site layout plans for each urban block and, where re-subdivision is required, will become the new allotment boundaries from which street setbacks are measured.
O14.	To ensure that all ground level elements of buildings visible from the street make a positive contribution to the public domain.		
O15.	To provide active street frontages from the ground floor retail areas of the Precinct in order to create vitality and vibrancy in the centre.		
O16.	To enhance pedestrian amenity by providing sun and rain protection.	**C33.**	Setbacks are to maximise the retention of existing trees and their root systems (including those on adjoining properties) and may need to be varied to achieve this.
O17.	To create a suitable interface between private and public spaces that ensures the safety, amenity and protection of privacy for residents.	**C34.**	Setbacks are to include the planting of canopy trees, both small and large varieties. Developments are not to rely solely on street trees to ameliorate buildings.
		C35.	Buildings must have a consistent street wall height (in terms of the number of storeys) and provide a continuous street frontage along all significant streets.

Objective		Control	
		C36.	Diversity and activity is to be ensured by providing a variety of frontage widths for retail shops along the street.
		C37.	Blank walls fronting principal streets and the public domain are to be avoided.
		C38.	The primary area of outdoor private open space must not be located on the street frontage.
		C39.	Ground floor residential with a street frontage must incorporate landscaping as part of the common area/setback. Such landscaping is to encourage privacy and a consistent, attractive and well-maintained frontage. The private terraces should also contain some landscaping.
		C40.	The landscaped street setback area shall be on one level or at a slight slope, not terraced or stepped or containing narrow planter boxes, to allow adequate lateral root space and soil volume for medium to large canopy trees.
		C41.	Side or rear boundary fencing is not permitted fronting the public domain except where appropriate landscaping is provided in front of the fence.
		C42.	The visual connection between the building frontage and the public domain must be considered carefully in all development. This may require the floorplate of development to step with the topography to ensure that the floor level of the building frontage is generally at footpath level.
		C43.	Development provides ground floor frontages in accordance with the below Urban Block 1 Retail and Commercial Frontage Map.
		C44.	Outdoor dining areas must allow for safe pedestrian circulation and access and must not compromise or restrict sight lines for motorists.

Objective	Control

Figure 110: Urban Block 1 Retail and Commercial Frontage Map

		C45.	Development provides awnings floor frontages in accordance with the below Urban Block 1 Awnings Map.
		C46.	Awnings must allow for continuous and contiguous street tree planting. Awnings (if required) are to be

Objective		Control	
			located and sized to adequately accommodate trees. Ground floor retail areas should be indented into the building so that awnings do not hinder street tree planting.

Objective	Control

Figure 111: Urban Block 1 Awnings Map

Objective		Control	
		C47.	Boundary fences will not provide opportunities for seclusion and are to be of a height that allows surveillance of streets.
		C48.	Where fencing of the front boundary is proposed for residential buildings the design must consider the following: a. solid metal panel fences (colourbond/sheet metal) of any height are not permitted along street frontages b. masonry/brick fences over 600mm and timber/steel picket/palisade or plain picket fences c. fencing over 1m high may be permitted. The design of fencing over 1m in height will take into consideration sightline issues when exiting from the subject site or adjacent properties. The design of the fence can be modified by setback or by using splays at least 1m x 1m in size d. a mixture of materials is preferable with a maximum of 60% solid material over the whole fence surface e. the design will consider the need for horizontal rhythms along the street such as vertical entry elements, boundary markers or fence post frequency f. where possible, the design will avoid the use of continuous lengths of fencing (a maximum of 6m without articulation) at the street frontage g. access gates are to be hung so that the direction of swing is inward h. satisfactory provision is to be made for access to public utility installations
		C49.	Maximum height of side or rear fences is 1.8m. Where the fence /side returns are to be erected on or adjacent the common allotment boundary, the written consent of the adjacent property owner(s) is required.
		C50.	Landscape documentation is to be provided that include details of all fencing to be used in a proposal – privacy, boundary, frontage, pool, dividing and so on. The details are to include style (manufacturer, product code, name), materials, colour/s and installation method.

Objective		Control	
Traffic and Parking			
		C51.	Alterations and additions to existing premises will not be required to provide additional car parking, provided: a. the gross floor area of the premises is not increased by more than 75% b. it is not otherwise possible to provide the parking on site

7.8.4 Controls - Urban Block 1

Objective		Control	
Land use			
O1.	To create a mixed-use neighbourhood comprising of residential and commercial uses supported by ground floor retail.	**C1.**	Gardeners Road and Kent Road buildings are to have a continuous commercial ground floor, with residential or commercial uses above reflecting the commercial character of these major roads.
O2.	To provide a major new supermarket close to Bourke Street and the railway station.	**C2.**	A mixed-use area with retail ground floor uses is to be provided on Bourke Street, Coward Street and Kent Road with predominately residential and commercial uses elsewhere within the urban block.
		C3.	Bourke Street is to be the major thriving main street in the Mascot Station Town Centre Precinct. Ground level retail, generous footpaths for pedestrians, a bike lane and bike facilities for cyclists, bus services, street trees and street furniture and paving are to be provided on Bourke Street as the active spine of the Town Centre.
		C4.	Church Avenue is to be a predominantly residential street, with canopy street trees, generous footpaths for pedestrians, on street parking and one-way traffic access to Kent Road, to ensure calmed local traffic conditions. The interface between the public and private domain at ground level is to be visually open, with multiple building and dwelling entries and no continuous blank facades or front garden walls.
		C5.	Part of the new north-south street is to be lined by ground floor retail to create activity and provide for safety and security throughout the day and evening.

Objective		Control	
		C6.	Kent Road and Coward Street buildings are to have a continuous commercial ground floor, with residential or commercial uses above. This will reflect the commercial character of these major roads and the movement economy of businesses fronting them. Residential floors above are to be designed using environmental design strategies such as site-specific apartment types, screening, and the like to maintain good residential amenity.
		C7.	The extension of John Street will provide access for vehicles and pedestrians with frontages being retail or commercial at ground level, to enhance retail activity, pedestrian amenity, and urban character in close proximity to the railway station.
		C8.	A major new supermarket is to be located in this urban block, with associated small-scale shops creating a thriving retail hub close to Bourke Street and the railway station. The supermarket will be the focus of retail activity.
Road Network and Vehicular Access			
O3.	To design and deliver local streets that support the needs of development and the surrounding network.	**C9.**	Development is to deliver road widening along the eastern side of Kent Road, including 19-33 Kent Road and 39 Kent Road, Mascot as well as widening the corner of Kent Road and Coward Street within 39 Kent Road. The road widening was identified by the Mascot TMAP prepared by SMEC Australia and is therefore identified in the Mascot Station Precinct DCP. Further information can be obtained from Council, Transport for NSW and Roads and Maritime Services.
		C10.	Development is to deliver road widening on both the southern and northern sides of Church Avenue to improve traffic management. Land to be dedicated is calculated by measuring the appropriate distance from the centre line of the existing road. The road reserve is to be 12 m from each side of the centre line.
		C11.	Development is to provide land for additional road widening identified on the Bayside LEP 2020 Land Reservation Acquisition Maps.
Open Space and Movement			

Objective		Control	
O4.	To ensure that the nature and distribution of public spaces, buildings and facilities enhances the public domain and links key features and activities within the block.	**C12.**	The retail open air arcade leading from Bourke Street westwards to the adjoining lot is to be extended.
		C13.	New local parks will provide for the recreation needs of a substantial increase in residential population. One or two sides of any new park shall front a public street to provide them with a public character, and to allow for overlooking from the public domain for safety and security.
Built Form: Building Height and Density			
O5.	To ensure the appearance of buildings adds to the richness and experience of the Centre.	**C14.**	Street frontages at the lower levels of buildings are to be generally continuous, enhancing pedestrian interest and amenity and providing safety and security by ensuring passive surveillance of the public domain. Small breaks in these perimeter block forms may provide pedestrian access to the centres of Blocks.
O6.	To ensure building heights relate to street widths to create a public domain scale which improves the sense of space and experience for the user.	**C15.**	Residential floors above ground level commercial are to be designed using environmental design strategies such as site-specific apartment types, screening, and the like to maintain good residential amenity.
		C16.	The upper levels of buildings are to facilitate daylight access to streets and avoid street canyons by being set back from the building alignment.
Street Character and Development Setbacks			
O7.	To create an amenable environment for users.	**C17.**	Public domain improvements are to be made in streets adjoining development sites.
O8.	To make the Bourke Street and Gardeners Road intersection a gateway site for users.	**C18.**	Development on the intersection of Gardeners Road and Bourke Street represents the northern entry point to the Mascot Station Town Centre Precinct. The property on the intersection is a gateway site and its redevelopment will respond to the site's prominence and visual importance in defining the entry to the Precinct.

7.8.5 Controls - Urban Block 2

Objective		Control	
Road Network and Vehicular Access			
O1.	To design and deliver local streets that support the needs of development and the surrounding network.	**C1.**	Development is to deliver Road widening along the southern side of Gardeners Road within 639 Gardeners Road, Mascot. The road widening was identified by the Mascot TMAP prepared by SMEC Australia. Further information can be obtained from Transport NSW and Roads and Maritime Services.
		C2.	Development is to deliver road widening along the southern and northern sides of Church Avenue and John Street (applies to sites that have not been redeveloped to date). For Church Avenue the land to be dedicated is calculated by measuring the appropriate distance from the centre line of the existing road. The road reserve is to be 12 m from each side of this centre line. For John Street, the land to be dedicated is to be calculated by measuring from the centre line of the existing road. The new road reserve is to be 10 m each side of this centre line.

7.9 Rosebery Character Precinct

7.9.1 Description

The Rosebery Precinct is predominately a consistent low-density scale of development with larger detached dwelling houses. The majority of the Precinct comprises of one and two-storey brick dwellings with multi-unit housing developments including townhouse, semi-detached and villa style developments scattered throughout the Precinct. The one-storey cottages are depicted in two predominant styles – inter-war and post-war. These buildings are constructed of brick, fibro or timber cladding and contribute to the heritage conservation in the LGA. This low to medium density style of development promotes tree-lined streets with a focus on urban amenity and generous street setbacks.

The Precinct is within the 20 to 25 ANEF contour which is conditional for residential development. The Rosebery Neighbourhood Centre is located along Gardeners Road and subject to more specific controls outlined in this section.

Figure 112: Rosebery Character Precinct Land Application Map

7.9.2 Desired Future Character

The Rosebery Precinct will be maintained primarily as a residential precinct that is characterised by a distinct housing style of dwelling houses. Future development will be undertaken to a scale, design, material of construction, and nature that contributes positively to the visual amenity of the area and which complements the architectural style of the surrounds.

7.9.3 Controls

Objective		Control	
O1.	To maintain the Rosebery Precinct as a residential area that is characterised by a distinct style of dwelling houses.	**C1.**	Site layout, building styles and designs promote commonality and a visual relationship with the surrounding built form and dwelling styles.
O2.	To encourage and focus retail activity and shop top housing within Rosebery Neighbourhood Centre.	**C2.**	The Rosebery Precinct is maintained as a residential area that is characterised by the distinct housing styles of dwelling houses.
O3.	To encourage new development to have minimal impact on traffic flow, demand for on-street parking and the streetscape.	**C3.**	Development comprises predominantly low-density residential accommodation in the form of detached/attached dwellings throughout the Precinct with a maximum height of 2 storeys.
O4.	To encourage new development or alterations and additions to existing development which complement the height and architectural style found in the immediate vicinity, particularly where there is an established character.	**C4.**	Dwelling styles maintain and complement existing development patterns.

Objective		Control	
O5.	To ensure that the scale, design, material of construction and nature of the development contributes positively to the visual amenity of the area.	**C5.**	An increased height and density in the form of terrace style housing (maximum height of 9m) occurs in Special Area H1.
		C6.	Maintain roof forms which are characteristic of the prevailing designs within the street.
O6.	To encourage increases in height and density in the form of terrace style housing in Special Area H1.	**C7.**	Retain front setbacks which are consistent within a street and promote landscaping to soften the built form.
O7.	To ensure that new development provides an acceptable level of amenity for its occupants through appropriate design responses.	**C8.**	Retain side setbacks, where they are consistent within a street.
		C9.	Promote landscaping in rear private open space areas to provide privacy to adjoining properties.
		C10.	Only fencing of a low scale height is to be provided.

Objective	Control

Figure 113: Height Map – Special Height Area (H1) (Rosebery)

7.9.4 Rosebery Neighbourhood Centre

7.9.4.1 Description

The Rosebery Neighbourhood Centre is a reasonable sized local centre which must cater for the needs of the local community. It is located along Gardeners Road and Botany Road on a flat section of land, on the boundary of the Rosebery Precinct. The Centre consists of a good mix of local shops (around 100 shops) which service the local community. The historic former Roxy Theatre is a Heritage Item, located at the middle of the Centre (along Gardeners Road) and provides a landmark for the Neighbourhood Centre.

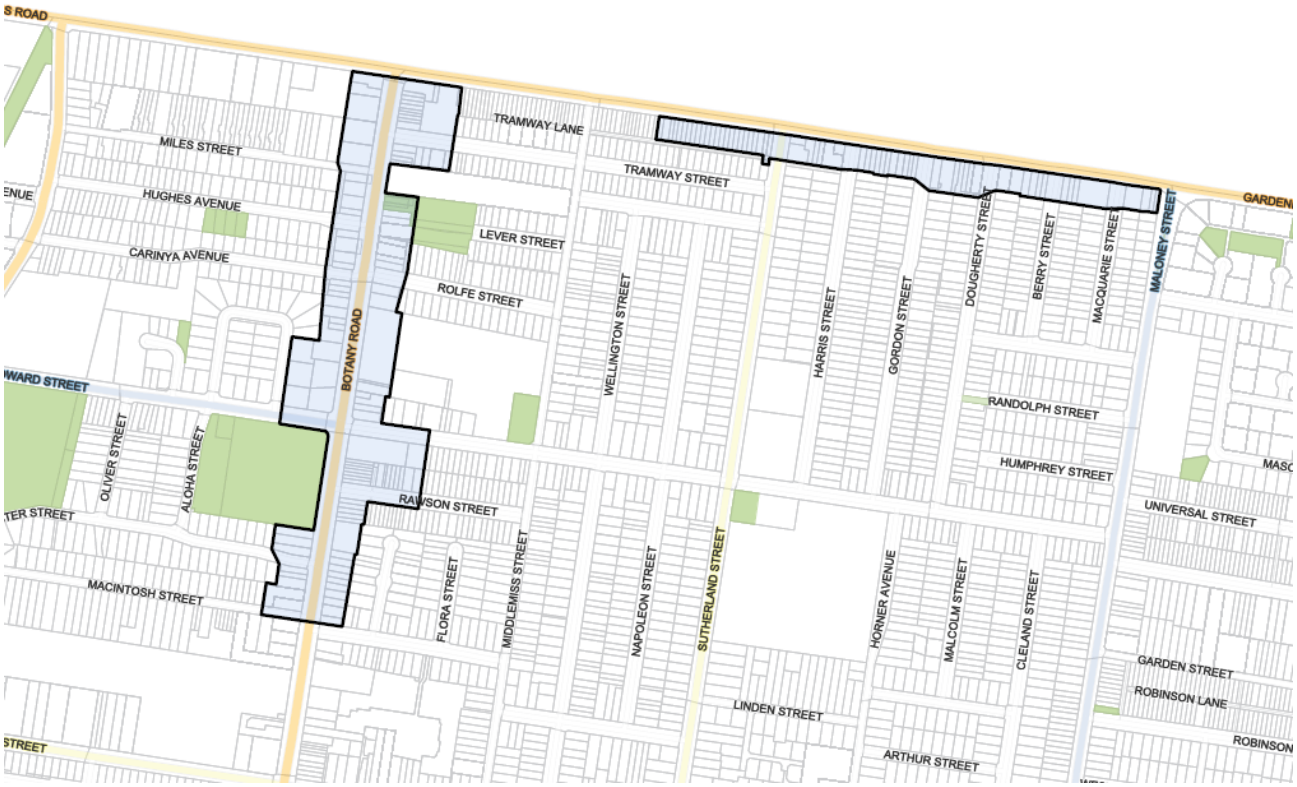


Figure 114: Rosebery Neighbourhood Centre Land Application Map

7.9.4.2 Desired Future Character

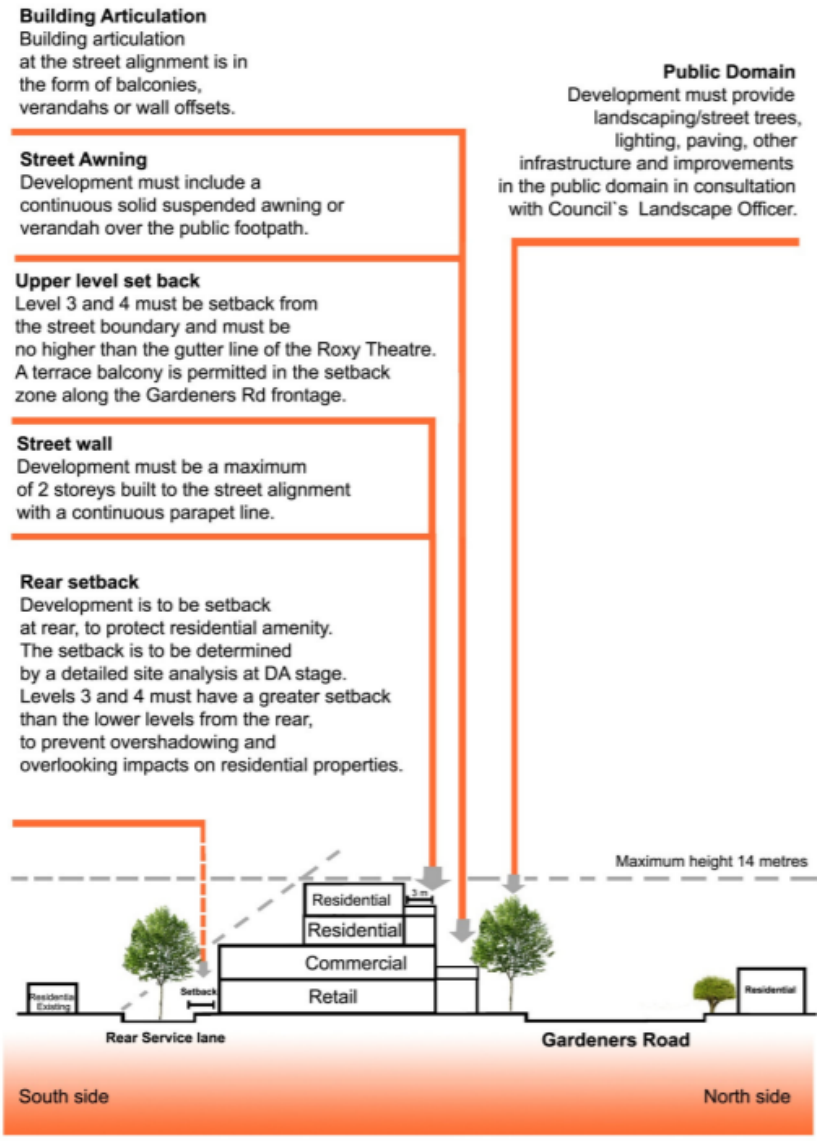
Public domain improvements, such as landscaping, footpath paving and public seating, are necessary to improve the amenity of the centre and will be required with any future redevelopment. The Roxy Theatre is a visually prominent Heritage Building at the middle of the Centre along Gardeners Road and sets a benchmark for the scale and form of development within the Centre.

The redevelopment of this area to provide increased densities in the future may be possible, however this would be contingent upon site consolidation occurring, in conjunction with considerable public domain improvements including increased public car parking and traffic management, and through site pedestrian links. Further studies and analysis of the centre would be required to establish appropriate controls to facilitate redevelopment.

7.9.4.3 Controls

Objective		Control	
Road Network and Vehicular Access			
O2.	To minimise vehicular access and servicing from the primary road frontage.	**C1.**	Vehicular access from Gardeners Road and Botany Road must be avoided where access is available from a side street or rear laneway.
O3.	To enhance pedestrian connectivity, access, and safety within the Centre.	**C2.**	Where a rear laneway exists loading and unloading must occur from the laneway and be within the site.
		C3.	Redevelopment of shops in the Centre is contingent upon additional public car parking.
		C4.	Traffic management measures minimise impacts on the adjoining residential area.
		C5.	The provision of through site pedestrian links or arcades from Gardeners Road to the rear and from Botany Road to the Lever Street Reserve are encouraged to improve pedestrian access, amenity, and safety.
		C6.	Pedestrian amenity and connectivity must be enhanced in conjunction with new development. Through site links and arcades to the rear are encouraged with redevelopment to provide improved access and safety for pedestrians. The creation of street closures in the side streets and the provision of decorative fencing and planting will assist in encouraging active street retail uses such as outdoor dining.
Built Form			
O4.	To ensure development complements the height and architectural style found in the immediate vicinity, particularly where this has a clearly established character.	**C7.**	Whilst a maximum of 4 storeys is permitted, buildings must have a maximum height of 2 storeys along the street frontage with a continuous parapet line, consistent with existing development.
O5.	To retain a coherent streetscape with a consistent street wall and parapet line.	**C8.**	Development must provide landscaping, street trees, decorative fencing, lighting, public seating, paving and other street plaza and public domain improvements identified by Council, generally in accordance with the Local Character Statement diagram below.
O6.	To retain and conserve the Rosebery Neighbourhood Centre and encourage a viable and attractive Neighbourhood Centre by improving the public domain and the public/private interface.	**C9.**	Buildings must address the street, and their entries are to be readily apparent from the street. Developments on sites with two or more frontages must address both frontages,

Objective		Control	
			to promote, add prominence and diversity to the streetscape. Buildings that are orientated across sites, contrary to the established development pattern, are intrusive and often overlook adjoining properties.



Note: Setbacks may be required for the provision of street trees.
Note: Along Botany Road Level 3 and 4 must be setback from the street boundary.

Figure 115: Local Character Statement

O7.	To improve and extend the pedestrian environment and to encourage appropriate outdoor uses with good solar access, such as cafes.	**C10.**	The design of buildings must encourage active street life and provide for small scale shops that will serve the local community. The design must also improve the residential amenity for the housing above the shops and

Objective		Control	
O8.	To retain existing trees within the streetscape, including the avenue of tall gum trees along Gardeners Road.		provide for passive surveillance of the surrounding streets.
O9.	To ensure that development recognises predominant streetscape qualities (i.e. setbacks & design features).	**C11.**	New development is to take into account and respond sympathetically to an established streetscape with strong architectural features and identity. New buildings are to reinforce these features and contribute to its character.
O10.	To allow reasonable redevelopment and to improve the architectural quality of building stock.	**C12.**	Contemporary architectural design solutions are encouraged; however, designs will need to demonstrate that they will not lead to a replacement or diminution of a street's existing character. Council encourages diversity in building designs provided that development outcomes complement the existing character of the suburb.
O11.	To ensure that redevelopment has a positive interface to, and maintains the amenity of, residential areas.		
O12.	To encourage development of awnings as balconies for residential units above (to improve amenity for unit dwellers and promote passive surveillance of streets).	**C13.**	The top 2 storeys must be set back (a minimum of 3m) from Gardeners Road and Botany Road to create articulation of the street facades. A setback to the rear is also required and is to be determined following a detailed site analysis at development application stage. The analysis must satisfy Council that the amenity of neighbouring residential properties is protected in terms of natural sunlight access, and privacy and visual amenity, and that the development is in accordance with the Local Character Statement diagram above. Impacts on residential areas are to be minimised.
		C14.	With redevelopment of the Centre, landscape planting must be provided along the rear boundary where a site adjoins a residential property, to provide a visual separation between the shops and the residential area. Such landscaping must not result in overshadowing of the residential property.
		C15.	The design of new development must improve the residential amenity of housing above shops by providing direct access to balconies and private open space, and passive surveillance of surrounding streets and pedestrian walkways.
		C16.	All designs must provide awnings above the footpath. Awnings above the footpath are encouraged to be trafficable verandahs for the use of residents on the first floor and are to provide for passive surveillance of the streets. If the verandah is built over the street,

Objective		Control	
			then a lease fee is payable to Council. The fee is set out in Council's Fees and Charges.
		C17.	Awnings must be provided continuously and at the same height along the shop frontages to provide weather protection for pedestrians.
Heritage			
O13.	To develop sympathetically with heritage items within or in the vicinity of the Centre.	**C18.**	Development is to retain and complement existing heritage items including significant vegetation.
O14.	To retain the former Roxy Theatre as a visual landmark in the middle of the Centre.	**C19.**	Redevelopment retains inter-war 2 storey shop-top housing built to the street alignment with continuous awnings and parapets.
		C20.	The Roxy Theatre informs the scale and form of development within the Centre along Gardeners Road.

7.10 Mascot Local Centre

7.10.1 Description

The Mascot Local Centre is located along Botany Road on a flat section of land. It is a medium size Local Centre with over 100 shops including a small local supermarket servicing the surrounding community. It has a good mix of local shops and services. It benefits from two Council car parking areas (one on either side of Botany Road) with over 140 public car spaces provided.

The Centre runs north-south along Botany Road and is surrounded by a predominantly low density residential area. Botany Road is a major arterial road that carries substantial traffic volumes which impacts on the amenity of the Centre. The Centre is affected by the 25 to 30 ANEF Contour and road traffic noise. Part of the suburb is within the zone of influence of the High Pressure Gas Pipeline that follows the ARTC Rail Corridor to the Qenos Site at the Botany Industrial Park, Denison Street, Banksmeadow. Development Applications, planning proposals and rezoning of land received by Council for land within the Zone of Influence will be referred to the APA Group for consideration and comment.

Figure 116: Mascot Local Centre (Botany Road) Land Application Map

7.10.2 Desired Future Character

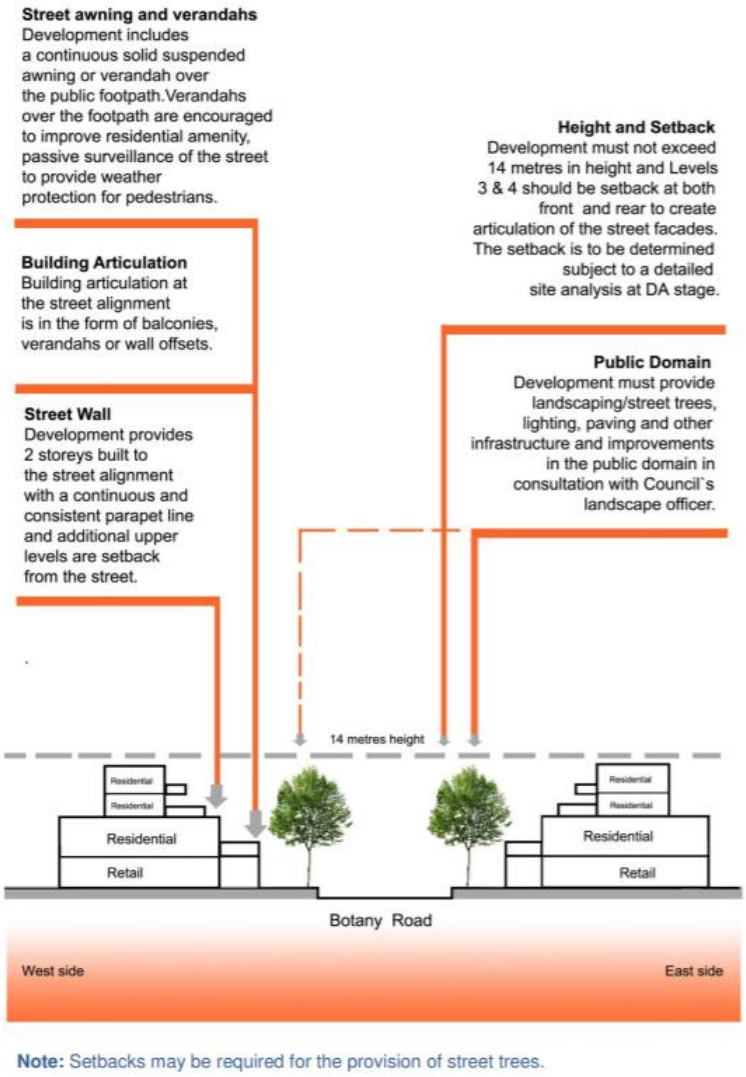
The Desired Future Character for the Mascot Local Centre is for it to be retained and conserved as a shopping strip, encouraging a viable and attractive centre through public domain and public/private interface improvements. Distinctive elements of its character will be protected including predominant streetscape qualities, height, and architectural style.

7.10.3 Controls

Objective		Control	
Land Use			
O1.	To encourage site consolidation and the provision of through-site pedestrian links or arcades that provide rear access to the public car parking areas.	**C1.**	Redevelopment is encouraged through logical lot consolidation of sites and infill development.
O2.	To achieve an integrated redevelopment outcome along Botany Road.		

Objective		Control	
Road Network and Vehicular Access			
O3.	To minimise vehicular access and servicing from the primary road frontage, allow for future upgrades and provide sufficient on-site car parking.	**C2.**	Vehicular access from Botany Road must be avoided where access is available from a side street or rear laneway.
O4.	To enhance pedestrian connectivity, access, and safety within the Centre.	**C3.**	All loading and unloading is to be carried out on-site or from the rear laneway where it exists. Loading and unloading on main roads is to be avoided at all times.
		C4.	Pedestrian amenity and connectivity must be enhanced in conjunction with new development.
		C5.	Through site links and arcades are encouraged with redevelopment to improve pedestrian access, amenity, and safety.
Built Form: Building Heights and Density			
O5.	To ensure development complements the height and architectural style found in the immediate vicinity, particularly where there is a clearly established character.	**C6.**	Development which seeks the maximum building height under the Bayside LEP 2021 and is south of Hollingshed Street will penetrate the Obstacle Limitation Surface (OLS) and is required to be assessed by CASA, Airservices Australia and the Airlines before an application can be submitted to the Department of Infrastructure and Transport for their determination.
O6.	To maintain the operational safety and efficiency of the airspace.		
O7.	To retain a coherent streetscape with a consistent street wall and parapet line.	**C7.**	Building height at the street frontage is a maximum of 2 storeys with levels 3 and 4 to be set back from the street by at least 9m.
Street Character and Development Setbacks			
O8.	To retain and conserve the Mascot shopping strip and encourage a viable and attractive Local Centre by improving the public domain and the public/private interface.	**C8.**	Development must provide landscaping, street trees, lighting, public seating, paving and other public domain improvements identified by Council, generally in accordance with the Local Character Statement diagram below.
O9.	To protect the distinctive and characteristic elements of Mascot Local Centre shops and ensure the integration of these features into subsequent uses.	**C9.**	The design of development must be generally consistent with the Local Character Statement of the centre identified in the Local Character Statement diagram below.
		C10.	Alterations and additions are to reflect the architectural design of the existing building. Materials and finishes are to be compatible with the existing building.
		C11.	New development when viewed from the street is to be compatible with the character of buildings within the site's visible locality by

Objective		Control	
			using similar shaped windows, doors and similar building materials.



Note: Setbacks may be required for the provision of street trees.

Figure 117: Local Character Statement

O10.	To retain existing trees and provide additional landscaping within the streetscape.	**C12.**	New development is to take into account and respond sympathetically to an established streetscape with strong architectural features and identity. New buildings are to reinforce these features and contribute to its character by incorporating traditional shopfronts and building facades.
O11.	To ensure that development recognises predominant streetscape qualities (i.e. setbacks & design features).		
O12.	To allow reasonable redevelopment and to improve the architectural quality of building stock.	**C13.**	A setback to the rear may be required where a site adjoins a residential area and is to be determined following a detailed site analysis at development application stage. Applicants must therefore demonstrate to Council with the development application that the amenity of neighbouring residential properties are
O13.	To improve and extend the pedestrian environment and to encourage		

Objective		Control	
	appropriate active outdoor uses with good solar access, such as cafes and retail.		protected in terms of sunlight and natural daylight access privacy and visual amenity.
O14.	To encourage development of awnings as balconies for residential and commercial units above (to improve amenity for unit dwellers and promote passive surveillance of streets).	**C14.**	Shop top housing must have windows and/or verandahs facing the street elevation to encourage surveillance of the street. If the verandah is built over the street then a lease fee is payable to Council. The fee is set out in Council's Fees and Charges.
O15.	To develop a high-quality streetscape with minimal visual impact or clutter.	**C15.**	Contemporary architectural design solutions are encouraged; however, designs will need to demonstrate that they will not lead to a replacement or diminution of a street's existing character. Council encourages diversity in building designs provided that development outcomes complement the existing character of the centre.
		C16.	Buildings must address the street and their entries are to be readily apparent from the street. Developments on sites with two or more frontages must address both frontages, to promote, add prominence and diversity to the streetscape. Buildings that are orientated across sites, contrary to the established development pattern, are intrusive and often overlook adjoining properties.
		C17.	Awnings must be provided continuously and at the same height along the shop frontages to provide weather protection for pedestrians.
Heritage			
O16.	To develop sympathetically with heritage items within or in the vicinity of the Centre.	**C18.**	Redevelopment retains inter-war 2 storey shop-top housing built to the street alignment with continuous awnings and parapets.

7.11 Maloney Street Neighbourhood Centre

7.11.1 Description

Maloney Street Neighbourhood Centre is a small Centre with less than 10 shops and comprises of several inter-war (1950's) two storey shop-top buildings, on both sides of the road. The shop-top buildings are all built to the street alignment with mostly continuous awnings and parapets.

The building stock around the Maloney Neighbourhood Centre is represented by mainly detached residential dwellings. The houses are predominantly single-storey Federation Bungalows and California bungalows. The existing commercial buildings are predominantly two storeys in height and are of a simple post war design, with attractive art deco detailing on the facades. There are also several residential buildings within the Centre and a service station.

Figure 118: Maloney Street Neighbourhood Centre Land Application Map

7.11.2 Desired Future Character

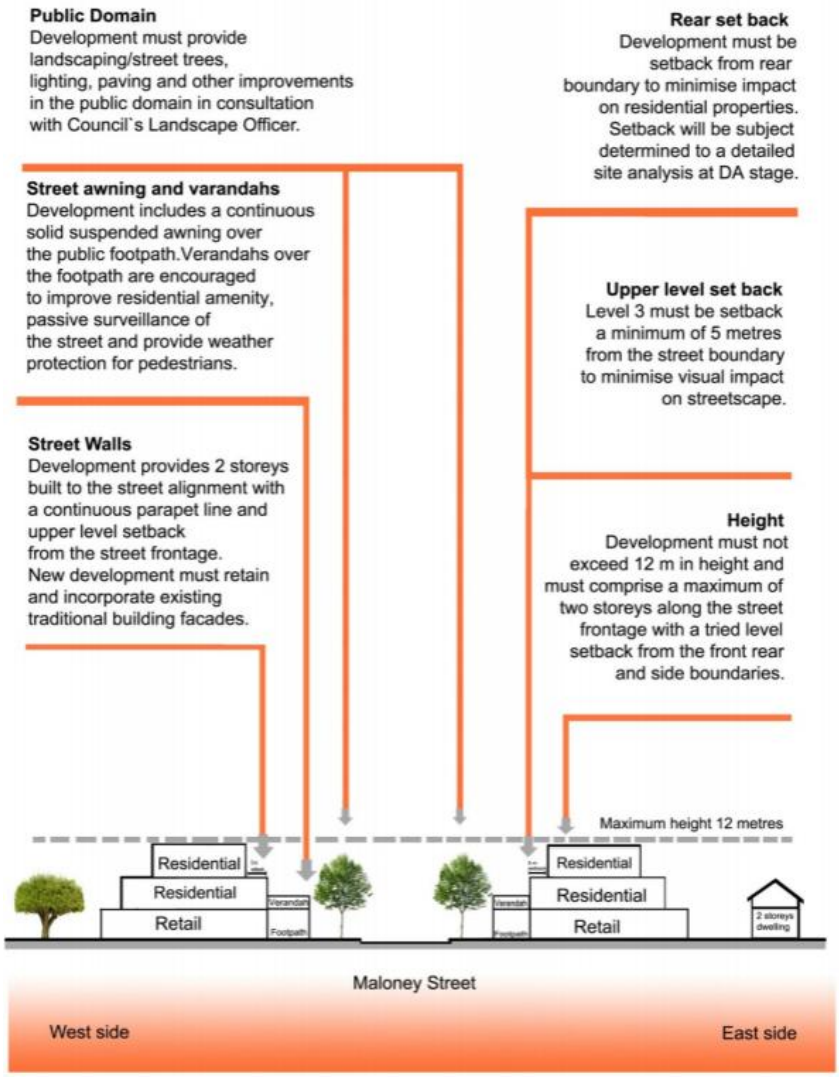
The Maloney Street Neighbourhood Centre is a small local shopping centre which must cater for the needs of the local community. The attractive art deco façades of the existing buildings in the centre must be retained in any redevelopment of the shops, as they add to the character of the centre. Public domain improvements, such as landscaping, footpath paving and public seating, would also greatly improve the aesthetics of the shops and will be required with any future redevelopment.

7.11.3 Controls

Objective		Control	
Land use			
O1.	To achieve an integrated redevelopment outcome along Maloney Street.	**C1.**	Redevelopment of the shops requires site amalgamation generally in accordance with site amalgamation diagram below to avoid inappropriate lot consolidation patterns that would isolate and unreasonably restrict redevelopment on a single lot.

Objective		Control	
Figure 119: Maloney Street Neighbourhood Centre Lot Consolidation Map			
Built Form: Building Heights and Density			
O2.	To retain a coherent streetscape with a consistent street wall and parapet line.	**C2.**	A maximum street wall height of 2 storeys applies along the street frontage, with a third level permitted which is set back from the street frontages and the rear (where the shops adjoins a residential property).
Street Character and Development Setbacks			
O3. **O4.**	To retain and conserve the shopping strip and encourage a viable and attractive Neighbourhood Centre with an improved and safer public domain. To protect the distinctive and characteristic elements of the Maloney Street Neighbourhood Centre and ensure the integration of these features into subsequent development.	**C3.** **C4.** **C5.**	Redevelopment of the Maloney Street Shops is contingent upon the provision of public domain improvements such as landscaping, paving of the footpaths, public seating and lighting identified by Council, generally in accordance with the Local Character Statement diagrams below. The design must encourage active street life while providing a high residential amenity and small scale shops that will serve the local community. The design of development must be generally consistent with the Local Character Statement

Objective		Control	
			of the centre identified in the Local Character Statement diagrams below.



Note: Setbacks may be required for the provision of street trees.

Figure 120: Maloney Street Neighbourhood Centre Local Character Statement

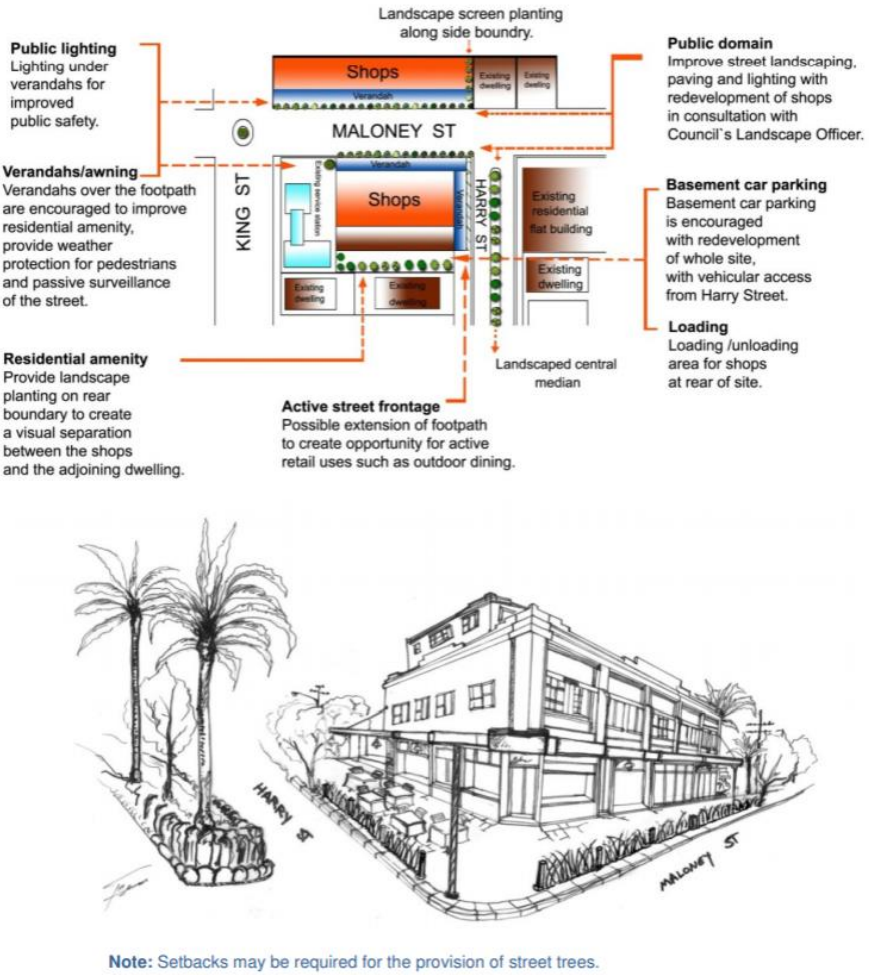


Figure 121: Maloney Street Neighbourhood Centre Desired Future Character

Objective		Control	
O5.	To ensure that development recognises and retains predominant streetscape qualities (i.e. existing building height along the street frontage & design features such as the art deco building façades).	**C6.**	Redevelopment retains and preserves the simple post-war design of commercial buildings with their attractive art deco façades.
		C7.	Pedestrian amenity and safety must be enhanced in front of the shops in conjunction with new development. The extension of the footpath on the corner of Maloney and Harry Streets will provide the opportunity for active retail uses such as outdoor dining.
O6.	To improve and extend the pedestrian environment and to encourage appropriate outdoor uses with good solar access, such as cafes.		
O7.	To ensure that the amenity of nearby residential properties is protected.	**C8.**	The design of development must improve the residential amenity for the housing above the shops by providing direct access to balconies and private open space, and passive surveillance of the surrounding streets and pedestrian walkways.
		C9.	The setback from the rear is to be determined following detailed site analysis at development application stage and must satisfy Council that the amenity of neighbouring residential

Objective		Control	
			properties are protected in terms of sunlight and natural daylight access, privacy and visual amenity.
		C10.	With redevelopment of the Centre, landscape planting must be provided along the rear or side boundary where a site adjoins a residential property, to provide a visual separation between the shops and the residential area.

7.12 Botany

7.12.1 Description

The Botany Precinct is bounded by the Airport, parklands abutting Botany Bay, Banksmeadow industrial area and the goods railway line. The dominant land uses are industrial and residential, which co-exist throughout the Precinct. Two linear retail shopping strips are located along Botany Road - Botany Local Centre within a Heritage Conservation Area and Banksmeadow Local Centre. The Botany Precinct has seen a transition with the conversion of industrial zoned land to residential zoned land, which has resulted in the emergence of stylish and high-quality medium density housing in the areas of Daphne Street, Banksia Street and William Street.

The main road through the area is Botany Road with Stephen Road providing access to and from other parts of the LGA. As a result, Botany is somewhat isolated from the adjoining residential areas. The street network within the Precinct is a combination of regular and irregular grids with some large blocks utilising private internal access ways. As a result, the permeability of the area is highly varied.

The focal points for retailing and services are Botany and Banksmeadow shopping strips; both of which are located on Botany Road. Botany Road has a concentration of Heritage Items as well as a Heritage Conservation Area at Botany Local Centre.

The quality of residential streetscapes varies although is generally good however traditional centres feature average quality public domain and are impacted by heavy traffic volumes.

Open space are generally larger parks that lack facilities and are located towards the edges of the Precinct. Major open spaces areas including Booralee Park, Garnet Jackson Reserve and the Sir Joseph Banks Park. Landscaping provided through street trees and planting within properties have created a pleasant environment, which results in a contrast to the industrial built form.

Setbacks within the Precinct vary markedly, with the area between the building line and front boundary line ranging from nil for some residential buildings to 10 metres for the larger industrial sites. Fences are varied in height and style but the majority of residential fences are of a low-scale.

Traditional detached housing occupies a large proportion of residential land, although more recent villas, townhouses and apartments provide a significant number of dwellings, particularly in the east. Some shop top housing occurs in the traditional strip shopping centres of Botany and Banksmeadow.

The precinct contains five localities which are subject to more specific design outcomes, as provided further within this Chapter:

- The Botany Local Centre
- The Botany West Industrial Precinct

- The Lord Street Business Park Precinct
- The Banksmeadow Neighbourhood Centre
- Swinbourne Street Neighbourhood Centre

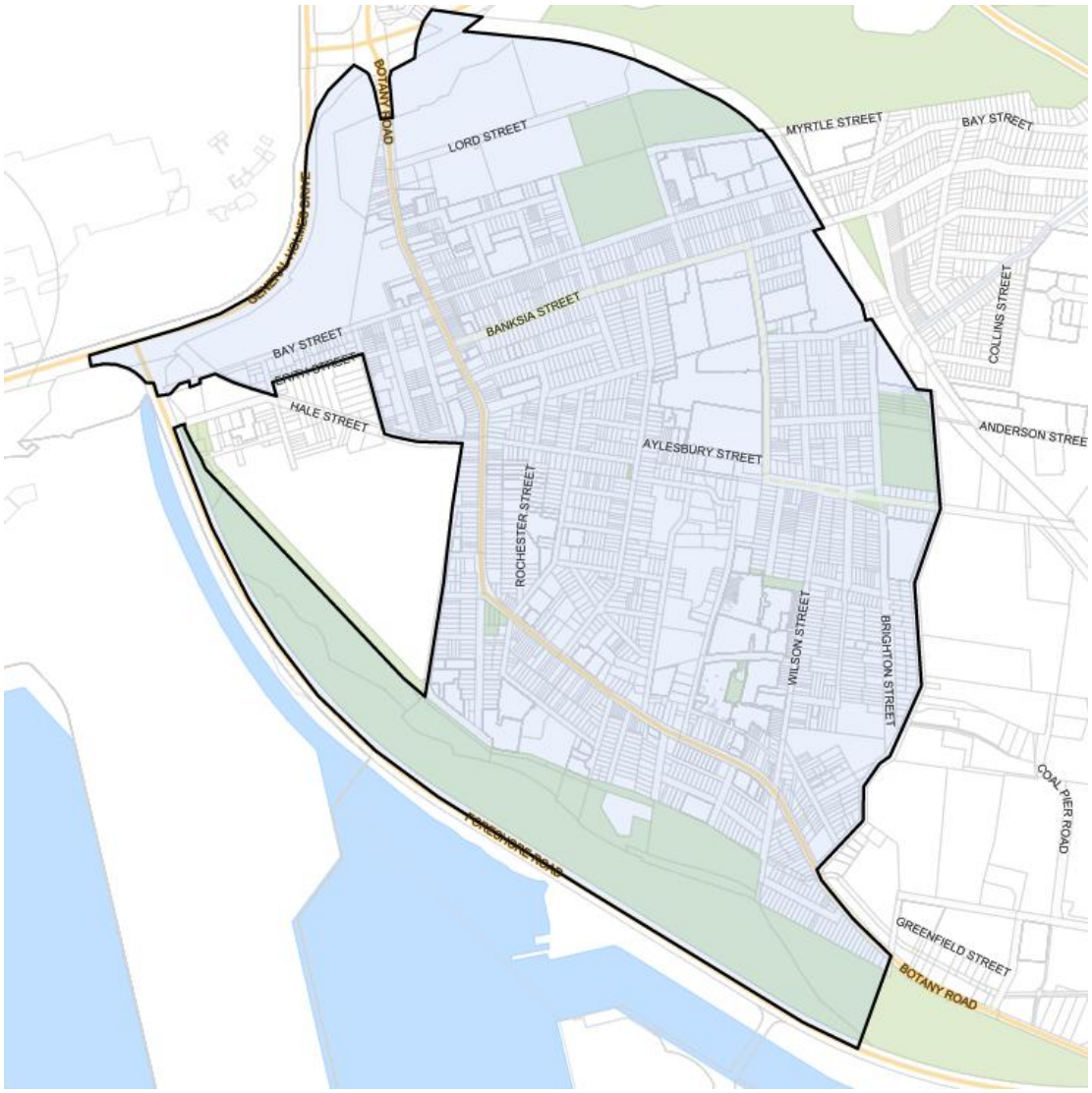


Figure 122: Botany Precinct Locality Map

7.12.2 Controls

Objective		Control	
Built Form: Building Heights and Density			
O1.	To encourage new development or alterations and additions to existing development which complements the height and architectural style found in the immediate vicinity, particularly where there is an established character.	**C1.**	Medium density residential development occurs in areas adjacent/adjoining existing medium density housing.
		C2.	Development maintains low density residential accommodation in the form of detached/attached dwellings with a maximum height of 2 storeys in the remainder of the Precinct.
O2.	To ensure that the scale, design, materials and nature of the development contributes positively to the visual amenity of the area.		

Objective		Control	
O3.	To minimise the impacts of non-residential uses, such as traffic and noise/air pollution, on residential amenity to be minimised through appropriate design responses.	**C3.**	Development on larger sites unlocks vistas and view corridors to park land, Botany Bay and City skylines.
		C4.	Densities in residential areas already affected by aircraft noise over 30 ANEF or adjacent to freight and major road corridors are not to be increased.
		C5.	Uses within sites affected by aircraft noise over 30 ANEF are converted to non-residential uses less affected by aircraft noise.
		C6.	Development along Botany Road and within the vicinity of Foreshore Road is designed to minimise traffic noise transmission.
Street Character and Development Setbacks			
O4.	To enhance the public domain and streetscapes within the Precinct through compatible land use, built form, amenity, and streetscape improvements.	**C7.**	Development provides an active frontage along Botany Road in the Botany Local Centre.
O5.	To ensure that new development provides a high level of amenity by adequately responding to the local and environmental context.	**C8.**	Development: a. promotes neighbourhood amenity and enhances pedestrian comfort b. encourages site layout and building styles and designs that promote commonality and a visual relationship with the surrounding built form and dwelling styles c. encourages dwelling styles that maintain and complement existing development patterns d. encourages a strong landscape and vegetation theme within both the public and private domain e. allows the adaptive reuse of industrial buildings for residential purposes f. encourages new development on larger sites (e.g. over 2,000m²) to promote a parkland setting for residential development
		C9.	Development provides landscaping within the front and side setback to soften the built form particularly in high density terrace, unit, and residential flat buildings.

Objective		Control	
		C10.	Development provides landscaping and public domain improvements to elevate Bay Street to a “grand avenue”.
		C11.	Development maintains roof forms to reflect the characteristics of the prevailing designs within the street.
		C12.	Development retains fencing character, styles, and height for each street which in some circumstances may include no fences. **Note:** Where there are various styles and heights, development should adopt the prevailing style and height.

7.12.3 Botany Local Centre

7.12.3.1 Description

Botany Local Centre is located along Botany Road and is a medium sized centre with over 70 shops servicing the local community. The Centre comprises the majority of the Botany Township Heritage Conservation Area and is characterised by a considerable number of heritage buildings and traditional shopfronts/facades. The Botany Town Hall is a Heritage Item which forms a focal point at the southern end of the Centre.

The suburb of Botany was created in the 1830’s with the creation of parishes in Sydney. The suburb evolved as subdivisions were approved. The area in the 1860’s had a variety of landholdings but it wasn’t until 1882 when the tramway came down Botany Road that the area expanded. The easy availability of water in the Botany area encouraged industrial uses and the area expanded in the 1904-1914 period. Shops developed to cater for the factory staff that moved into the area as industry expanded.

Figure 123: Botany Local Centre Application Map

Character Statement

The character of the Botany Township HCA is made up of a number of architectural styles and building typologies, which include late Victorian workers' cottages at the northern and southern ends of the HCA, and a central traditional commercial shopping strip comprised of two- to three-storey Federation buildings. The character of the distinct commercial and residential precincts of the HCA should be preserved and retained through the retention of contributory buildings, public open space, and the existing subdivision pattern.

Characteristic elements to be preserved include:

- the prevailing two to three-storey character of the traditional commercial shopping strip at the core of the HCA
- active street frontages in commercial buildings at the ground level
- the prevailing character of the Victorian cottages at the northern and southern ends of the HCA, comprised of single-storey cottages
- the range of surviving architectural styles and historic buildings, particularly the existing heritage items, landmark buildings and contributory buildings
- consistent decorative parapets, awnings and terraced retail shopfronts with shop-top housing built to the street alignment
- original sandstone and trachyte kerb and guttering, and prominent street plantings.

Uncharacteristic development includes housing from the late twentieth and early twenty-first century, residential flat developments, over-scaled additions, large multi-storey mid-rise commercial buildings,

rendering of face brickwork and the addition of garages and carports forward of the front building line in the residential precincts of the HCA.

Classification of Buildings within the Botany Township HCA

Figure 124: Classification of buildings within the Botany Township HCA

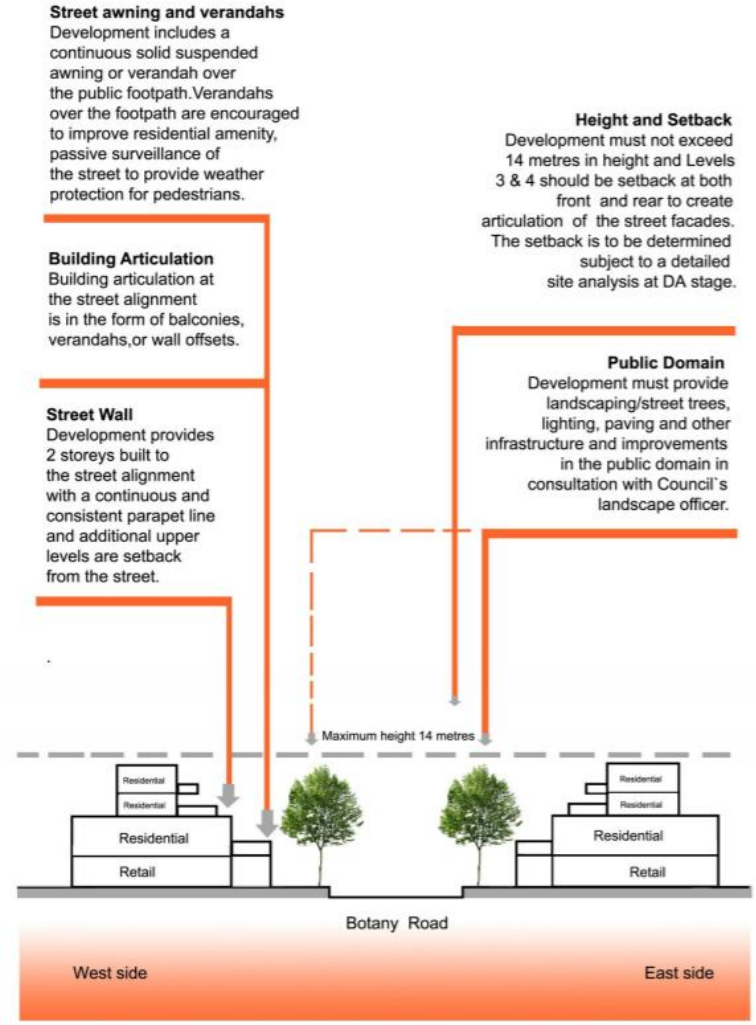
7.12.3.2 Desired Future Character

Future development is to be sympathetic to, and not detract from, the form and character of traditional shopfronts within the HCA or any Heritage Items. Development is to protect the distinctive and characteristic elements of commercial buildings and ensure the integration of these features into subsequent uses. The ‘main street’ character should be reinforced through new development, with original characteristics and traditional features of the retail buildings retained and enhanced. The centre will feature minimal signage, complimenting rather than dominating the Heritage Conservation Area.

7.12.3.3 Controls (General)

Objective		Control	
Road Network and Vehicular Access			
O1.	To minimise vehicular access and servicing from the primary road frontage and provide sufficient on-site car parking.	**C1.**	Vehicular access from Botany Road must be avoided where access is available from a side street or rear laneway.
O2.	To enhance pedestrian connectivity, access, and safety within the Centre.	**C2.**	Pedestrian amenity and connectivity must be enhanced in conjunction with new development.
		C3.	Through site links and arcades are encouraged with redevelopment to improve pedestrian access, amenity, and safety.
Built Form: Building Heights and Density			
O3.	To ensure new development complements the height and architectural style found in the immediate vicinity, particularly where this has a clearly established character.	**C4.**	Building height along the street frontage is a maximum of 2 storeys, with levels 3 and 4 to be set back from the street by at least 9m in accordance with the Local Character Statement identified for the Centre in the Local Character Statement diagram below.
O4.	To retain a coherent streetscape with a consistent street wall and parapet line.		
Street Character and Development Setbacks			
O5.	To retain and conserve the Botany Local Centre and encourage a viable and attractive Local Centre by improving the public domain and the public/private interface.	**C5.**	Development must provide landscaping, street trees, lighting, public seating, paving, decorative fencing and other public domain improvements identified by Council, generally in accordance with the Local Character Statement diagram below.
		C6.	The design of development must be generally consistent with the Local Character Statement of the centre identified in the Local Character Statement diagram below and the existing character of buildings within the Botany Township Heritage Conservation Area.

Objective	Control



Note:
Setbacks may be required for the provision of street trees.

Figure 125: Botany Local Centre Local Character Statement

Objective		Control	
O6.	To improve and extend the pedestrian environment and to encourage appropriate outdoor uses with good solar access, such as cafes.	**C7.**	Dwellings within a mixed use development and shop top housing are to have windows and/or verandahs (where a heritage item) in the street elevation to encourage surveillance of the street.
O7.	To retain existing trees and provide additional trees within the streetscape.	**C8.**	A setback to the rear may be required where a site adjoins a residential area and is to be determined following detailed site analysis at development application stage. Applicants must therefore demonstrate that the amenity of neighbouring residential properties are protected in terms of sunlight and natural daylight access, privacy and visual amenity.
O8.	To ensure that dwellings provide passive surveillance, resident interaction and amenity and address the street.		
O9.	To protect and reinforce the distinctive and characteristic elements (i.e. setbacks & traditional facades and design features) of the Botany Township Heritage Conservation Area.	**C9.**	Alterations and additions are to reflect the architectural design of the existing building. Materials and finishes are to be compatible with the existing building.
O10.	To encourage development of awnings as balconies for residential and commercial units above (to improve amenity for unit dwellers and promote passive surveillance of streets).	**C10.**	New development when viewed from the street is to be compatible with the character of buildings within the site's visible locality by using similar shaped windows, doors and similar building materials.

7.12.3.4 Controls (Heritage Conservation Area)

Objective		Control	
Character and Form			
O1.	To conserve and respect the main architectural features and form of Heritage Items.	**C1.**	Redevelopment retains inter-war 2 storey shop-top housing built to the street alignment with continuous awnings and parapets and their traditional building facades.
O2.	To retain Botany Town Hall as a focal point at the southern end of the Centre.	**C2.**	Preservation, reinstatement and maintenance of original façades and shopfronts are required. The removal or alteration of original shopfronts is not permitted.
O3.	To protect the distinctive and characteristic elements of commercial buildings and ensure the integration of these features into subsequent uses.	**C3.**	To achieve appropriate development to the original façades and shopfronts within the Heritage Conservation Area proposals must satisfy the following: i. Preserve and maintain original parapets, with existing detailing,

			unpainted and free of hoarding and signs; ii. Restore and maintain original upper level windows, with alternatives, being sympathetic in scale and proportion; and iii. Retention of continuous awning at unified heights and fascia to each shop.
		C4.	New shopfronts must reflect original details and proportions including the siting of recessed entrance doors.
		C5.	First floor balconies should remain open as important functional and architectural elements of the front façade. Enclosure of balconies will only be permitted if compatibility with original window types can be demonstrated.
		C6.	Rear elevations and structures are to be treated and maintained in a manner that is of quality and character appropriate to the Heritage Conservation Area and its controls.
		C7.	The profile of the front parapet wall should be maintained as a silhouette against the sky.
		C8.	The removal of first floor windows that have altered the profile of former openings is encouraged, with the original window to be restored.
		C9.	The level of overhead awnings above footpath level should match existing.
		C10.	Overhead awnings shall be of a uniform depth and form to match that which is predominantly within the group. Where appropriate, timber fascia and gutter are to be maintained or reinstated on buildings that originally featured a timber fascia.
		C11.	Contemporary designs for shopfronts must relate to the building type, streetscape and precinct. They must incorporate traditional features such as the division of frontages. The configuration of windows must use appropriate materials. **Note:** Where non-contributory or intrusive fabric exists in significant shopfront

			locations, it may be replaced by a modern shopfront if the design is consistent with the historical context in terms of materials, proportions, details, colour and signage.
		C12.	Shopfronts must not be amalgamated. Where properties are amalgamated, the original building elements and shopfronts must be conserved.
Pubs, Religious, Institutional and Public Buildings			
O4.	To ensure that the original characteristics of pubs in the HCA are retained and enhanced.	**C13.**	Original façades including areas of tiling are to be retained and conserved.
		C14.	Original pub names must be retained.
O5.	To ensure that any new work is carried out with due regard to the significance of the building and its setting.	**C15.**	Significant interior features and spaces must be retained.
		C16.	Original public areas and former pub accommodation areas, including their form, details, materials and finishes, should be retained.
		C17.	Work to a significant religious, institutional or public building must be compatible with the existing building.
Public Domain			
O6.	To ensure the public domain is consistent and sympathetic to the heritage significance of the Heritage Conservation Area.		<u>Parks</u>
		C18.	The formal layout of existing parks should be retained or reinstated so that placement of built elements, path location and cultural planting reflect the key development period of the park.
		C19.	Structures such as toilet blocks, playgrounds, shade structures and shelters should be located to protect and enhance public vistas and designed (in terms of their character scale, massing, form, colour and materials) to enhance the character of the Heritage Conservation Area.
			<u>Steps</u>
		C20.	Original stone steps and retaining walls should be retained and conserved in place using appropriate conservation methods.
		C21.	New steps should be designed: i. So that their scale and proportion relates to the surrounding built form; ii. For pedestrian comfort and safety; and

			iii. In accordance with the relevant Australian Standards.
		C22.	Materials for new steps should be concrete or sandstone, depending on the historical background and significance of their location.
			<u>Seats</u>
		C23.	Seats should be provided at bus stops and for the appreciation of vistas and views.
		C24.	The area around seats should be suitably treated so that seats are accessible to wheelchair users.
		C25.	The location of seats should take into account shade, wind and rain protection and the proximity to pollution and noise.
			<u>Street Furniture</u>
		C26.	The design of new street furniture items should have regard to the following parameters: i. Functionality (design for ergonomic comfort and ease of use, consideration of social and Interactive behaviour patterns) suitability to the HCA context; ii. Safety; iii. Durability, robustness and resistance to vandalism; iv. Maintenance; v. Compliance with relevant Australian Standards; vi. Affordability; vii. An integrated street furniture range for Bayside that is contemporary in spirit; and (viii)Designed to complement the unique location and heritage of the HCA.
			<u>Rubbish Bins</u>
		C27.	Rubbish bins should be non-intrusive and contemporary in design.
		C28.	Rubbish bins should be located only within commercial or recreational areas or at bus stops.
			<u>Bus Shelters</u>
		C29.	Shelters should be designed to be transparent and well lit to promote user safety.

		C30.	New bus shelters should be contemporary in design.
			<u>Drinking fountains</u>
		C31.	Drinking fountains should be designed to be easily useable by people of all ages, including those with disabilities.
		C32.	Placement of drinking fountains should not inhibit pedestrian or wheelchair access along the footpaths.
			<u>Footpath Paving Treatments</u>
		C33.	A continuity of surface treatments throughout street blocks should be maintained or provided in cases where replacement of surfaces is necessary.
		C34.	A homogeneity of colour and texture in paving materials should be maintained.
			<u>Kerbs and Gutters</u>
		C35.	All original sandstone kerbs and gutters should be retained.
		C36.	All original sandstone and trachyte kerbs and gutters should be retained where possible. If stone kerbs and gutters are required to be removed they should be stockpiled for reuse in new works.
		C37.	Damaged original stone kerbs and gutters should be restored where possible or replaced with new stone kerbs and gutters and detailed to match existing.
		C38.	New crossovers and chicanes will not be permitted as they interrupt the original line of the streets and stone kerbing.
		C39.	The kerb alignment should be retained parallel to the building line to preserve the character of streets.
		C40.	Where footpaths are widened, original stone or fly-ash kerbs should be left in their original position so that the earlier street form can be understood.
		C41.	The profile of all new kerbs should reflect the traditional kerb detail.

		C42.	Where concrete kerbs are to be used, precast segmental elements are preferred.
		C43.	All street name inlays in kerbs and gutters are to be retained.
			<u>Parking Areas</u>
		C44.	Public off-street car parking areas should be planted with appropriate species to soften visual impact, provide shade and screen parking from adjacent residential development.
			<u>Traffic Management Devices</u>
		C45.	Traffic and transport investigations are to be undertaken prior to the introduction of new traffic management devices. These investigations should, depending on their scope, include public participation and must include consideration of access issues generally for all people and the impact on heritage significance resulting from traffic management options to enable the least possible impact on significance
		C46.	The design and location of traffic management devices (such as traffic signals, speed humps, roundabouts and road signage) should not obscure public views and should minimise visual impact on significant items and the streetscape.
			<u>Signage</u>
		C47.	Signage should be discreet, of slender appearance and of contemporary design consistent with other street furniture.
		C48.	Street name signs should, where possible, be attached to buildings. Interpretive signs should incorporate brief historical information to assist in the comprehension of specific areas.
		C49.	Parking and traffic control signs should be rationalised and minimised.
		C50.	Corporate and advertising signs are not permitted within the public domain.
			<u>Services</u>
		C51.	Future substations should be recessed within a wall rather than freestanding.

		C52.	Existing substations should be screened or treated so that their impact is minimised.
		C53.	Overhead power lines and telecommunication lines should be located underground in order to protect significant vistas.
		C54.	New excavation for the installation or repair of underground services should not damage significant stone guttering or footpaths. Stone kerbs and guttering must be carefully replaced in their original locations.
		C55.	New services should be located so as not to conflict with substantial existing street trees.
		C56.	<u>Street Lighting</u> New lighting fixtures should be of simple and sophisticated design to compliment the Heritage Conservation Area.
		C57.	Public lighting should be provided to ensure legibility and visual orientation for pedestrians and enhance the sense of place.
		C58.	Lighting should be energy efficient. For example: Lighting should incorporate solar-powered lighting systems and economy measures for usage during daylight saving periods where appropriate.

7.12.4 Botany (West) Industrial Area

7.12.4.1 Description

This area is characterised by industrial uses on single and relatively small allotments, interspersed with residential uses. The area generally to the north of Erith Street is zoned IN1 Industrial and B7 Business Park whilst the area to the south of Erith Street is zoned IN1-General Industrial under State Environmental Planning Policy (Transport and Infrastructure) 2021.

The B7 zone allows light industry to continue, as well as other industries such as high technology industries and more creative industries including film studios, art galleries and architect's offices. Due to the allotment sizes in this area large scale industrial uses would not be economically viable hence the need to promote other employment generating uses.

The small land sizes reflect the heritage items along Bay Street that represent the last known fishing village cottages in the area. This heritage listing means the sites could not be amalgamated for larger scale industrial units.

Bay Street and Erith Street are narrow streets which limit the size of trucks able to access the area and manoeuvre within the street network. This access issue will also limit the type of industrial uses that would be able to function in this area.

Council is not seeking to reduce or remove the employment generating opportunities within this area but rather promote businesses which best fit within the constraints of the area.

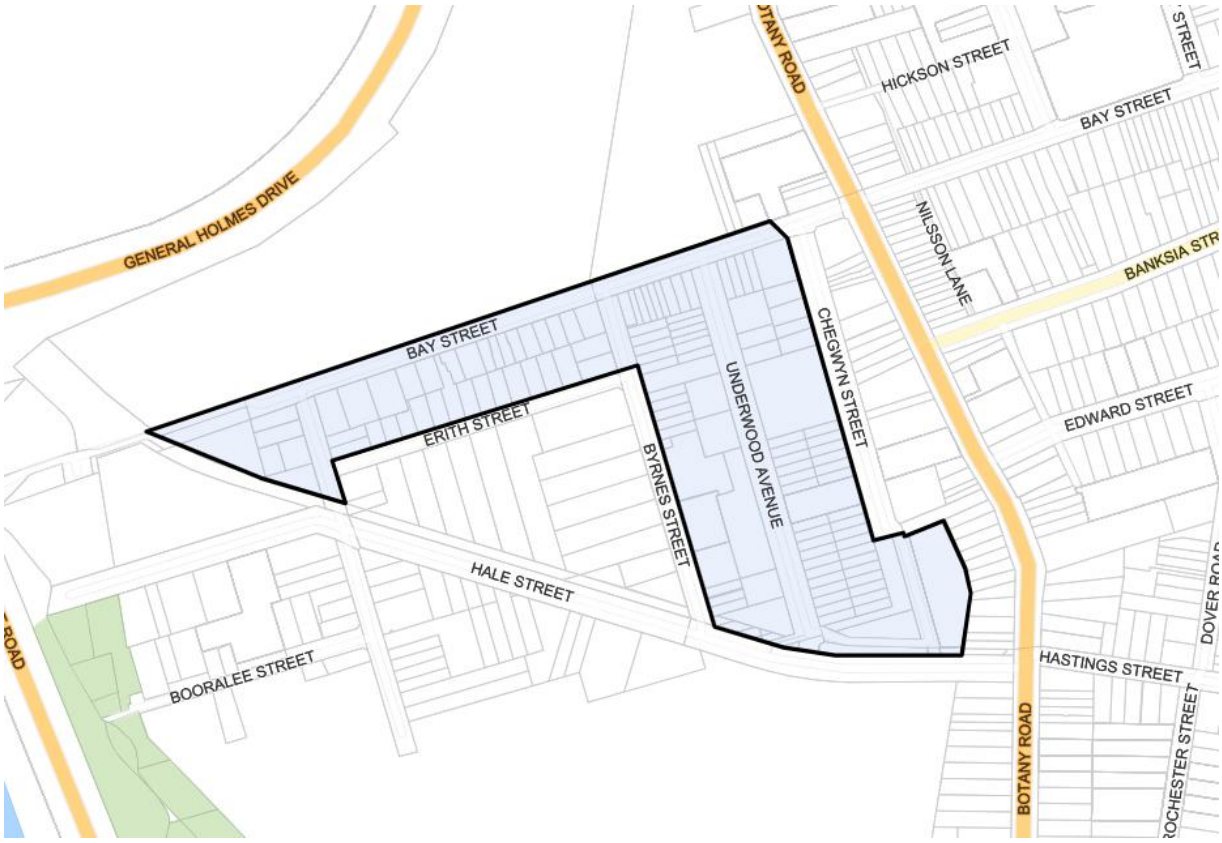


Figure 126: Botany (West) Industrial Precinct Land Application Map

7.12.4.2 Desired Future Character

Future development within the industrial area will respect the integrity of its heritage items and the Botany Township Heritage Conservation Area. Amenity in the north will need to be protected by limiting the size of delivery vehicles, whilst new business park and industrial uses will be designed to be compatible with adjoining residential areas.

7.12.4.3 Controls

Objective		Control	
O1.	Ensure that the business park and business development uses are compatible with the adjoining established residential area.	**C1.**	The maximum size of any vehicle accessing sites in the Precinct shall not exceed a Medium Rigid Vehicle (MRV) as defined by AS2890.2.
O2.	To protect the northern precinct's amenity by limiting the size of delivery vehicles.	**C2.**	The design and function of development shall assist in protecting the heritage significance of the precinct and the integrity and significance of heritage items within the Precinct and of the adjacent Botany Township Heritage Conservation Area.
O3.	To ensure that the scale, design, material of construction and nature of the development, in the opinion of the Council, contributes positively to the visual amenity and the gateway function of the area.	**C3.**	Developments within the precinct shall submit a detailed Flood Study/Assessment for 1 in 100 year average recurrence interval (ARI) design storm events and probable maximum flood (PMF).
O4.	Ensure that industrial uses concentrate in the southern part of the Precinct with access to Foreshore Drive through the Hale Street extension.	**C4.**	Development shall: i. Have finished floor levels of a minimum 500mm above the 1 in 100 year flood level for habitable areas and 300mm for industrial areas and garages; and ii. Not impede the passage of floodwater to cause a rise (afflux) in the flood level upstream and/or increase the downstream velocities of flow.
O5.	Protect the heritage integrity of the Heritage Items within the precinct and the Botany Township Heritage Conservation Area.	**C5.**	Development within the precinct shall require submission of a Risk Management Plan to address potential risks related to coastal sea levels (projected to increase above Australian Height Datum by 40cm by 2050 and by 90cm by 2100). The Risk Management Plan shall be prepared by a qualified consultant and in accordance with the following policies and documents: i. Any current policy of Council relating to projected future sea level rises and related inundation mapping; ii. NSW Coastal Planning Guidelines: Adapting to Sea Level Rise; iii. Flood Risk Management Guide: Incorporation Sea Level Rise Benchmarks in Flood Risk Assessment and; and (iv) NSW Flood Plain Development Manual.
		C6.	In addition, the Risk Management Plan shall minimise the exposure of development to

Objective		Control	
			coastal risk and provide management responses and adaptation strategies to identify and manage risk and coastal hazards associated with the following: i. The safety of future workers and occupants on-site; ii. The safety of the public off-site; iii. The safety of adjoining properties; iv. The safe evacuation route during storm and flood events; and v. The freeboard above the flood planning levels.
		C7.	The introduction of noise abatement measure to achieve compliance with current AS 2021 must be done in a manner that does not compromise the architectural design of a building or impact on the character of an existing streetscape.

7.12.5 Lord Street Business Park

7.12.5.1 Description

The Lord Street Business Park Precinct has a "Business Park / High Technology" appearance. A main feature of the Lord Street development is the Mill Ponds, which forms a visual gateway to Botany. The Mills Ponds are part of the State listed Heritage Item – Botany Water Reserves, which stretch from the northern part of The Lord Street Business Park, east of the goods railway line and up to Gardeners Road. Botany Water Reserves contain two threatened ecological communities. The wetlands are also identified as being of National significance within the Directory of Important Wetlands of Australia.

The Lord Street Park Precinct is adjacent to the Botany Township Heritage Conservation Area and the St Matthew's Anglican Church at 1331 Botany Road, Botany which is a heritage item in the Bayside Local Environmental Plan 2021. The Church is also listed in the Register of the National Estate. The Precinct is affected by the 20 to 25, 25 to 30 and 30 to 35 ANEF Contours and significant road and rail noise. Part of the suburb is within the zone of influence of the High Pressure Gas Pipeline that follows the ARTC Rail Corridor to the Qenos Site at the Botany Industrial Park, Denison Street, Banksmeadow.

The precinct contains a site at 1-3 Lord Street which is adjacent to the St Matthew's Anglican Church. This site is uniquely positioned in a transitional location between residential, church and commercial land uses. The interface between any proposed building and the adjoining historic church is of paramount importance.

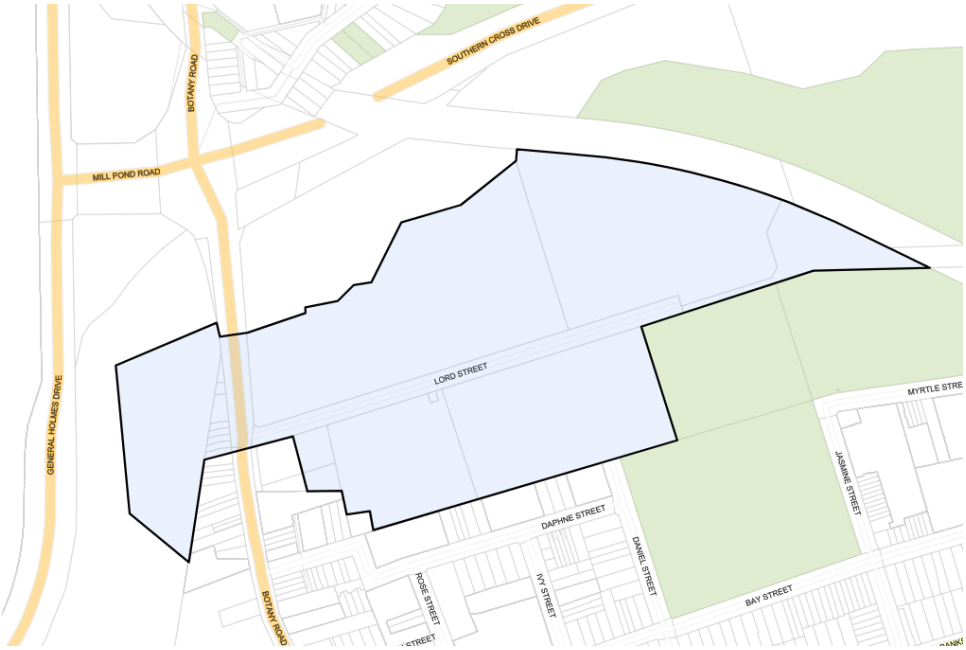


Figure 127: Lord Street Business Park Precinct Land Application Map

7.12.5.2 Desired Future Character

New development within the Lord Street Business Park will enhance the environmental and visual amenity of the locality, especially the Mill Ponds (east and west of Botany Road), whilst ensuring no adverse impact on the heritage significance of internal and adjacent heritage items and heritage conservation areas. Proposed uses will be compatible with the adjoining residential area, and withstand the stresses of flooding and sea level rise. Development at 1-3 Lord Street will be undertaken in accordance with the specific provisions that apply under Section 7.12.5.3.

7.12.5.3 Controls

Objective		Control	
Built Form: Building Height and Density			
O1.	To ensure that any new development enhances the environmental and visual amenity of the locality, especially the Mill Ponds (east and west of Botany Road).	**C1.**	Development, including alterations and additions, shall be of a high standard and shall maintain the Business Park/High technology appearance of the Precinct.
		C2.	Development, including alterations and additions, is to comply with Sydney Airport's regulations with regard to safety, lighting and height of buildings.
		C3.	Development which seeks the maximum building height under the Bayside LEP 2021 and is within land bounded by Coward Street, O'Riordan Street and Bourke Road; development along eastern side of O'Riordan Street; and development within land bounded by Baxter Road, O'Riordan Street, Joyce Drive and Botany Road, will penetrate the Obstacle Limitation Surface (OLS) and would need to be assessed by CASA, Airservices Australia & the

Objective		Control	
			Airlines before an application could be submitted to the Department of Infrastructure & Transport for their determination.
Environmental Management			
O2.	To ensure that development minimises the quantity of stormwater runoff. Its impact on the aquatic environment and the potential disturbance of contaminated sediments and is guided by the *Risk-based Framework for Considering Waterway Health Outcomes in Strategic Land-use Planning Decisions* (EPA, Office of Environment and Heritage, 2017) and *NSW Water Quality and River Flow Objectives*.	**C4.**	Any development fronting the Mill Ponds shall include a buffer zone or setback area between the waterbody and any buildings, structures or pavements to minimise environmental and visual impact on the wetlands and its environs and maintain existing environmental amenity. The extent of the buffer shall be assessed on the merit of each case and may be required to be embellished with landscaping using appropriate species.
		C5.	Development north of Lord Street and west of Botany Road shall submit a detailed Flood Study/Assessment for 1 in 100 year average recurrence interval (ARI) design storm events and probable maximum flood (PMF). The Flood Study/Assessment is to be prepared by a suitably qualified and experienced civil engineer. The Flood Study/Assessment is required to: i. Be in accordance with the current version of Australian Rainfall and Runoff (ARR) and the NSW Floodplain Development Manual; and ii. Consider the impacts from Climate Change and Sea Level Rise.

7.12.5.4 Site Specific Controls for 1-3 Lord Street

The site is unique in that each façade of a future building on the site will respond to different contextual conditions and relationships. The site's gateway location adjacent to the St Mathews Church heritage item has a transitional role from the open, garden character of the church grounds to the treed and garden commercial frontages of Lord Street, as well as between commercial uses north and east of the site with residential uses to the south.

This places a high degree of importance on ensuring each façade responds to the unique visual qualities and characteristics of its context. Articulation, materials and finishes of each façade play an important role in ensuring a sympathetic and contextually appropriate response to the surrounding context and maintenance of the visual prominence of the church.

Building Character

A key consideration informing any future built form on the site is establishing an appropriate visual relationship between that built form and the adjacent St Matthew's Anglican Church. The transition and interface between business uses and the St Matthew's Anglican Church and establishing a sympathetic design response to the Church are important factors to consider in this regard.

Objectives		Controls	
O1.	To provide built form controls that facilitate development consistent with the objectives of the site's B7 Business Park zoning within the Lord Street Business Park precinct.	**C1.**	Any future built form on the site is to reflect the Business Park character of the precinct as well as provide a sympathetic design response to the adjacent Church through design articulation, modulation of form, variation in texture, finishes and materials.
O2.	To create a bookend style development that visually integrates with and provides an activated edge to the adjoining church.	**C2.**	Development must be of a high visual quality and must include appropriate architectural articulation and modulation of form particularly to the northern frontage to Lord Street and the western frontage to the Church.
O3.	To retain and enhance the visual prominence of the St Matthew's Anglican Church as viewed from Botany Road and Lord Street.	**C3.**	Setbacks to the western façade of the building (i.e. facing the St Matthew's Anglican Church) are to provide space to enable the activation of the ground-floor edge between the site and its boundary with the Church.
O4.	To establish a high quality interface between any future built form on the site and the adjacent St Matthew's Anglican Church and adjoining lawn area.	**C4.**	Landscaping of the setback to the western boundary is to facilitate the future integration and transition between the site and the adjoining lawn area within the adjacent Church grounds. Should fencing be proposed between the two properties, ground level setbacks are to ensure the ground floor of the building remains accessible in perpetuity.
O5.	To facilitate the transition of use between the site at the edge of the employment precinct and the adjacent St Matthew's Anglican Church.	**C5.**	The ground floor of the building is to be designed to enable activation of the ground level and is to include outward facing floorspace that is oriented towards the northern and western boundaries of the site.
		C6.	Landscaping of the setback to the northern boundary is to be designed so as to contribute positively to the building frontage as viewed from Lord Street and to enhance the visual appearance of the site as a gateway corner to the Lord Street Business Park.

Building Envelope

The site's transitional location adjacent to the Church and medium density residential uses require careful consideration to establish a functional building envelope that is capable of meeting employment-based industry operational requirements as well as appropriately managing impacts on the Church and residential uses. Maintaining appropriate levels of solar access to existing residential dwellings and facilitating a scale of built form that is compatible with neighbouring uses are key considerations in this regard.

<table>
<tr><th colspan="2">Objectives</th><th colspan="2">Controls</th></tr>
<tr><td>O6.</td><td>To establish a functional building envelope that is capable of meeting employment-based industry operational requirements of the site.</td><td>C7.</td><td>Development on the site must not exceed a height of 16.5 metres and RL 21.82 metres (i.e. height of the church spire).</td></tr>
<tr><td>O7.</td><td>To maintain appropriate solar access and ensure privacy to residential buildings in the adjacent R3 Medium Density Residential zone.</td><td>C8.</td><td>Setbacks for any future development on the site are to be in accordance with those outlined in Table 22.</td></tr>
<tr><td></td><td></td><td>C9.</td><td>Upper level setbacks are to minimise solar overshadowing impacts to adjacent residential properties.</td></tr>
</table>

	Front (Lord St North)	Side (East)	Side (West)	Rear (South)
Ground Level	Min. 3m from site boundary	Min. 8m from site boundary*	Min. 7m from site boundary*	Min 6m from neighbouring building
Upper Levels 1-3	Min 3m from site boundary.	Min 3.5m from boundary*	Min 4m from site boundary*	Setback to increase by one metre for every additional metre in height above 5m in building height.
* Where a setback is increased to the western boundary for the purpose of providing careful articulation of upper levels that improves access to natural light to the east facing church windows, a commensurate reduction may be permitted at any point along the eastern setback to a maximum setback reduction of 0.5m.				

Table 22: Upper-level Setbacks

Building Frontage and Façade Design

The site is unique in that each façade of a future building on the site will respond to different contextual conditions and relationships. The site's gateway location adjacent to the St Mathews Church heritage item has a transitional role from the open, garden character of the church grounds to the treed and garden commercial frontages of Lord Street, as well as between commercial uses north and east of the site with residential uses to the south. This places a high degree of importance on ensuring each façade responds to the unique visual qualities and characteristics of its context. Articulation, materials and finishes of each façade play an important role in ensuring a sympathetic and contextually appropriate response to the surrounding context and maintaining the visual prominence of the church.

Objectives		Controls	
O8.	**West Façade Objectives** To 'bookend' the Lakes Business Park precinct with subtle articulation of form and relatively simple composition of façade elements so as to establish a visually sympathetic relationship with the church.	**C10.**	Development is to be provided in accordance with the objectives for the façade outcomes at each frontage.

O9.	To use a material palette, building articulation and roof design that provides a backdrop to the Church and creates a sympathetic visual relationship between built form on the site and the adjacent church when viewed from Botany Road.		
O10.	To provide a contemporary design response that uses high quality materials that work to maintain and enhance the visual prominence of the Church as viewed from Botany Road, with the use of glazing, shading and screening devices, softer articulation and simple composition of façade elements.		
O11.	To establish a visual and/or physical connection between internal ground floor commercial floorspace and external landscaped areas through façade treatments at ground level such as fixed and/or operable glazing.		
O12.	To create active pedestrian access at ground level between the western façade of the building and the western boundary, including seating, soft landscaping and a visual connection to the historic church.		
O13.	To ensure the appropriate access to light is provided to the stained glass windows of the adjoining historic church, through careful consideration of building articulation, building materials, colours and design of façade and roof elements.		
O14.	To provide protection to openings from the west sun.		
	North Façade Objectives		
O15.	To provide a level of articulation that provides a unique architectural response, accentuates street presence and provides a strong visual identity to the main frontage of the building.		
O16.	To create a sense of visual interest and design quality to the façade facing Lord Street by way of modulation of form and the visual articulation of colour, texture, and materials.		
O17.	To include materials and finishes that reflect the commercial and industrial context of Lord Street.		
O18.	To enhance the visual qualities of the gateway to the Lakes Business Park precinct.		
O19.	To include soft landscaping at ground level between the site boundary and the building, to reflect the garden character of Lord Street.		
	East Façade Objectives		
O20.	To provide a high degree of articulation and include a visually interesting composition of materials that reflect the adjacent industrial and commercial context.		

	South Façade Objectives		
O21.	To provide articulation and modulation to maintain solar access.		
O22.	To provide appropriate screening devices to manage any potential overlooking from south facing openings or balconies.		
O23.	To provide landscaping within the rear setback to screen adjoining residential uses and ameliorate any impacts of development.		

Safety and Security

Objectives		**Controls**	
O24.	To facilitate ongoing safety and security.	**C11.**	Development on the Site should be supported by a Crime Prevention Through Environmental Design (CPTED) study to demonstrate how the development incorporates 'Safer by Design' principles of: **Surveillance**: maximise visibility and surveillance of the public domain and publicly accessible spaces. **Access Movement and Sight lines**: establish direct connections and sight lines that minimise residual spaces and concealment opportunities. **Activation**: maximise activity in the public domain by providing outward-facing land uses, especially at ground level. Where complementary land uses such as takeaway/ food and beverage (e.g. café) are proposed, these should be located at ground level to front onto public streets and/or publicly accessible spaces. **Ownership/ Management**: provide clear definition of public and private areas of the development to ensure that public spaces (e.g. Lord Street/ public street), publicly accessible private space (e.g. laneway link/ lobby spaces) and private space (e.g. commercial premises) facilitate a logical and intuitive understanding of purpose of spaces and the permissibility of access to the public and when. **Management:** establish clearly defined maintenance and management roles between adjoining land (i.e. the Site and adjacent Church) to ensure ongoing maintenance.

7.12.6 Banksmeadow Neighbourhood Centre

7.12.6.1 Description

Banksmeadow Neighbourhood Centre is located along Botany Road at Banksmeadow and is a medium sized centre with nearly 20 shops including the historic Sir Joseph Banks Hotel which provides a focal point at the centre of the shops. It has a good mix of local shops and cafes. Given the predicted residential growth, within the Pemberton-Wilson Street Precinct, which is in close proximity to the centre, there is the need for further shops such as a supermarket, to service the local community.

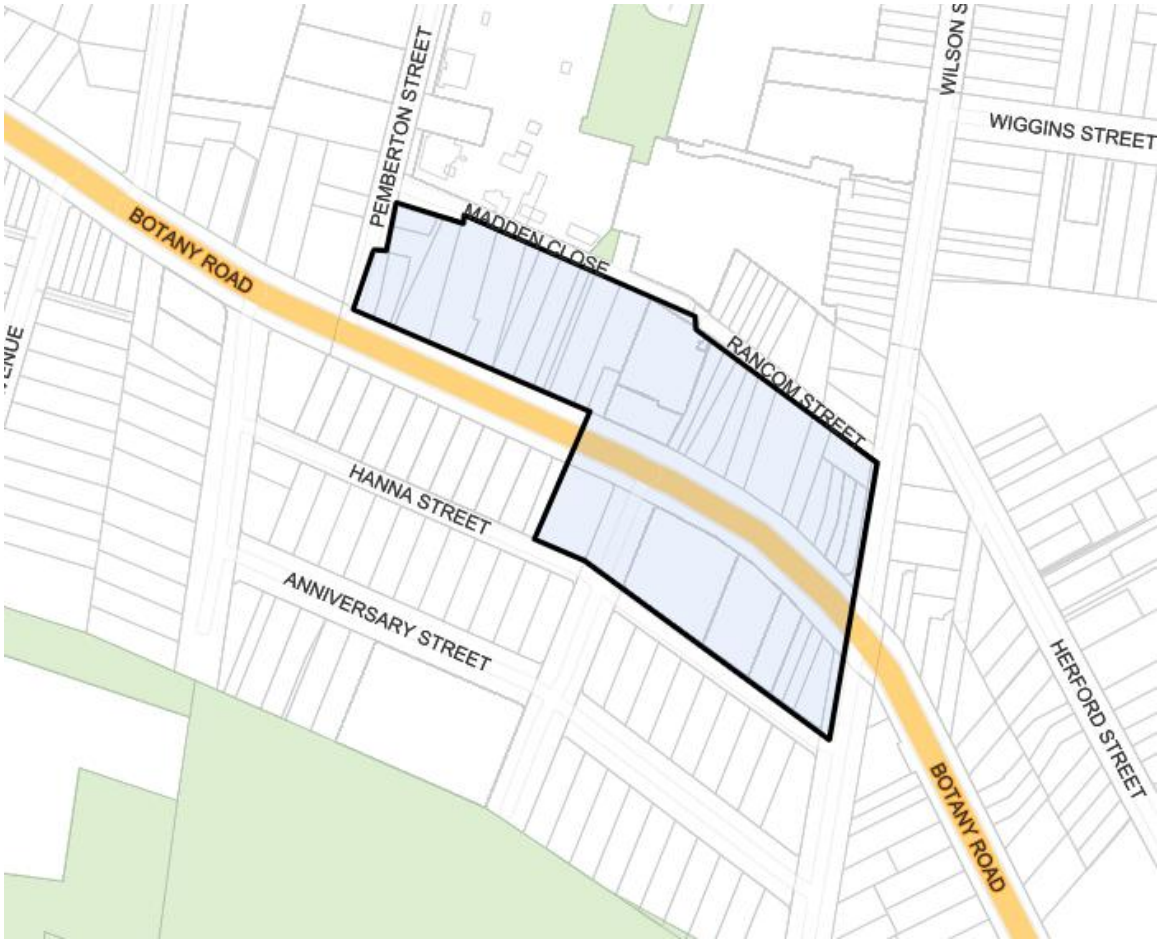


Figure 128: Banksmeadow Neighbourhood Centre Land Application Map

7.12.6.2 Desired Future Character

The Banksmeadow Neighbourhood Centre is anticipated to develop into a high quality centre with a balanced mix of retail, commercial, community and residential uses which cater for the needs of the local community, in accordance with the Structure Plan shown below.

Given the predicted residential growth within close proximity to the Centre, there is a need for further shops such as a supermarket, to service the increasing local community. Public domain improvements, such as landscaping, public seating, lighting of pedestrian walkways, further angle street parking and a signalised pedestrian crossing in Botany Road at the centre of the shops would be required in conjunction with new development (Note: this is subject to approval by Transport for NSW). Through site links and arcades leading to the residential precinct to the rear is also encouraged with future redevelopment of the shops.

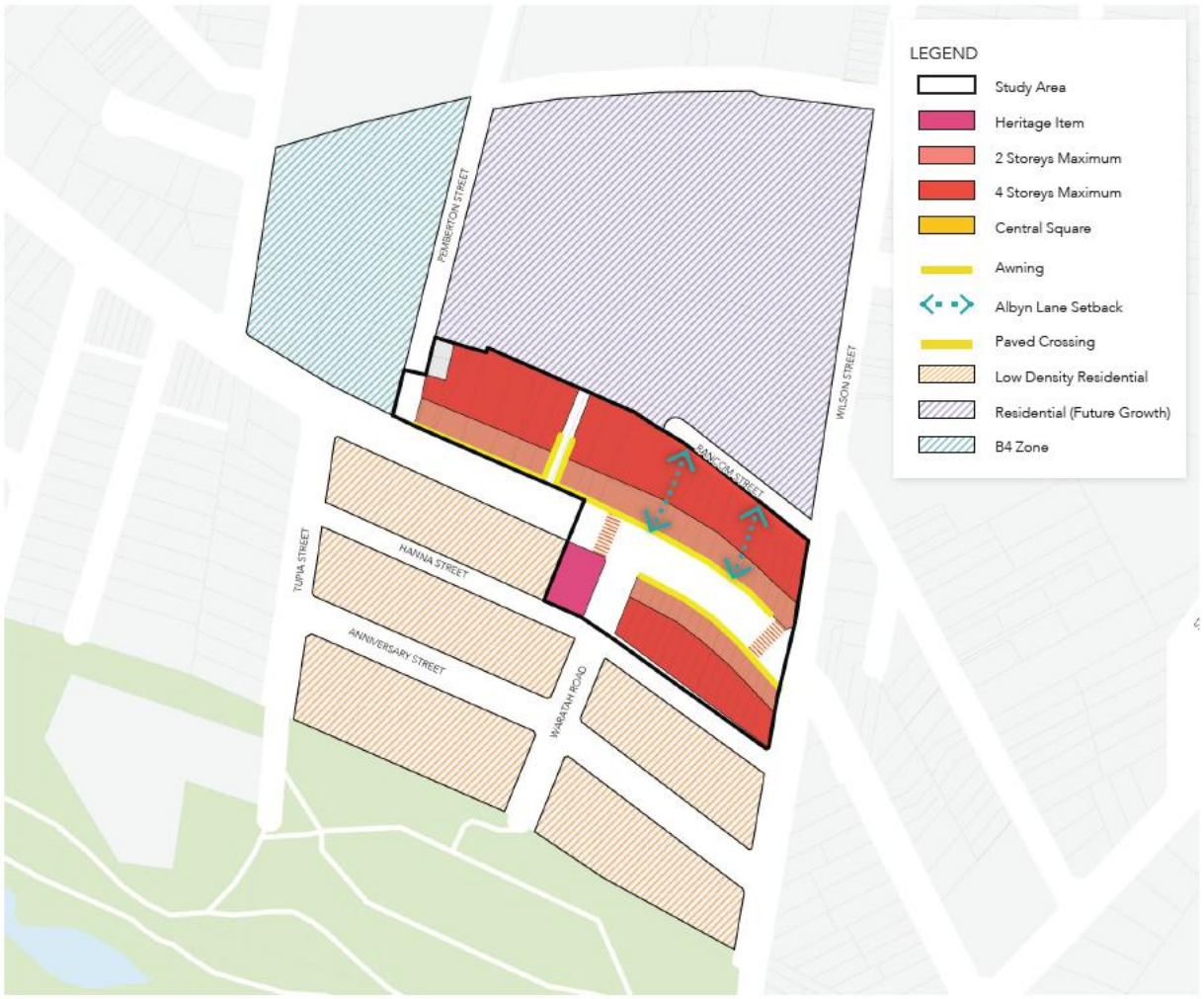


Figure 129: Banksmeadow Neighbourhood Centre Structure Plan

7.12.6.3 Controls

Objective		Control	
Land Use			
O1.	To develop a high quality centre with a balanced mix of retail, commercial, community and residential uses which cater for the needs of the local community, including a future supermarket.	**C1.**	The Banksmeadow Neighbourhood Centre develops in accordance with the structure plan above.
O2.	To achieve an integrated redevelopment outcome along Botany Road.	**C2.**	Redevelopment of the shops requires site amalgamation generally in accordance with the site amalgamation diagram to avoid inappropriate lot consolidation patterns that would isolate and unreasonably restrict redevelopment on a single lot.

Objective		Control	

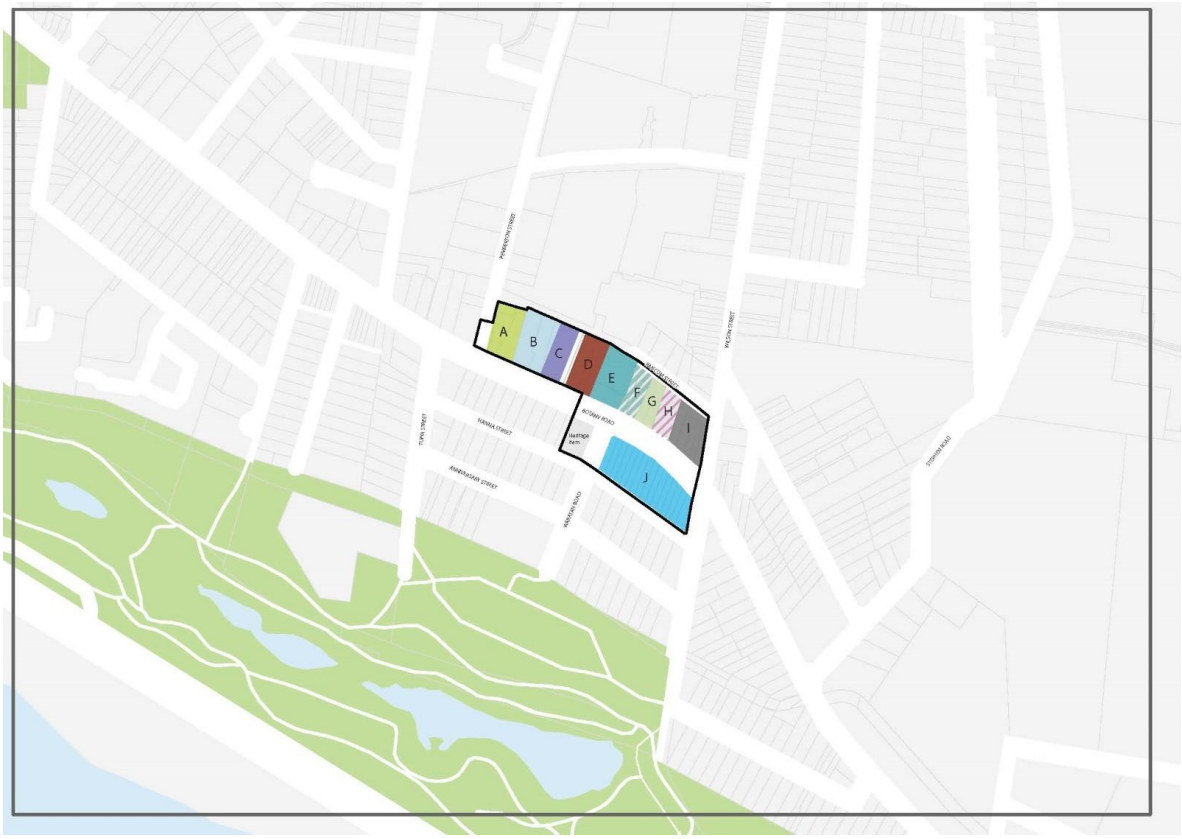



Figure 130: Banksmeadow Neighbourhood Centre: Site Amalgamation			
Road Network and Vehicular Access			
O3.	To improve pedestrian accessibility, connections and safety within the Centre and reduce vehicular and servicing impacts on Botany Road.	**C3.**	Vehicular access on Botany Road must be avoided where access is available from a side street or rear laneway.
		C4.	Where a rear laneway exists loading and unloading must occur from the laneway (loading and unloading must be within the site).
		C5.	The provision of through site links and arcades is encouraged with new development to provide pedestrian connections to the residential precinct.
		C6.	Pedestrian amenity and connectivity must be enhanced in conjunction with new development. For instance, a signalised pedestrian crossing on Botany Road at the centre of the shops would be required to improve pedestrian safety and connections. Through site links and arcades leading to the residential precinct to the rear is also encouraged with future redevelopment of the

Objective		Control	
			shops to improve pedestrian accessibility, safety and amenity.
Built Form: Building Heights and Density			
O4.	To ensure development complements the height and architectural style found in the immediate vicinity, particularly where this has a clearly established character.	**C7.**	A maximum of 4 storeys is permitted, however buildings along the street frontage must have a maximum street wall height of 2 storeys with a continuous parapet line, consistent with existing development.
Street Character and Development Setbacks			
O5.	To retain and conserve the shopping strip at Banksmeadow and encourage a viable and attractive Neighbourhood Centre by improving the public domain and the public/private interface.	**C8.**	Development must provide landscaping, street trees, lighting, public seating, paving, angled parking and other public domain improvements identified by Council, generally in accordance with the Local Character Statement diagrams below.
		C9.	The design of development must be generally consistent with the Local Character Statement of the centre identified in the Local Character Statement diagrams below.

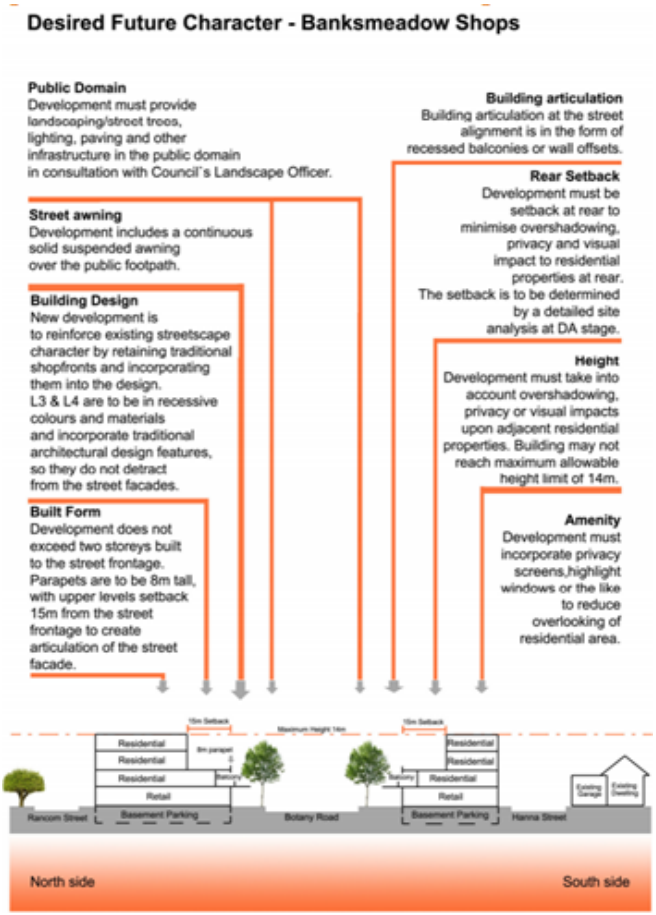


Figure 131: Banksmeadow Neighbourhood Centre Local Character Statement

Objective	Control

Note: Setbacks may be required for the provision of street trees.

Figure 132: Desired Future Character – Banksmeadow Shops

Objective	Control

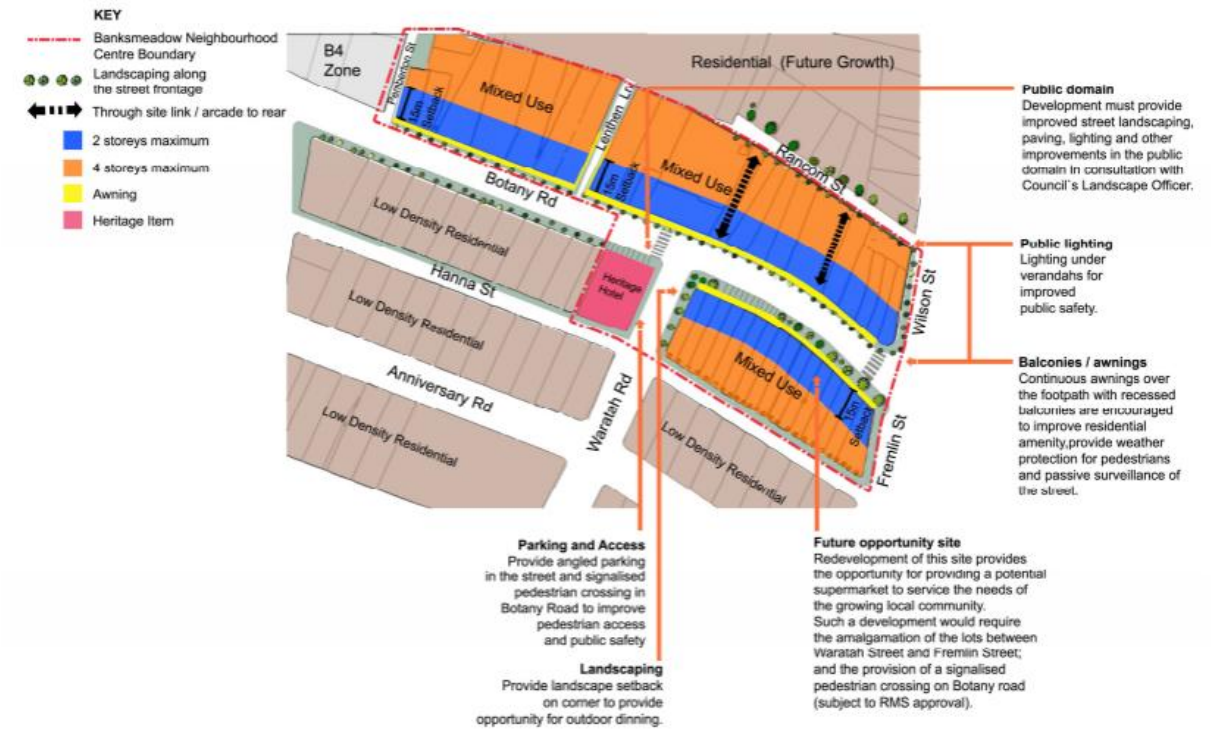


Figure 133: Banksmeadow Shops Masterplan

O6.	To retain existing trees and provide additional advanced trees within the streetscape.	**C10.**	New development is to take into account and respond sympathetically to an established streetscape with strong architectural features and identity. New buildings are to reinforce these features and contribute to its character.
O7.	To ensure that development recognises predominant streetscape qualities (i.e. setbacks, traditional shopfronts & design features) that contribute to local character.	**C11.**	Traditional shopfronts and façades must be retained and incorporated into new developments.
O8.	To allow reasonable redevelopment and to improve the architectural quality of building stock.	**C12.**	Contemporary architectural design solutions are encouraged; however, designs will need to demonstrate that they will not lead to a replacement or diminution of a street's existing character. Council encourages diversity in building designs provided that development outcomes complement the existing character of the suburb as detailed in the Character Statement.
O9.	To retain a coherent streetscape with a consistent street wall and parapet line.		
O10.	To ensure that redevelopment of the shops minimises impacts on the adjoining residential precinct.		
O11.	To encourage development of awnings as balconies for residential and commercial units above (to improve amenity for unit dwellers and promote passive surveillance of streets).	**C13.**	The top two stories must be setback from the street alignment to create articulation of the street façades. Setbacks to the rear are required (and will be determined subject to site analysis at the development application stage) to ensure that potential overshadowing, privacy and visual impacts on residential properties are minimised, in
O12.	To encourage appropriate active outdoor		

Objective		Control	
	uses with good solar access, passive surveillance, and a street address.		accordance with the Local Character Statement diagram. Applicants must demonstrate at development application stage that appropriate setbacks are provided so that amenity impacts on residential properties are minimised.
O13.	To develop a high-quality streetscape with minimal visual impact or clutter.	**C14.**	With redevelopment of the shops, landscape planting must be provided along the rear boundary where a site adjoins a residential property, to provide visual separation between the shops and the residential area.
		C15.	The design of new development must improve the residential amenity for the housing above the shops by providing direct access to balconies and private open space, and passive surveillance of the surrounding streets and pedestrian walkways.
		C16.	All designs must provide awnings above the footpath. Awnings above the footpath are encouraged to be trafficable verandahs for the use of residents on the first floor and to provide for passive surveillance of the streets. If the verandah is built over the street then a lease fee is payable to Council. The fee is set out in Council's Fees and Charges.
		C17.	Awnings must be provided continuously and at the same height along the shop frontages to provide weather protection for pedestrians.
		C18.	The design of buildings must encourage active street life and provide for small scale shops that will serve the local community. The design must also improve the passive surveillance of the surrounding streets.
Heritage			
O15.	To protect and maintain Heritage Items such as the Sir Joseph Banks Hotel in the vicinity of the Centre and provide a visual landmark.	**C19.**	Redevelopment retains the inter-war 2 storey shop-top housing built to the street alignment.
O16.	To retain traditional building façades in any redevelopment of the shops.		

7.12.7 Swinbourne Street Neighbourhood Centre

7.12.7.1 Description

Swinbourne Street is located in the suburb of Botany. It was established in the 1920's with the subdivision of land known as "Wilson". The Neighbourhood Centre is located along Swinbourne Street on a flat section of land with a large garden medium strip dividing the road (refer to **Figure 134**). It is a small centre with only four local shops.

Figure 134: Swinbourne Street Neighbourhood Centre Land Application Map

7.12.7.2 Desired Future Character

The Swinbourne Street Neighbourhood Centre will be a viable and attractive centre with an improved and safer public domain. Development will recognise predominant streetscape qualities, complement the height and architectural style found in the immediate vicinity. Reasonable development outcomes will improve the architectural quality of the building stock and retain a coherent streetscape.

7.12.7.3 Controls

Objective		Control	
Built Form: Building Heights and Density			
O1.	To ensure that development recognises predominant streetscape qualities (i.e. setbacks and design features).	**C1.**	Notwithstanding the maximum height of 12m, a maximum height of 2 storeys applies along the street frontage with a third level permitted which is setback from the street frontages and

Objective		Control	
O2.	To allow reasonable redevelopment and to improve the architectural quality of building stock.		the rear. The setback from the rear is to be determined following a detailed site analysis at development application stage and must satisfy Council that the amenity of neighbouring residential properties are protected in terms of sunlight and natural daylight access, privacy and visual amenity. Applicants must therefore demonstrate that impacts on the residential area are minimised.
		C2.	Redevelopment is encouraged through logical lot consolidation of sites and infill development. Avoid inappropriate lot consolidation patterns that would isolate and unreasonably restrict redevelopment on a single lot.
		C3.	Shop top housing must be provided in any redevelopment of the existing shops.
Street Character and Development Setbacks			
O3.	To ensure development complements the height and architectural style found in the immediate vicinity, particularly where this has a clearly established character.	**C4.**	The design of development must be generally consistent with the Desired Future Character of the centre identified in the diagrams below.
O4.	To retain a coherent streetscape with a consistent street wall and parapet line.	**C5.**	New development is to take into account and respond sympathetically to an established streetscape with strong architectural features and identity. New buildings are to reinforce these features and contribute to its character.
O5.	To ensure development complements the height and architectural style found in the immediate vicinity, particularly where this has a clearly established character.	**C6.**	Alterations and additions are to reflect the architectural design of the existing building. Materials and finishes are to be compatible with the existing building.
		C7.	The design must improve the residential amenity for the housing above the shops by providing direct access to balconies and private open space; and provide for passive surveillance of the surrounding streets and pedestrian walkways.
		C8.	The design must encourage active street life while providing a high residential amenity and provide for small scale shops that will serve the local community.
		C9.	Maintain limited advertisements and business signage to minimise visual impact on the surrounding residential area.

Objective		Control	
		C10.	Restrict signage to the awning fascia, under the awning or behind the shop window at street level.

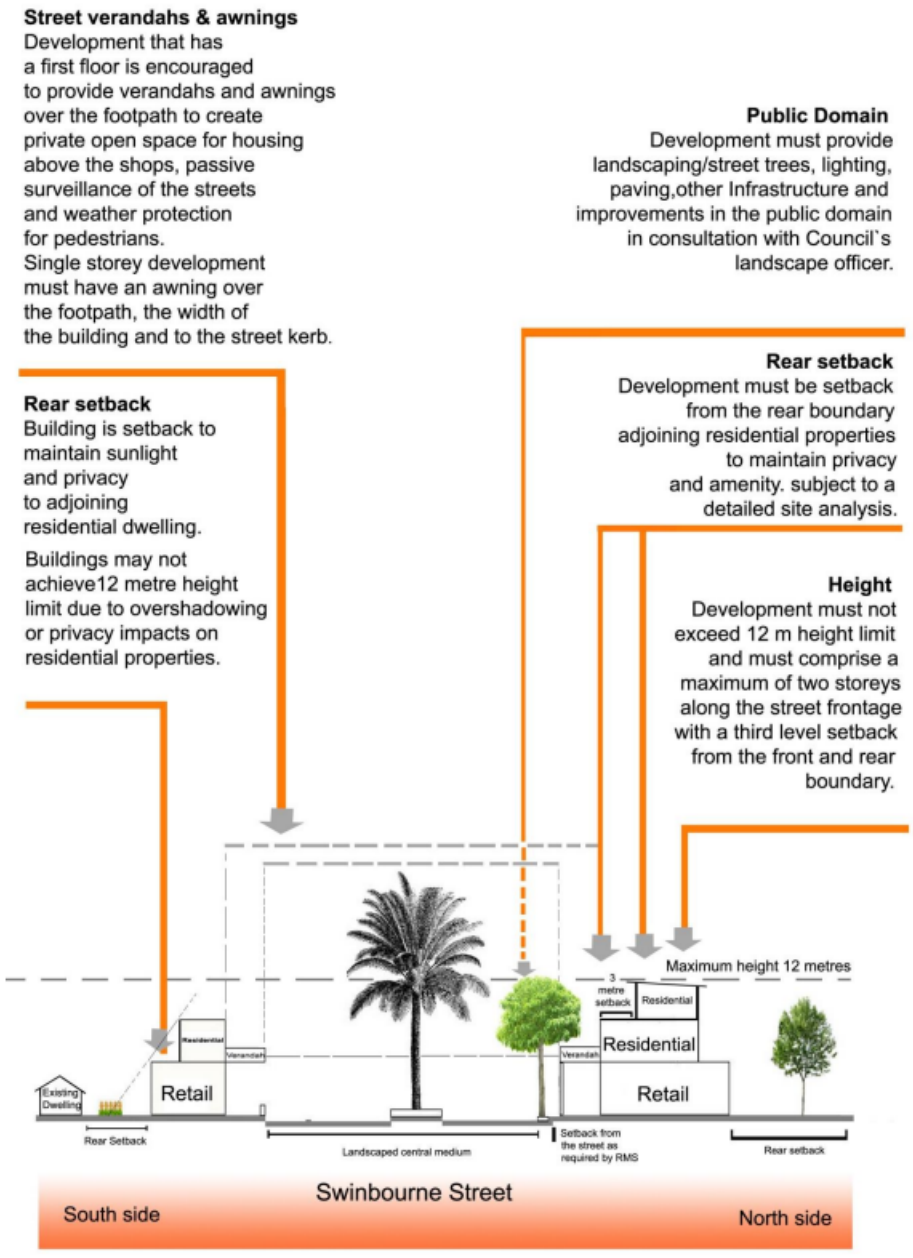


Figure 135: Swinbourne Street Neighbourhood Centre Local Character Statement

Landscaping and Public Domain			
O6.	To promote a viable and attractive Neighbourhood Centre with an improved and safer public domain;	**C11.**	Development must provide landscaping, street trees, lighting, public seating, paving, angled parking and other public domain

Objective		Control	
O7.	To retain existing heritage trees and supplement existing landscaping within the streetscape;		improvements identified by Council, generally in accordance with the diagram above.
O8.	To ensure that access driveways do not dominate the streetscape.	**C12.**	Pedestrian amenity must be enhanced in front of the shops in conjunction with new development.
		C13.	With redevelopment of the shops, landscape planting must be provided along the rear boundary where a site adjoins a residential property, to provide a visual separation between the shops and the residential area.

7.13 Botany South

7.13.1 Description

The Botany South Precinct is bounded by Botany Road to the south and west, Pemberton Street to the east and parts of Rochester, Cranbrook, Tenterden and Aylesbury Streets to the north. The Precinct is zoned predominantly B7 Business Park, with a B4 Mixed Zoned around the periphery of the Precinct. The Precinct is surrounded by land zoned for residential purposes.

The intention of the B4 zone within the Precinct is to act as a buffer between the B7 area and low density residential area and to enhance and protect the amenity of existing residential dwellings while encouraging the centre of the Precinct to be redeveloped with uses including creative industries, light industrial, warehouses and associated offices.

This Part is broken down into the following:

- Provisions applying to land only in the B7 Business Park Zone
- Provisions applying to land only in the B4 Mixed Use Zone

Figure 136: Botany South Land Application Map

7.13.2 Part A - Land in the B7 Business Park Zone

7.13.2.1 Desired Future Character

The B7 zone within the Botany South Precinct is anticipated to develop into a high quality business area with a mix of light industrial, creative industries, commercial and business premises, and warehouses. It is anticipated that larger sites will contain business parks with a mix of uses and associated offices. New works in the public domain will be required such as landscaping and pedestrian corridors to improve the amenity of the Precinct and encourage pedestrian movement.

The redevelopment of this area is to provide services and employment for the surrounding residential and maintain smaller lots which are characteristic of the Precinct and required for particular uses. While maintaining some small lots is integral to the future redevelopment of the area, site consolidation may be required to occur to enable improvement of the public domain, increased public car parking and traffic management and the creation of pedestrian links.

7.13.2.2 Controls

Objective		Control	
Land Use			
O1.	To encourage new light industrial, business park and commercial development and associated offices in the Precinct which are compatible with the capacity of the road network in the area.	**C1.**	No new residential dwelling houses are permitted within the B7 Zone though existing residential uses may be maintained and enhanced. Any residential alterations and additions must: i. Improve the appearance of buildings; and ii. Improve the interface and amenity with non-residential uses. **Note**: Caretaker Dwellings which are ancillary to an approved business or industrial use on the site are permitted.
O2.	To retain an employment base in the area which provides flexibility and encourages initiatives to create a unique and innovative working environment.		
O3.	To ensure no new residential development occurs other than development which maintains or enhances existing residential development, to a commensurate scale.	**C2.**	Developments within the precinct shall submit a detailed Flood Study/Assessment for 1 in 100-year average recurrence interval (ARI) design storm events and probable maximum flood (PMF). The Flood Study/Assessment is to be prepared by a suitably qualified and experienced civil engineer.
O4.	To facilitate amalgamation and subdivision that results in some small lots, lot boundaries consistent with existing linear pattern and amalgamation where appropriate.		
Vehicle Access and Parking			
O5.	To provide adequate off-street parking and vehicle access that does not visually dominate the streetscape.	**C3.**	Visitor parking shall be located convenient to administration and office areas.
O6.	To encourage developments which do not require large transport vehicles.	**C4.**	For narrow and small lots an area for delivery vehicle access/manoeuvring may be provided within the front setback in order to allow such vehicles to enter and leave in a forward direction provided the minimum landscape requirements are met. **Note**: Refer to the below vehicle access and manoeuvring (narrow lots) diagram for an illustration of the desired outcome.
		C5.	Where there is a cluster of narrow lots, access driveways should be paired so that adjacent properties locate driveways side by side. **Note**: Refer to the below vehicle access and manoeuvring (cluster of narrow lots) diagram for an illustration of the desired outcome.

Objective		Control	
		C6.	Truck movements are to be limited along the pedestrian routes, as shown on the pedestrian route map below, to accommodate and encourage pedestrian movement.
		C7.	No vehicles larger than a Medium Rigid Vehicle are permitted to access the Precinct.

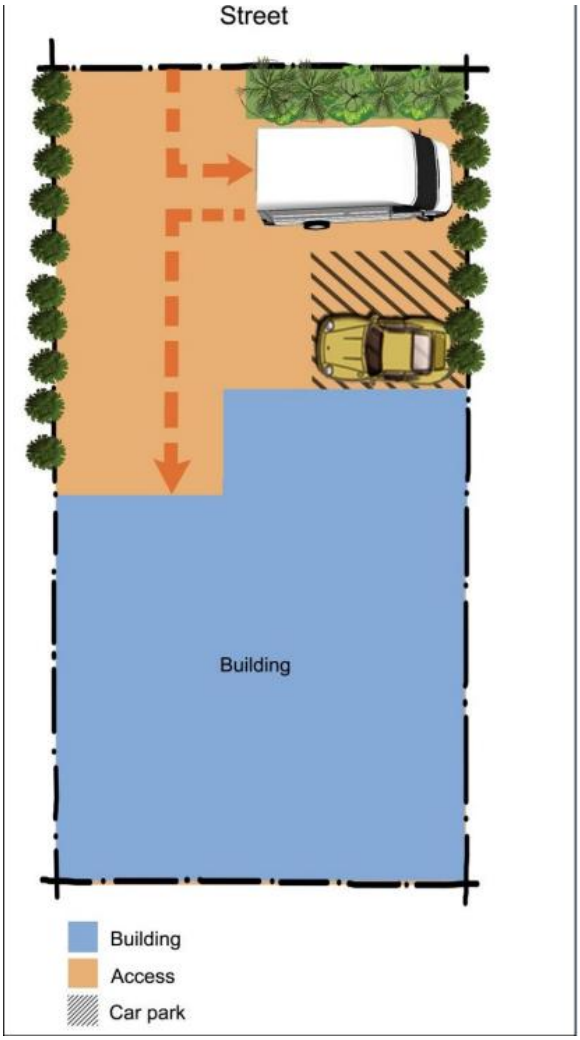


Figure 137: Vehicle access and manoeuvring (narrow lots)

Objective	Control

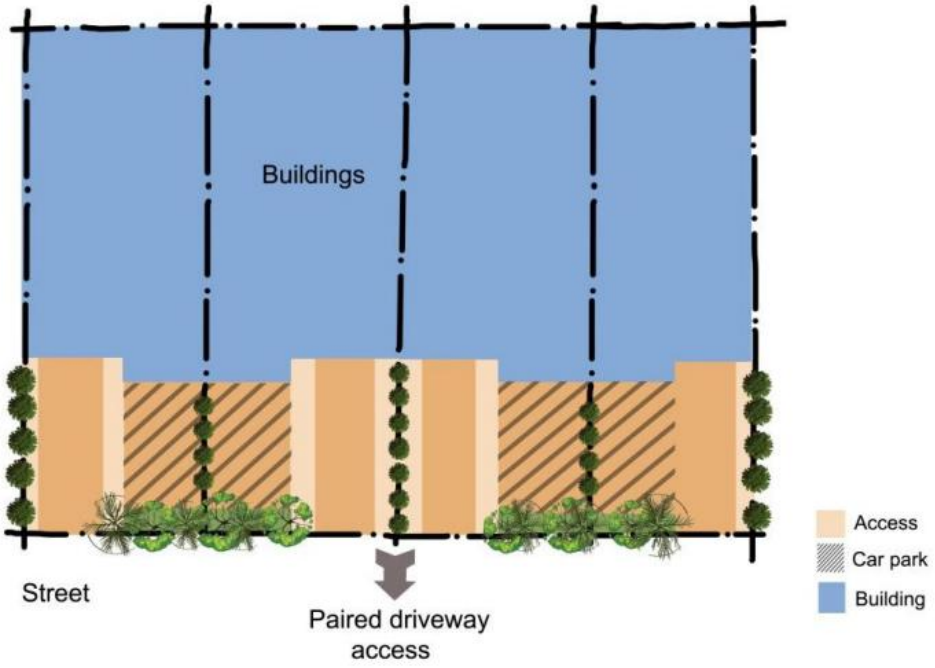


Figure 138: Vehicle access and manoeuvring (cluster of narrow lots)

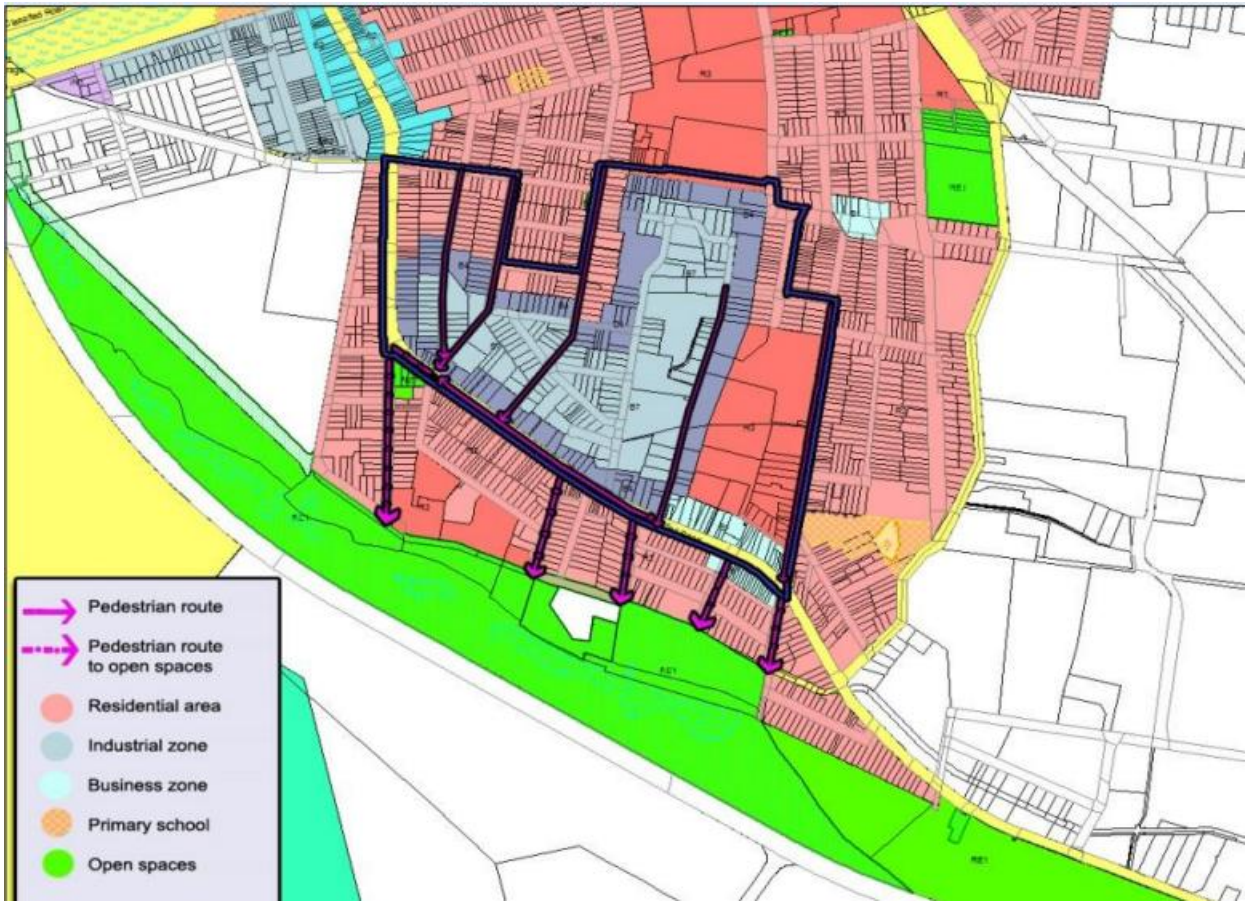


Figure 139: Pedestrian Route Map

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td colspan="4">Built Form: Building Heights and Density</td></tr>
<tr><td>O7.</td><td>To ensure the scale of new buildings is consistent with the Local Character Statement of the street.</td><td>C8.</td><td>Floor space is to be distributed on the site to ensure the scale of the building reinforces the role of the street.</td></tr>
<tr><td colspan="4">Design</td></tr>
<tr><td>O8.</td><td>To ensure that future development contributes to the creation of a high-quality landscape environment in the Precinct.</td><td>C9.</td><td>Setbacks are in accordance with the below table.
<table>
<tr><th>Boundary</th><th>Landscaping setback</th><th>Building setback</th></tr>
<tr><td>Front</td><td>3m</td><td>Merit (Min 6m and 9m for large lots)</td></tr>
<tr><td>Side</td><td>Nil to 3m</td><td>Nil to 3m</td></tr>
<tr><td>Side – adjoining a residential use</td><td>3m</td><td>3m</td></tr>
<tr><td>Rear</td><td>3m</td><td>3m</td></tr>
<tr><td>Rear – small narrow sites</td><td>Nil</td><td>Nil</td></tr>
<tr><td>Rear – adjoining a residential use</td><td>3m</td><td>3m</td></tr>
</table>
Table 23: Development Setbacks

C10. Front setbacks on narrow lots will be considered on merit with consideration of:
a. access and parking
b. appropriate landscaping
c. location of non-industrial uses i.e. office sections
d. presentation to the street

C11. On small frontage sites, buildings (including alterations and additions) may align to the side boundary in all locations except where a residential use is adjoining.

Note: Refer to the below site configuration for narrow frontages diagram for an illustration of the desired outcome.

C12. Narrow frontage sites may locate driveways and loading areas along one boundary but</td></tr>
</table>

Objective		Control	
			only if the boundary does not adjoin a residential use. **Note**: Refer to the below site configuration for narrow frontages diagram for an illustration of the desired outcome.
		C13.	The layout and orientation of buildings on lots greater than 1,000m² shall be in a manner that minimises lengthy or deep areas of car parking along the street frontage. **Note**: Refer to the below site configuration for lots greater than 1,000m² diagram for an illustration of the desired outcome.
		C14.	Offices are to be located to address the street and provide an active street presentation.
		C15.	A Landscape Zone is to be provided adjacent to the front property boundary of no less than 3 m in width. The zone is to accommodate canopy trees to screen and soften buildings and shade parking areas, underplanted with screen planting/hedging up to 1.2 m in height, as per the treatment within the landscape zone diagram. These areas are to be mass planted areas of screen or buffer landscaping using a layered planting design.
		C16.	Existing trees, including Council street trees and trees on neighbouring properties, are to be retained and adequate provision allowed for protection of the primary root zone and canopy when locating new buildings, driveways and parking areas.
		C17.	For existing and new buildings, Council may require landscape improvement or enhancement of existing landscaping or the public domain through provision of: a. street trees b. planter tubs/pots c. new paving d. street furniture e. a specific streetscape planting scheme f. maintenance of the existing streetscape g. reinstatement of landscaping on site in accordance with a previously approved landscape plan

Objective		Control	
		C18.	Architectural features are to be provided at ground level giving an entrance element to the building and addressing the primary street frontage.

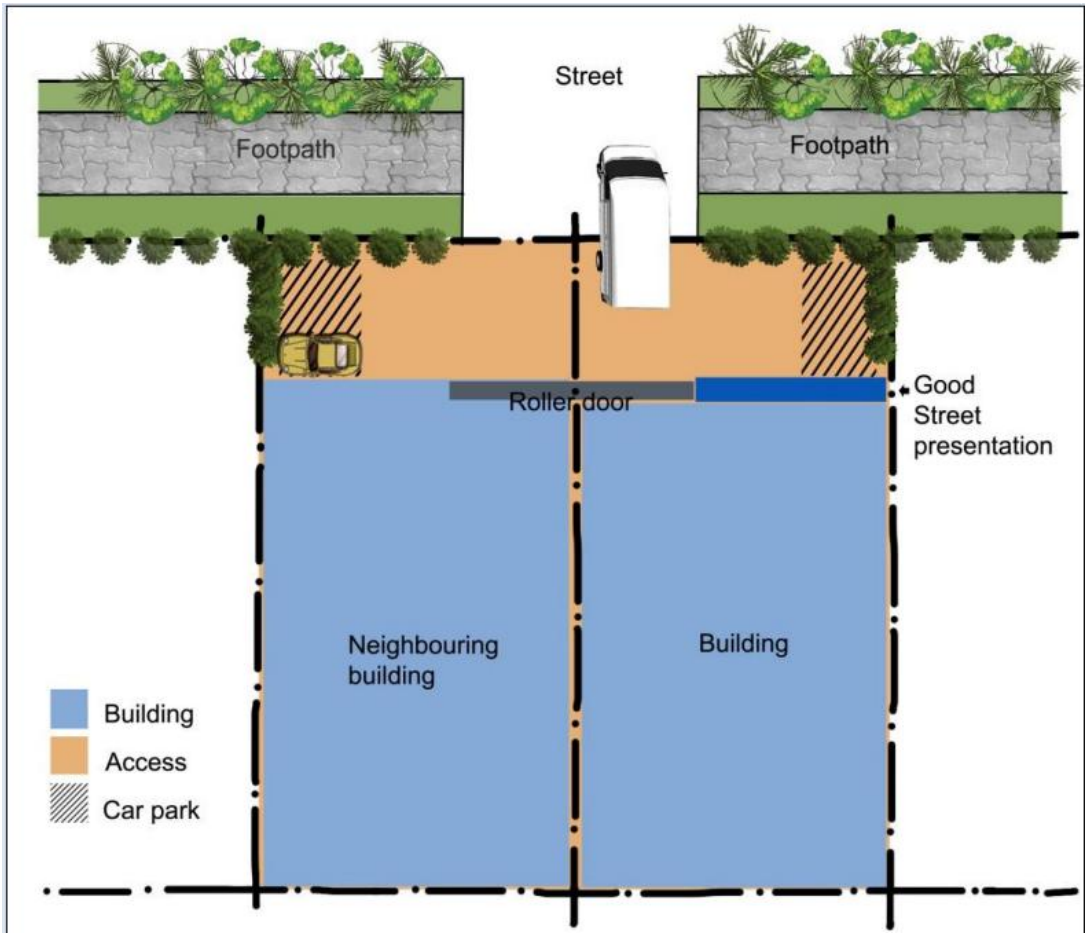


Figure 140: Site configuration for narrow frontages

Objective	Control

Figure 141: Site configuration for lots greater than 1,000m²

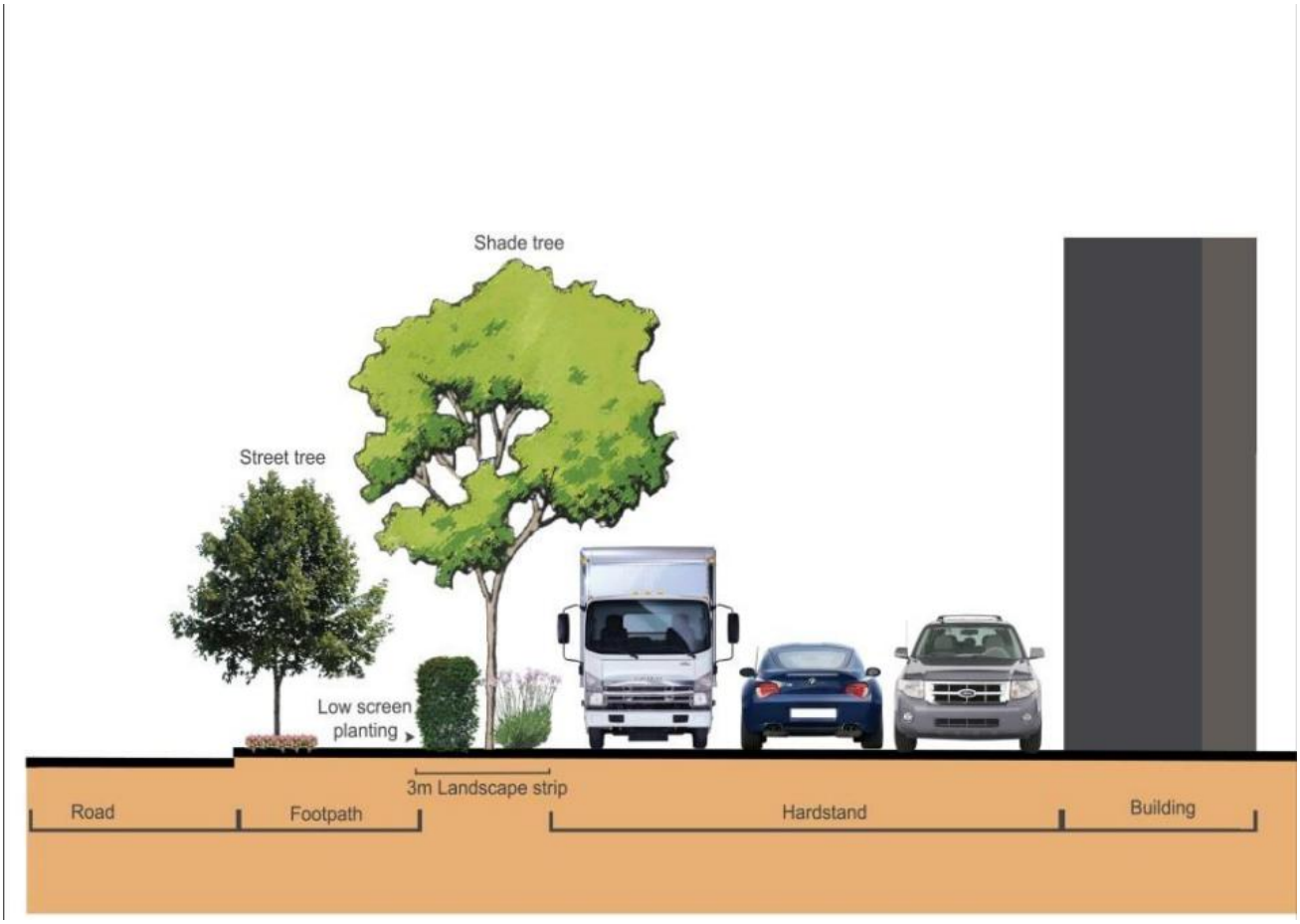


Figure 142: Treatment within the Landscape Zone

Objective		Control	
Operations			
O9.	To mitigate the visual and environmental impacts, including noise, air quality and odour impacts, to nearby residential development.	**C19.**	Hours of operation are limited from 7AM to 7PM, Monday to Friday.
		C20.	New non-residential development is to be designed so that noise producing activities are remote from any residential boundary.
		C21.	Any levels of noise generated from the operations or vehicles associated with the development is to be compatible with adjoining non-residential uses and the requirements of the NSW EPA Environmental Criteria for Road Traffic Noise and Council's adopted noise criteria.
		C22.	Where non-residential development adjoins any land zoned for residential purposes or any premises used for residential purposes, the external walls abutting such development must be constructed in 230mm or 280mm cavity brickwork. Where such walls adjoin land zoned for residential purposes, construction must be in face brickwork.
		C23.	New buildings and alterations and additions, within close proximity to residential uses are to be designed to minimise any adverse effects on the amenity of residential areas by way of overshadowing, overlooking, lighting, dust, noise or fumes.

7.13.3 Part B – Land in the B4 Mixed Use Zone

7.13.3.1 Desired Future Character

The B4 zone within the Botany South Precinct is anticipated to develop into a high quality area of mixed uses featuring medium density housing, low impact commercial and business uses and creative industries. New works in the public domain will be required such as landscaping and pedestrian corridors to improve the amenity of the Precinct and encourage pedestrian movement and live/work opportunities. The redevelopment of this area is to provide a transition from non-residential to surrounding residential uses with the intention of buffering any adverse amenity issues created within the B7 zone.

New residential uses within the B4 – Mixed Use zone need to ensure that through site layout and building design, any impacts from the B7 zone are adequately mitigated. This Area is affected by 20 to 25 and 25 to 30 ANEF Contours and road traffic noise which must be considered through development.

The Mixed-Use Zone area has three distinct areas (Areas 1, 2 and 3) with varying interfaces and Desired Future Characters. Controls for all development, as well as development specifically within Areas 1, 2, and 3, are provided in this Section.

7.13.3.2 Controls – All Areas

Objective		Control	
O1.	To encourage residential development that co-exists and provides a transition from non-residential uses to low scale residential and provides a safe and liveable environment.	**C1.**	Where development adjoins or is adjacent to residential uses the development must not detrimentally affect the amenity of residential uses by way of: a. Scale and size; b. Floorspace ratio; c. The size and number of vehicle movements; d. Noise; e. Air and water pollution; and f. Any other negative environmental impact.
O2.	To encourage live/work opportunities which will emit low level of noise and minimises operating hours.	**C2.**	Residential development shall be designed and demonstrate that it will not be detrimentally impacted by any non-residential uses in the vicinity.
O3.	To ensure there are no land use conflicts on the interface between the non-residential and residential uses.	**C3.**	Internal habitable rooms of dwellings within the B4 Mixed Use Zone which are affected by high levels of external noise are to be designed to achieve internal noise levels of 50dBA maximum. Development Applications which contain residential accommodation are to be accompanied by a noise assessment prepared by a qualified acoustic consultant addressing the following: a. the noise requirements of the NSW Infrastructure SEPP in terms of road traffic noise b. the noise and vibration requirements of the residential accommodation (refer to Part 4.3.3 of this DCP) c. conduct detailed site attended audits during the day, evening and night periods to identify and assess noise from activities associated with the B7 Zone d. assess noise from ground activities including aircraft take-off's and landing's at Sydney Airport referenced to each floor of the proposed building e. where the height of the proposed development is higher than the existing height of the localised building stock (and the proposed development has a direct line of sight to the seaport) the acoustical assessment is to take into account noise from the operations of Port Botany f. confirm noise exposure levels for each floor of the proposed residential building g. confirm building noise controls for internal noise levels to satisfy the recommended noise criteria

Objective		Control	
		C4.	New residential buildings which adjoin the B7 zone should be designed to accommodate and minimise any adverse effects on the amenity of residential areas by way of overlooking, lighting, dust, noise, or fumes.

7.13.3.3 Controls - Area 1 – Botany Road

Area 1 fronts Botany Road to the south, adjoins land within the B7 zone to the north and low density residential dwellings to the south. In Area 1 residential is not permitted at ground floor. The ground floor of development must contain a complementary non-residential use that is permissible within the B4 Zone (see the Bayside Local Environmental Plan 2021 Active Street Frontages Map).

The compatibility of mixing certain uses together must be considered, in conjunction with the design of such development, to ensure acceptable amenity for different uses and to ensure that development provides a transition from the B7 zone to low scale residential uses.

Objective		Control	
General			
O1.	To encourage live/work opportunities.	**C1.**	The ground floor of development must contain complementary non-residential uses permissible in the B4 zone. Residential uses are only permitted at first floor and above.
O2.	To encourage low scale mixed use development with residential at first floor and a range of compatible vibrant uses such as shops, professional offices, and studio/workshops at ground floor, which are not impacted by adjoining industrial and commercial uses and that do not impact on adjoining and adjacent residential amenity.	**C2.**	Residential alterations and additions must: a. improve the appearance of buildings b. improve the interface and amenity with non-residential uses
O3.	To promote the amalgamation of small sites to deliver better quality development and adequate on-site parking.	**C3.**	The ground floor level of a mixed use development that relates to the active street frontage must be predominantly used for commercial uses or other street activating uses.
O4.	To create a focus for a wide variety of businesses that offer employees and visitors a lively and attractive environment, becoming more than just a ‘place of work’ but one that compliments and connects business activities with each other.	**C4.**	Amalgamation of sites is encouraged to reduce the number of access points from Botany Road.
		C5.	A change of use must not result in a significant impact on adjoining or nearby properties, in particular adjoining residential uses or on traffic movements within the locality.
		C6.	Fences are not encouraged within the Area as fencing is not a typical characteristic of the area. However, if required, fencing shall not be: • Higher than 1m for residential uses • Higher than 1.5m (with over 50% to be transparent) for non-residential uses.

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td colspan="4">Building and Site Layout</td></tr>
<tr><td>O5.</td><td>To promote and encourage a high design quality of buildings.</td><td>C7.</td><td>Car parking, landscaping and non-residential uses are to be located at the rear of the property to provide a buffer between the B4 and B7 zones.

C8. On small frontage sites, buildings may align to the rear and side boundary in all locations except where a residential use or zone adjoins.

C9. Setbacks are in accordance with the below table.

<table>
<tr><th>Boundary</th><th>Landscaping setback</th><th>Building setback</th></tr>
<tr><td>Front</td><td>4m</td><td>7m</td></tr>
<tr><td>Side</td><td>Nil to 1.5m</td><td>Nil to 1.5m</td></tr>
<tr><td>Side – adjoining a residential use / zone</td><td>3m</td><td>3m</td></tr>
<tr><td>Rear</td><td>Nil to 3m</td><td>Nil to 3m</td></tr>
<tr><td>Rear – adjoining a residential use / zone</td><td>3m</td><td>6m</td></tr>
</table>
Table 24: Boundary Setbacks

C10. Building setbacks must form a continuous and consistent alignment.

Note: Awnings and verandas along classified roads should be set back a minimum of 1.5m from the kerb.

Awnings and verandas along local roads that intersect with classified roads should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the intersection with the classified road.

At any signalised intersections (on local roads or classified roads), awnings and verandas should be set back a minimum of 1.5m from the kerb for a distance of up to 100m from the signalised intersection.</td></tr>
<tr><td colspan="4">Parking and Access</td></tr>
</table>

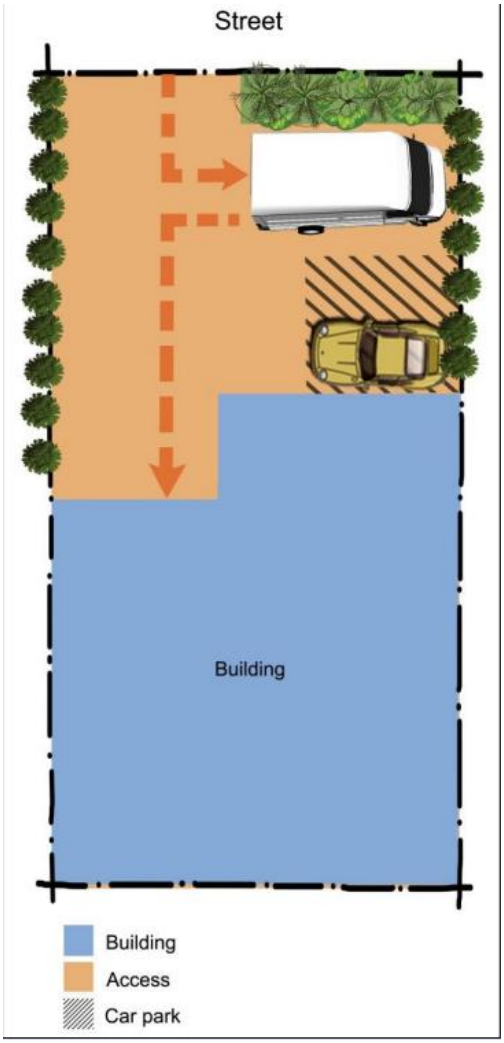
Objective		Control	
O6.	To limit access points from Botany Road.	**C11.**	Access driveways should be paired so that adjacent properties locate driveways side by side to reduce the number of access points.
O7.	To encourage the provision of parking, vehicular access and servicing areas that provide a buffer between residential and non-residential uses and pleasant, safe and provide a shared working environment.	**C12.**	Loading and unloading must not detract from the amenity of nearby residential uses.
		C13.	New manoeuvring areas and parking areas facing existing residential areas are not permitted due to noise resulting from such activities.
		C14.	Any commercial car parking must be conveniently located and identified.
Landscaping			
O8.	To retain existing trees both inside and outside the site and provide suitably proportioned areas of well-designed landscaping on each development site.	**C15.**	A suitable area of dense landscape planting is required in the rear setback to provide a buffer between the B4 and B7 zones including landscaping of car park areas to achieve a high level of amenity which will screen the development from residential areas.
		C16.	Where existing landscaping is below the standard identified in the DCP, the existing area of landscaping shall where possible be upgraded to the standard specified in the DCP.
Residential Interface			
O9.	To ensure non-residential development is sympathetic with the streetscape character and maintains the amenity of surrounding residential development.	**C17.**	Where a site contains or adjoins a residential use or property, Council shall require the applicant to provide shadow diagrams prepared by a suitably qualified person. These shadow diagrams shall: a. show the shading effects of a proposal on adjoining residential properties or the public domain b. be based on a survey of the site and adjoining development c. be prepared at 9.00AM, 12.00PM and 3.00PM at 21st June (winter solstice)
O10.	To ensure that the proposed development is designed to minimise the impact of noise and vibration from uses within the B7 zone and external sources.		
O11.	To ameliorate conflicts on the interface between the non-residential and residential uses.	**C18.**	Site lighting for building security and staff safety must be directed so as to not cause annoyance to neighbours, residents or glare to passing motorists.
O12.	To provide a buffer between residential and non-residential uses and zones in the form of building design and through high quality landscaping.	**C19.**	Walls of buildings adjacent to residential uses are to make use of non-reflective colours and materials to avoid glare on residential areas (especially balconies). The walls are to be treated aesthetically as well as acoustically. Window placement and/or tall trees should be

Objective		Control	
			considered as ways to protect privacy, reduce noise, and light pollution.
		C20.	On small frontage sites, buildings may align to the rear and side boundary in all locations except where a residential use or zone adjoins. Where the windows of habitable rooms and the private open space of adjoining dwellings already receive sunlight, they shall receive a minimum of 2 hours of sunlight between 9.00AM and 3.00PM during 21st June.
		C21.	New development is to be designed so that noise-producing activity is remote from the interface boundary.

7.13.3.4 Controls - Area 2

Objective		Control	
General			
O1.	To encourage live/work opportunities.	**C1.**	The ground floor of development must contain complementary non-residential uses permissible in the B4 zone. Residential uses and live/work are only permitted at first floor and above.
O2.	To encourage improvements to the Public Domain.		
O3.	To ensure development is environmentally compatible and respects the non-residential and residential uses.	**C2.**	Where residential development is proposed to adjoin the B7 zone, the proposed development must be designed and demonstrate that it will not be detrimentally impacted by any non-residential uses in the vicinity.
O4.	To ensure proposed development is designed to minimise the impact of noise and vibration from uses with the B7 zone.	**C3.**	Residential alterations and additions must improve the appearance of buildings and the interface and amenity with non-residential uses.
O5.	To ensure the protection and viability of the Botany Local Centre and Banksmeadow Neighbourhood Centre.	**C4.**	If required, fencing shall not be: • Higher than 1m for residential uses; • Higher than 1.5m (and over 50% must be transparent) for non-residential uses.
Building and Site Layout			
O6.	To ensure building setbacks achieve a comfortable street environment through	**C5.**	On small frontage sites, buildings may align to the rear and side boundary in all

<table>
<tr><th colspan="2">Objective</th><th colspan="2">Control</th></tr>
<tr><td></td><td>the provision of sunlight, scale, sense of enclosure and landscaping.</td><td></td><td>locations except where a residential use or zone adjoins.</td></tr>
<tr><td>O7.</td><td>To ensure that future development contributes to the creation of a high-quality landscape environment in the Precinct.</td><td>C6.</td><td>Development shall avoid long blank walls facing the street and adjoining residential uses.</td></tr>
<tr><td>O8.</td><td>To manage the transition in building use and scale from low-scale residential, multi-use areas and business park uses.</td><td>C7.</td><td>Floor space is to be distributed on the site to ensure the scale of the building reinforces the role of the street and buildings are arranged and aligned to create a pleasant working environment.</td></tr>
<tr><td>O9.</td><td>To maintain the scale of streets as incremental change occurs.</td><td>C8.</td><td>Setbacks are to be in accordance with the below table.
<table><tr><th>Boundary</th><th>Landscaping setback</th><th>Building setback</th></tr><tr><td>Front</td><td>3m</td><td>Merit (Min 6m and 9m for large lots)</td></tr><tr><td>Side</td><td>1m to 1.5m</td><td>1m to 1.5m</td></tr><tr><td>Side – adjoining a residential use / zone</td><td>3m</td><td>3m</td></tr><tr><td>Rear</td><td>Nil to 3m</td><td>Nil to 3m</td></tr><tr><td>Rear – adjoining a residential use / zone</td><td>3m</td><td>3m</td></tr></table>Table 25: Boundary Setbacks</td></tr>
<tr><td colspan="4">Parking and Vehicular Access</td></tr>
<tr><td>O10.</td><td>To encourage the provision of parking, vehicular access and servicing areas that provide a buffer between residential and non-residential uses are pleasant, safe and provide a shared working environment.</td><td>C9.</td><td>For delivery vehicle access/manoeuvring on narrow and small lots in the area, car parking may be provided within the front setback in order to allow such vehicles to enter and leave in a forward direction (refer below) provided minimum landscape requirements are met.</td></tr>
<tr><td></td><td></td><td>C10.</td><td>Any commercial car parking must be conveniently located and identified.</td></tr>
</table>

Objective		Control	
 **Figure 143: Parking and Vehicular Access**			
Storage			
O11.	To provide a high level of pedestrian amenity and create a vibrant and safe precinct.	**C11.**	Any open storage areas shall be effectively screened and shall harmonise with existing or proposed landscaping to prevent the storage area being viewed from a public road, nearby public reserve or adjoining residential property. Specific details of the materials to be stored external to the building shall be lodged with the Application.
		C12.	Storage areas are not permitted to be located within the landscaped setbacks or areas.
Landscaped Area			
O12.	To retain existing trees both inside and outside the site and provide suitably proportioned areas of well-designed landscaping on each development site.	**C13.**	The landscaped setback zone is to accommodate canopy trees to screen and soften buildings and to shade parking areas, underplanted with screen

Objective		Control	
			planting/hedging up to 1.2 metres in height (refer to figure below). These areas are to be mass planted areas of screen or buffer landscaping using a layered planting design (refer to Council's Landscaping Technical Guidelines for Development Sites).
		C14.	Site planning is to allow for the retention of significant trees and vegetation, particularly near the street frontage.

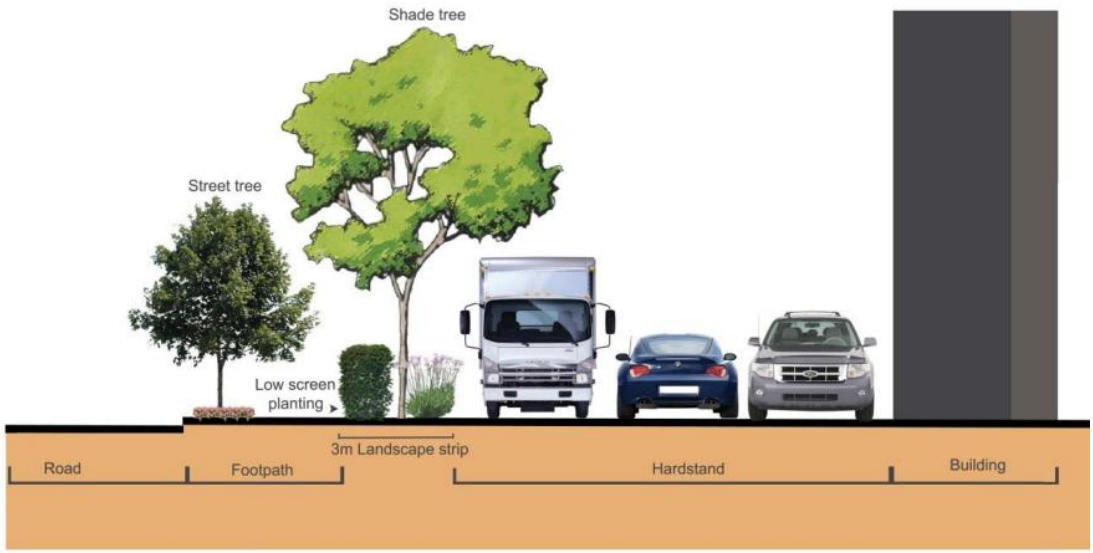


Figure 144: Trees and Vegetation Near Street Frontage

Interface of Mixed Use and Residential Development			
O13.	To ameliorate land use conflicts on the interface between the non-residential and residential uses.	**C15.**	Loading and unloading must not detract from the amenity of nearby residential uses.
		C16.	New development is to be designed so that noise-producing activity is remote from the interface boundary. New manoeuvring areas and parking areas facing existing residential areas are not permitted due to noise resulting from such activities.
O14.	To ensure development encourages a mix of uses that co-exist and provide a transition from non-residential uses to residential uses through development which emits low levels of noise, provides high level of privacy for residential and minimises operating hours.	**C17.**	Site lighting for building security and staff safety must be directed so as to not cause

Objective		Control	
			annoyance to neighbours, residents or glare to passing motorists.
		C18.	Walls of buildings adjacent to residential uses are to make use of non-reflective colours and materials to avoid glare on residential areas (especially balconies). The walls are to be treated aesthetically as well as acoustically. Window placement and/or tall trees should be considered as ways to protect privacy, reduce noise and light pollution.
		C19.	Windows of habitable rooms and the private open space of adjoining dwellings shall not have sunlight reduced to less than 2 hours between 9.00AM and 3.00PM at 21st June as a result of development. **Note:** Council will refer a contentious Development Application or one that involves an extension to the trading hours of a licensed premises to a Resident Consultative Committee or where there have been a significant number of objections received as a result of exhibition and/or notification of the Application. Both the Applicant and the Objectors will be invited to attend. The purpose of the Committee is to address the issues raised by residents in an open forum.

7.13.3.5 Controls - Area 3 – Aylesbury Street

Objective		Control	
General			
O1.	To encourage residential development that co-exists and provides a transition from non-residential uses to low scale residential and provides a safe and liveable environment.	**C1.**	Development in this area is to be for residential purposes. Live/work opportunities are encouraged that can co-exist with residential uses.
O2.	To encourage live/work opportunities which will emit low level of noise and minimises operating hours.	**C2.**	Residential development shall be designed and demonstrate that it will not be detrimentally impacted by any non-residential uses in the adjoining B7 Zone.
O3.	To ensure there are no land use conflicts on the interface between the non-residential and residential uses.		

7.14 Page Street Neighbourhood Centre

7.14.1 Centre Description

The Page Street Neighbourhood Centre is located on a level section of Dalley Ave, Pagewood. It currently consists of a red brick two storey development with five ground floor shops and residential dwellings on the first floor (refer to **Figure 145**). The Centre is located across the road from Pagewood Primary School.

Other development in the vicinity consists of single-family dwelling houses and a variety of older style three storey residential flat buildings and is also located on the edge of an industrial zone. The centre currently services the local residents, the school community and factory workers.

Figure 145: Page Street Neighbourhood Centre Land Application Map

7.14.2 Desired Future Character

The Page Street Neighbourhood Centre is anticipated to develop into a high quality Neighbourhood Centre with a balanced mix of retail, commercial, community and residential uses which cater for the needs of the local community. If the existing Centre is redeveloped in the future, consolidation of the five existing allotments is required and vehicular access must be from the rear of the centre, preferably to a basement car park. Public domain improvements, such as landscaping, lighting of the pedestrian walkway, provision of a shared zone in the rear laneway and a pedestrian crossing in Holloway Street would be required with any future redevelopment of the centre.

7.14.3 Controls

Objective		Control	
Land Use			
O1.	To support a variety of local retail, commercial and residential development.	**C1.**	Redevelopment of the Page Street Neighbourhood Centre is contingent upon the consolidation of the five existing allotments and the provision of the public domain improvements identified by Council, generally in accordance with the Local Character Statement diagrams below.

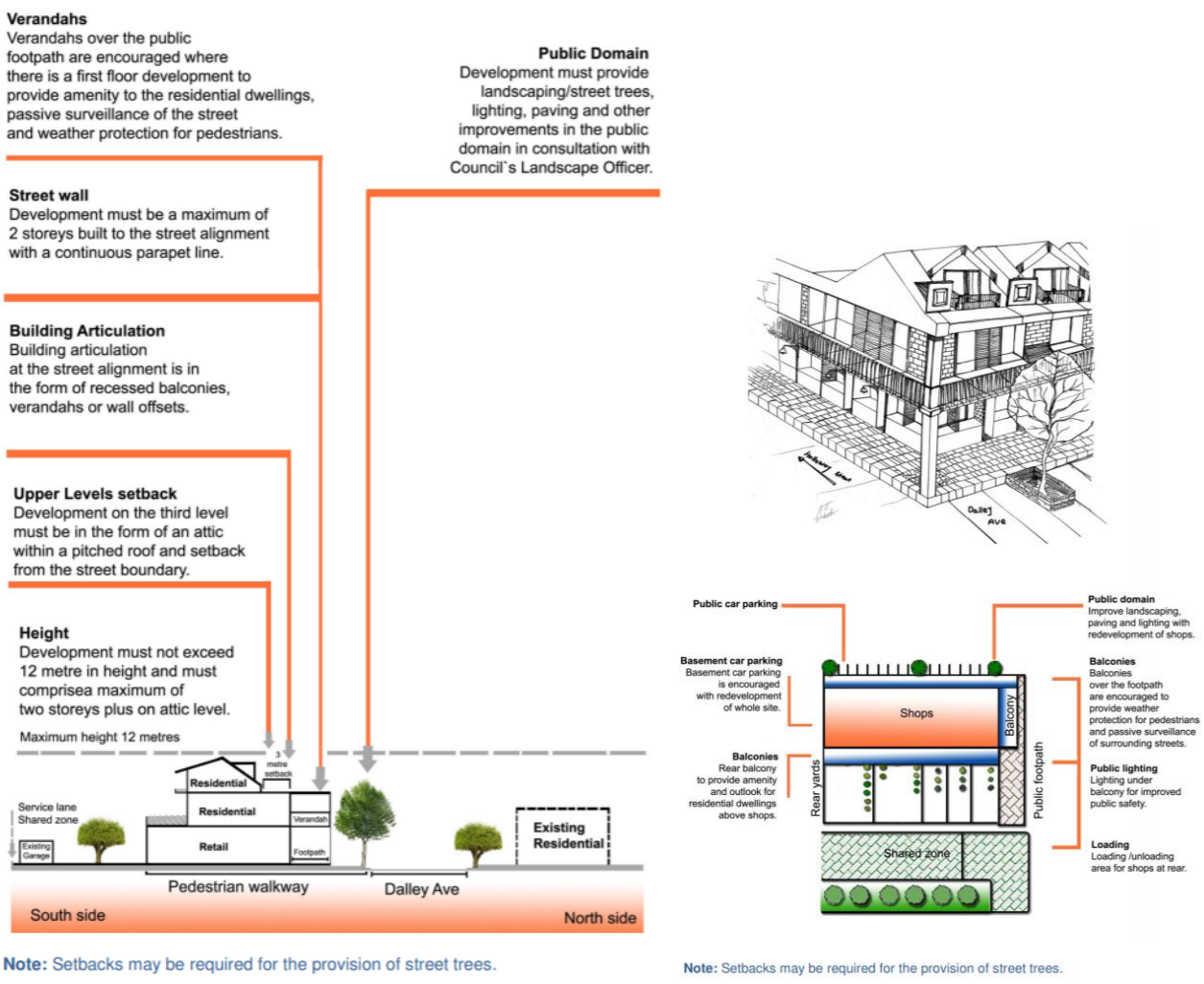


Figure 146: Page Street Neighbourhood Centre Desired Future Character

O2.	To achieve an integrated redevelopment outcome along Dalley Avenue.	**C2.**	Redevelopment of the centre requires site amalgamation generally in accordance with the site amalgamation diagram below to avoid inappropriate lot consolidation patterns that would isolate and unreasonably restrict redevelopment on a single lot.

Objective		Control	
Figure 147: Redevelopment of the centre			
Redevelopment requires site amalgamation in accordance with the defined amalgamation parcel (A).			
Road Network and Vehicular Access			
O3.	To minimise the visual impact of vehicular access and servicing from the street and prioritise pedestrian connections.	**C3.**	Vehicular access must be from the rear laneway and not from Dalley Avenue. If the five allotments (where the shops are currently located) are redeveloped as a consolidated site, basement parking is required to be provided.
		C4.	Where a rear laneway exists loading and unloading must occur from the laneway.
		C5.	Development must maintain the pedestrian links to Holloway St and Wentworth Ave.
		C6.	A paved shared zone is to be provided in the rear laneway to create a safer environment for pedestrians and create a better connection with the park at the rear of the centre.
Built Form: Building Heights and Density			
O4.	To ensure building height is compatible with that prevailing in the centre through alignment of the street wall.	**C7.**	Notwithstanding the 12m height limit, buildings are to have a maximum street wall height of 2 storeys, with a third attic level permitted where it is within a pitched roof form.
Street Character and Development Setbacks			

Objective		Control	
O5.	To retain and conserve the shopping strip and encourage a viable and attractive neighbourhood centre with an improved and safer public domain.	**C8.**	Pedestrian amenity and connectivity must be enhanced in conjunction with new development. Lighting above the existing walkway to Holloway Street and provision of a verandah over the footpath is encouraged to provide weather protection and passive surveillance of the street. A new pedestrian crossing in Holloway Street is to be provided in the redevelopment.
O6.	To allow sympathetic redevelopment and to improve the architectural quality of building stock.	**C9.**	All development must address the street frontage.
O7.	To encourage footpath dining.	**C10.**	The design must encourage active street life while providing a high residential amenity and small scale shops that will serve the local community.
O8.	To encourage development of awnings as balconies for dwellings above shops (to improve dwelling access to private open space and promote passive surveillance).	**C11.**	The design of development must be generally consistent with the Local Character Statement of the centre identified in the Local Character Statement diagrams above.
		C12.	Footpath dining is allowed where it is safe (generally 2m from the kerb). Development where possible is to provide connections to the open space area at No. 2a Baker Street.
		C13.	Maintain limited advertisements and business signage to minimise visual impact on the residential area.
		C14.	Restrict signage to the awning fascia, under the awning or behind the shop window at street level.

7.15 Banksmeadow Industrial Precinct

7.15.1 Description

The Banksmeadow Industrial Precinct is located in the eastern portion of the LGA, and as indicated below only the following parts are zoned under the *Bayside Local Environmental Plan 2021:*

- Area zoned IN2 Light Industrial bounded by Wentworth Avenue, Baker Street, Moore Street, Wight Street, & Corish Circle;
- B7 Business Park area at 81 Holloway Street, Banksmeadow; and
- B5 Business Development and B7 Business Park along Denison, Smith and Rhodes Streets Hillsdale.

The nature of uses, large allotment sizes and consolidated ownership of industrial landholdings in the Precinct are significant on a local government area and sub-regional basis. This Precinct is largely bordered by residential uses, and apart from hazard, risk and environmental conflicts, the visual impact of

any development is a major consideration. Conflicts between the industrial and residential uses (including industrial traffic in residential streets) are considered a significant problem in the area.

Part of the suburb is within the zone of influence of the High Pressure Gas Pipeline that follows the ARTC Rail Corridor to the Qenos Site at the Botany Industrial Park, Denison Street, Banksmeadow. Development Applications, planning proposals and rezoning of land received by Council for land within the Zone of Influence will be referred to the APA Group for consideration and comment.

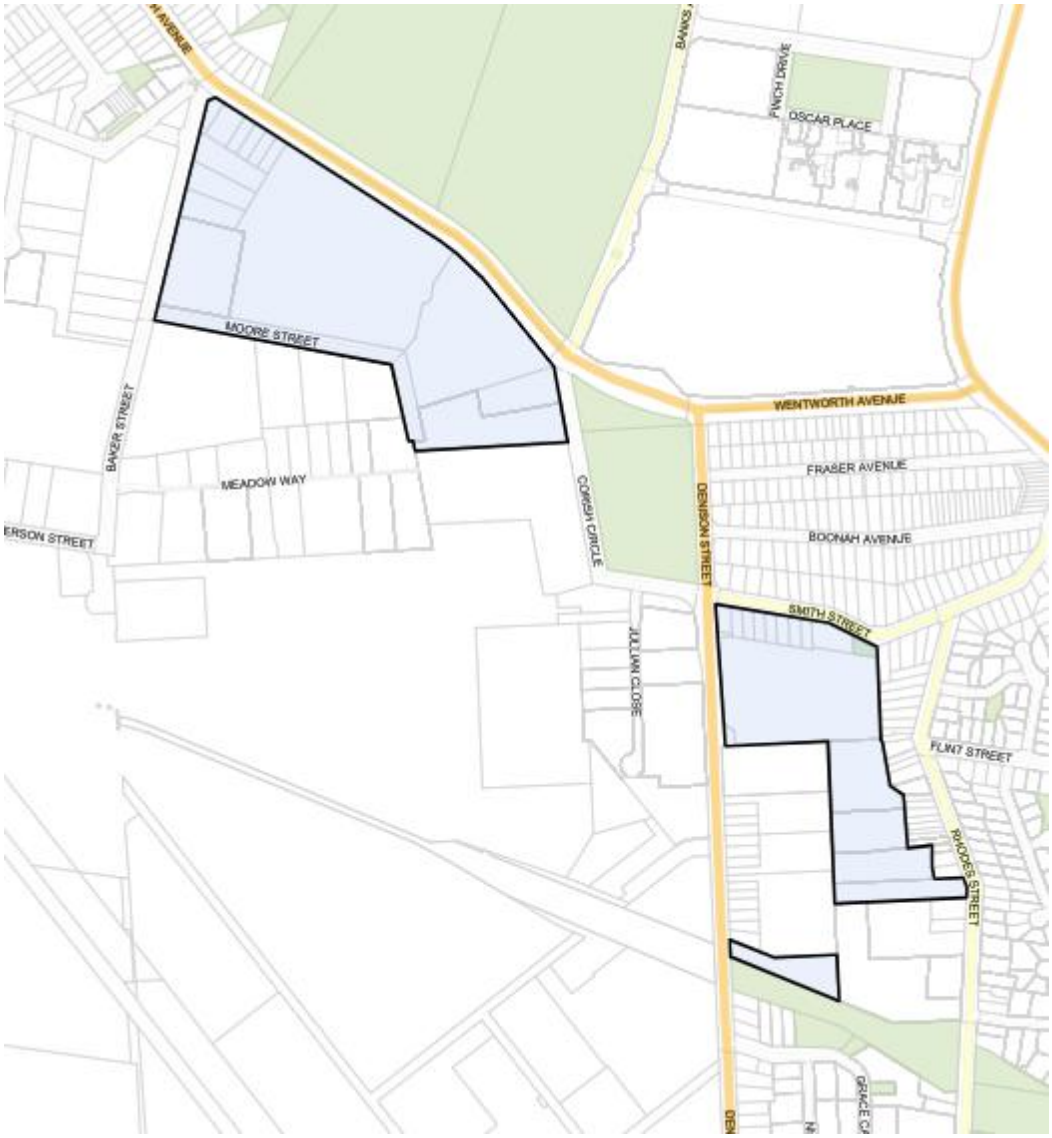


Figure 148: Banksmeadow Precinct Land Application Map

7.15.2 Desired Future Character

The Banksmeadow Industrial Precinct will develop generally as an industrial area, with ancillary office components fronting the road and any adjoining residential area. Industrial uses will be compatible with adjoining established residential areas and any risk to human health, property or the natural environment arising from development will be minimised.

7.15.3 Controls

Objective		Control	
General			
O1.	To encourage the office component of industrial development to front the road or any adjoining residential area.	**C1.**	Business Park and industrial uses with access from Rhodes Street or Smith Street are to have low vehicular generation characteristics and exclude the use of container handling or semitrailers.
O2.	To ensure that industrial uses are compatible with adjoining established residential areas.	**C2.**	Developments in the B7 Business Park Zone at the corner of Holloway and Green Streets are to have their commercial offices (or other non-industrial activity) fronting Holloway Street and the school with a return (no less than 10m) to Green Street. All industrial activities are to be undertaken behind the commercial building buffer.
O3.	To ensure that development can withstand the stresses of flooding and sea level rise and does not adversely impact flooding.	**C3.**	The transport of hazardous substances should be directed away from residential areas and a Traffic Route Study showing the proposed traffic route of such transport is required.
		C4.	Development fronting Denison Street, Rhodes Street, and Smith Street are to have their commercial offices (or other non-industrial activity) fronting the road/street. All industrial activities are to be undertaken behind the commercial building buffer.
		C5.	Development is not to adversely impact on the surrounding established residential areas through noise, traffic, air quality, odour and any other pollution and risk.
		C6.	Redevelopment of land at the corner of Denison Street & Beauchamp Road (the Orica site) is to take into account the road widening affectation proposed by RMS.
		C7.	Developments within the vicinity of Floodvale Drain, Springvale Drain and Bunnerong Stormwater Channel No. 11 (SWC 11 – Sydney State Water) shall submit a detailed Flood Study/Assessment for 1 in 100 year average recurrence interval (ARI) design storm events and probable maximum flood (PMF).
		C8.	Development shall: i. Have finished floor levels of a minimum 500mm above the 1 in 100 year flood level

Objective		Control	
			for habitable areas and 300mm for industrial areas and garages; and ii. Not impede the passage of floodwater to cause a rise (afflux) in the flood level upstream and/or increase the downstream velocities of flow.
		C9.	Restricted Access Vehicles (RAV) classified by Roads and Maritime Services (RMS) (including B-Doubles) are not permitted to access: i. Holloway Street; ii. Green Street; iii. Ocean Street; iv. Swinbourne Street; v. Stephen Road; vi. Smith Street; and vii. Rhodes Street.
		C10.	The maximum size of vehicle accessing Smith Street and Rhodes Street is restricted to Medium Rigid Vehicles (MRV) as defined by AS2890.2.
Risk			
O4.	To ensure that any risk to human health, property or the natural environment arising from the operation of the development is minimised and addressed.	**C11.**	Part of the suburb is within the zone of influence of the High Pressure Gas Pipeline that follows the ARTC Rail Corridor to the Qenos Site at the Botany Industrial Park, Denison Street, Banksmeadow.
O5.	To ensure that existing pipelines are identified and protected during the development process.	**C12.**	Development Applications, planning proposals and rezoning of land received by Council for land within the Zone of Influence will be referred to the APA Group for consideration and comment.
		C13.	A survey is required to identify any pipelines, easements etc affecting the development site. If the pipeline enters Council land an appropriate deed of agreement is to be executed.
		C14.	If a site fronts Denison Street a Transport Risk Assessment Report is required to be lodged with Council.
		C15.	A Risk Assessment Evaluation is required for development in this precinct.

7.16 Hillsdale Local Centre

7.16.1 Description

The Hillsdale Local Centre is occupied by the multi storey Southpoint Shopping Centre, residential tower and associated car parking areas; and a mix of one, two and three storey commercial and residential buildings. The building stock around the Hillsdale Local Centre is represented by predominantly three storey residential flat buildings to the west and south and dwelling houses to the north.

The Hillsdale Local Centre is already substantially developed, with Southpoint Shopping Centre occupying a majority of the Centre. Development of the remaining allotments in Bunnerong Road and Flint Street can only occur if the parcels are amalgamated in accordance with **Figure 150** and vehicular access is from either the right of way at the rear of the Bunnerong Road properties or from Flint Street.

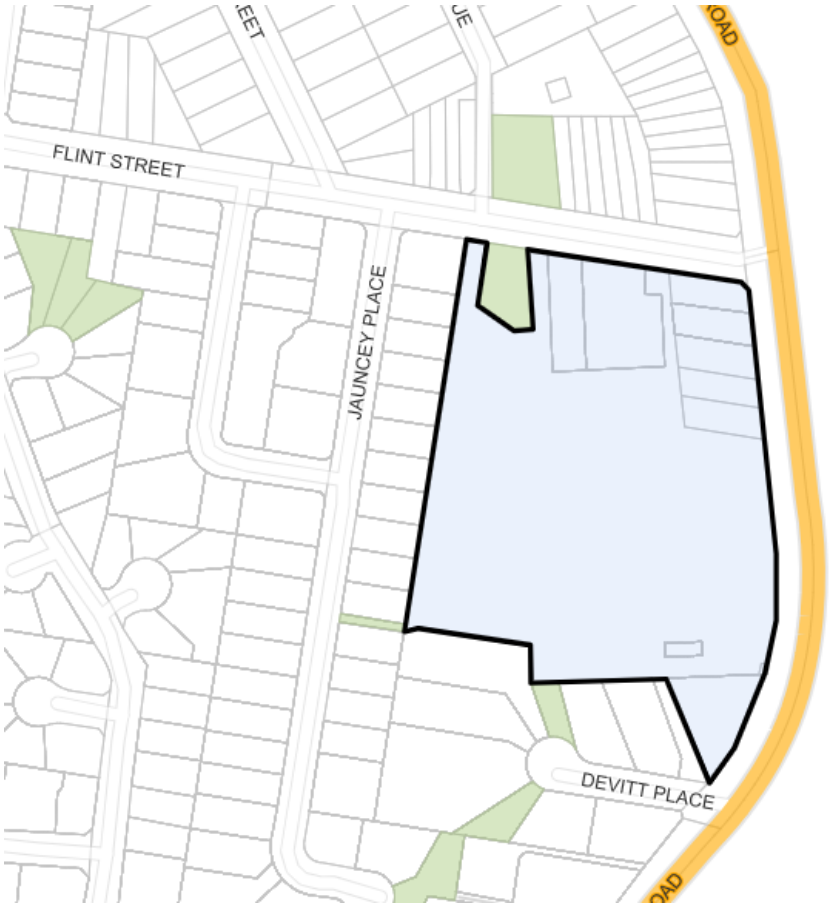
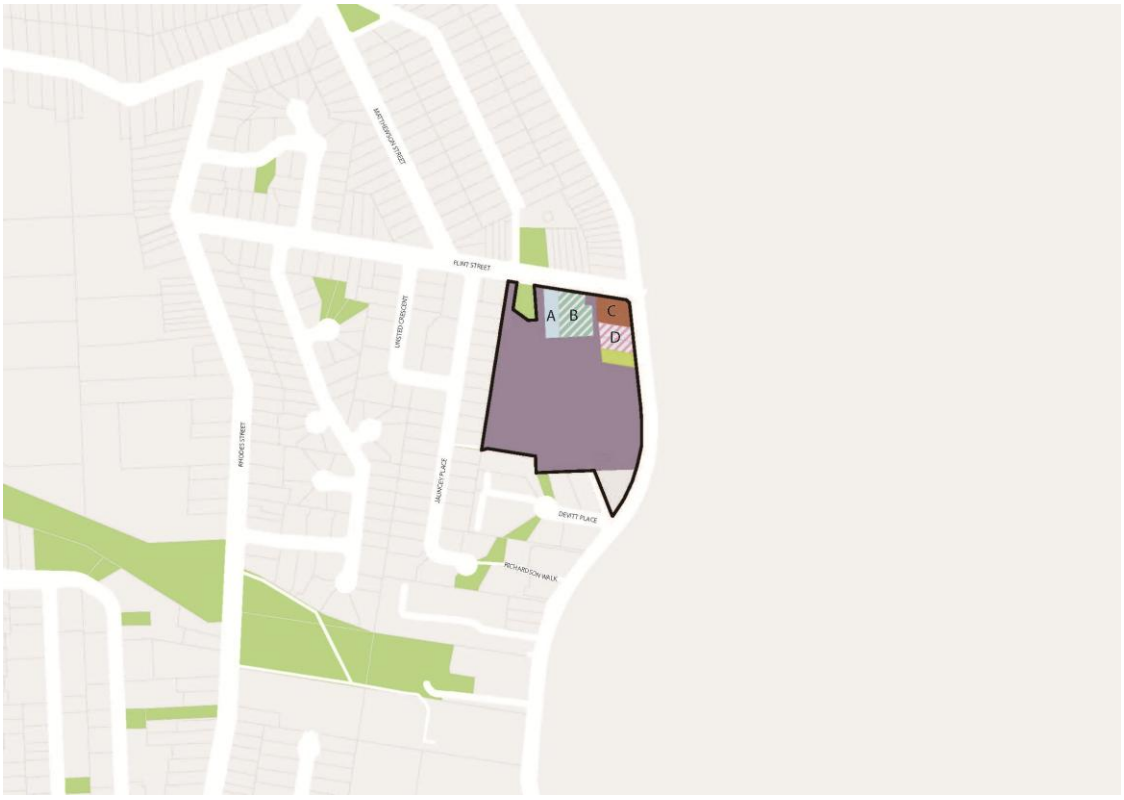


Figure 149: Hillsdale Local Centre Land Application Map

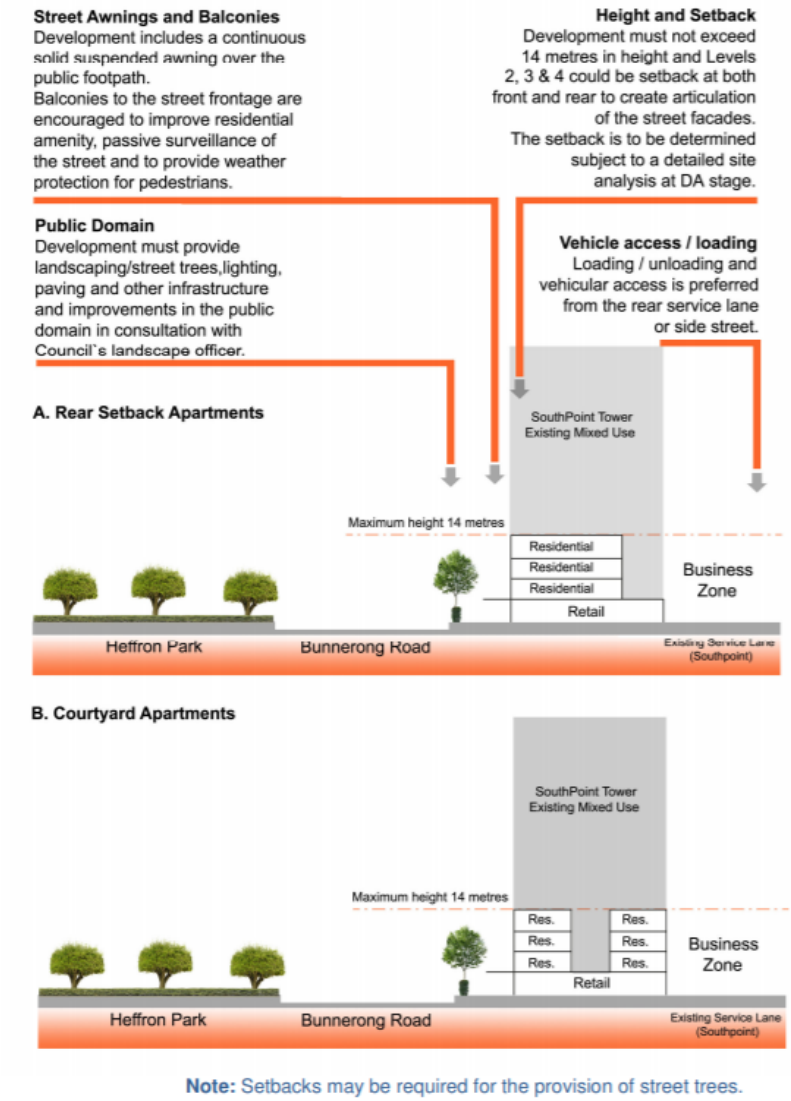
7.16.2 Desired Future Character

The Hillsdale Local Centre is already substantially developed, with Southpoint Shopping Centre occupying a majority of the Centre. Development of the remaining allotments in Bunnerong Road and Flint Street can only occur if the parcels are amalgamated and vehicular access is from either the right of way at the rear of the Bunnerong Road properties or from Flint Street. Those properties along Flint Street are to provide a landscaped front setback, paving/landscaping of the footpath and passive surveillance of the street to improve the visual amenity and safety of the Centre where it abuts the low density residential area.

7.16.3 Controls

Objective		Control	
Land Use			
O1.	To encourage site consolidation.	**C1.**	Redevelopment is encouraged through logical lot consolidation of sites and infill development in accordance with the site amalgamation diagram below. Avoid inappropriate lot consolidation patterns that would isolate and unreasonably restrict redevelopment on a single lot.
 **Figure 150: Hillsdale Local Centre Lot Consolidation Map**			
Road Network and Vehicular Access			
O2. **O3.**	To minimise vehicular access and servicing from the primary road frontage and provide sufficient on-site car parking. To enhance pedestrian connectivity, access, and safety within the Centre.	**C2.** **C3.**	Vehicular access to the development sites in Bunnerong Road is preferred from the existing carriageway at the rear of the properties or alternatively from Flint Street. This may require negotiation with the adjoining Southpoint Shopping Centre. Where a rear laneway exists loading and unloading must occur from the laneway. All loading and unloading is to be carried out on the site.
Built Form: Building Heights and Density			
O4.	To retain a coherent streetscape and a consistent street wall and parapet line.	**C4.**	Building height at the street frontage is a maximum of 2 storeys with level 3 and 4 to

Objective		Control	
			be setback from the front and rear boundary, subject to a detailed site analysis at Development Application stage.
Street Character and Development Setbacks			
O5.	To encourage a viable and attractive Local Centre by improving the public domain and the public/private interface.	**C5.**	Development must provide landscaping, street trees, decorative fencing, lighting, public seating, paving and other public domain improvements identified by Council, generally in accordance with the Local Character Statement diagram below.
		C6.	The design of development must be generally consistent with the Local Character Statement of the centre identified in the Local Character Statement diagram below.



Note: Setbacks may be required for the provision of street trees.

Figure 151: Local Character Statement Diagram

Objective		Control	
O6.	To retain existing trees and provide additional landscaping within the streetscape.	**C7.**	Existing street trees must be retained and supplemented with new planting where required by Council's Landscape Officer.
O7.	To allow reasonable redevelopment and to improve the architectural quality of building stock.	**C8.**	Contemporary architectural design solutions are encouraged; however, designs will need to demonstrate that they will not lead to a replacement or diminution of a street's existing character. Council encourages diversity in building designs provided that development outcomes complement the existing character of the suburb.
O8.	To ensure that dwellings within a mixed-use development provides passive surveillance, resident interaction and amenity and addresses the street.		
O9.	To improve and extend the pedestrian environment and to encourage appropriate active outdoor uses that address the street, such as retail and outdoor dining.	**C9.**	A building setback along Flint Street is required to provide landscape planting along the front boundary, paving of the footpath and passive surveillance of the street to improve the visual amenity and safety of the low-density residential area opposite. This planting could also provide an attractive outlook for active uses such as outdoor dining which could adjoin the landscaped frontage.
		C10.	Developments must be designed to: a. promote uses that attract pedestrian traffic along the ground floor street frontages b. provide an active street edge c. provide opportunities for active uses such as outdoor dining d. improve the safety and amenity of the Business Centre
		C11.	Developments on sites with two or more frontages must address both frontages, to promote, add prominence and diversify the streetscape.

7.17 Daceyville

7.17.1 Description

Daceyville, or Dacey Garden Suburb as it was known originally, is historically, aesthetically, and socially significant, and significant for its historical associations to the former City of Botany Bay, the current Bayside LGA, the state of New South Wales, Australia and potentially internationally.

At the national and international level, the Dacey Garden Suburb manifests the physical and social values that marked the understandings of a model settlement in the earliest years of the international town planning movement. This movement is strongly associated both with the maturity of the Industrial Age and the recognition of its concomitant social impacts caused by pollution and overcrowding; and then by the significant social, economic and political ramifications following WW1.

Dacey Garden Suburb demonstrates a very high level of significance as a model suburb designed by a series of Australia's leading architects, including several of its pioneering town planners, in response to the need for a healthy living environment for the working classes. It is the international prototype of its type, being the first example in Australia of the translation of the principles of the 'Garden City' into the lower density and suburban context of the 'Garden Suburb'.

The physical manifestation of the earliest principles of town planning remain clearly legible in the disciplined and cohesive form of the suburb; including its clearly defined radial street pattern which has established streetscapes of both grand and intimate scale with both axial and evolutionary elements.

The design of Daceyville's housing represents a sophisticated interpretation of stylistic consistency through a 'pattern book' approach to the individual design of buildings within the suburb regardless of purpose which is made notable through the templates being the work of skilled architects; in a setting that continues to provide evidence of the importance placed on the provision of open space in both public and private domains through building setbacks and controls over development including both alterations and additions. The consistency of built forms and detailing has survived and resulted in a precinct with a notable physical, spatial and landscape integrity. Later layers of change, including the recent introduction of infill development, has respected these original town planning principles, which illustrates their ongoing relevance and validity to contemporary town planning.

The ongoing purpose of Dacey Garden Suburb as a place for public housing continues to demonstrate the community's commitment following WW1 to provide quality accommodation in a healthy environment for the less fortunate in the community. Dacey Garden Suburb is the earliest model suburb in the world to have been built for this purpose and to have remained managed and occupied as social housing.

The more recent infill development by the Department of Housing has largely retained the integrity of the historic cultural landscape and now makes a valid contribution to the contemporary heritage values of the area. It not only provides demonstrable evidence of the ongoing community need for housing for low-income earners, but the form and density of this infill development is the result of the esteem in which both the subdivision and original housing is held by local residents the wider community, including significant community groups such as the National Trust (who had recorded the suburb as a historically significant precinct as early as 1978) and professional bodies of urban planners and architects; who together protested successfully against the original proposal for extensive demolition of the original fabric and its replacement by high density housing in the 1980s.

Character Statement

The character of the Daceyville HCA is made up of Federation Arts and Crafts cottages constructed between 1910 and 1920, with some commercial buildings. Existing housing stock is a combination of single-storey cottages, semi- detached dwellings, and town houses.

This character should be preserved and retained through the retention of contributory buildings, public open space, the existing subdivision pattern and typical Garden Suburb layout, and large street trees. Characteristic elements to be preserved include:

- Original Federation Arts and Crafts detached and semi-detached single and two-storey buildings, with styles of dwellings often repeated throughout the precinct.
- The dominant material palette of brick, painted brick, fibro and rendered brick in a variety of period colours including peach, apricot, pink, brown, green and red.
- The relationship between the public and private domain with open landscaped theme created by generous front setbacks, large landscaped areas surrounding buildings with established gardens, low scale fences, and a lack of boundary fences abutting public roads and open space.
- Wide streets and wide verges with mature street plantings.
- Radial avenues centred on Dacey Gardens Reserve.

Classification of Items in the Daceyville HCA

All properties within Daceyville Garden Suburb Heritage Conservation Area are contributory unless listed as heritage items in the Bayside LEP.

Figure 152: Daceyville Precinct (Top) and Garden Suburb HCA/Heritage Items (Bottom)

7.17.2 Controls

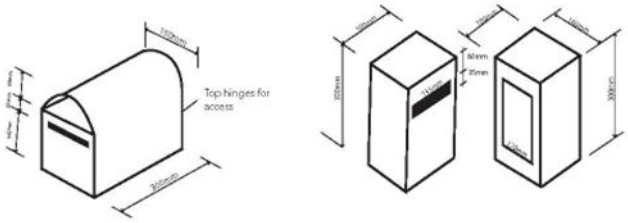
Objective		Control	
Garden Suburb Housing (Contributory properties)			
O1.	Conserve the heritage significance of Daceyville by protecting the design principles and architectural form of the original Garden Suburb housing and contributory building forms.	**C1.**	Alterations, additions, and extensions to Garden Suburb housing shall be designed in such a way so as to complement the prevalent architectural style of the building while also retaining the predominant Daceyville Garden Suburb design characteristics.

Objective		Control	
		C2.	Restoration and repair of period features to original building forms is encouraged.
		C3.	The maximum permissible site coverage of new development on lots containing Garden Suburb housing which are 0–250sqm in size, shall be assessed on a merit-based approach.
		C4.	The maximum permissible site coverage of new development on lots containing Garden Suburb housing which are greater than 250sqm shall not exceed 50%.
		C5.	Original front setbacks of Garden Suburb housing must be retained.
		C6.	Extensions and alterations to Garden Suburb housing shall not dominate the form of original buildings. Pavilion style additions at the rear of the original house are encouraged.
		C7.	Additions to single-storey Garden Suburb housing must maintain the single-storey scale character of the original dwelling. Two storey additions at the rear of the property will be assessed on a merit-based approach. Additions to two-storey Garden Suburb housing must be located at the rear of the property and must not exceed the ridge height of the host building.
		C8.	Additions are not permitted within Garden Suburb roofs. Original roof forms shall not be altered, and dormer windows and skylights facing the street are not permitted.
		C9.	Infilling of Garden Suburb housing verandahs and porches to street fronted elevations is not permitted.
		C10.	Infilling of verandahs at the rear of buildings, where not visible from the street, is permitted as a means of providing additional floor area. Where such infilling is permitted, it must be carried out in such a manner that can be reversed at a later date.
		C11.	Retain and restore original doors and windows in preference to replacement. Original sunhoods, blinds and awnings should be retained and repaired, or where repair of

Objective		Control	
			the original is not possible, authentically reconstructed.
		C12.	Externally hung metal roller blinds and modern security grilles are not permitted.
		C13.	New openings on the street-facing façade of Garden Suburb housing is not permitted.
		C14.	Driveways must be concrete wheel strips with grass in between so as to minimise the amount of hardstand coverage. Full width concrete driveways are not permitted.
		C15.	Hardstands are only permitted in front of the front building setback where Council deems that they are designed with minimal negative impact on early garden suburb design features that may be found in the front yard. For example, tinted paths, plinths, and trees.
		C16.	Suitably designed lightweight carports are permissible at the side of Garden Suburb housing, provided they are located behind the front building setback and only where they reflect the character of the host building. In addition, garages and carports may be acceptable at the rear of properties where they are utilising an existing rear lane or front driveway.
Infill Development			
O2.	Facilitate the development of appropriately designed infill development which respects and complements the heritage significance and conserves the original Daceyville Garden Suburb plan.	**C17.**	Infill development shall reflect the established character of Daceyville without imitating the design of Garden Suburb housing.
		C18.	Infill development shall reflect the building form, scale, rhythm, proportion, detailing and materials, within a contemporary interpretation of the significant buildings and is not to be located in areas originally designed to be open space in the Garden Suburb layout.
		C19.	Infill development shall reflect the established single-storey scale of Garden Suburb housing. Two-storey infill development is only permissible on streets with an established character of two-storey or mixed single and two- storey building developments.

Objective		Control	
		C20.	Infill development shall incorporate use of verandahs and articulated facades complementary to Garden Suburb housing.
		C21.	Infill development shall reflect established front and side setbacks and building orientation along streetscapes. New development which does not conform to the established front and side setbacks of the Garden Suburb is not permitted.
		C22.	Roof designs of new buildings shall have consideration for the following: a. new roofs shall respond to the orientation of the site b. roofs shall reflect the streetscape and the predominant roof form characteristics in the street and suburb c. skylights, antennae and satellite dishes shall be located on the rear roof plane or where they are not visible from the public domain d. dormer windows are not permitted e. the use of sheet metal roofing is not permitted f. eaves are to match that of original Garden Suburb housing
Figure 153: Sketch showing the impact of an unsuitable roof form			
		C23.	Window and door openings of infill development shall reflect the design principles of original windows and doors of Garden Suburb housing, e.g. timber frames, vertical emphasis. Horizontally emphasised windows shall not be permitted.
		C24.	Garages and carports of new infill development shall have consideration for the following: a. car parking facilities shall not be the dominant architectural feature of the building

Objective		Control	
			b. garages and carports shall be sited at the rear, using rear lane or front driveway access c. lightweight carports at the side of dwellings may be considered where appropriate d. garages and carports are not permitted forward of the front building line e. driveways are to be concrete wheel strips with grass in between to minimise the amount of hardstand coverage. Full width driveways are not permitted
Landscaping and Gardens			
O3.	The layout, design, and planting withing gardens is to be consistent with the character the prevailing character of the original Daceyville Garden Suburb.	**C25.**	The spatial relationship between front gardens and residential housing is to be maintained.
		C26.	Original garden elements such as gates, concrete plinths, concrete borders and red oxide colours pathways are to be retained.
		C27.	Where new landscaping is proposed, plant species that are characteristic to original gardens are to be selected.
		C28.	New development shall incorporate landscaping which is appropriate to the development and Garden Suburb appearance in terms of scale, style, and materials.
		C29.	Additional trees and shrubs are encouraged in front and side gardens but should not be established as screening elements that obscure the front façade when viewed from the street.
		C30.	Paving in the front gardens of Garden Suburb housing shall be restricted to driveway or entrance paths.
Fences, Gates, and Letterboxes			
O4.	Retain and reinstate appropriate front fencing, sympathetic side fences and letterboxes that are in keeping with the existing design and character of the Daceyville Garden Suburb.	**C31.**	Early timber and mesh wire front fences are important contributory elements and are permitted along Gardeners Road.
		C32.	Where an existing front fence is already in place, a consistent height of fences is to be maintained.
		C33.	The introduction of new front fencing and inappropriate materials, such as sheet metal to properties is not permitted. Landscaping

Objective		Control	
			and low-level concrete plinths are suitable alternatives to delineate front boundaries.
		C34.	Rear site fencing shall comprise of timber-paling fencing to a height of 1.8m.
		C35.	New letterboxes must be in a design similar to original letterboxes. The introduction of new styles of letterboxes is not permitted.
 **Figure 154: Examples of original letterboxes in the Daceyville HCA**			
Public Domain			
O5.	Ensure the future conservation and amenity value of the public parks and public landscaped areas within the Garden Suburb, and conserve important views and vistas.	**C36.**	Significant vistas and streetscapes, especially those on Cooks Avenue and Banks Avenue, shall be preserved and retained.
		C37.	Concrete plinth walls, which were designed to demarcate the public and private domains, shall be retained in lieu of front fences. Any removal of concrete plinths to the front of Garden Suburb housing is not permitted.
		C38.	Original wall-mounted street signs are to be conserved and are to be located on the face of corner buildings. Original name plates and street signs shall be conserved and retained. Removal of these features and new freestanding signs are not permitted.
		C39.	The existing configuration of roads, paths, kerbs, and guttering are to be maintained in their current profiles and locations.
Subdivision and Amalgamation			
O6.	Conserve and retain the relative distribution of original dwelling types as key elements of Daceyville Garden Suburb and retain the historically based subdivision pattern.	**C40.**	Site amalgamations and land subdivisions are not permitted.
		C41.	Strata subdivisions of Garden Suburb housing into multi-unit housing development within the Garden Suburb is permitted.
		C42.	Where strata subdivisions of Garden Suburb housing into multi-unit housing development is permissible, as much of the original building fabric as possible shall be retained.
Non-Residential Development			

Objective		Control	
O7.	Retain and conserve the heritage significance of non-residential contributory buildings.	**C43.**	Where adaptive re-uses are proposed for non- residential buildings into residential uses, the re- use shall demonstrate sensitivity to the architectural merit of the building, setting and precinct. Uses which are not sympathetic to the social and cultural context of the building will not be permitted.
		C44.	Open space around non-residential buildings of significance is to be retained. New structures must not dominate non-residential buildings and landscapes of significance.
		C45.	Additions, alterations and extensions to non-residential development such as schools, churches and halls must take into consideration the existing building characteristics and form.
		C46.	Additions, alterations and extensions to the Daceyville shops or infill development in the shopping area are to be contained within the building planes established by the primary ridgeline of the shops. Infill shop buildings shall be designed to match the ridge, eave and floor lines of Garden Suburb shops.
		C47.	Additions and alterations to contributory buildings must retain a high proportion of the original fabric and the character of the building.
		C48.	Removal or alteration of original and characteristic architectural elements, such as awnings on commercial buildings, is not permitted.

7.18 Bardwell Valley Heritage Conservation Area

7.18.1 Statement of Significance

The Bardwell Valley Heritage Conservation Area (HCA) is of cultural heritage significance at a local level as an intact example of an early twentieth-century subdivision in the Bayside area. Part of the 1920 subdivision of the Lansdowne Estate, the area is associated with builder William Lansdowne, who was involved in the design and construction of several houses in the subdivision. The area has aesthetic value for its high proportion of original bungalow and cottage style houses, many of which were constructed in a short period between 1920 and 1925 and retain their interwar architectural character. The consistent use of face brick, timber detailing and consistent roof and fence lines present a cohesive streetscape and have representative value as a demonstration of rapid suburban development in the early twentieth century.

7.18.2 Character Statement

The character of the Bardwell Valley HCA is primarily made up of high-quality and relatively intact bungalow and cottage style houses. Mostly completed between 1920 and 1925, many original houses in this area share a common architectural typology and material palette which is important to the aesthetic values of the area. This character should be preserved and retained through the retention of contributory buildings, the existing subdivision pattern, and large street trees. Characteristic elements to be preserved include:

- The high proportion of surviving contributory buildings, particularly Federation and Inter-War bungalows and listed heritage items
- The grid layout and wide streets
- The consistency of low front fences at the front boundary of private properties
- Original chimneys and the consistency of forward-facing double-gabled roof forms stepping down the slope to the north
- The prevalent single-storey scale
- The dominant material palette of face brick, timber batten detailing and timber joinery elements, roughcast rendered elements, sandstone base courses, timber framed windows, leadlight casement windows, window hoods, and timber shingle cladding
- Established gardens and consistent setbacks.

Uncharacteristic development includes housing from the late twentieth and early twenty-first century, residential flat developments, over-scaled additions, rendering of face brickwork and the addition of garages and carports forward of the front building line.

7.18.3 Controls

Objective		Control	
Bardwell Valley Heritage Conservation Area			
O1.	Retain and conserve the special qualities of the Lansdowne and Hamilton Streets HCA and ensure that development within the HCA is commensurate with the heritage significance of the area.	**C1.**	Contributory and neutral dwellings are to be retained and conserved.
		C2.	Existing verandas and porches shall not be infilled.
		C3.	Roof forms are to be hipped and gabled.
		C4.	The single storey character of the area is to be retained.
		C5.	Significant public domain elements including street plantings shall be retained and conserved.
		C6.	Single storey hipped roof additions are preferred. Additions above roof lines shall be set back from the street elevation to minimise change as seen from the street.
		C7.	Additions and new buildings shall incorporate materials and finishes consistent with adjacent and nearby contributory dwellings, e.g. smooth face brickwork, terracotta roof tiles, timber windows and doors, sandstone base courses.

7.18.4 Boundary of the Bardwell Valley HCA

Figure 155: Boundary of the Bardwell Valley HCA.

7.19 Brighton Le Sands Heritage Conservation Area

7.19.1 Statement of Significance

The potential Brighton Le Sands Heritage Conservation Area (HCA) is of cultural heritage significance at a local level as evidence of the development of commuter suburbs in the 1920s in Rockdale and the wider Bayside area. The group of houses in Brighton Parade are aesthetically significant as an intact streetscape of Inter-War Bungalow-style houses and cottages in a suburban setting with mature street plantings, with rare streetscape detailing such as brick kerbing. The high proportion of original building stock together with the consistent material palette, scale, asymmetrical form, and roof and fence lines demonstrate a cohesive interwar architectural character that is representative of a distinct period of suburban development in Bayside.

7.19.2 Character Statement

The character of the potential Brighton Le Sands HCA is primarily made up of high-quality modest bungalow and cottage style houses. Many original houses in this area share a common architectural typology and material palette which is important to the aesthetic values of the area. This character should be preserved and retained through the retention of heritage listed and contributory buildings, the existing subdivision pattern, brick kerbing and large street trees. Characteristic elements to be preserved include:

- The high proportion of surviving contributory buildings, particularly Federation and Inter-War bungalows and listed heritage items
- Historical streetscape elements from the early period of development in the area, such as brick kerbing
- The consistency of low front fences at the front boundary of private properties
- Original chimneys, roof forms, and tiled roof cladding
- The prevalent single-storey scale
- The dominant material palette of face brick, timber detailing and timber joinery elements, roughcast rendered elements, brick front verandas, timber framed windows, and timber picket and masonry front fences.

Uncharacteristic development includes housing from the late twentieth and early twenty-first century, over-scaled additions, infilled verandas, rendering of face brickwork, unsympathetic fencing and the addition of garages and carports forward of the front building line.

7.19.3 Controls

Objective		Control	
Brighton Le Sands Heritage Conservation Area			
O1.	Retain and conserve the special qualities of the Brighton Le Sands HCA and ensure that development within the HCA is commensurate with the heritage significance of the area.	**C1.**	Contributory and neutral dwellings are to be retained and conserved.
		C2.	Existing verandas and porches shall not be infilled.
		C3.	Roof forms are to be hipped and gabled.
		C4.	The single storey character of the area is to be retained.
		C5.	Significant public domain elements including street plantings and brick kerbing shall be retained and conserved.
		C6.	Additional driveway crossovers are not permitted where historical brick kerbing would be disturbed.
		C7.	Additions and new buildings shall incorporate materials and finishes consistent with adjacent and nearby contributory dwellings, e.g., smooth face brickwork, roof tiles, timber windows and doors, roughcast rendered detailing

7.19.4 Boundary of the Brighton Le Sands HCA

Figure 156: Boundary of the Brighton Le Sands HCA

7.20 Banksia Heritage Conservation Area

7.20.1 Statement of Significance

The Banksia Heritage Conservation Area (HCA) is significant at a local level as it contains the substantially intact rows of single storey nineteenth-century workers' housing known as 'Jackson's Row' as well as several other intact early twentieth-century houses. It is historically significant for its association with the Mercantile Building Land & Investment Co, a building society and speculative developer that had some influence in the development of the Bayside area. The HCA is representative of three phases in the residential development of Bayside LGA, late Victorian row houses, early twentieth-century bungalow dwellings and interwar era brick houses.

The Banksia Heritage Conservation Area has aesthetic significance as it contains two intact streetscapes displaying a uniformity of housing types, interspersed with some neutral and newer developments. Views north and south down Farr and Gibbes Streets encapsulate the repetitive forms of the single-storey free standing row houses with consistent gable roof forms and setbacks to the street. The Banksia Heritage Conservation Area has rarity value as it contains intact rows of single-storey nineteenth-century workers' housing, a typology that is uncommon in the Bayside LGA.

7.20.2 Character Statement

The character of the Banksia HCA is primarily made up of intact rows of houses from the late Victorian period of development in Banksia. The streetscapes retain many original single-storey narrow Victorian terrace houses with a consistency of scale and presentation, as well as some larger semi-detached Federation houses. This character should be preserved and retained through the retention of contributory buildings and the existing subdivision pattern. Characteristic elements to be preserved include:

- The surviving heritage items and contributory buildings, particularly the Jackson's Row cottages and intact rows
- of Victorian terraces
- The consistency of low front fences at the front boundary of private properties
- Consistent narrow setbacks, the dominant single-storey scale and lack of private car spaces
- Original chimneys and roof forms
- The dominant material palette of rendered brick terraces, decorative rendered elements, ornate façade windows, and painted brick front fences.

Uncharacteristic development includes housing from the late twentieth and early twenty-first century, over-scaled and unsympathetic additions, front facing dormers, infilled verandas, the removal and replacement of original features including windows and doors, and uncharacteristic fencing.

7.20.3 Controls

Objective		Control	
Banksia Heritage Conservation Area			
O1.	Retain and conserve the special qualities of the Banksia HCA and ensure that development within the HCA is commensurate with the heritage significance of the area.	**C1.**	Contributory and neutral dwellings are to be retained and conserved.
		C2.	Existing Porches shall not be infilled.
		C3.	Original roof forms are to be retained. Dormer windows, skylights and other infrastructure are not permitted on the street-facing roof plane.
		C4.	The single storey character of the area is to be retained
		C5.	Single storey additions are preferred. Additions to terraced cottages shall be

			located at the rear or incorporated into the roof space.
		C6.	Additions and new buildings shall incorporate materials and finishes consistent with adjacent and nearby contributory dwellings.
		C7.	Additional vehicle crossovers are not supported.

7.20.4 Boundary of the Banksia HCA

Figure 157: Boundary of the Banksia HCA

7.21 Ocean View Estate Heritage Conservation Area

7.21.1 Statement of Significance

The Ocean View Estate HCA has cultural heritage significance at a local level as an intact portion of one of the most ambitious and commercially successful estate developments in the Bayside LGA. The area shows evidence of the development and expansion of early twentieth-century housing estates in the area, often led by speculative development.

The area has aesthetic significance for its particularly fine example of Federation Arts and Crafts and Federation Bungalow style dwellings set within formal gardens. Elements such as the early Christ Church at the northern entry to the HCA, wide streets with mature plantings and original dwellings orientated towards a central park contribute to the area's sense of place and create a distinct Garden Suburb character.

Individual properties within the HCA (both individually heritage listed and classified as contributory) have aesthetic and representative significance, exhibiting excellent detailing, craftsmanship and generally high levels of intactness and integrity. Excellent examples of Federation Arts and Crafts and Federation Bungalow typologies are found throughout the HCA, with some earlier Victorian-era housing throughout.

The HCA has representative value through its collection of intact Federation-era dwellings, as well as the clear demonstration of early town planning principles evident in its Garden Suburb character and layout.

Seaforth Park was planned as the grand square in the 1883 subdivision and is the oldest designated park in the former Rockdale LGA. The street plantings in Dunmore Street demonstrate the municipal approach to urban beautification in the Ocean View Estate subdivision. The tree planting commemorated the reign of Queen Victoria (although the present trees are not the original trees).

7.21.2 Character Statement

The character of the Ocean View Estate HCA is made up of a number of architectural styles, including fine examples of high-quality late Victorian, Federation Arts and Crafts, Federation Bungalow and Inter-War Bungalow style houses and cottages. This character should be preserved and retained through the retention of contributory buildings, public open space, the existing subdivision pattern and typical Garden Suburb layout, and large street trees. Characteristic elements to be preserved include:

- The range of surviving architectural styles and historic buildings, particularly the existing heritage items, landmark buildings and contributory buildings.
- The grid layout of wide streets centred around Seaforth Park.
- The consistency of low front fences and gates at the front boundary of private properties.
- Original chimneys and roof forms.
- The consistent single-storey scale.
- Prominent ornate decorative elements, particularly on surviving examples of late Victorian buildings and Federation houses.
- The dominant material palette of face brick, timber batten detailing and timber joinery elements, sandstone base courses, timber framed windows and window hoods, and
- Established formal gardens and mature street trees.

Uncharacteristic development includes housing from the late-twentieth and early twenty-first century, residential flat developments, over-scaled additions, rendering of face brickwork and the addition of garages and carports forward of the front building line.

7.21.3 Controls

Objective		Control	
Ocean View Estate Heritage Conservation Area			
O1.	Retain and conserve the special qualities of the Ocean View Estate HCA and ensure that development within the HCA is commensurate with the heritage significance of the area.	**C1.**	Contributory and neutral dwellings are to be retained and conserved.
		C2.	Existing verandahs and porches shall not be infilled.
		C3.	Roof forms are to be hipped and gabled.
		C4.	The single storey character of the area is to be retained.
		C5.	Significant public domain elements including public open space and street plantings shall be retained and conserved. Seaforth Park is to be retained as public open space.
		C6.	Single storey hipped roof additions are preferred. Additions above roof lines shall be set back from the street elevation to minimise change as seen from the street.
		C7.	Additions and new buildings shall incorporate materials and finishes consistent with adjacent and nearby contributory dwellings. For example, smooth face brickwork, terracotta or slate roof tiles, timber windows and doors, sandstone base courses.

		C8.	Buildings on street corners shall address both street frontages through façade articulation, wraparound porches, corner gates and consistent fences. Fences up to 2 metres in height on the secondary street frontage of corner lots may be considered for privacy, if set well back from the corner.

7.21.4 Boundary of the Ocean View Estate HCA

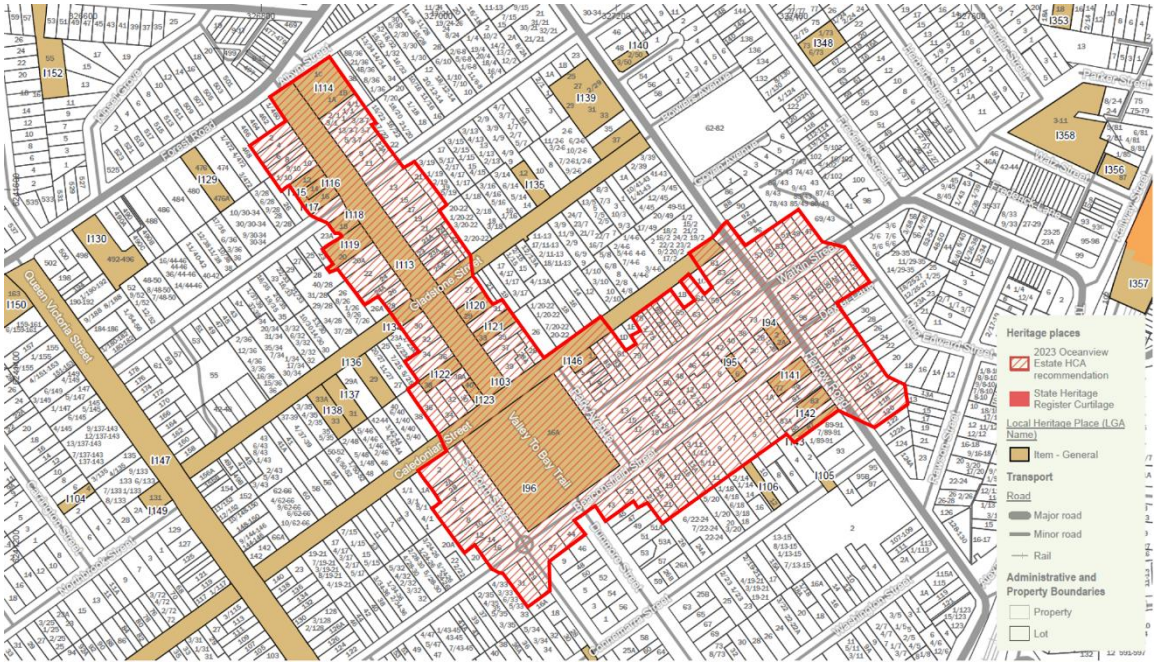


Figure 158: Boundary of the Ocean View Estate, Bexley HCA

7.22 Eastgardens Centre

7.22.1 Description

This chapter applies to land at 152 Bunnerong Road (Lot 1 DP 1058663), Eastgardens, as outlined in red at **Figure 159** below**.** The site has been divided into four precincts with directions for each precinct detailed later in this chapter.

This chapter should be read in conjunction with other relevant parts of this DCP including (but not limited to) Part 3 General Development Provisions and relevant sections in Part 6 Non-residential Development, Part 8 Managing Risk and Environmental Conditions, Part 9 Schedules and Technical Specifications. For any build-to-rent development, please refer to relevant controls within other Parts of the DCP as well as the Apartment Design Guide. In the event of any inconsistency between this chapter and other Parts of the DCP, this chapter will prevail to the extent of the inconsistency.

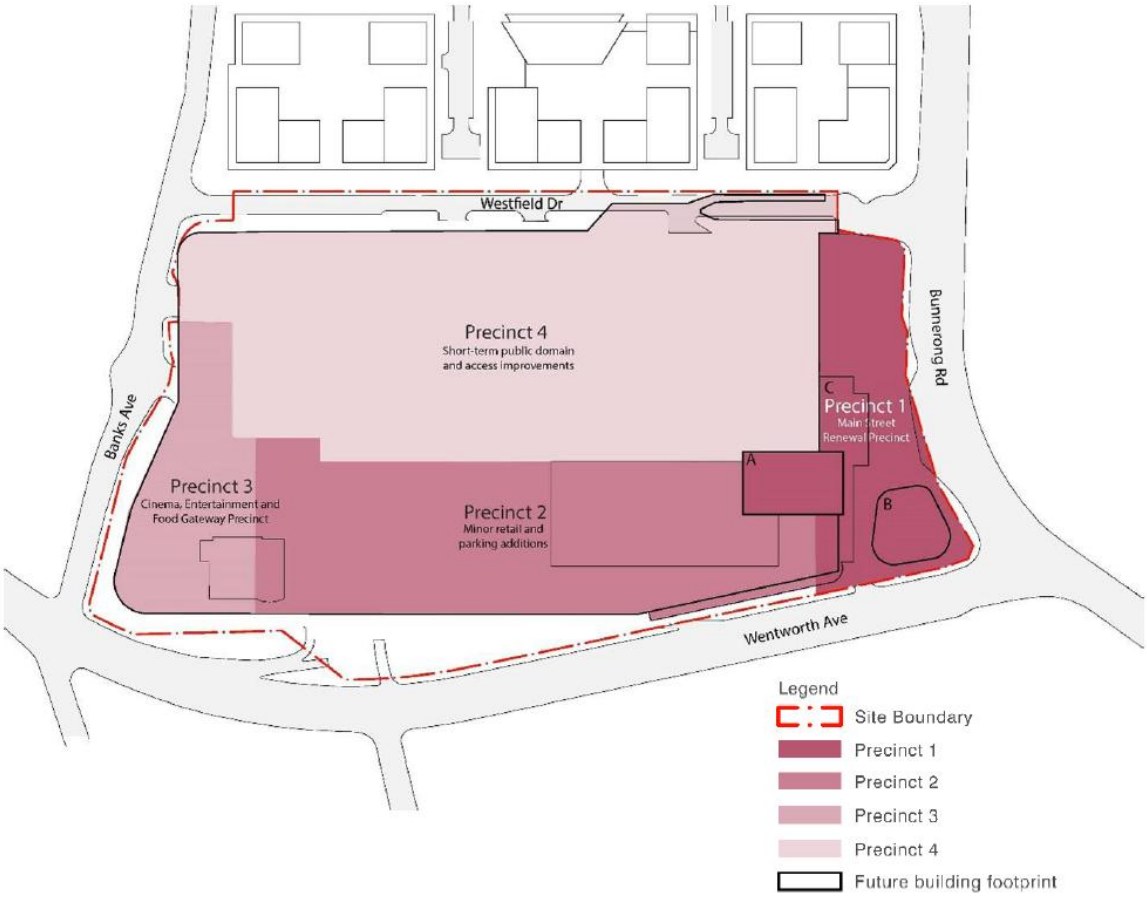


Figure 159: Master plan precinct diagram

7.22.1.1 Vision for the Eastgardens Centre

Westfield Eastgardens will transform over time into a vibrant, centre with an improved retail and entertainment offering and a focus on enhancing customer visitation to the centre on foot and by public transport. New commercial office towers will be integrated into an active civic plaza connected to the bus interchange at the eastern end of the site. The transformation of Westfield Eastgardens is an opportunity to improve accessibility, better connect with the community, create jobs and strengthen the important strategic and economic role of the centre.

Westfield Eastgardens will transcend its role as a traditional shopping centre and become a morning to evening community hub where people can fulfil more of their daily needs.

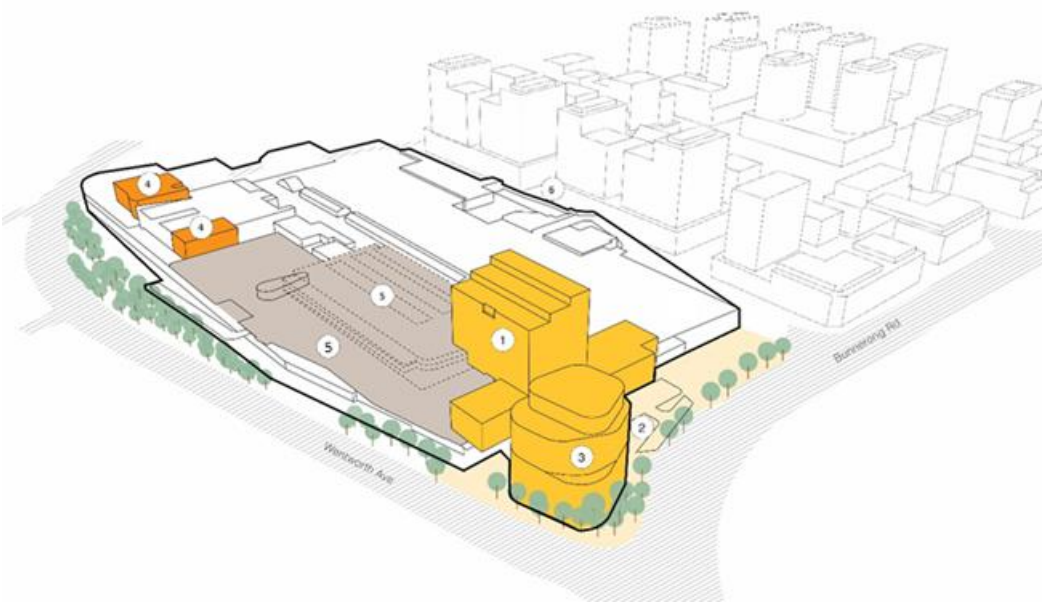
A new active publicly accessible civic plaza fronting Bunnerong Rd, will ensure the centre integrates with the surrounding neighbourhood and delivers an improved arrival experience for visitors travelling on foot, by car or by public transport.

The key objectives to achieve this vision are:

- To expand and redevelop the shopping centre to deliver a mix of new uses to meet the needs of the local community.
- To accommodate future employment growth and promote job creation at the centre, consistent with the role of the Eastgardens-Maroubra Junction Strategic Centre.

- To accommodate health, retail, wellbeing and civic service and lifestyle uses to support the day-to-day needs of the community and builds on the strategic retail importance of the centre.
- To improve pedestrian accessibility, amenity, safety and permeability.
- To improve the external interface and quality of the streetscape around the centre.
- To create a welcoming civic entry from the east by upgrading the bus interchange and enhancing the public domain.
- To deliver public domain upgrades with the renewal of the precincts.

The redevelopment of the site should be consistent with the indicative master plan illustrated at **Figure 160**.



	Key Features
1	A new commercial building
2	A new publicly accessible plaza and upgraded bus interchange fronting Bunnerong Road
3	A new commercial building
4	Desired location for minor retail expansion, including outdoor food and beverage terrace and additional cinemas
5	Desired car park extension as required
6	Public domain improvements to Westfield Drive and a new pedestrian crossing to the Pagewood Green site to the north.

Figure 160: Master Plan - Key Features

7.22.2 Built Form and Amenity

Objective	Control
Building Heights – All Precincts	

Objective		Control	
O1.	Ensure building heights reinforce the strategic importance of the centre but are also appropriate for their context.	**C1.**	The height of buildings in storeys as shown in the preferred building heights strategy in **Figure 161** should not exceed that corresponding the maximum height of buildings (in metres) specified in Bayside LEP 2021. Any variation to the building heights in storeys and footprints must demonstrate that the changes would achieve: • A diversity of building heights, with the tallest buildings appropriately set back from Bunnerong Road. • An appropriate street wall height that creates a high-quality public domain and pedestrian environment along Bunnerong Road. • Variation in building height and form to reduce bulk and scale and provide a sense of openness from the street, landscaped areas and the new publicly accessible plaza.
O2.	Development on the site should minimise solar impact on adjoining properties and the public domain.	**C2.**	Building height in storeys is to be a maximum of 10 storeys on the corner of Bunnerong Road and Wentworth Avenue to promote the prominence of the site whilst providing a transition to surrounding development.
		C3.	Whilst some overshadowing impact is anticipated at an interface between a strategic centre with E2 Commercial Centre zoning and the relatively low-density residential area, development on the site is to minimise overshadowing impacts on the dwellings to the south. Development shall: • Maintain approximately 2 hours of solar access between 9am and 3pm on 21 June to 50% of the primary private open space areas of the dwellings to the south of Wentworth Avenue. • Where the primary private open space of the adjacent development currently receives less than the required amount of sunlight on 21 June (50% coverage for a minimum of 2 hours), development is to not create additional overshadowing to the primary private open space of the adjacent development. • In addition, where the primary private open space of the adjacent development currently receives less than the required amount of sunlight on 21 June (50% coverage for a minimum of 2 hours), development is to ensure that 50% of each front yard receives a minimum of 1 hour of

Objective		Control	
			solar access between 9am and 3pm on 21 June.

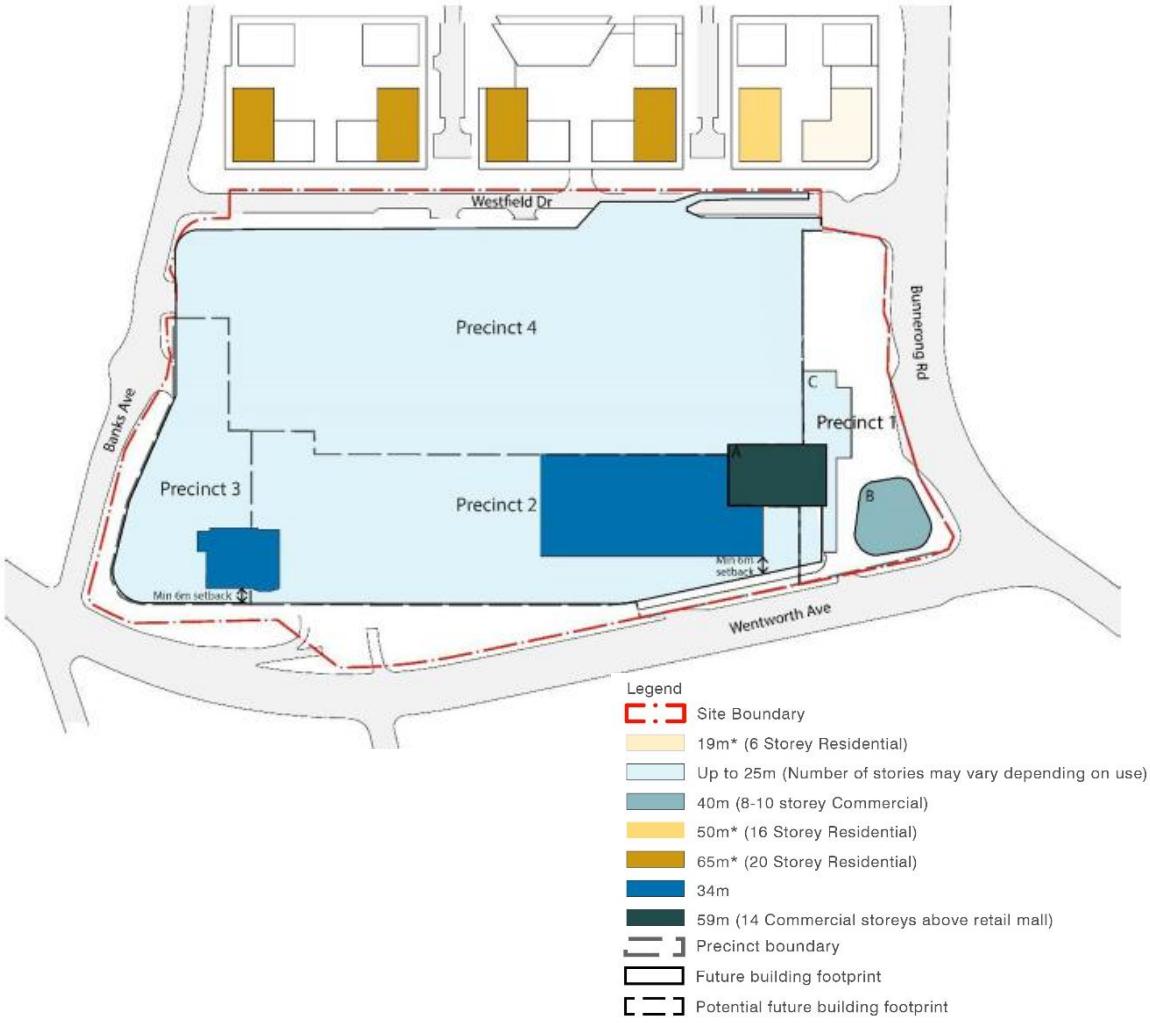


Figure 161: Preferred building height strategy plan

Street Wall Heights – All Precincts			
O1.	Establish an appropriate street wall height along Bunnerong Road to provide an appropriate transition to surrounding development. Street wall heights refer to the height of a building that addresses the street frontage from the ground level up to the first building setback.	**C1.**	Street wall heights are to be in accordance with the street wall plan in **Figure 162**.
		C2.	The new tower (Building B) on the south-eastern corner of the site is to have a maximum street wall height of 8 storeys.
		C3.	Development on the existing main building is to have a maximum 22m street-edge character.
O2.	Ensure buildings are appropriately setback above the street wall height and ensure towers provide an	**C4.**	Taller built form above the existing building is to be set back on the podium behind the street wall. Additional podium levels above the street edge

Objective		Control	
	appropriate scale transition to the street.		should be setback a minimum of 6m from the street wall. See **Figure 161.**

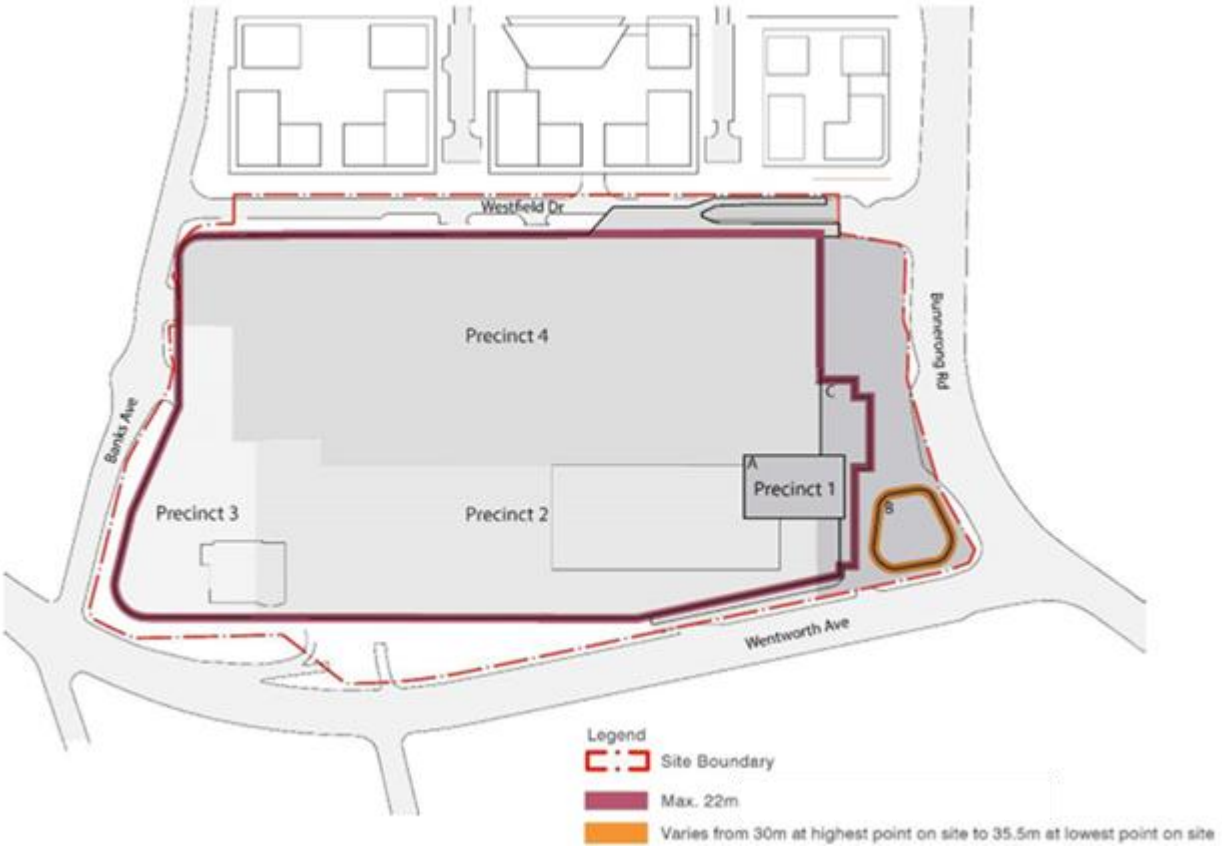


Figure 162: Street wall heights

Building Form			
O1.	Ensure the built form is complementary to the character of the existing and future centre and amenity impacts on surrounding uses are minimised.	**All Precincts**	
		C1.	Building expression through façade modulation, roof silhouette and the use of a variety of contemporary materials and finishes is required to achieve buildings that are of architectural merit, innovation, variety and attractiveness.
O2.	Apply design measures and vegetation to minimise the visual impacts of buildings to streetscapes.	**C2.**	A Schedule of Finishes is required for new buildings and any additions to existing buildings, such as additional floors.
		C3.	Buildings addressing the corner shall include an accentuated form to the corner.
O3.	Encourage renewable energy initiatives such as the installation and use of renewable energy technologies to reduce greenhouse emissions and reduce the energy demand of developments.	**C4.**	New servicing is to be concealed and not visible from the public domain.
		C5.	Blank walls and facades are to be suitably articulated and minimised.

Objective		Control	
O4.	Apply principles and processes that contribute to ecologically sustainable development (ESD) and reduce the impacts of development on the environment.	**C6.**	Roof forms are to be designed to support sustainable functions by orienting surfaces so they are suitable for solar panels and battery storage, green roofs and rainwater tanks for water conservation.
		C7.	For new non-residential development and eligible alterations / refurbishments and additions with an estimated development cost of $5 million or more, the development is to achieve a minimum 4 Star Green Star Certified Rating from the Green Building Council of Australia (GBCA).
		C8.	For non-residential development with an estimated development cost of $5 million or more, an Environmentally Sustainable Design (ESD) Report is to be submitted with the development application. The report is to address any ESD requirements set out in an Environmental Planning Instrument or in this Development Control Plan.
		Precinct 1	
		C9.	The maximum floorplate for Building A is not to exceed 1,550sqm GFA.
		C10.	The maximum floorplate for Building B is not to exceed 1,150 sqm GFA.
		C11.	Buildings are to be well-designed to define corners and activate the ground plane.
Setbacks			
O1.	Allow for the existing site landscaped areas to be retained and enhanced. Ensure the overall landscaped area is not less than existing.	**Precinct 1**	
		C1.	Ground floor setbacks are to be provided generally in accordance with **Figure 163.**
O2.	Ensure building separation and setbacks result in reasonable amenity for neighbours and the public domain, in terms of daylight, human scaled streets, sense of openness, and wind mitigation.	**C2.**	New development is to have front and side setbacks which maximise the retention of the existing green vegetation buffer, retain and protect the existing mature trees.
		C3.	The minimum separation distance between Building B and Building C is to be 16m.
O3.	The intent of the future ground setback strategy is to create a pleasant pedestrian environment and provide for high quality landscaped areas and tree canopy on all frontages.	**C4.**	The upper levels of any tower form are to have a greater southern setback to minimise overshadowing to adjacent dwellings.
		C5.	Building A is to be setback onto a podium and be setback a minimum of 35m from the southern boundary to minimise overshadowing.
		C6.	A Wind Effects Report including results of a wind tunnel test is to be submitted with the DA for all buildings greater than 35m in height. The controls

Objective		Control	
			in Part 3 relating to maximum gust speeds shall also be addressed.
		Precinct 2, 3 and 4	
		C7.	If a Precinct is to be staged, a Ground Floor Setback Strategy is to be submitted with the Concept / Stage 1 development application or first development application lodged for that precinct.
		C8.	Setbacks must be generally in accordance with **Figure 163**.
		C9.	Any future car park additions are to be setback from the existing building edge.

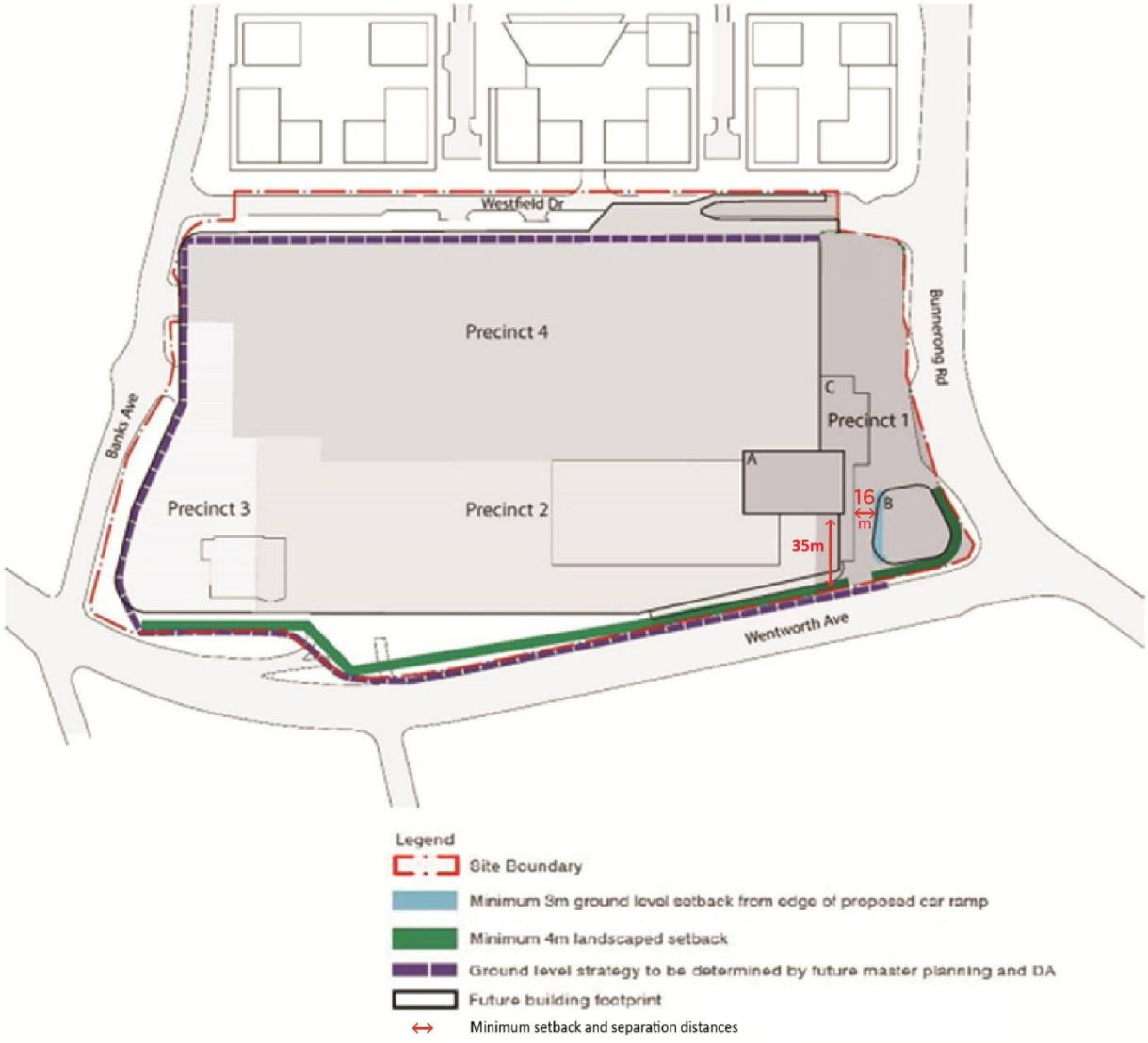


Figure 163: Setbacks diagram

Objective		Control	
Active Street Frontages and Preferred Land Uses			
O1.	Ensure that the centre develops to be more outward-facing at the eastern and western activity hubs and have an improved relationship with the street.	**All Precincts**	
		C1.	Active frontages must be provided generally in accordance with **Figure 164**.
O2.	Create a vibrant integrated precinct that is activated at all times of the day and into the night, with retail, commercial and community spaces.	**C2.**	Two active hubs are to be created at the eastern and western end of the centre to enhance the arrival experience to the centre. A new plaza at the eastern end will connect to the existing central spine.
O3.	Encourage new office uses that will support the centre's economic function and reinforce the centre's strategic employment role.	**C3.**	Development should be generally in accordance with the preferred land use strategy provided in **Figure 165**.
O4.	Prioritise pedestrian amenity and safety.	**C4.**	Active frontages are to be developed for entertainment, retail or commercial uses that interface with the public domain.
O5.	Minimise blank façades, basement access and servicing along Bunnerong Road and the Wentworth Avenue corner at Bunnerong Road.	**C5.**	The number of building entries and active tenancies is to be maximised in activate frontage areas.
		C6.	Glazing, outdoor dining and operable windows are to be maximised in the active frontage zones. Blank walls are to be avoided in active frontage areas, and if necessary, must be architecturally treated.
O6.	Ensure the activation of busy pedestrian entries, such as the publicly accessible plaza and transport interchange area on Bunnerong Road.	**C7.**	Where outdoor dining is proposed, the Outdoor Dining controls in Part 6 of the DCP are to be addressed.
		Precincts 2 and 3	
		C8.	If a Precinct is to be staged, an Active Frontage Strategy is to be submitted with the Concept / Stage 1 development application or first development application lodged for that precinct. The Active Frontage Strategy is to be integrated with any Landscape and Access strategies for the precinct and wider site.
		C9.	The activation of the western Banks Avenue precinct for pedestrians to meet, gather and enter the site is a priority for future development of Precinct 3.

Objective	Control

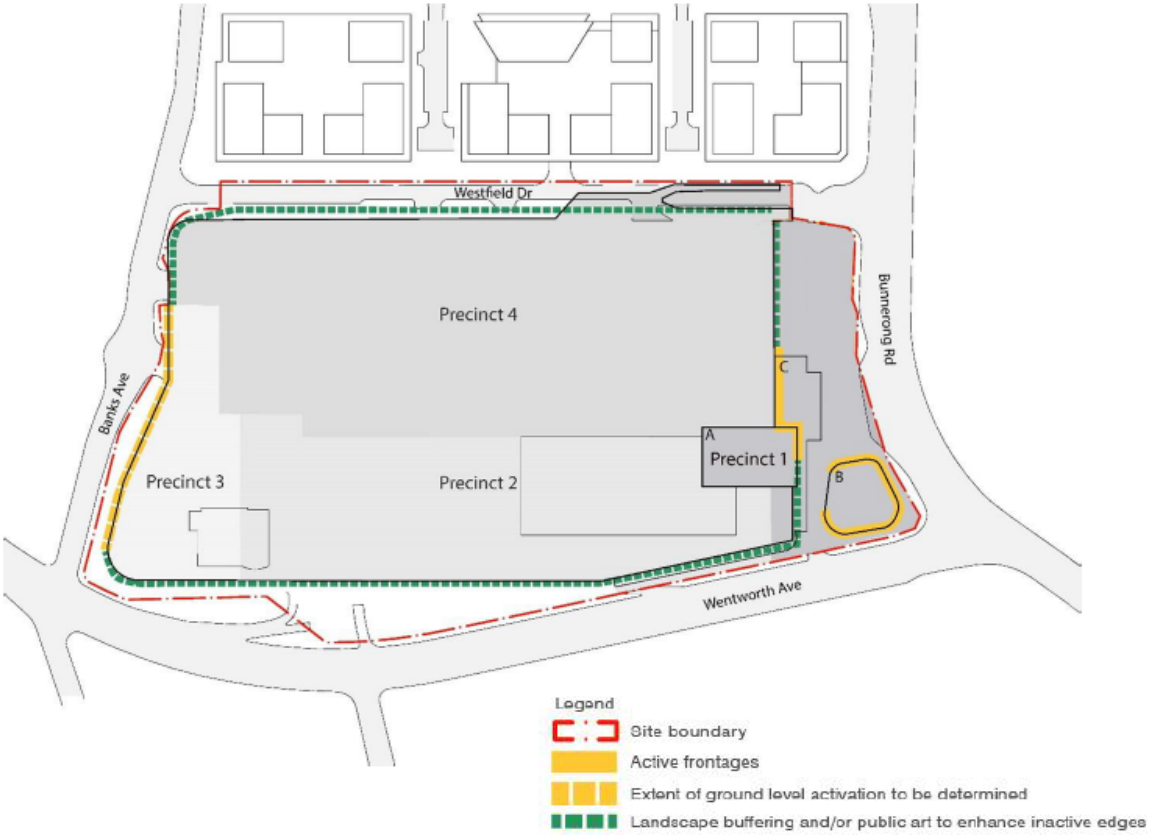


Figure 164: Active frontage diagram

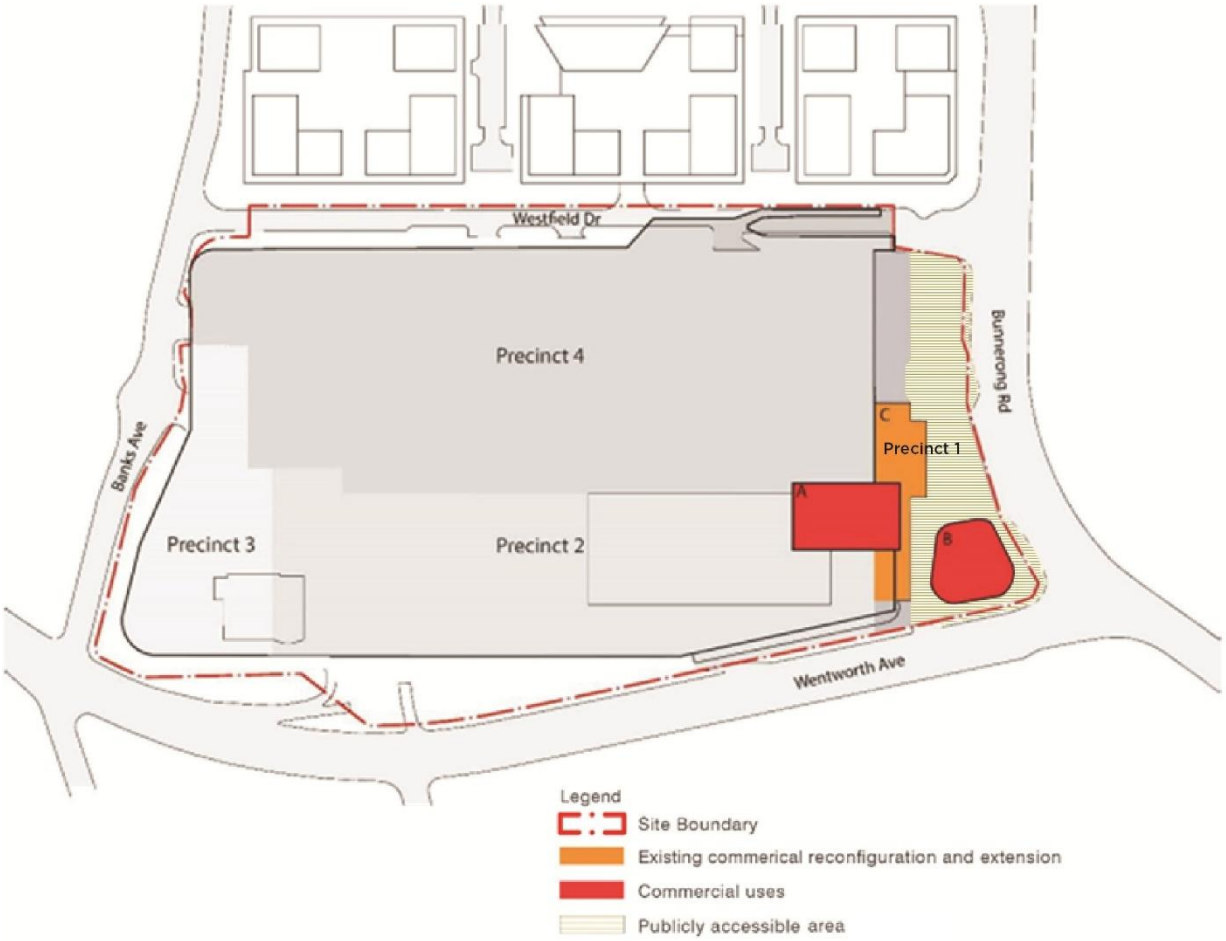


Figure 165: Preferred land use plan

Objective		Control	
Awnings and Entries – All Precincts			
O1.	Ensure all development is easy to find and accessible for customers, employees, visitors and transport users.	**C1.**	All new buildings must have clearly visible entries at ground level from the public domain, or publicly accessible plaza.
O2.	Ensure that all new buildings have clearly visible entries from ground-level or the public domain.	**C2.**	Lobbies and entrances to new buildings are to have clear and legible street address or activate the public plaza.
O3.	Encourage entrances that are designed to clearly guide visitors to access points and define the transition between public and private spaces.	**C3.**	Provide awnings or building overhangs (minimum 3m depth) at street or ground-level commercial and retail developments for weather protection and pedestrian amenity. These elements must integrate with the building's architectural character and use materials suitable for local climatic conditions.
O4.	Provide weather protection and shading for pedestrians and shop fronts.	**C4.**	A continuous awning strategy is to be provided along open pedestrian routes.

Objective		Control	
		C5.	Disabled access must be provided in accordance with Part 3.6.1 – Accessibility and the Disability Discrimination Act 1992.
Hours of Access and Operation – All Precincts			
O1.	Ensure the operation of commercial or retail uses does not cause undue disturbance to the amenity of surrounding residential areas.	**C1.**	Where late night trading is proposed, the controls in Part 3.15 are to be addressed.
O2.	To minimise the abandonment of shopping trolleys.	**C2.**	For any development that will provide shopping trolleys for customers, a Shopping Trolley Management Plan is to be submitted with the development application which outlines in detail how shopping trolleys will be managed on and off the site. The Plan is to include all aspects of trolley management including: a. How trolleys will be returned to the trolley bays; b. Methods for identifying shopping trolleys that belong to a specific business (e.g. serial numbers, company logo, tracking device etc.); c. Details of a trolley containment system, or alternative trolley control system, which restricts the removal of trolleys from the premises; d. How the operator will restrict the movement of shopping trolleys outside the development; e. How it is proposed to manage any shopping trolleys that are taken off site; f. Measures to ensure that any trolleys reported as posing a risk or nuisance, are collected immediately upon notification (this may require an "after hours" collection service); and g. A site plan of the premises showing the location of trolley bays and exit points.

7.22.3 Landscaping and Public Domain

Objective		Control	
General		**All Precincts**	
O1.	Deliver a high-quality, pedestrian-focused public domain that is attractive, accessible, and encourages social interaction, shopping, and dining.	**C1.**	Retain existing mature trees along Bunnerong Road, Wentworth Avenue, and in street setbacks wherever possible, augmenting these with additional plantings.

Objective		Control	
O2.	Integrate landscaping and vegetation, including the retention of significant existing trees, to create a green buffer and enhance the public realm.	**C2.**	Future development shall increase overall tree canopy cover on site and ensuring landscape buffer widths support the growth of large, mature trees without the need for excessive pruning.
O3.	Promote 'green buildings' and encourage the inclusion of green walls, green façades, green roofs, and rooftop gardens to enhance building aesthetics, improve the streetscape, and help mitigate the urban heat island effect.	**C3.**	Prioritise planting of native trees or locally inspired species with minimum 200L pot size, particularly along Wentworth Avenue, to reduce the visual impact of built form and complement the streetscape. If new street trees are proposed, the proposed tree species are to be consistent with Council's Street Tree Masterplan.
O4.	Ensure safe and convenient pedestrian access from the residential area north of the Westfield site, while maintaining essential loading operations on Westfield Drive.	**C4.**	Maintain or increase deep soil and landscaping areas on site to support healthy vegetation growth and ecological function.
O5.	Prioritise upgrades to Westfield Drive that improve conditions for pedestrians and cyclists to support the long-term renewal of Precincts 2 to 4.	**C5.**	New developments and major alterations and additions are to incorporate green walls / façades, green roofs, and / or rooftop gardens as part of their building design and be designed to be integrated with the overall architectural and landscape strategy of the development. These landscape elements should be designed in accordance with Bayside's Landscape Technical Specification.
O6.	Ensure that future development of Precincts 2 and 3 deliver improved landscape, design and access conditions.	**C6.**	If a Precinct is to be staged, a detailed staged Public Domain and Landscape Strategy is to be submitted with the Concept / Stage 1 development application or first development application lodged for that precinct. For non-staged Precincts, a detailed landscape plan is to be submitted with the development application.

Objective		Control	
		C7.	A Public Domain and Landscape Strategy is to be prepared in consultation with Council and is to address, but not limited to the following: • Bayside Landscape Technical Specification requirements; • Tree Assessment Report of existing trees; • Tree and landscape retention details; • Planting strategy, typologies and maintenance / on-going management details; • Water sensitive urban design principles; • Integration of soft landscaping with built form; • Streetscape design (materials, kerb and pavement design, furniture, pedestrian access); • Clearly defined useable public spaces and pedestrian amenity; • Design and location of active and public transport connections; • Signage, wayfinding, lighting and materials palette; • Any outdoor dining seating arrangements; and • Public art strategy.
		C8.	Street furniture (e.g., bins, bollards, signage, lighting) is to be designed to minimise visual clutter, reduce environmental impacts on neighbours, and maintain clear pedestrian pathways.
		C9.	Development must address Crime Prevention through Environmental Design (CPTED) controls in Part 3.1.3.
		Precinct 1 and 4	
		C10.	A new active civic plaza is to be delivered along Bunnerong Road, generally in accordance with **Figure 166**.
		C11.	The design of the new publicly accessible plaza must: a. Improve pedestrian access to the retail centre and buildings A, B, and C; b. Be activated by uses such as retail, cafés, outdoor dining, or community spaces. c. Maximise openness to air and sky, with natural ventilation and daylight and where it is covered, employ architectural

Objective		Control	
			mechanisms that feel open and publicly accessible. d. Include high-quality landscaping and landscaped light-wells providing natural ventilation and daylight to the below-ground bus terminus. e. Integrate the retail interface at the upper level plaza with the public transport connections through direct access . f. Include appropriate lighting for safety and security.
		C12.	A Public Domain and Landscape Strategy for Precinct 1 is to be submitted and consistent with the public domain design shown in **Figure 166**.
		C13.	The Public Domain and Landscape Strategy for Precinct 1 is to be prepared concurrently with public domain and pedestrian access improvements for Precinct 4 at Westfield Drive and must include, but is not limited to: • Precinct improvements shown on any of the figures in this Part; • Pedestrian access enhancements to Westfield Drive and improved footpath connections to the northern residential area; • Clear, safe, and legible pedestrian routes prioritising desire lines to the shopping centre and public transport; • Public art to screen ramps and cantilevers; • Visual treatments to reduce the impact of loading docks, blank walls, storage areas, and car ramps whilst maintaining passive surveillance and improve presentation; • Lighting upgrades for pedestrian safety without emphasising existing structures; • CPTED improvements for pedestrian areas between the building and existing carpark ramps. • Traffic calming measures to maximise pedestrian safety to protect pedestrian networks; • Streetscape enhancements with landscaping that maintain safety and security; • Wayfinding measures; and • Public art with relevant local context.

Objective		Control	
			All works in Precinct 4 are to be designed in consultation with Council with upgrades to Westfield Drive to be completed to Council's satisfaction prior to the occupancy or operation of any development in Precinct 1.

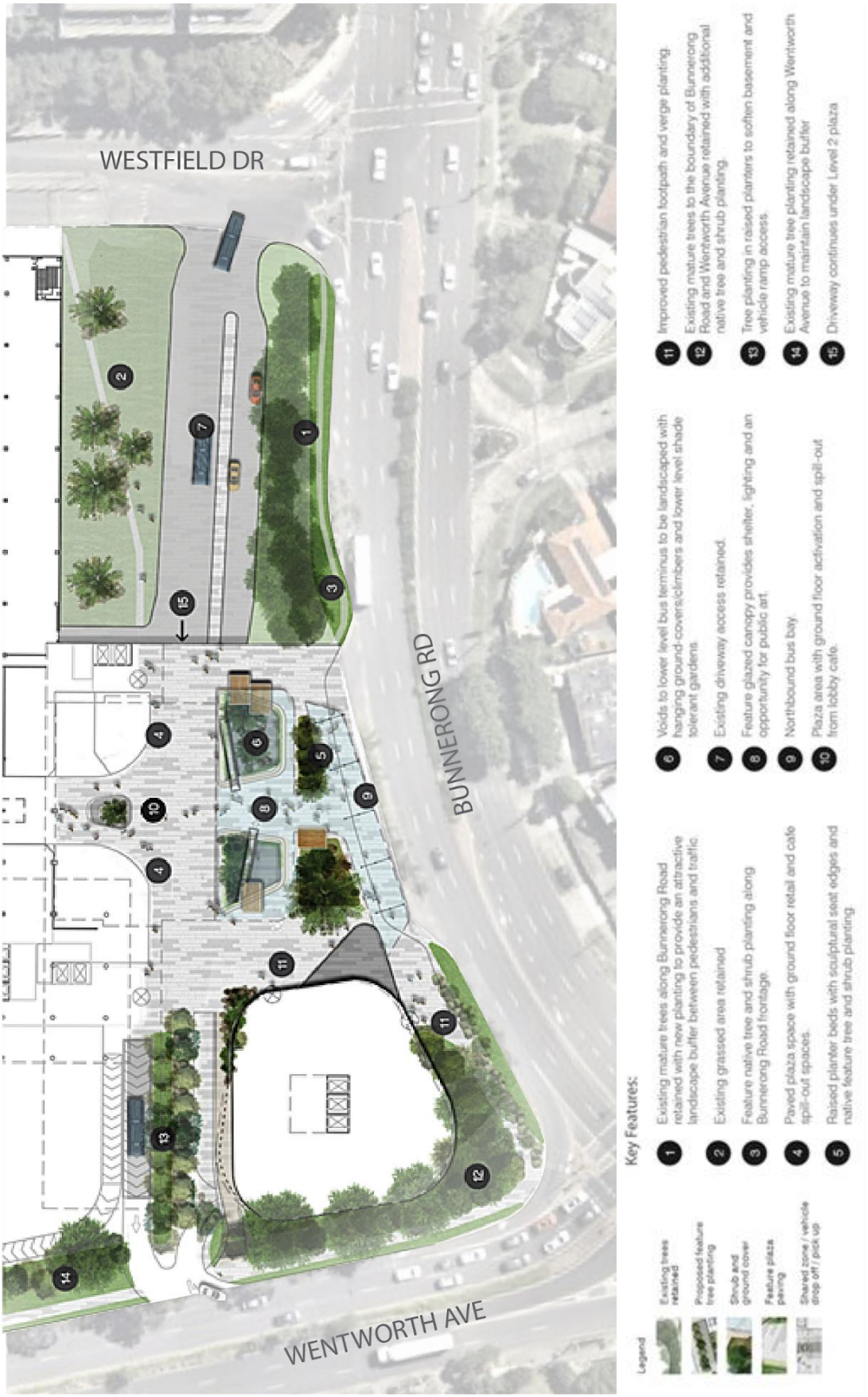


Figure 166: Landscape and publicly accessible areas within the public domain of Precinct 1

Objective		Control	
Public Art Strategy – All Precincts			
O1.	To integrate engaging and purpose-built public art into the urban landscape to support increased activation and place-making.	**C1.**	A detailed Public Art Strategy is to be submitted for each of the Precincts. The Strategy for each Precinct is to be submitted with the Concept / Stage 1 development application or first development application lodged for that precinct.
O2.	To create public spaces that are engaging and fit for purpose to support increased activation and place-making.	**C2.**	The Public Art Strategy should draw on inspiration from either the Indigenous heritage, the botanical heritage of Botany Bay, the coastal location or the industrial heritage of the port precinct.
		C3.	The Public Art Strategy is to comply with the requirements of the Bayside Public Art Policy 2022 and public art selection panels are to include a Bayside Council Arts and Culture Specialist.

7.22.4 Transport, Access and Movement

Objective		Control	
Public and Active Transport			
O1.	To establish Bunnerong Road as the main public transport and active transport interface.	**All Precincts**	
		C1.	Public transport circulation around the site is to be generally in accordance with **Figure 167** and any Transport for NSW (TfNSW) requirements.
O2.	To provide clear and safe links to public transport and active transport routes and increase pedestrian traffic.	**C2.**	Clear links to public transport shall be provided from building entries.
O3.	Provide an upgraded public bus interchange and facilities to encourage active or alternative transport and public transport use.	**C3.**	Works adjoining street frontages on routes identified in the Bayside Priority Cycleway Network in Bayside's Bike Plan 2024 and in Randwick's Cycling Network Plan in Randwick City Council's Active Transport Plan (June 2024), shall support and complement the cycleways by incorporating safe bicycle access into the centre.
		C4.	Facilities for active and public transport, are to be provided in and around the site.
		C5.	Adequate active transport wayfinding and signage are to be provided around the site.

Objective		Control	
		Precinct 1	
		C6.	An upgraded bus interchange must be included with any future development application for Precinct 1. The upgraded bus interchange must be included within the Bunnerong Road plaza and be designed to meet TfNSW requirements, including bus driver facilities, bus parking / layover spaces and have potential for expanded capacity to accommodate future service increases.
		C7.	The bus interchange is to be arranged over two levels with north-bound buses accessed via a kerbside stop, off Bunnerong Rd whilst south-bound buses are located within the sunken bus terminus below the plaza within Precinct 1, generally as shown in **Figure 167.**
		C8.	Pull-in bays for north-bound buses shall be provided on the western edge of Bunnerong Road.
		C9.	Consultation is to be undertaken with TfNSW regarding whether a Bus Interchange Operations and Safety Plan (BIOSP) is required to be prepared and submitted with the Development Application. If a BIOSP is required, the applicant is to prepare the plan in consultation with TfNSW and relevant operators and demonstrate compliance with applicable standards.
		C10.	A shared drop-off / pick-up zone for shared mobility, taxi, ride share, kiss and ride are to be accommodated within the below grade bus terminus.
		Precinct 3	
		C11.	A second shared drop-off / pick-up zone for shared mobility, taxi, ride share, kiss and ride are to be accommodated on the ground level near the Banks Avenue entrance.

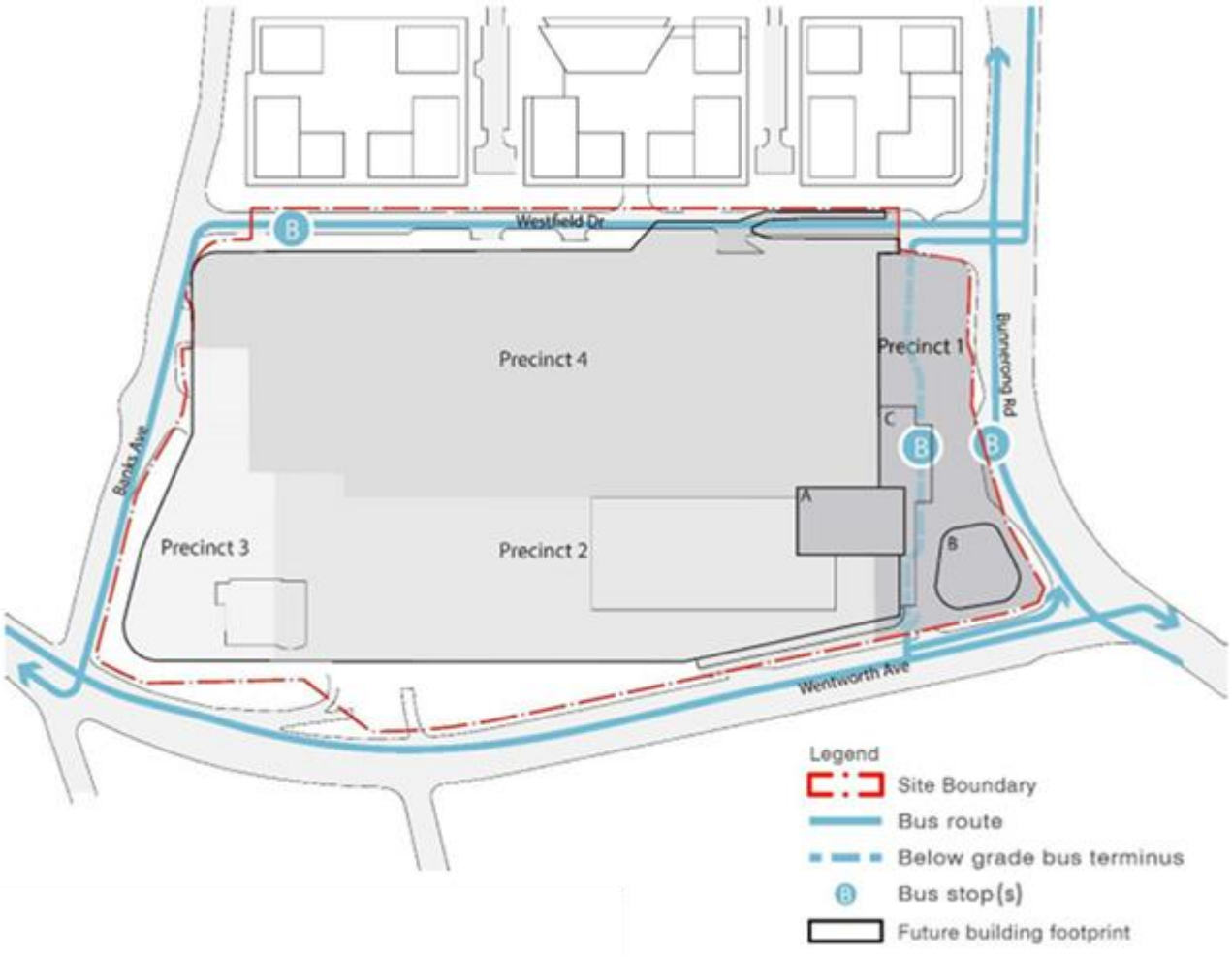


Figure 167: Public transport circulation

Objective		Control	
Pedestrian Access			
O1.	Enhance pedestrian accessibility, amenity, safety and permeability throughout the site and minimise potential conflict with vehicular traffic.	**All Precincts**	
		C1.	Access to existing and proposed buildings are to be generally consistent with **Figure 168**.
O2.	Strengthen pedestrian connections from the west of the site to the Bunnerong Road bus terminus.	**C2.**	A safe path of travel is to be maintained through the centre to the bus interchange.
O3.	Improve pedestrian access from the adjacent northern residential precinct	**C3.**	Pedestrian paths must be: • Free from obstructions such as landscaping, door swings, or furniture; • Constructed with high-quality paving
O4.	Ensure public spaces are accessible, safe and welcoming at all times of the day.		

Objective		Control	
O5.	Provide safe and permeable access through the site during operational hours.		materials that support intuitive wayfinding; • Integrated with the Bunnerong Road plaza design where applicable.
		C4.	Vehicular crossovers on designated pedestrian routes must be minimized to ensure pedestrian safety and ease of movement. Development should not restrict the potential for new pedestrian connections or reduce site permeability.
		C5.	Pedestrian paths surrounding the centre are to be upgraded with tree canopy provided to shelter paths where feasible.
		C6.	Escalators must be designed to be clearly visible, easy to navigate, and seamlessly connected to pedestrian pathways.
		C7.	Pedestrian areas are to be well lit, especially at night.
		C8.	Disabled access must be provided in accordance with the *Disability Discrimination Act 1992* and Accessibility requirements in Part 3 of the DCP.
		Precinct 1	
		C9.	The plaza is to be privately owned and maintained and must be subject to a positive covenant on title ensuring unlimited, unimpeded access by the general public at all times.
		C10.	The plaza is to be a safe and welcoming space for users at all times through the provision of lighting and design considerations whilst protecting surrounding residential amenity.
		C11.	Pedestrian access is to be generally provided in accordance with the locations and design requirements in **Figure 168** and **Figure 169**.
		C12.	Further pedestrian and traffic studies are to be undertaken to determine and design safe pedestrian movement between Precinct 1 and 4. Consideration should be given to enhancing Westfield Drive with traffic calming and improved pedestrian crossing facilities to reduce pedestrian conflict with the bus and vehicular dominance at the T-junction of Westfield Drive and Bunnerong

Objective		Control	
			Road. This is to be submitted with the Concept / Stage 1 development application or first development application lodged for either precinct.
		Precincts 2, 3 and 4	
		C13.	A detailed Access Strategy is to be submitted for Precincts 2 to 4. The Strategy for each Precinct is to be submitted with the Concept / Stage 1 development application or first development application lodged for that precinct. An Access Strategy must demonstrate how pedestrian access within these precincts can be improved by: • Incorporating pedestrian movement and connections in and around the site as shown in **Figure 168.** • Upgrading all pedestrian access points along Wentworth Ave and include dedicated pedestrian / active transport access corridor through the car park to centre entrances. Refer to **Figure 168.** • Promoting accessibility by foot, bicycle and public transport; • Facilitating north-south movement through the centre and consider new entrances from Westfield Drive along desire lines; • Minimise vehicle and pedestrian conflict areas; • Create an improved town centre environment with a focus on pedestrian amenity and safety; and • Prioritise pedestrian and landscape improvements along Banks Avenue, reducing car park dominance and supporting shared mobility access.
		Precinct 4	
		C14.	Any significant additional development in Precinct 4 in the future would need to be accompanied by a strategy for: • Rationalisation of loading and service areas to improve pedestrian environment. • Investigation of a new north-south through site link into the shopping centre with activated openings to Westfield Drive

Objective		Control	
			• Investigation into the rationalisation of the loading and car ramps to Level 3 and 4 loading and parking facilities.

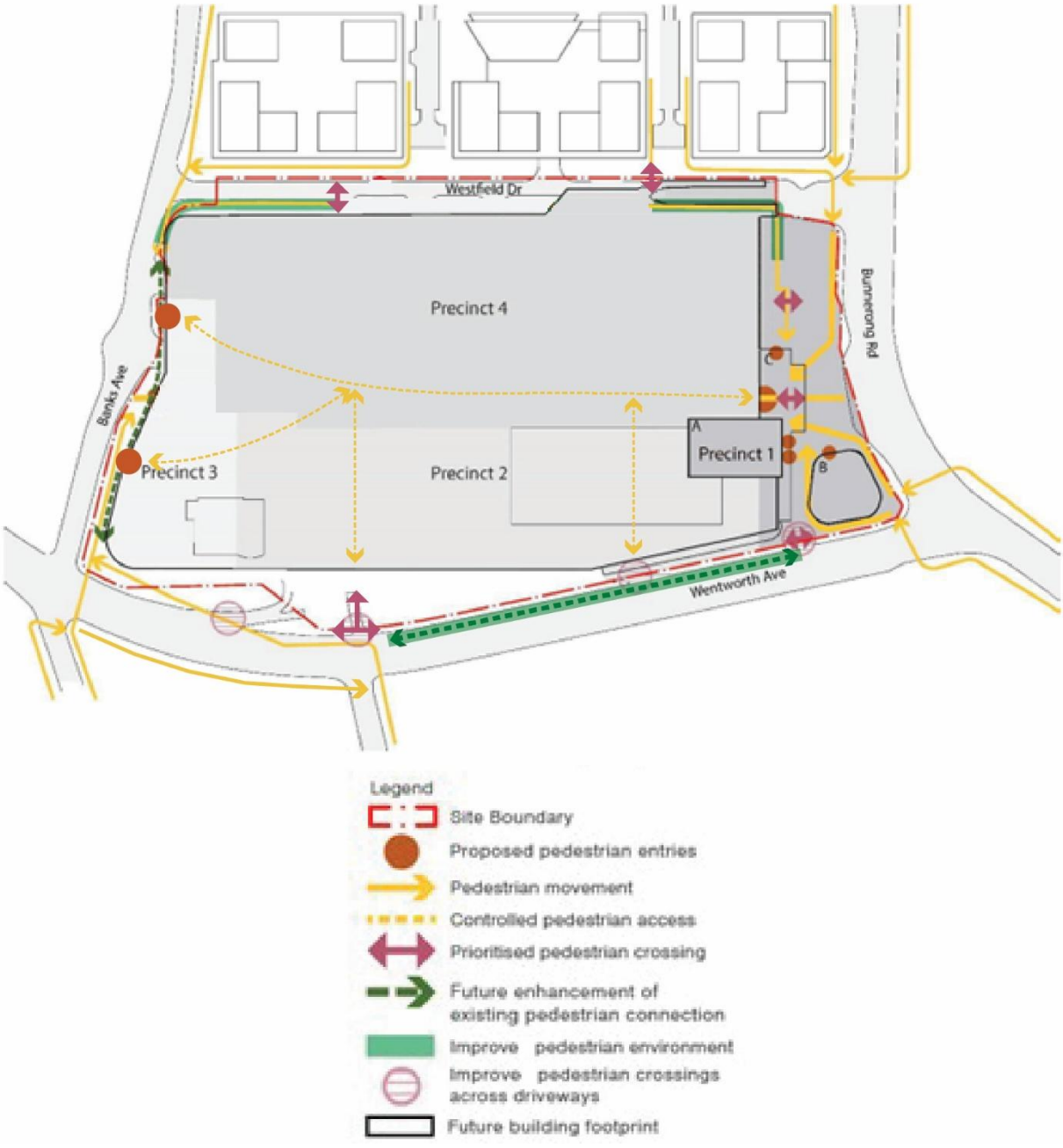
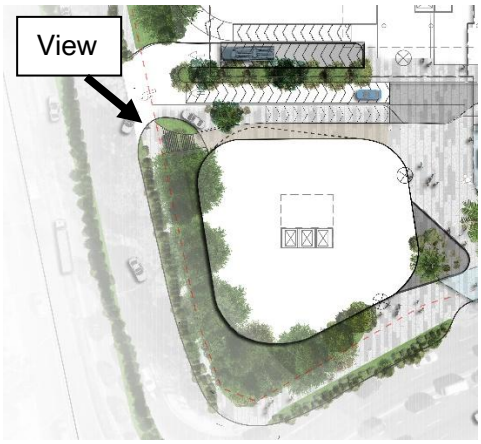


Figure 168: Pedestrian access and building entries

Objective	Control



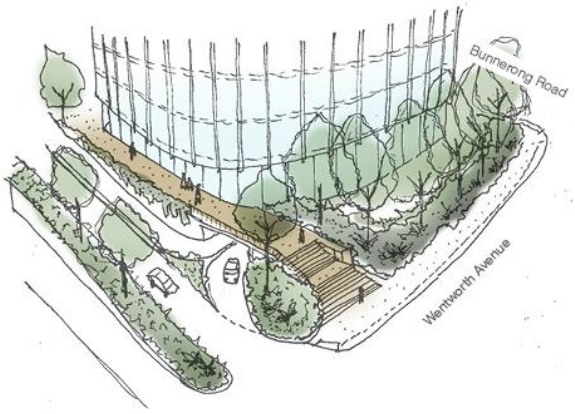


Figure 169: Indicative 3D and plan view of pedestrian access to the west of Building B

Parking and Vehicular Access			
O1.	Minimise vehicle and pedestrian conflict.	**All Precincts**	
O2.	Maintain efficient service vehicle access.	**C1.**	Car parking provision shall be determined by a Parking Assessment based on surveys of similar developments and analysis of current use and demand. Key considerations in determining appropriate car parking rates include: • Access to public transport and active transport opportunities. • Where different uses on site have alternative peak periods and can effectively share parking • Where technology can be used to ensure parking is used efficiently
O3.	Maintain the existing primary vehicular access points to the site (off Wentworth Avenue, Westfield Drive and Banks Avenue) and ensure that any changes to the location and design of car park entries are efficient, safe, and integrated into the design of the development to minimise visual impact.		
O4.	Retain existing car parking provision and provide additional parking appropriate for the expansion of the centre.		
O5.	Prioritise pedestrian safety within carpark areas	**C2.**	No additional vehicular access is to be provided to the site.
		C3.	Loading is to be undertaken primarily from Westfield Drive.
		C4.	All loading and unloading is to be undertaken on-site.
		C5.	Any reconfiguration of carparking areas is to incorporate a food delivery waiting area in a location with safe and convenient access to food and drink premises within the centre.
		C6	Walking routes within car parks are highlighted with pavement paint to improve pedestrian safety to the centre entrance points.

Objective		Control	
		C7.	Landscape and planting design at car park entries shall be configured to provide a visually welcoming experience, while maintaining clear sightlines to ensure safety for both vehicles and pedestrians.
		C8.	Any new above ground car parking areas are to be screened from publicly accessible streets and spaces with façade treatments that allow natural ventilation but minimise the visibility of cars within the car park
		Precinct 1	
		C9.	No additional car access is to be provided directly off Bunnerong Road**.**
		C10.	An updated traffic management plan for the whole site is to be submitted with the Concept / Stage 1 development application or first development application lodged for that precinct.
		Precincts 2, 3 and 4	
		C11.	Any changes to vehicle access to the site should seek to improve accessibility to and through the site for pedestrians, cyclists and public transport.
		C12.	An updated traffic management plan for the site is to be submitted with the Concept / Stage 1 development application or first development application lodged for each precinct.
Road Network – All Precincts			
O1.	Accommodate increased traffic movement around the development.	**C1.**	Upgrades to surrounding intersections and new pedestrian connections are to be undertaken in consultation with, and to the satisfaction of TfNSW and Council.
O2.	Upgrade surrounding road network to improve pedestrian and vehicular safety and connectivity.	**C2.**	A signalised pedestrian crossing at the T-junction of Wentworth Ave and Denison Street shall be provided in consultation with TfNSW.